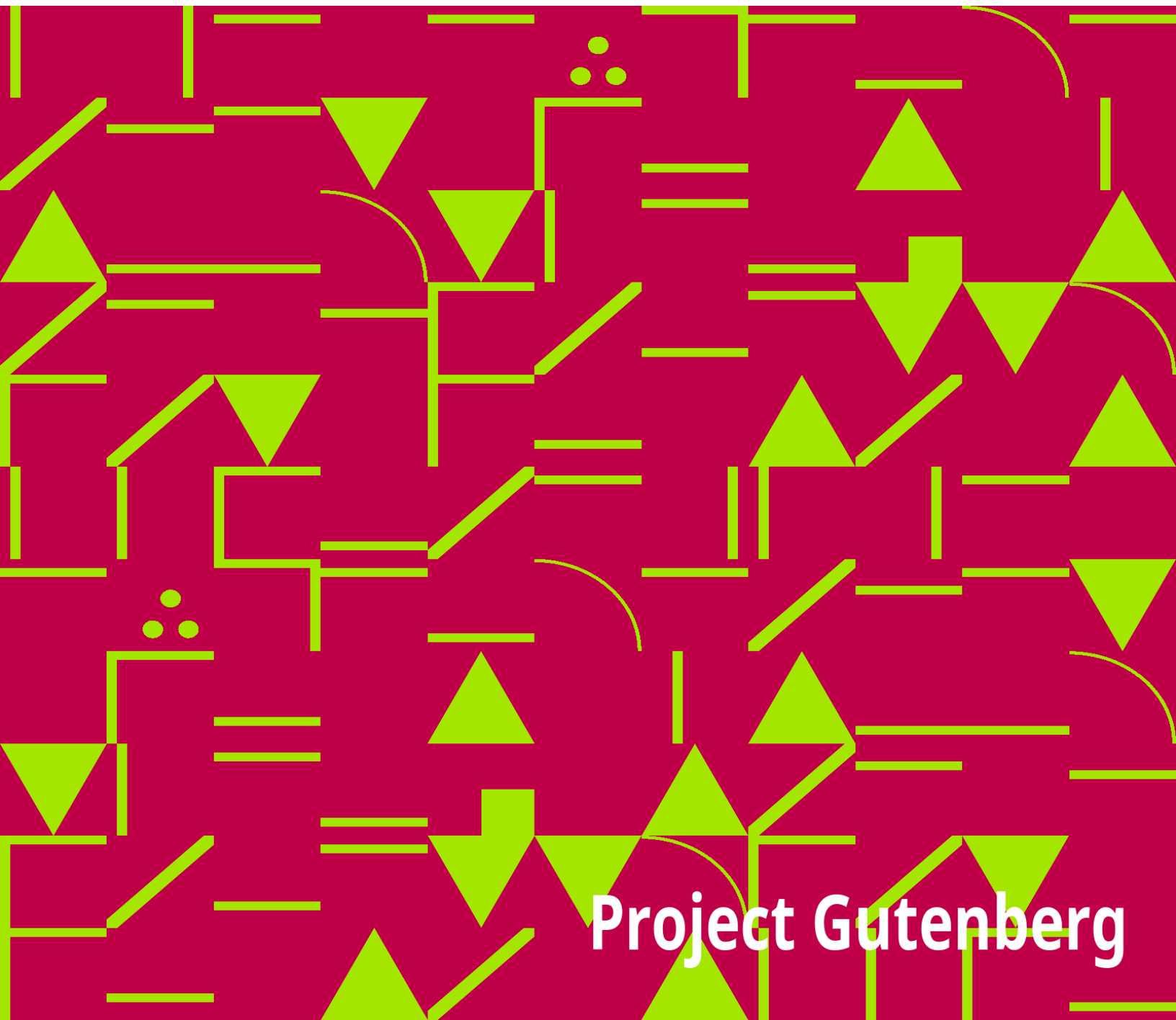


The Experiences of a Barrister, and Confessions of an Attorney

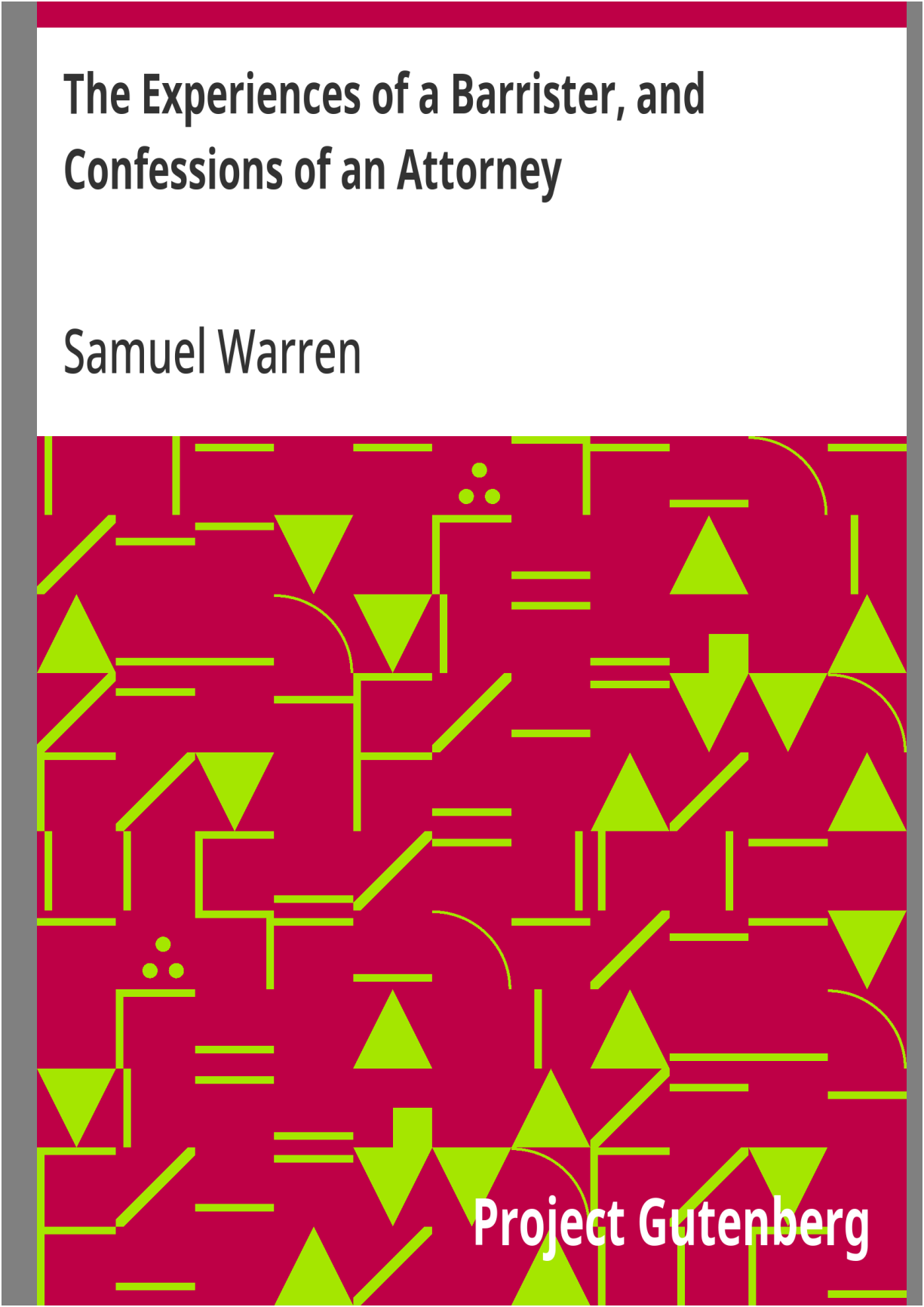
Samuel Warren



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The Experiences of a Barrister, and Confessions of an Attorney

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EXPERIENCES OF A BARRISTER, AND CONFESSIONS OF AN
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THE EXPERIENCES OF A BARRISTER,

AND

Confessions of an Attorney.

BY SAMUEL WARREN

1880

CONTENTS.

THE MARCH ASSIZE

THE NORTHERN CIRCUIT

THE CONTESTED MARRIAGE

THE MOTHER AND SON

"THE WRIT OF HABEAS CORPUS"

ESTHER MASON

THE MARRIAGE SETTLEMENT

THE SECOND MARRIAGE

CIRCUMSTANTIAL EVIDENCE

"THE ACCOMMODATION BILL"

THE REFUGEE

THE LIFE POLICY

BIGAMY OR NO BIGAMY

JANE ECCLES

"EVERY MAN HIS OWN LAWYER"

THE CHEST OF DRAWERS

THE PUZZLE

THE ONE BLACK SPOT

THE GENTLEMAN BEGGAR

A FASHIONABLE FORGER

THE YOUNG ADVOCATE

A MURDER IN THE TIME OF THE CRUSADES

CONFESSIONS OF AN ATTORNEY.

THE MARCH ASSIZE.

Something more than half a century ago, a person, in going along Holborn, might have seen, near the corner of one of the thoroughfares which diverge towards Russell Square, the respectable-looking shop of a glover and haberdasher named James Harvey, a man generally esteemed by his neighbors, and who was usually considered well to do in the world. Like many London tradesmen, Harvey was originally from the country. He had come up to town when a poor lad, to push his fortune, and by dint of steadiness and civility, and a small property left him by a distant relation, he had been able to get into business on his own account, and to attain that most important element of success in London—"a connection." Shortly after setting up in the world, he married a young woman from his native town, to whom he had been engaged ever since his school-days; and at the time our narrative commences he was the father of three children.

James Harvey's establishment was one of the best frequented of its class in the street. You could never pass without seeing customers going in or out. There was evidently not a little business going forward. But although, to all appearance, a flourishing concern, the proprietor of the establishment was surprised to find that he was continually pinched in his circumstances. No matter what was the amount of business transacted over the counter, he never got any richer.

At the period referred to, shop-keeping had not attained that degree of organization, with respect to counter-men and cashiers, which now distinguishes the great houses of trade. The primitive till was not yet superseded. This was the weak point in Harvey's arrangements; and not to make a needless number of words about it, the poor man was regularly robbed by a shopman, whose dexterity in pitching a guinea into the drawer, so as to make it jump, unseen, with a jerk into his hand, was worthy of Herr Dobler, or any other master of the sublime art of jugglery.

Good-natured and unsuspecting, perhaps also not sufficiently vigilant, Harvey was long in discovering how he was pillaged. Cartwright, the name of the person who was preying on his employer, was not a young man. He was between forty and fifty years of age, and had been in various situations, where he had always given satisfaction, except on the score of being somewhat gay and somewhat irritable. Privately, he was a man of loose habits, and for years his extravagances had been paid for by property clandestinely abstracted from his too-confiding master. Slow to believe in the reality of such wickedness, Mr. Harvey could with difficulty entertain the suspicions which began to dawn on his mind. At length all doubt was at an end. He detected Cartwright in the very act of carrying off goods to a considerable amount. The man was tried at the Old Bailey for the offence; but through a technical informality in the indictment, acquitted.

Unable to find employment, and with a character gone, the liberated thief became savage, revengeful, and desperate. Instead of imputing his fall to his own irregularities, he considered his late unfortunate employer as the cause of his ruin; and now he bent all the energies of his dark nature to destroy the reputation of the man whom he had betrayed and plundered. Of all the beings self-delivered to the rule of unscrupulous malignity, with whom it has been my fate to come professionally in contact, I never knew one so utterly fiendish as this discomfited pilferer. Frenzied with his

imaginary wrongs, he formed the determination to labor, even if it were for years, to ruin his victim. Nothing short of death should divert him from this the darling object of his existence.

Animated by these diabolical passions, Cartwright proceeded to his work. Harvey, he had too good reason to know, was in debt to persons who had made him advances; and by means of artfully-concocted anonymous letters, evidently written by some one conversant with the matters on which he wrote, he succeeded in alarming the haberdasher's creditors. The consequences were—demands of immediate payment, and, in spite of the debtor's explanations and promises, writs, heavy law expenses, ruinous sacrifices, and ultimate bankruptcy. It may seem almost too marvelous for belief, but the story of this terrible revenge and its consequences is no fiction. Every incident in my narrative is true, and the whole may be found in hard outline in the records of the courts with which a few years ago I was familiar.

The humiliated and distressed feelings of Harvey and his family may be left to the imagination. When he found himself a ruined man, I dare say his mental sufferings were sufficiently acute. Yet he did not sit down in despair. To re-establish himself in business in England appeared hopeless; but America presented itself as a scene where industry might find a reward; and by the kindness of some friends, he was enabled to make preparations to emigrate with his wife and children. Towards the end of February he quitted London for one of the great seaports, where he was to embark for Boston. On arriving there with his family, Mr. Harvey took up his abode at a principal hotel. This, in a man of straitened means, was doubtless imprudent; but he afterwards attempted to explain the circumstance by saying, that as the ship in which he had engaged his passage was to sail on the day after his arrival, he had preferred incurring a slight additional expense rather than that his wife—who was now, with failing spirits,

nursing an infant—should be exposed to coarse associations and personal discomfort. In the expectation, however, of being only one night in the hotel, Harvey was unfortunately disappointed. Ship-masters, especially those commanding emigrant vessels, were then, as now, habitual promise-breakers; and although each succeeding sun was to light them on their way, it was fully a fortnight before the ship stood out to sea. By that time a second and more dire reverse had occurred in the fortunes of the luckless Harvey.

Cartwright, whose appetite for vengeance was but whetted by his first success, had never lost sight of the movements of his victim; and now he had followed him to the place of his embarkation, with an eager but undefined purpose of working him some further and more deadly mischief. Stealthily he hovered about the house which sheltered the unconscious object of his malicious hate, plotting, as he afterwards confessed, the wildest schemes for satiating his revenge. Several times he made excuses for calling at the hotel, in the hope of observing the nature of the premises, taking care, however, to avoid being seen by Mr. Harvey or his family. A fortnight passed away, and the day of departure of the emigrants arrived without the slightest opportunity occurring for the gratification of his purposes. The ship was leaving her berth; most of the passengers were on board; Mrs. Harvey and the children, with nearly the whole of the luggage, were already safely in the vessel; Mr. Harvey only remained on shore to purchase some trifling article, and to settle his bill at the hotel on removing his last trunk. Cartwright had tracked him all day; he could not attack him in the street; and he finally followed him to the hotel, in order to wreak his vengeance on him in his private apartment, of the situation of which he had informed himself.

Harvey entered the hotel first, and before Cartwright came up, he had gone down a passage into the bar to settle the bill which he had incurred for

the last two days. Not aware of this circumstance, Cartwright, in the bustle which prevailed, went up stairs to Mr. Harvey's bedroom and parlor, in neither of which, to his surprise, did he find the occupant; and he turned away discomfited. Passing along towards the chief staircase, he perceived a room of which the door was open, and that on the table there lay a gold watch and appendages. Nobody was in the apartment: the gentleman who occupied it had only a few moments before gone to his bed-chamber for a brief space. Quick as lightning a diabolical thought flashed through the brain of the villain, who had been baffled in his original intentions. He recollected that he had seen a trunk in Harvey's room, and that the keys hung in the lock. An inconceivably short space of time served for him to seize the watch, to deposit it at the bottom of Harvey's trunk, and to quit the hotel by a back stair, which led by a short cut to the harbor. The whole transaction was done unperceived, and the wretch at least departed unnoticed.

Having finished his business at the bar, Mr. Harvey repaired to his room, locked his trunk, which, being of a small and handy size, he mounted on his shoulder, and proceeded to leave the house by the back stair, in order to get as quickly as possible to the vessel. Little recked he of the interruption which was to be presented to his departure. He had got as far as the foot of the stair with his burden, when he was overtaken by a waiter, who declared that he was going to leave the house clandestinely without settling accounts. It is proper to mention that Mr. Harvey had incurred the enmity of this particular waiter in consequence of having, out of his slender resources, given him too small a gratuity on the occasion of paying a former bill, and not aware of the second bill being settled, the waiter was rather glad to have an opportunity of charging him with a fraudulent design. In vain Mr. Harvey remonstrated, saying he had paid for every thing. The waiter would not believe his statement, and detained him "till he should hear better about it."

"Let me go, fellow; I insist upon it," said Mr. Harvey, burning with indignation. "I am already too late."

"Not a step, till I ask master if accounts are squared."

At this moment, while the altercation was at the hottest, a terrible ringing of bells was heard, and above stairs was a loud noise of voices, and of feet running to and fro. A chambermaid came hurriedly down the stair, exclaiming that some one had stolen a gold watch from No. 17, and that nobody ought to leave the house till it was found. The landlord also, moved by the hurricane which had been raised, made his appearance at the spot where Harvey was interrupted in his exit.

"What on earth is all this noise about, John?" inquired the landlord of the waiter.

"Why, sir, I thought it rather strange for any gentleman to leave the house by the back way, carrying his own portmanteau, and so I was making a little breeze about it, fearing he had not paid his bill, when all of a sudden Sally rushes down the stair and says as how No. 17 has missed his gold watch, and that no one should quit the hotel."

No. 17, an old, dry-looking military gentleman, in a particularly high passion, now showed himself on the scene, uttering terrible threats of legal proceedings against the house for the loss he had sustained.

Harvey was stupified and indignant, yet he could hardly help smiling at the pother. "What," said he, "have I to do with all this? I have paid for everything; I am surely entitled to go away if I like. Remember, that if I lose my passage to Boston, you shall answer for it."

"I very much regret detaining you, sir," replied the keeper of the hotel; "but you hear there has been a robbery committed within the last few minutes, and as it will be proper to search every one in the house, surely you, who are on the point of departure, will have no objections to be searched first, and then be at liberty to go?"

There was something so perfectly reasonable in all this, that Harvey stepped into an adjoining parlor, and threw open his trunk for inspection, never doubting that his innocence would be immediately manifest.

The waiter, whose mean rapacity had been the cause of the detention, acted as examiner. He pulled one article after another out of the trunk, and at length—horror of horrors!—held up the missing watch with a look of triumph and scorn!

"Who put that there?" cried Harvey in an agony of mind which can be better imagined than described. "Who has done me this grievous wrong? I know nothing as to how the watch came into my trunk."

No one answered this appeal. All present stood for a moment in gloomy silence.

"Sir," said the landlord to Harvey on recovering from his surprise, "I am sorry for you. For the sake of a miserable trifle, you have brought ruin and disgrace on yourself. This is a matter which concerns the honor of my house, and cannot stop here. However much it is against my feelings, you must go before a magistrate."

"By all means," added No. 17, with the importance of an injured man. "A pretty thing that one's watch is not safe in a house like this!"

"John, send Boots for a constable," said the landlord.

Harvey sat with his head leaning on his hand. A deadly cold perspiration trickled down his brow. His heart swelled and beat as if it would burst. What should he do? His whole prospects were in an instant blighted. "Oh God! do not desert a frail and unhappy being: give me strength to face this new and terrible misfortune," was a prayer he internally uttered. A little revived, he started to his feet, and addressing himself to the landlord, he said, "Take me to a magistrate instantly, and let us have this diabolical plot unraveled. I court inquiry into my character and conduct."

"It is no use saying any more about it," answered the landlord; "here is Boots with a constable, and let us all go away together to the nearest magistrate. Boots, carry that trunk. John and Sally, you can follow us."

And so the party, trunk and all, under the constable as conductor, adjourned to the house of a magistrate in an adjacent street. There the matter seemed so clear a case of felony—robbery in a dwelling-house—that Harvey, all protestations to the contrary, was fully committed for trial at the ensuing March assizes, then but a few days distant.

At the period at which these incidents occurred, I was a young man going on my first circuits. I had not as yet been honored with perhaps more than three or four briefs, and these only in cases so slightly productive of fees, that I was compelled to study economy in my excursions. Instead of taking up my residence at an inn when visiting ——, a considerable seaport, where the court held its sittings, I dwelt in lodgings kept by a widow lady, where, at a small expense, I could enjoy perfect quietness, free from interruption.

On the evening after my arrival on the March circuit of the year 17—, I was sitting in my lodgings perusing a new work on criminal jurisprudence, when the landlady, after tapping at the door, entered my room.

"I am sorry to trouble you, sir," said she; "but a lady has called to see you about a very distressing law case—very distressing indeed, and a very strange case it is too. Only, if you could be so good as to see her?"

"Who is she?"

"All I know about it is this: she is a Mrs. Harvey. She and her husband and children were to sail yesterday for Boston. All were on board except the husband; and he, on leaving the large hotel over the way, was taken up for a robbery. Word was in the evening sent by the prisoner to his wife to come on shore, with all her children and the luggage; and so she came back in the pilot boat, and was in such a state of distress, that my brother, who is on the preventive service, and saw her land, took pity on her, and had her and her children and things taken to a lodging on the quay. As my brother knows that we have a London lawyer staying here, he has advised the poor woman to come and consult you about the case."

"Well, I'll see what can be done. Please desire the lady to step in."

A lady was shortly shown in. She had been pretty, and was so still, but anxiety was pictured in her pale countenance. Her dress was plain, but not inelegant; and altogether she had a neat and engaging appearance.

"Be so good as to sit down," said I, bowing; "and tell me all you would like to say."

The poor woman burst into tears; but afterwards recovering herself, she told me pretty nearly the whole of her history and that of her husband.

Lawyers have occasion to see so much duplicity, that I did not all at once give assent to the idea of Harvey being innocent of the crime of which he stood charged.

"There is something perfectly inexplicable in the case," I observed, "and it would require sifting. Your husband, I hope has always borne a good character?"

"Perfectly so. He was no doubt unfortunate in business; but he got his certificate on the first examination; and there are many who would testify to his uprightness." And here again my client broke into tears, as if overwhelmed with her recollections and prospects.

"I think I recollect Mr. Harvey's shop," said I soothingly. "It seemed a very respectable concern; and we must see what can be done. Keep up your spirits; the only fear I have arises from the fact of Judge A —— being on the bench. He is usually considered severe, and if exculpatory evidence fail, your husband may run the risk of being—transported." A word of more terrific import, with which I was about to conclude, stuck unuttered in my throat "Have you employed an attorney?" I added.

"No; I have done nothing as yet, but apply to you, to beg of you to be my husband's counsel."

"Well, that must be looked to. I shall speak to a local agent, to prepare and work out the case; and we shall all do our utmost to get an acquittal. To-morrow I will call on your husband in prison."

Many thanks were offered by the unfortunate lady, and she withdrew.

I am not going to inflict on the reader a detailed account of this remarkable trial, which turned, as barristers would say, on a beautiful point of circumstantial evidence. Along with the attorney, a sharp enough person in his way, I examined various parties at the hotel, and made myself acquainted with the nature of the premises. The more we investigated, however, the more dark and mysterious—always supposing Harvey's

innocence—did the whole case appear. There was not one redeeming trait in the affair, except Harvey's previous good character; and good character, by the law of England, goes for nothing in opposition to facts proved to the satisfaction of a jury. It was likewise most unfortunate that A —— was to be the presiding judge. This man possessed great forensic acquirements, and was of spotless private character; but, like the majority of lawyers of that day—when it was no extraordinary thing to hang twenty men in a morning at Newgate—he was a staunch stickler for the gallows as the only effectual reformer and safeguard of the social state. At this time he was but partially recovered from a long and severe indisposition, and the traces of recent suffering were distinctly apparent on his pale and passionless features.

Harvey was arraigned in due form; the evidence was gone carefully through; and everything, so far as I was concerned, was done that man could do. But at the time to which I refer, counsel was not allowed to address the court on behalf of the prisoner—a practice since introduced from Scotland—and consequently I was allowed no opportunity to draw the attention of the jury to the total want of any direct evidence of the prisoner's guilt. Harvey himself tried to point out the unlikelihood of his being guilty; but he was not a man gifted with dialectic qualities, and his harangue fell pointless on the understandings of the twelve common-place individuals who sat in the jury-box. The judge finally proceeded to sum the evidence, and this he did emphatically *against* the prisoner—dwelling with much force on the suspicious circumstance of a needy man taking up his abode at an expensive fashionable hotel; his furtive descent from his apartments by the back stairs; the undoubted fact of the watch being found in his trunk; the improbability of any one putting it there but himself; and the extreme likelihood that the robbery was effected in a few moments of time by the culprit, just as he passed from the bar of the hotel to the room which he had occupied. "If," said he to the jury, in concluding his address, "you can, after all these circumstances, believe the prisoner to be innocent of the crime laid

to his charge, it is more than I can do. The thing seems to me as clear as the sun at noonday. The evidence, in short, is irresistible; and if the just and necessary provisions of the law are not enforced in such very plain cases, then society will be dissolved, and security for property there will be none. Gentlemen, retire and make up your verdict."

The jury were not disposed to retire. After communing a few minutes together, one of them stood up and delivered the verdict: it was *Guilty*! The judge assumed the crowning badge of the judicial potentate—the black cap; and the clerk of arraigns asked the prisoner at the bar, in the usual form, if he had anything to urge why sentence of death should not be passed upon him.

Poor Harvey! I durst scarcely look at him. As the sonorous words fell on his ear, he was grasping nervously with shaking hands at the front of the dock. He appeared stunned, bewildered, as a man but half-awakened from a hideous dream might be supposed to look. He had comprehended, though he had scarcely heard, the verdict; for on the instant, the voice which but a few years before sang to him by the brook side, was ringing through his brain, and he could recognize the little pattering feet of his children, as, sobbing and clinging to their shrieking mother's dress, she and they were hurried out of court. The clerk, after a painful pause, repeated the solemn formula. By a strong effort the doomed man mastered his agitation; his pale countenance lighted up with indignant fire, and firm and self-possessed, he thus replied to the fearful interrogatory:—

"Much could I say in the name, not of mercy, but of justice, why the sentence about to be passed on me should not be pronounced; but nothing, alas! that will avail me with you, pride-blinded ministers of death. You fashion to yourselves—out of your own vain conceits do you fashion—modes and instruments, by the aid of which you fondly imagine to invest

yourselves with attributes which belong only to Omniscience; and now I warn you—and it is a voice from the tomb, in whose shadow I already stand, which addresses you—that you are about to commit a most cruel and deliberate murder."

He paused, and the jury looked into each other's eyes for the courage they could not find in their own hearts. The voice of conscience spoke, but was only for a few moments audible. The suggestions that what grave parliaments, learned judges, and all classes of "respectability" sanctioned, could not be wrong, much less murderous or cruel, silenced the "still, small" tones, and tranquilized the startled jurors.

"Prisoner at the bar," said the judge with his cold, calm voice of destiny, "I cannot listen to such observations: you have been found guilty of a heinous offence by a jury of your countrymen after a patient trial. With that finding I need scarcely say I entirely agree. I am as satisfied of your guilt as if I had seen you commit the act with my own bodily eyes. The circumstance of your being a person who, from habits and education, should have been above committing so base a crime, only aggravates your guilt. However, no matter who or what you have been, you must expiate your offence on the scaffold. The law has very properly, for the safety of society, decreed the punishment of death for such crimes: our only and plain duty is to execute that law."

The prisoner did not reply: he was leaning with his elbows on the front of the dock, his bowed face covered with his outspread hands; and the judge passed sentence of death in the accustomed form. The court then rose, and a turnkey placed his hand upon the prisoner's arm, to lead him away. Suddenly he uncovered his face, drew himself up to his full height—he was a remarkably tall man—and glared fiercely round upon the audience, like a wild animal at bay. "My lord," he cried, or rather shouted, in an excited

voice. The judge motioned impatiently to the jailor, and strong hands impelled the prisoner from the front of the dock. Bursting from them, he again sprang forward, and his arms outstretched, whilst his glittering eye seemed to hold the judge spell-bound, exclaimed, "My lord, before another month has passed away, *you* will appear at the bar of another world, to answer for the life, the innocent life, which God bestowed upon me, but which you have impiously cast away as a thing of naught and scorn!" He ceased, and was at once borne off. The court, in some confusion, hastily departed. It was thought at the time that the judge's evidently failing health had suggested the prophecy to the prisoner. It only excited a few days' wonder, and was forgotten.

The position of a barrister in such circumstances is always painful. I need hardly say that my own feelings were of a very distressing kind. Conscious that if the unfortunate man really was guilty, he was at least not deserving of capital punishment, I exerted myself to procure a reprieve. In the first place I waited privately on the judge; but he would listen to no proposal for a respite. Along with a number of individuals—chiefly of the Society of Friends—I petitioned the crown for a commutation of the sentence. But being unaccompanied with a recommendation from the judge, the prayer of our petition was of course disregarded: the law, it was said, must take its course. How much cruelty has been exercised under shelter of that remorseless expression!

I would willingly pass over the succeeding events. Unable to save his life, I endeavored to soothe the few remaining hours of the doomed convict, and frequently visited him in the condemned cell. The more I saw of him, the deeper grew my sympathy in his case, which was that of no vulgar felon. "I have been a most unfortunate man," said he one day to me. "A destiny towards ruin in fortune and in life has pursued me. I feel as if deserted by God and man; yet I know, or at least would persuade myself,

that Heaven will one day vindicate my innocence of this foul charge. To think of being hanged like a dog for a crime at which my soul revolts! Great is the crime of those imbecile jurors and that false and hard-hearted judge, who thus, by an irreversible decree, consign a fellow-mortal to a death of violence and disgrace. Oh God, help me—help me to sustain that bitter, bitter hour!" And then the poor man would throw himself on his bed and weep.

But the parting with his wife and children. What pen can describe that terrible interview! They knelt in prayer, their woe-begone countenances suffused in tears, and with hands clasped convulsively together. The scene was too harrowing and sacred for the eye of a stranger. I rushed from the cell, and buried myself in my lodgings, whence I did not remove till all was over. Next day James Harvey, a victim of circumstantial evidence, and of a barbarous criminal code, perished on the scaffold.

Three weeks afterwards, the court arrived at a populous city in the west of England. It had in the interval visited another assize town, and there Judge A —— had left three for execution. At the trials of these men, however, I had not attended. So shocked had been my feelings with the mournful event which had taken place at ——, that I had gone into Wales for the sake of change of scene. After roaming about for a fortnight amidst the wild solitudes of Caernarvonshire, I took the stage for the city which I knew the court was to visit, and arrived on the day previous to the opening of the assizes.

"Well, are we to have a heavy calendar?" I inquired next morning of a brother barrister on entering the court.

"Rather light for a March assize," replied the impatient counsel as he bustled onward. "There's Cartwright's case—highway robbery—in which I am for the prosecution. He'll swing for it, and perhaps four or five others."

"A good hanging judge is A ——," said the under-sheriff, who at this moment joined us, rubbing his hands, as if pleased with the prospect of a few executions. "No chance of the prophecy yonder coming to pass I suppose?"

"Not in the least," replied the bustling counsel. "He never looked better. His illness has gone completely off. And this day's work will brighten him up."

Cartwright's trial came on. I had never seen the man before, and was not aware that this was the same person whom Harvey had incidentally told me he had discharged for theft; the truth being, that till the last moment of his existence, that unfortunate man had not known how much he had been a sacrifice to this wretch's malice.

The crime of which the villain now stood accused was that of robbing a farmer of the paltry sum of eight shillings, in the neighborhood of Ilfracombe. He pleaded not guilty, but put in no defence. A verdict was recorded against him, and in due form A —— sentenced him to be hanged. An expression of fiendish malignancy gleamed over the haggard features of the felon as he asked leave to address a few words to the court. It was granted. Leaning forward, and raising his heavy, scowling eyes to the judge, he thus began:—"There is something on my mind, my lord—a dreadful crime—which, as I am to die for the eight shillings I took from the farmer, I may as well confess. You may remember Harvey, my lord, whom you hanged the other day at—?"

"What of him, fellow?" replied the judge, his features suddenly flushing crimson.

"Why, my lord, only this—that he was as innocent of the crime for which you hanged him as the child yet unborn! I did the deed! I put the watch in

his trunk!" And to the unutterable horror of the entire court he related the whole particulars of the transaction, the origin of his grudge against Harvey, and his delight on bringing him to the gallows.

"Inhuman, execrable villain!" gasped the judge in extreme excitement.

"Cleverly done, though! Was it not, my lord?" rejoined the ruffian with bitter irony. "The evidence, you know, was irresistible; the crime as clear as the sun at noonday; and if in such plain cases, the just and necessary law was not enforced, society would be dissolved, and there would be no security for property! These were your words, I think. How on that occasion I admired your lordship's judgment and eloquence! Society would be dissolved if an innocent man were not hanged! Ha!—ha!—ha! Capital!—capital!" shouted the ferocious felon with demoniac glee, as he marked the effect of his words on the countenance of the judge.

"Remove the prisoner!" cried the sheriff. An officer was about to do so; but the judge motioned him to desist. His lordship's features worked convulsively. He seemed striving to speak, but the words would not come.

"I suppose, my lord," continued Cartwright in low and hissing tones, as the shadow of unutterable despair grew and settled on his face—"I suppose you know that his wife destroyed herself. The coroner's jury said she had fallen accidentally into the water, *I* know better. She drowned herself under the agonies of a broken heart! I saw her corpse, with the dead baby in its arms; and then I felt, knew, that I was lost! Lost, doomed to everlasting perdition! But, my lord,"—and here the wretch broke into a howl wild and terrific—"we shall go down together—down to where your deserts are known. A—h—h! that pinches you, does it? Hound of a judge! legal murderer! coward! I spurn and spit upon thee!" The rest of the appalling objurgation was inarticulate, as the monster, foaming and sputtering, was dragged by an officer from the dock.

Judge A —— had fallen forwards on his face, fainting and speechless with the violence of his emotions. The black cap had dropped from his brow. His hands were stretched out across the bench, and various members of the bar rushed to his assistance. The court broke up in frightful commotion.

Two days afterwards the county paper had the following announcement:

"Died at the Royal Hotel, ——, on the 27th instant, Judge A ——, from an access of fever supervening upon a disorder from which he had imperfectly recovered."

The prophecy was fulfilled!

THE NORTHERN CIRCUIT.

About the commencement of the present century there stood, near the centre of a rather extensive hamlet, not many miles distant from a northern seaport town, a large, substantially-built, but somewhat straggling building, known as Craig Farm (popularly *Crook Farm*) House. The farm consisted of about one hundred acres of tolerable arable and meadow land; and at the time I have indicated, belonged to a farmer of the name of Armstrong. He had purchased it about three years previously, at a sale held, in pursuance of a decree of the High Court of Chancery, for the purpose of liquidating certain costs incurred in the suit of Craig *versus* Craig, which the said high court had nursed so long and successfully, as to enable the solicitor to the victorious claimant to incarcerate his triumphant client for several years in the Fleet, in "satisfaction" of the charges of victory remaining due after the proceeds of the sale of Craig Farm had been deducted from the gross total. Farmer Armstrong was married, but childless; his dame, like himself, was a native of Devonshire. They bore the character of a plodding, taciturn, morose-mannered couple: seldom leaving the farm except to attend market, and rarely seen at church or chapel, they naturally enough became objects of suspicion and dislike to the prying, gossiping villagers, to whom mystery or reserve of any kind was of course exceedingly annoying and unpleasant.

Soon after Armstrong was settled in his new purchase another stranger arrived, and took up his abode in the best apartments of the house. The new-

comer, a man of about fifty years of age, and evidently, from his dress and gait, a sea-faring person, was as reserved and unsocial as his landlord. His name, or at least that which he chose to be known by, was Wilson. He had one child, a daughter, about thirteen years of age, whom he placed at a boarding-school in the adjacent town. He seldom saw her; the intercourse between the father and daughter being principally carried on through Mary Strugnell, a widow of about thirty years of age, and a native of the place. She was engaged as a servant to Mr. Wilson, and seldom left Craig Farm except on Sunday afternoons, when, if the weather was at all favorable, she paid a visit to an aunt living in the town; there saw Miss Wilson; and returned home usually at half-past ten o'clock—later rather than earlier. Armstrong was occasionally absent from his home for several days together, on business, it was rumored, for Wilson; and on the Sunday in the first week of January 1802, both he and his wife had been away for upwards of a week, and were not yet returned.

About a quarter-past ten o'clock on that evening the early-retiring inhabitants of the hamlet were roused from their slumbers by a loud, continuous knocking at the front door of Armstrong's house: louder and louder, more and more vehement and impatient, resounded the blows upon the stillness of the night, till the soundest sleepers were awakened. Windows were hastily thrown open, and presently numerous footsteps approached the scene of growing hubbub. The unwonted noise was caused, it was found, by Farmer Armstrong, who accompanied by his wife, was thundering vehemently upon the door with a heavy black-thorn stick. Still no answer was obtained. Mrs. Strugnell, it was supposed, had not returned from town; but where was Mr. Wilson, who was almost always at home both day and night? Presently a lad called out that a white sheet or cloth of some sort was hanging out of one of the back windows. This announcement, confirming the vague apprehensions which had begun to germinate in the wise heads of the villagers, disposed them to adopt a more

effectual mode of obtaining admission than knocking seemed likely to prove. Johnson, the constable of the parish, a man of great shrewdness, at once proposed to break in the door. Armstrong, who, as well as his wife, was deadly pale, and trembling violently, either with cold or agitation, hesitatingly consented, and crowbars being speedily procured, an entrance was forced, and in rushed a score of excited men. Armstrong's wife, it was afterwards remembered, caught hold of her husband's arm in a hurried, frightened manner, whispered hastily in his ear, and then both followed into the house.

"Now, farmer," cried Johnson, as soon as he had procured a light, "lead the way up stairs."

Armstrong, who appeared to have somewhat recovered from his panic, darted at once up the staircase, followed by the whole body of rustics. On reaching the landing-place, he knocked at Mr. Wilson's bedroom door. No answer was returned. Armstrong seemed to hesitate, but the constable at once lifted the latch; they entered, and then a melancholy spectacle presented itself.

Wilson, completely dressed, lay extended on the floor a lifeless corpse. He had been stabbed in two places in the breast with some sharp-pointed instrument. Life was quite extinct. The window was open. On farther inspection, several bundles containing many of Wilson's valuables in jewelry and plate, together with clothes, shirts, silk handkerchiefs, were found. The wardrobe and a secretary-bureau had been forced open. The assassins had, it seemed, been disturbed, and had hurried off by the window without their plunder. A hat was also picked up in the room, a shiny, black hat, much too small for the deceased. The constable snatched it up, and attempted to clap it on Armstrong's head, but it was not nearly large enough. This, together with the bundles, dissipated a suspicion which had been

growing in Johnson's mind, and he roughly exclaimed, "You need not look so scared, farmer; it's not you: that's quite clear."

To this remark neither Armstrong nor his wife answered a syllable, but continued to gaze at the corpse, the bundles, and the broken locks, in bewildered terror and astonishment. Presently some one asked if any body had seen Mrs. Strugnell?

The question roused Armstrong, and he said, "She is not come home: her door is locked."

"How do you know that?" cried the constable, turning sharply round, and looking keenly in his face. "How do you know that?"

"Because—because," stammered Armstrong, "because she always locks it when she goes out."

"Which is her room?"

"The next to this."

They hastened out, and found the next door was fast.

"Are you there, Mrs. Strugnell?" shouted Johnson.

There was no reply.

"She is never home till half-past ten o'clock on Sunday evenings," remarked Armstrong in a calmer voice.

"The key is in the lock on the inside," cried a young man who had been striving to peep through the key-hole.

Armstrong, it was afterwards sworn, started as if he had been shot; and his wife again clutched his arm with the same nervous, frenzied gripe as before.

"Mrs. Strugnell, are you there?" once more shouted the constable. He was answered by a low moan. In an instant the frail door was burst in, and Mrs. Strugnell was soon pulled out, apparently more dead than alive, from underneath the bedstead, where she, in speechless consternation, lay partially concealed. Placing her in a chair, they soon succeeded—much more easily, indeed, than they anticipated—in restoring her to consciousness.

Nervously she glanced round the circle of eager faces that environed her, till her eyes fell upon Armstrong and his wife, when she gave a loud shriek, and muttering, "They, *they* are the murderers!" swooned, or appeared to do so, again instantly.

The accused persons, in spite of their frenzied protestations of innocence, were instantly seized and taken off to a place of security; Mrs. Strugnell was conveyed to a neighbor's close by; the house was carefully secured; and the agitated and wondering villagers departed to their several homes, but not, I fancy, to sleep any more for that night.

The deposition made by Mrs. Strugnell at the inquest on the body was in substance as follows:—

"On the afternoon in question she had, in accordance with her usual custom, proceeded to town. She called on her aunt, took tea with her, and afterwards went to the Independent Chapel. After service, she called to see Miss Wilson, but was informed that, in consequence of a severe cold, the young lady was gone to bed. She then immediately proceeded homewards, and consequently arrived at Craig Farm more than an hour before her usual

time. She let herself in with her latch key, and proceeded to her bedroom. There was no light in Mr. Wilson's chamber, but she could hear him moving about in it. She was just about to go down stairs, having put away her Sunday bonnet and shawl, when she heard a noise, as of persons entering by the back way, and walking gently across the kitchen floor. Alarmed as to who it could be, Mr. and Mrs. Armstrong not being expected home for several days, she gently closed her door, and locked it. A few minutes after, she heard stealthy steps ascending the creaking stairs, and presently her door was tried, and a voice in a low hurried whisper said, "Mary, are you there?" She was positive it was Mr. Armstrong's voice, but was too terrified to answer. Then Mrs. Armstrong—she was sure it was she—said also in a whisper, and as if addressing her husband, "She is never back at this hour." A minute or so after there was a tap at Mr. Wilson's door. She could not catch what answer was made; but by Armstrong's reply, she gathered that Mr. Wilson had lain down, and did not wish to be disturbed. He was often in the habit of lying down with his clothes on. Armstrong said, "I will not disturb you, sir; I'll only just put this parcel on the table." There is no lock to Mr. Wilson's door. Armstrong stepped into the room, and almost immediately she heard a sound as of a violent blow, followed by a deep groan and then all was still. She was paralyzed with horror and affright. After the lapse of a few seconds, a voice—Mrs. Armstrong's undoubtedly—asked in a tremulous tone if "all was over?" Her husband answered "Yes: but where be the keys of the writing-desk kept?" "In the little table-drawer," was the reply. Armstrong then came out of the bedroom, and both went into Mr. Wilson's sitting apartment. They soon returned, and crept stealthily along the passage to their own bedroom on the same floor. They then went down stairs to the kitchen. One of them—the woman, she had no doubt—went out the back way, and heavy footsteps again ascended the stairs. Almost dead with fright, she then crawled under the bedstead, and remembered no more till she found herself surrounded by the villagers."

In confirmation of this statement, a large clasp-knife belonging to Armstrong, and with which it was evident the murder had been perpetrated, was found in one corner of Wilson's bedroom; and a mortgage deed, for one thousand pounds on Craig Farm, the property of Wilson, and which Strugnell swore was always kept in the writing-desk in the front room, was discovered in a chest in the prisoner's sleeping apartment, together with nearly one hundred and fifty pounds in gold, silver, and county bank-notes, although it was known that Armstrong had but a fortnight before declined a very advantageous offer of some cows he was desirous of purchasing, under the plea of being short of cash. Worse perhaps than all, a key of the back-door was found in his pocket, which not only confirmed Strugnell's evidence, but clearly demonstrated that the knocking at the door for admittance, which had roused and alarmed the hamlet, was a pure subterfuge. The conclusion, therefore, almost universally arrived at throughout the neighborhood was, that Armstrong and his wife were the guilty parties; and that the bundles, the broken locks, the sheet hanging out of the window, the shiny, black hat, were, like the knocking, mere cunning devices to mislead inquiry.

The case excited great interest in the county, and I esteemed myself professionally fortunate in being selected to hold the brief for the prosecution. I had satisfied myself, by a perusal of the depositions, that there was no doubt of the prisoners' guilt, and I determined that no effort on my part should be spared to insure the accomplishment of the ends of justice. I drew the indictment myself; and in my opening address to the jury dwelt with all the force and eloquence of which I was master upon the heinous nature of the crime, and the conclusiveness of the evidence by which it had been brought home to the prisoners. I may here, by way of parenthesis, mention that I resorted to a plan in my address to the jury which I have seldom known to fail. It consisted in fixing my eyes and addressing my language to each juror one after the other. In this way each

considers the address to be an appeal to his individual intelligence, and responds to it by falling into the views of the barrister. On this occasion the jury easily fell into the trap. I could see that I had got them into the humor of putting confidence in the evidence I had to produce.

The trial proceeded. The cause of the death was scientifically stated by two medical men. Next followed the evidence as to the finding of the knife in the bedroom of the deceased; the discovery of the mortgage deed, and the large sum of money, in the prisoners' sleeping apartment; the finding the key of the back-door in the male prisoner's pocket; and his demeanor and expressions on the night of the perpetration of the crime. In his cross-examination of the constable, several facts perfectly new to me were elicited by the very able counsel for the prisoners. Their attorney had judiciously maintained the strictest secrecy as to the nature of the defence, so that it now took me completely by surprise. The constable, in reply to questions by counsel, stated that the pockets of the deceased were empty; that not only his purse, but a gold watch, chain, and seals, which he usually wore, had vanished, and no trace of them had as yet been discovered. Many other things were also missing. A young man of the name of Pearce, apparently a sailor, had been seen in the village once or twice in the company of Mary Strugnell; but he did not notice what sort of hat he generally wore; he had not seen Pearce since the night the crime was committed; had not sought for him.

Mary Strugnell was the next witness. She repeated her previous evidence with precision and apparent sincerity, and then I abandoned her with a mixed feeling of anxiety and curiosity, to the counsel for the defence. A subtle and able cross-examination of more than two hours' duration followed; and at its conclusion, I felt that the case for the prosecution was so damaged, that a verdict of condemnation was, or ought to be, out of the question. The salient points dwelt upon, and varied in every possible way,

in this long sifting, were these:—"What was the reason she did not return in the evening in question to her aunt's to supper as usual?"

"She did not know, except that she wished to get home."

"Did she keep company with a man of the name of Pearce?"

"She had walked out with him once or twice."

"When was the last time?"

"She did not remember."

"Did Pearce walk with her home on the night of the murder?"

"No."

"Not part of the way?"

"Yes; part of the way."

"Did Pearce sometimes wear a black, shiny hat?"

"No—yes: she did not remember."

"Where was Pearce now?"

"She didn't know."

"Had he disappeared since that Sunday evening?"

"She didn't know."

"Had she seen him since?"

"No."

"Had Mr. Wilson ever threatened to discharge her for insolence to Mrs. Armstrong?"

"Yes; but she knew he was not in earnest."

"Was not the clasp-knife that had been found always left in the kitchen for culinary purposes?"

"No—not always; generally—but not _this _time that Armstrong went away, she was sure."

"Mary Strugnell, you be a false-sworn woman before God and man!" interrupted the male prisoner with great violence of manner.

The outbreak of the prisoner was checked and rebuked by the judge, and the cross-examination soon afterwards closed. Had the counsel been allowed to follow up his advantage by an address to the jury, he would, I doubt not, spite of their prejudices against the prisoners, have obtained an acquittal; but as it was, after a neutral sort of charge from the judge, by no means the ablest that then adorned the bench, the jurors, having deliberated for something more than half an hour, returned into court with a verdict of "guilty" against both prisoners, accompanying it, however, with a strong recommendation to mercy!

"Mercy!" said the judge. "What for? On what ground?"

The jurors stared at each other and at the judge: they had no reason to give! The fact was, their conviction of the prisoners' guilt had been very much shaken by the cross-examination of the chief witness for the prosecution, and this recommendation was a compromise which conscience made with doubt. I have known many such instances.

The usual ridiculous formality of asking the wretched convicts what they had to urge why sentence should not be passed upon them was gone through; the judge, with unmoved feelings, put on the fatal cap; and then a new and startling light burst upon the mysterious, bewildering affair.

"Stop, my lord!" exclaimed Armstrong with rough vehemence. "Hear me speak! I'll tell ye all about it; I will indeed, my lord. Quiet, Martha, I tell ye. It's I, my lord, that's guilty, not the woman. God bless ye, my lord; not the wife! Doant hurt the wife, and I'se tell ye all about it. I *alone* am guilty; not, the Lord be praised, of murder, but of robbery!"

"John!—John!" sobbed the wife, clinging passionately to her husband, "let us die together!"

"Quiet, Martha, I tell ye! Yes, my lord, I'se tell ye all about it. I was gone away, wife and I, for more nor a week, to receive money for Mr. Wilson, on account of smuggled goods—that money, my lord, as was found in the chest. When we came home on that dreadful Sunday night, my lord, we went in the back way; and hearing a noise, I went up stairs, and found poor Wilson stone-dead on the floor. I were dreadful skeared, and let drop the candle. I called to wife, and told her of it. She screamed out, and amaisht fainted away. And then, my lord, all at once the devil shot into my head to keep the money I had brought; and knowing as the keys of the desk where the mortgage writing was kept was in the bedroom, I crept back, as that false-hearted woman said, got the keys, and took the deed; and then I persuaded wife, who had been trembling in the kitchen all the while, that we had better go out quiet again, as there was nobody in the house but us: I had tried that woman's door—and we might perhaps be taken for the murderers. And so we did; and that's the downright, honest truth, my lord. I'm rightly served; but God bless you, doant hurt the woman—my wife, my lord, these thirty years. Five-and-twenty years ago come May, which I shall

never see, we buried our two children. Had they lived, I might have been a better man; but the place they left empty was soon filled up by love of cursed lucre, and that has brought me here. I deserve it; but oh, mercy, my lord! mercy, good gentlemen!"—turning from the stony features of the judge to the jury, as if they could help him—"not for me, but the wife. She be as innocent of this as a new-born babe. It's I! I! scoundrel that I be, that has brought thee, Martha, to this shameful pass!" The rugged man snatched his life-companion to his breast with passionate emotion, and tears of remorse and agony streamed down his rough cheeks.

I was deeply affected, and felt that the man had uttered the whole truth. It was evidently one of those cases in which a person liable to suspicion damages his own cause by resorting to a trick. No doubt, by his act of theft, Armstrong had been driven to an expedient which would not have been adopted by a person perfectly innocent. And thus, from one thing to another, the charge of murder had been fixed upon him and his hapless wife. When his confession had been uttered, I felt a species of self-accusation in having contributed to his destruction, and gladly would I have undone the whole day's proceedings. The judge, on the contrary, was quite undisturbed. Viewing the harangue of Armstrong as a mere tissue of falsehood, he coolly pronounced sentence of death on the prisoners. They were to be hanged on Monday. This was Friday.

"A bad job!" whispered the counsel for the defence as he passed me. "That witness of yours, the woman Strugnell, is the real culprit."

I tasted no dinner that day: I was sick at heart; for I felt as if the blood of two fellow-creatures was on my hands. In the evening I sallied forth to the judge's lodgings. He listened to all I had to say; but was quite imperturbable. The obstinate old man was satisfied that the sentence was as it should be. I returned to my inn in a fever of despair. Without the approval

of the judge, I knew that an application to the Secretary of State was futile. There was not even time to send to London, unless the judge had granted a respite.

All Saturday and Sunday I was in misery. I denounced capital punishment as a gross iniquity—a national sin and disgrace; my feelings of course being influenced somewhat by a recollection of that unhappy affair of Harvey, noticed in my previous paper. I half resolved to give up the bar, and rather go and sweep the streets for a livelihood, than run the risk of getting poor people hanged who did not deserve it.

On the Monday morning I was pacing up and down my breakfast-room in the next assize town, in a state of great excitement, when a chaise-and-four drove rapidly up to the hotel, and out tumbled Johnson the constable. His tale was soon told. On the previous evening, the landlady of the Black Swan, a roadside public-house about four miles distant from the scene of the murder, reading the name of Pearce in the report of the trial in the Sunday county paper, sent for Johnston to state that that person had on the fatal evening called and left a portmanteau in her charge, promising to call for it in an hour, but had never been there since. On opening the portmanteau, Wilson's watch, chains, and seals, and other property, were discovered in it; and Johnson had, as soon as it was possible, set off in search of me. Instantly, for there was not a moment to spare, I, in company with Armstrong's counsel, sought the judge, and with some difficulty obtained from him a formal order to the sheriff to suspend the execution till further orders. Off I and the constable started, and happily arrived in time to stay the execution, and deprive the already-assembled mob of the brutal exhibition they so anxiously awaited. On inquiring for Mary Strugnell, we found that she had absconded on the evening of the trial. All search for her proved vain.

Five months had passed away; the fate of Armstrong and his wife was still undecided, when a message was brought to my chambers in the Temple from a woman said to be dying in St. Bartholomew's Hospital. It was Mary Strugnell; who, when in a state of intoxication, had fallen down in front of a carriage, as she was crossing near Holborn Hill, and had both her legs broken. She was dying miserably, and had sent for me to make a full confession relative to Wilson's murder. Armstrong's account was perfectly correct. The deed was committed by Pearce, and they were packing up their plunder when they were startled by the unexpected return of the Armstrongs. Pearce, snatching up a bundle and a portmanteau, escaped by the window; she had not nerve enough to attempt it, and crawled back to her bedroom, where she, watching the doings of the farmer through the chinks of the partition which separated her room from the passage, concocted the story which convicted the prisoners. Pearce thinking himself pursued, too heavily encumbered for rapid flight, left the portmanteau as described, intending to call for it in the morning, if his fears proved groundless. He, however, had not courage to risk calling again, and made the best of his way to London. He was now in Newgate under sentence of death for a burglary, accompanied by personal violence to the inmates of the dwelling he and his gang had entered and robbed. I took care to have the deposition of the dying wretch put into proper form; and the result was, after a great deal of petitioning and worrying of authorities, a full pardon for both Armstrong and his wife. They sold Craig Farm, and removed to some other part of the country, where, I never troubled myself to inquire. Deeply grateful was I to be able at last to wash my hands of an affair, which had cost me so much anxiety and vexation; albeit the lesson it afforded me of not coming hastily to conclusions, even when the truth seems, as it were, upon the surface of the matter, has not been, I trust, without its uses.

THE CONTESTED MARRIAGE.

I had just escaped to my chambers one winter afternoon from a heavy trial "at bar" in the King's Bench, Westminster, and was poring over a case upon which an "opinion" was urgently solicited, when my clerk entered with a letter which he had been requested to deliver by a lady, who had called twice before during the day for the purpose of seeing me. Vexed at the interruption, I almost snatched the letter from the man's hand, hastily broke the seal, and to my great surprise found it was from my excellent old friend Sir Jasper Thornely of Thornely Hall, Lancashire. It ran as follows:—

"My Dear ——, The bearer of this note is a lady whom I am desirous of serving to the utmost extent of my ability. That she is really the widow she represents herself to be, and her son consequently heir to the magnificent estates now in possession of the Emsdales—you remember how they tripped up my heels at the last election for the borough of —— I have no moral doubt whatever; but whether her claim can be legally established is another affair. She will tell you the story herself. It was a heartless business; but Sir Harry, who, you have no doubt heard, broke his neck in a steeple-chase about ten months ago, was a sad wild dog. My advice is, to look out for a sharp, clever, persevering attorney, and set him upon a hunt for evidence. If he succeed, I undertake to pay him a thousand pounds over and above his legal costs. He'll nose it out for that, I should think!—Yours, truly,

"Jasper Thornely.

"P.S.—Emsdale's son, I have just heard—confound their impudence!—intends, upon the strength of this accession of property, to stand for the county against my old friend ——, at the dissolution, which cannot now be far off. If you don't think one thousand pounds enough, I'll double it. A cruelly, ill-used lady! and as to her son, he's the very image of the late Sir Harry Compton. In haste—J.T. I re-open the letter to enclose a cheque for a hundred pounds, which you will pay the attorney on account. They'll die hard, you may be sure. If it could come off next assizes, we should spoil them for the county—J.T."

"Assizes"—"county"—"Sir Harry Compton," I involuntarily murmured, as I finished the perusal of my old friend's incoherent epistle. "What on earth can the eccentric old fox-hunter mean?" "Show the lady in," I added in a louder tone to the clerk. She presently appeared, accompanied by a remarkably handsome boy about six years of age, both attired in deep mourning. The lady approached with a timid, furtive step and glance, as if she were entering the den of some grim ogre, rather than the quiet study of a civilized lawyer of mature age. I was at once struck by her singular and touching loveliness. I have never seen a woman that so completely realized the highest *Madonna* type of youthful, matronly beauty—its starlight radiance and mild serenity of sorrow. Her voice, too, gentle and low, had a tone of patient sadness in it strangely affecting. She was evidently a person, if not of high birth, of refined manners and cultivated mind; and I soon ceased to wonder at warm-hearted old Sir Jasper's enthusiasm in her cause. Habitually, however, on my guard against first impressions, I courteously, but coldly, invited her first to a seat, and next to a more intelligible relation of her business with me than could be gathered from the letter of which she was the bearer. She complied, and I was soon in possession of the following facts and fancies:—

Violet Dalston and her sister Emily had lived for several years in close and somewhat straitened retirement with their father, Captain Dalston, at Rock Cottage, on the outskirts of a village about six miles distant from Leeds, when Captain Dalston, who was an enthusiastic angler, introduced to his home a gentleman about twenty-five years of age, of handsome exterior and gentlemanly manners, with whom congeniality of tastes and pursuits had made him acquainted. This stranger was introduced to Violet (my interesting client) and her sister, as a Mr. Henry Grainger, the son of a London merchant. The object of his wanderings through the English counties was, he said, to recruit his health, which had become affected by too close application to business, and to gratify his taste for angling, sketching, and so on. He became a frequent visitor; and the result, after the lapse of about three months, was a proposal for the hand of Violet. His father allowed him, he stated, five hundred pounds per annum; but in order not to mortally offend the old gentleman, who was determined, if his son married at all, it should be either to rank or riches, it would be necessary to conceal the marriage till after his death. This commonplace story had been, it appeared, implicitly credited by Captain Dalston; and Violet Dalston and Henry Grainger were united in holy wedlock—not at the village church near where Captain Dalston resided, but in one of the Leeds churches. The witnesses were the bride's father and sister, and a Mr. Bilston, a neighbor. This marriage had taken place rather more than seven years since, and its sole fruit was the fine-looking boy who accompanied his mother to my office. Mr. Grainger, soon after the marriage, persuaded the Dalstons to leave Rock Cottage, and take up their abode in a picturesque village in Cumberland, where he had purchased a small house, with some garden and ornamental grounds attached.

Five years rolled away—not, as I could discern, *too* happily when the very frequent absences of Violet's husband in London, as he alleged (all her letters to him were directed to the post-office, St. Martin's le Grand—till

called for), were suddenly greatly prolonged; and on his return home, after an absence of more than three months, he abruptly informed the family that the affairs of his father, who was dying, had been found to be greatly embarrassed, and that nothing was left for him and them but emigration to America, with such means as might be saved from the wreck of the elder Grainger's property. After much lamentation and opposition on the part of Emily Dalston and her father, it was finally conceded as Violet's husband wished; and the emigration was to have taken place in the following spring, Henry Grainger to follow them the instant he could wind up his father's affairs. About three months before their intended departure—this very time twelvemonth, as nearly as may be—Captain Dalston was suddenly called to London, to close the eyes of an only sister. This sad duty fulfilled, he was about to return, when, passing towards dusk down St. James Street, he saw Henry Grainger, habited in a remarkable sporting-dress, standing with several other gentlemen at the door of one of the club-houses. Hastening across the street to accost him, he was arrested for a minute or so by a line of carriages which turned sharply out of Piccadilly; and when he did reach the other side, young Mr. Grainger and his companions had vanished. He inquired of the porter, and was assured that no Mr. Grainger, senior or junior, was known there. Persisting that he had seen him standing within the doorway, and describing his dress, the man with an insolent laugh exclaimed that the gentleman who wore that dress was the famous sporting baronet, Sir Harry Compton!

Bewildered, and suspecting he hardly knew what, Captain Dalston, in defiance of young Grainger's oft-iterated injunctions, determined to call at his father's residence, which he had always understood to be in Leadenhall Street. No such name was, however, known there; and an examination, to which he was advised, of the "Commercial Directory" failed to discover the whereabouts of the pretended London merchant. Heart-sick and spirit-wearied, Captain Dalston returned home only to die. A violent cold, caught

by imprudently riding in such bitter weather as it then was, on the outside of the coach, aggravated by distress of mind, brought his already enfeebled frame to the grave in less than two months after his arrival in Cumberland. He left his daughters utterly unprovided for, except by the legal claim which the eldest possessed on a man who, he feared, would turn out to be a worthless impostor. The penalty he paid for consenting to so imprudent a marriage was indeed a heavy and bitter one. Months passed away, and still no tidings of Violet's husband reached the sisters' sad and solitary home. At length, stimulated by apprehensions of approaching destitution—whose foot was already on the threshold—and desirous of gratifying a whim of Emily's, Violet consented to visit the neighborhood of Compton Castle (the seat, her sister had ascertained, of the "celebrated sporting baronet," as the porter called him) on their way to London, where they had relatives who, though not rich, might possibly be able to assist them in obtaining some decent means of maintenance. They alighted at the "Compton Arms," and the first object which met the astonished gaze of the sisters as they entered the principal sitting-room of the inn, was a full-length portrait of Violet's husband, in the exact sporting-dress described to them by their father. An ivory tablet attached to the lower part of the frame informed the gazer that the picture was a copy, by permission, of the celebrated portrait by Sir Thomas Lawrence, of Sir Harry Compton, Baronet. They were confounded, overwhelmed, bewildered. Sir Harry, they found, had been killed about eight months previously in a steeple-chase; and the castle and estates had passed, in default of direct issue, to a distant relative, Lord Emsdale. Their story was soon bruited about; and, in the opinion of many persons, was confirmed beyond reasonable question by the extraordinary likeness they saw or fancied between Violet's son and the deceased baronet. Amongst others, Sir Jasper Thornely was a firm believer in the identity of Henry Grainger and Sir Harry Compton; but unfortunately, beyond the assertion of the sisters that the portrait of Sir Harry was young Grainger's portrait, the

real or imaginary likeness of the child to his reputed father, and some score of letters addressed to Violet by her husband, which Sir Jasper persisted were in Sir Harry's handwriting, though few others did (the hand, I saw at a glance, was a disguised one), not one tittle of evidence had he been able to procure for love or money. As a last resource, he had consigned the case to me, and the vulpine sagacity of a London attorney.

I suppose my countenance must be what is called a "speaking" one, for I had made no reply in words to this statement of a case upon which I and a "London attorney" were to ground measures for wresting a magnificent estate from the clutch of a powerful nobleman, and by "next assizes" too—when the lady's beautiful eyes filled with tears, and turning to her child, she murmured in that gentle, agitating voice of hers, "My poor boy." The words I was about to utter died on my tongue, and I remained silent for several minutes. After all, thought I, this lady is evidently sincere in her expressed conviction that Sir Harry Compton was her husband. If her surmise be correct, evidence of the truth may perhaps be obtained by a keen search for it; and since Sir Jasper guarantees the expenses—I rang the bell. "Step over to Cursitor Street," said I to the clerk as soon as he entered; "and if Mr. Ferret is within, ask him to step over immediately." Ferret was just the man for such a commission. Indefatigable, resolute, sharp-witted, and of a ceaseless, remorseless activity, a secret or a fact had need be very profoundly hidden for him not to reach and fish it up. I have heard solemn doubts expressed by attorneys opposed to him as to whether he ever really and truly slept at all—that is, a genuine Christian sleep, as distinguished from a merely canine one, with one eye always half open. Mr. Ferret had been for many years Mr. Simpkins' managing clerk; but ambition, and the increasing requirements of a considerable number of young Ferrets, determined him on commencing business on his own account; and about six months previous to the period of which I am now writing, a brass door-plate

in Cursitor Street, Chancery Lane, informed the public that Samuel Ferret, Esq., Attorney-at-Law, might be consulted within.

Mr. Samuel Ferret was fortunately at home; and after a very brief interval, made his appearance, entering with a short professional bow to me, and a very profound one to the lady, in whom his quick gray eye seemed intuitively to espy a client. As soon as he was seated, I handed him Sir Jasper's letter. He perused it carefully three times, examined the seal attentively, and handed it back with—"An excellent letter as far as it goes, and very much to the point. You intend, I suppose, that I should undertake this little affair?"

"Yes, if, after hearing the lady's case, you feel disposed to venture upon it."

Mr. Samuel Ferret's note-book was out in an instant; and the lady, uninterrupted by a syllable from him, re-told her story.

"Good, very good, as far as it goes," remarked undismayed Samuel Ferret when she concluded; "only it can scarcely be said to go very far. Moral presumption, which, in our courts unfortunately, isn't worth a groat. Never mind. *Magna est veritas*, and so on. When, madam, did you say Sir Harry—Mr. Grainger—first began to urge emigration?"

"Between two and three years ago."

"Have the goodness, if you please, to hand me the baronetage." I did so. "Good," resumed Ferret, after turning over the leaves for a few seconds, "very good, as far as it goes. It is now just two years and eight months since Sir Harry succeeded his uncle in the title and estates. You would no doubt soon have heard, madam, that your husband was dead. Truly the heart of man is deceitful above all things, and desperately wicked; and yet such

conduct towards such a lady"—Ferret intended no mere compliment; he was only giving utterance to the thoughts passing through his brain; but his client's mounting color warned him to change the topic, which he very adroitly did. "You intend, of course," said he, addressing me, "to proceed at law? No rumble—tumble through the spiritual courts?"

"Certainly, if sufficient evidence to justify such a course can be obtained."

"Exactly: Doe, demise of Compton, *versus* Emsdale; action in ejectment, judgment of ouster. Our friend Doe, madam—a very accommodating fellow is Doe—will, if we succeed, put you in possession as natural guardian of your son. Well, sir," turning to me, "I may as well give you an acknowledgment for that cheque. I undertake the business, and shall, if possible, be off to Leeds by this evening's mail." The acknowledgment was given, and Mr. Ferret, pocketing the cheque, departed in high glee.

"The best man, madam, in all broad London," said I in answer to Mrs. Grainger's somewhat puzzled look, "you could have retained. Fond as he seems, and in fact is, of money—what sensible person is not?—Lord Emsdale could not bribe him with his earldom, now that he is fairly engaged in your behalf, I will not say to betray you, but to abate his indefatigable activity in furtherance of your interests. Attorneys, madam, be assured, whatever nursery tales may teach, have, the very sharpest of them, their points of honor." The lady and her son departed, and I turned again to the almost forgotten "case."

Three weeks had nearly glided by, and still no tidings of Mr. Ferret. Mrs. Grainger, and her sister Emily Dalston, a very charming person, had called repeatedly; but as I of course had nothing to communicate, they were still condemned to languish under the heart-sickness caused by hope deferred. At last our emissary made his wished-for appearance.

"Well, Mr. Ferret," said I, on entering my library, where I found him composedly awaiting my arrival, "what success?"

"Why, nothing of much consequence as yet," replied he; "I am, you know, only, as it were, just commencing the investigation. The Leeds parson that married them is dead, and the old clerk is paralytic, and has lost his memory. If, however, they were both alive, and in sound health of mind and body, they could, I fancy, help us but little, as Bilston tells me neither the Dalstons nor Grainger had ever entered the church till the morning of the wedding; and they soon afterwards removed to Cumberland, so that it is scarcely possible either parson or clerk could prove that Violet Dalston was married to Sir Harry Compton. A very intelligent fellow is Bilston: he was present at the marriage, you remember; and a glorious witness, if he had only something of importance to depose to; powdered hair and a pigtail, double chin, and six feet in girth at least; highly respectable—capital witness, very—only, unfortunately, he can only testify that a person calling himself Grainger married Violet Dalston; not much in that!"

"So, then, your three weeks' labor has been entirely thrown away!"

"Not so fast—not so fast—you jump too hastily at conclusions. The Cumberland fellow that sold Grainger the house—only the equity of redemption of it, by the way—there's a large mortgage on it—can prove nothing. Nobody about there can, except the surgeon; *he* can prove Mrs. Grainger's *accouchement*—that is something. I have been killing myself every evening this last week with grog and tobacco smoke at the "Compton Arms," in the company of the castle servants, and if the calves' heads *had* known anything essential, I fancy I should have wormed it out of them. They have, however, kindly furnished me with a scrawl of introduction to the establishment now in town, some of whom I shall have the honor to meet, in the character of an out-and-out liberal sporting gentleman, at the

"Albemarle Arms" this evening. I want to get hold of his confidential valet, if he had one—those go-a-head fellows generally have—a Swiss, or some other foreign animal."

"Is this all?"

"Why, no," rejoined Ferret, with a sharp twinkle of his sharp gray eye, amounting almost to a wink; "there is one circumstance which I cannot help thinking, though I scarcely know why, will put us, by the help of patience and perseverance, on the right track. In a corner of the registry of marriage there is written Z.Z. in bold letters. In no other part of the book does this occur. What may that mean?"

"Had the incumbent of the living a curate at the time?"

"No. On that point I am unfortunately too well satisfied. Neither are there any names with such initials in any of the Leeds churchyards. Still this Z.Z. may be of importance, if we could but discover who he is. But how?—that is the question. Advertise? Show our hands to the opposite players, and find if Z.Z. is really an entity, and likely to be of service, that when we want him in court, he is half way to America. No, no; that would never do."

Mr. Ferret I saw was getting into a brown study; and as I had pressing business to despatch, I got rid of him as speedily as I could, quite satisfied, spite of Z.Z., that Mrs. Grainger's chance of becoming Lady Compton was about equal to mine of ascending the British throne some fine day.

Two days afterwards I received the following note:—

"Dear Sir—Z.Z. is the man! I'm off to Shropshire. Back, if possible, the day after to-morrow. Not a word even to the ladies. Huzza! In haste, Samuel Ferret."

What could this mean? Spite of Mr. Ferret's injunction, I could not help informing the sisters, who called soon after I received the note, that a discovery, esteemed of importance by our emissary, had been made; and they returned home with lightened hearts, after agreeing to repeat their visit on the day Mr. Ferret had named for his return.

On reaching my chambers about four o'clock in the afternoon of that day, I found the ladies there, and in a state of great excitement. Mr. Ferret, my clerk had informed them, had called twice, and seemed in the highest spirits. We had wasted but a few minutes in conjectures when Mr. Ferret, having ascended the stairs two or three at a time, burst, *sans cérémonie*, into the apartment.

"Good-day, sir. Lady Compton, your most obedient servant; madam, yours! All right! Only just in time to get the writ sealed; served it myself a quarter of an hour ago, just as his lordship was getting into his carriage. Not a day to lose; just in time. Capital! Glorious!"

"What do you mean, Mr. Ferret?" exclaimed Emily Dalston: her sister was too agitated to speak.

"What do I mean? Let us all four step, sir, into your inner sanctum, and I'll soon tell you what I mean."

We adjourned, accordingly, to an inner and more private room. Our conference lasted about half an hour, at the end of which the ladies took their leave: Lady Compton, her beautiful features alternately irradiated and clouded by smiles and tears, murmuring in a broken, agitated voice, as she shook hands with me, "You see, sir, he intended at last to do us justice."

The news that an action had been brought on behalf of an infant son of the late Sir Harry Compton against the Earl of Emsdale, for the recovery of

the estates in the possession of that nobleman, produced the greatest excitement in the part of the county where the property was situated. The assize town was crowded, on the day the trial was expected to come on, by the tenantry of the late baronet and their families, with whom the present landlord was by no means popular. As I passed up the principal street, towards the court-house, accompanied by my junior, I was received with loud hurraings and waving of handkerchiefs, something after the manner, I suppose, in which chivalrous steel-clad knights, about to do battle in behalf of distressed damsels, were formerly received by the miscellaneous spectators of the lists. Numerous favors, cockades, streamers, of the Compton colors, used in election contests, purple and orange, were also slyly exhibited, to be more ostentatiously displayed if the Emsdale party should be beaten. On entering the court, I found it crowded, as we say, to the ceiling. Not only every seat, but every inch of standing-room that could be obtained, was occupied, and it was with great difficulty the ushers of the court preserved a sufficiently clear space for the ingress and egress of witnesses and counsel. Lord Emsdale, pale and anxious, spite of manifest effort to appear contemptuously indifferent, sat near the judge, who had just entered the court. The Archbishop of York, whom we had subpoenaed, why, his Grace had openly declared, he knew not, was also of course accommodated with a seat on the bench. A formidable bar, led by the celebrated Mr. S ——, was, I saw, arrayed against us, though what the case was they had to meet, so well had Ferret kept his secret, they knew no more than did their horse-hair wigs. Ferret had solemnly enjoined the sisters to silence, and no hint, I need scarcely say, was likely to escape my lips. The jury, special of course, were in attendance, and the case, "Doe, demise of Compton *versus* Emsdale," having been called, they were duly sworn to try the issue. My junior, Mr. Frampton, was just rising "to state the case," as it is technically called, when a tremendous shouting, rapidly increasing in volume and distinctness, and mingled with the sound of carriage wheels,

was heard approaching, and presently Mr. Samuel Ferret appeared, followed by Lady Compton and her son, the rear of the party brought up by Sir Jasper Thornely, whose jolly fox-hunting face shone like a full-blown peony. The lady, though painfully agitated, looked charmingly; and the timid, appealing glance she unconsciously, as it were, threw round the court, would, in a doubtful case, have secured a verdict. "Very well got up, indeed," said Mr. S ——, in a voice sufficiently loud for the jury to hear — "very effectively managed, upon my word." We were, however, in too good-humor to heed taunts; and as soon as silence was restored, Mr. Frampton briefly stated the case, and I rose to address the jury. My speech was purposely brief, business-like, and confident. I detailed the circumstances of the marriage of Violet Dalston, then only eighteen years of age, with a Mr. Grainger; the birth of a son; and subsequent disappearance of the husband; concluding by an assurance to the jury that I should prove, by incontrovertible evidence, that Grainger was no other person than the late Sir Harry Compton, baronet. This address by no means lessened the vague apprehensions of the other side. A counsel that, with such materials for eloquence, disdained having recourse to it, must needs have a formidable case. The smiling countenances of Mr. S —— and his brethren became suddenly overcast, and the pallor and agitation of Lord Emsdale sensibly increased.

We proved our case clearly, step by step: the marriage, the accouchement, the handwriting of Grainger—Bilston proved this—to the letters addressed to his wife, were clearly established. The register of the marriage was produced by the present clerk of the Leeds church; the initials Z.Z. were pointed out; and at my suggestion the book was deposited for the purposes of the trial with the clerk of the court. Not a word of cross-examination had passed the lips of our learned friends on the other side: they allowed our evidence to pass as utterly indifferent. A change was at hand.

Our next witness was James Kirby, groom to the late baronet and to the present earl. After a few unimportant questions, I asked him if he had ever seen that gentleman before, pointing to Mr. Ferret, who stood up for the more facile recognition of his friend Kirby.

"Oh yes, he remembered the gentleman well; and a very nice, good-natured, soft sort of a gentleman he was. He treated witness at the "Albemarle Arms," London, to as much brandy and water as he liked, out of respect to his late master, whom the gentleman seemed uncommon fond of."

"Well, and what return did you make for so much liberality?"

"Return! very little I do assure ye. I told un how many horses Sir Harry kept, and how many races he won; but I couldn't tell un much more, pump as much as he would, because, do ye see, I didn't *know* no more."

An audible titter from the other side greeted the witness as he uttered the last sentence. Mr. S ——, with one of his complacent glances at the jury-box, remarking in a sufficiently loud whisper, "That he had never heard a more conclusive reason for not telling in his life."

"Did you mention that you were present at the death of the late baronet?"

"Yes I did. I told un that I were within about three hundred red yards of late master when he had that ugly fall; and that when I got up to un, he sort of pulled me down, and whispered hoarse-like, 'Send for Reverend Zachariah Zimmerman.' I remembered it, it was sich an outlandish name like."

"Oh, oh," thought I, as Mr. S —— reached across the table for the parish register, "Z.Z. is acquiring significance I perceive."

"Well, and what did this gentleman say to that?"

"Say? Why, nothing particular, only seemed quite joyful 'mazed like; and when I asked un why, he said it was such a comfort to find his good friend Sir Harry had such pious thoughts in his last moments."

The laugh, quickly suppressed, that followed these words, did not come from our learned friends on the other side.

"Sir Harry used those words?"

"He did; but as he died two or three minutes after, it were of course no use to send for no parson whatsoever."

"Exactly. That will do, unless the other side have any questions to ask." No question *was* put, and the witness went down. "Call," said I to the crier of the court—"call the Reverend Zachariah Zimmerman."

This was a bomb-shell. Lord Emsdale, the better to conceal his agitation, descended from the bench and took his seat beside his counsel. The Reverend Zachariah Zimmerman, examined by Mr. Frampton, deponed in substance as follows:—"He was at present rector of Dunby, Shropshire, and had been in holy orders more than twenty years. Was on a visit to the Reverend Mr. Cramby at Leeds seven years ago, when one morning Mr. Cramby, being much indisposed, requested him to perform the marriage ceremony for a young couple then waiting in church. He complied, and joined in wedlock Violet Dalston and Henry Grainger. The bride was the lady now pointed out to him in court; the bridegroom he had discovered, about two years ago, to be no other than the late Sir Harry Compton, baronet. The initials Z.Z. were his, and written by him. The parish clerk, a failing old man, had not officiated at the marriage; a nephew, he believed,

had acted for him, but he had entered the marriage in the usual form afterwards."

"How did you ascertain that Henry Grainger was the late Sir Harry Compton?"

"I was introduced to Sir Harry Compton in London, at the house of the Archbishop of York, by his Grace himself."

"I remember the incident distinctly, Mr. Zimmerman," said his Grace from the bench.

"Besides which," added the rector, "my present living was presented to me, about eighteen months since, by the deceased baronet. I must further, in justice to myself, explain that I immediately after the introduction, sought an elucidation of the mystery from Sir Harry; and he then told me that, in a freak of youthful passion, he had married Miss Dalston in the name of Grainger, fearing his uncle's displeasure should it reach his ears; that his wife had died in her first confinement, after giving birth to a still-born child, and he now wished the matter to remain in oblivion. He also showed me several letters, which I then believed genuine, confirming his story. I heard no more of the matter till waited upon by the attorney for the plaintiff, Mr. Ferret."

A breathless silence prevailed during the delivery of this evidence. At its conclusion, the dullest brain in court comprehended that the cause was gained; and a succession of cheers, which could not be suppressed, rang through the court, and were loudly echoed from without. Sir Jasper's voice sounding high above all the rest. Suddenly, too, as if by magic, almost everybody in court, save the jury and counsel, were decorated with orange and purple favors, and a perfect shower of them fell at the feet and about the persons of Lady Compton, her sister, who had by this time joined her,

and the infant Sir Henry. As soon as the expostulations and menaces of the judge had restored silence and order, his lordship, addressing Lord Emsdale's senior counsel, said, "Well, Brother S ——, what course do you propose to adopt?"

"My lord," replied Mr. S —— after a pause, "I and my learned friends have thought it our duty to advise Lord Emsdale that further opposition to the plaintiff's claim would prove ultimately futile; and I have therefore to announce, my lord and gentlemen of the jury, that we acquiesce in a verdict for the plaintiff."

"You have counseled wisely," replied his lordship. "Gentlemen of the jury, you will of course return a verdict for the plaintiff."

The jury hastily and joyfully assented: the verdict was recorded, and the court adjourned for an hour in the midst of tumultuous excitement. The result of the trial flew through the crowd outside like wildfire; and when Lady Compton and her son, after struggling through the densely-crowded court, stepped into Sir Jasper's carriage, which was in waiting at the door, the enthusiastic uproar that ensued—the hurraing, shouting, waving of hats and handkerchiefs—deafened and bewildered one; and it was upwards of an hour ere the slow-moving chariot reached Sir Jasper's mansion, though not more than half a mile distant from the town. Mr. Ferret, mounted on the box, and almost smothered in purple and orange, was a conspicuous object, and a prime favorite with the crowd. The next day Lord Emsdale, glad, doubtless, to quit the neighborhood as speedily as possible, left the castle, giving Lady Compton immediate possession. The joy of the tenantry was unbounded, and under the wakeful superintendence of Mr. Ferret, all claims against Lord Emsdale for received rents, dilapidations, &c. were adjusted, we may be sure, *not* adversely to his client's interests; though he frequently

complained, not half so satisfactorily as if Lady Compton had not interfered, with what Mr. Ferret deemed misplaced generosity in the matter.

As I was obliged to proceed onwards with the circuit, I called at Compton Castle to take leave of my interesting and fortunate client a few days after her installation there. I was most gratefully received and entertained. As I shook hands at parting, her ladyship, after pressing upon me a diamond ring of great value, said, whilst her charming eyes filled with regretful, yet joyful tears, "Do not forget that poor Henry intended at last to do us justice." Prosperity, thought I, will not spoil that woman. It *has* not, as the world, were I authorized to communicate her *real* name, would readily acknowledge.

THE MOTHER AND SON.

Dinner had been over about half an hour one Sunday afternoon.—the only day on which for years I had been able to enjoy a dinner—and I was leisurely sipping a glass of wine, when a carriage drove rapidly up to the door, a loud *rat-tat* followed, and my friend Dr. Curteis, to my great surprise, was announced.

"I have called," said the doctor as we shook hands, "to ask you to accompany me to Mount Place. I have just received a hurried note from Miss Armitage, stating that her mother, after a very brief illness, is rapidly sinking, and requesting my attendance, as well as that of a legal gentleman, immediately."

"Mrs. Armitage!" I exclaimed, inexpressibly shocked. "Why, it is scarcely more than a fortnight ago that I met her at the Rochfords' in brilliant health and spirits."

"Even so. But will you accompany me? I don't know where to find any one else for the moment, and time presses."

"It is an attorney, probably, rather than a barrister, that is needed; but under the circumstances, and knowing her as I do, I cannot hesitate."

We were soon bowling along at a rapid pace, and in little more than an hour reached the dying lady's residence, situated in the county of Essex, and distant about ten miles from London. We entered together; and Dr. Curteis, leaving me in the library, proceeded at once to the sick chamber. About ten minutes afterwards the housekeeper, a tall, foreign-looking, and rather handsome woman, came into the room, and announced that the doctor wished to see me. She was deadly pale, and, I observed, trembled like an aspen. I motioned her to precede me; and she, with unsteady steps, immediately led the way. So great was her agitation, that twice, in ascending the stairs, she only saved herself from falling by grasping the banister-rail. The presage I drew from the exhibition of such overpowering emotion, by a person whom I knew to have been long not only in the service, but in the confidence of Mrs. Armitage, was soon confirmed by Dr. Curteis, whom we met coming out of the chamber of the expiring patient.

"Step this way," said he, addressing me, and leading to an adjoining apartment. "We do not require your attendance, Mrs. Bourdon," said he, as soon as we reached it, to the housekeeper, who had swiftly followed us, and now stood staring with eager eyes in the doctor's face, as if life and death hung on his lips. "Have the goodness to leave us," he added tartly, perceiving she did not stir, but continued her fearful, scrutinizing glance. She started at his altered tone, flushed crimson, then paled to a chalky whiteness, and muttering, left the apartment.

"The danger of her mistress has bewildered her," I remarked.

"Perhaps so," remarked Dr. Curteis. "Be that as it may, Mrs. Armitage is beyond all human help. In another hour she will be, as we say, no more."

"I feared so. What is the nature of her disorder?"

"A rapid wasting away, as I am informed. The appearances presented are those of a person expiring of atrophy, or extreme emaciation."

"Indeed. And so sudden too!"

"Yes. I am glad you are come, although your professional services will not, it seems, be required—a neighboring attorney having performed the necessary duty—something, I believe, relative to the will of the dying lady. We will speak further together by and by. In the meantime," continued Dr. Curteis, with a perceptible tremor in his voice, "it will do neither of us any harm to witness the closing scene of the life of Mary Rawdon, whom you and I twenty years ago worshipped as one of the gentlest and most beautiful of beings with which the Creator ever graced his universe. It will be a peaceful parting. Come."

Just as, with noiseless footsteps, we entered the silent death-chamber, the last rays of the setting sun were falling upon the figure of Ellen Armitage—who knelt in speechless agony by the bedside of her expiring parent—and faintly lighting up the pale, emaciated, sunken features of the so lately brilliant, courted Mrs. Armitage! But for the ineffaceable splendor of her deep-blue eyes, I should scarcely have recognized her. Standing in the shadow, as thrown by the heavy bed-drapery, we gazed and listened unperceived.

"Ellen," murmured the dying lady, "come nearer to me. It is growing dark, and I cannot see you plainly. Now, then, read to me, beginning at the verse you finished with, as good Dr. Curteis entered. Ay," she faintly whispered, "it is thus, Ellen, with thy hand clasped in mine, and with the words of the holy book sounding from thy dear lips, that I would pass away!"

Ellen, interrupted only by her blinding tears, making sad stops, complied. Twilight stole on, and threw its shadow over the solemn scene, deepening its holiness of sorrow. Night came with all her train; and the silver radiance kissed into ethereal beauty the pale face of the weeping girl, still pursuing her sad and sacred task. We hesitated to disturb, by the slightest movement the repose of a death-bed over which belief and hope, those only potent ministers, shed light and calm! At length Dr. Curteis advanced gently towards the bed, and taking the daughter's hand, said in a low voice, "Had you not better retire, my dear young lady, for a few moments?" She understood him, and rising from her knees, threw herself in an ecstasy of grief upon the corpse, from which the spirit had just passed away. Assistance was summoned, and the sobbing girl was borne from the chamber.

I descended, full of emotion, to the library, where Dr. Curteis promised shortly to join me. Noiselessly entering the room, I came suddenly upon the housekeeper and a tall young man, standing with their backs towards me in the recesses of one of the windows, and partly shrouded by the heavy cloth curtains. They were evidently in earnest conference, and several words, the significance of which did not at the moment strike me, reached my ears before they perceived my approach. The instant they did so, they turned hastily round, and eyed me with an expression of flurried alarm, which at the time surprised me not a little. "All is over, Mrs. Bourdon," said I, finding she did not speak; "and your presence is probably needed by Miss Armitage." A flash of intelligence, as I spoke, passed between the pair; but whether indicative of grief or joy, so momentary was the glance, I should have been puzzled to determine. The housekeeper immediately left the room, keeping her eyes, as she passed, fixed upon me with the same nervous apprehensive look which had before irritated Dr. Curteis. The young man followed more slowly. He was a tall and rather handsome youth, apparently about one or two-and-twenty years of age. His hair was black as

jet, and his dark eyes were of singular brilliancy; but the expression, I thought, was scarcely a refined or highly-intellectual one. His resemblance to Mrs. Bourdon, whose son indeed he was, was very striking. He bowed slightly, but courteously, as to an equal, as he closed the door, and I was left to the undisturbed enjoyment of my own reflections, which, ill-defined and indistinct as they were, were anything but pleasant company. My reverie was at length interrupted by the entrance of the doctor, with the announcement that the carriage was in waiting to re-convey us to town.

We had journeyed several miles on our return before a word was spoken by either of us. My companion was apparently even more painfully pre-occupied than myself. He was, however, the first to break silence. "The emaciated corpse we have just left little resembles the gay, beautiful girl, for whose smiles you and I were once disposed to shoot each other!" The doctor's voice trembled with emotion, and his face, I perceived, was pale as marble.

"Mary Rawdon," I remarked, "lives again in her daughter."

"Yes; her very image. Do you know," continued he, speaking with rapid energy, "I suspect Mary Rawdon—Mrs. Armitage, I would say—has been foully, treacherously dealt with!"

I started with amazement; and yet the announcement but embodied and gave form and color to my own ill-defined and shadowy suspicions.

"Good heavens! How? By whom?"

"Unless I am greatly mistaken, she has been poisoned by an adept in the use of such destructive agents."

"Mrs. Bourdon?"

"No; by her son. At least my suspicions point that way. She is probably cognizant of the crime. But in order that you should understand the grounds upon which my conjectures are principally founded, I must enter into a short explanation. Mrs. Bourdon, a woman of Spanish extraction, and who formerly occupied a much higher position than she does now, has lived with Mrs. Armitage from the period of her husband's death, now about sixteen years ago. Mrs. Bourdon has a son, a tall, good-looking fellow enough, whom you may have seen."

"He was with his mother in the library as I entered it after leaving you."

"Ah! well, hem! This boy, in his mother's opinion—but that perhaps is somewhat excusable—exhibited early indications of having been born a "genius." Mrs. Armitage, who had been first struck by the beauty of the child, gradually acquired the same notion; and the result was, that he was little by little invested—with at least her tacit approval—with the privileges supposed to be the lawful inheritance of such gifted spirits; namely, the right to be as idle as he pleased—geniuses, you know, can, according to the popular notion, attain any conceivable amount of knowledge *per saltum* at a bound—and to exalt himself in the stilts of his own conceit above the useful and honorable pursuits suited to the station in life in which Providence had cast his lot. The fruit of such training soon showed itself. Young Bourdon grew up a conceited and essentially-ignorant puppy, capable of nothing but bad verses, and thoroughly impressed with but one important fact, which was, that he, Alfred Bourdon, was the most gifted and the most ill-used of all God's creatures. To genius, in any intelligible sense of the term, he has in truth no pretension. He is endowed, however, with a kind of reflective talent, which is often mistaken by fools for *creative* power. The morbid fancies and melancholy scorn of a Byron, for instance, such gentry reflect back from their foggy imaginations in exaggerated and distorted feebleness of whining versicles, and so on with other lights celestial or infernal. This,

however, by the way. The only rational pursuit he ever followed, and that only by fits and starts, and to gratify his faculty of "wonder," I fancy, was chemistry. A small laboratory was fitted up for him in the little summer-house you may have observed at the further corner of the lawn. This study of his, if study such desultory snatches at science may be called, led him, in his examination of vegetable bodies, to a smattering acquaintance with botany, a science of which Ellen Armitage is an enthusiastic student. They were foolishly permitted to *botanize* together, and the result was, that Alfred Bourdon, acting upon the principle that genius—whether sham or real—levels all merely mundane distinctions, had the impudence to aspire to the hand of Miss Armitage. His passion, sincere or simulated, has never been, I have reason to know, in the slightest degree reciprocated by its object; but so blind is vanity, that when, about six weeks ago, an *éclaircissement* took place, and the fellow's dream was somewhat rudely dissipated, the untoward rejection of his preposterous suit was, there is every reason to believe, attributed by both mother and son to the repugnance of Mrs. Armitage alone; and to this idiotic hallucination she has, I fear, fallen a sacrifice. Judging from the emaciated appearance of the body, and other phenomena communicated to me by her ordinary medical attendant—a blundering ignoramus, who ought to have called in assistance long before—she has been poisoned with *iodine*, which, administered in certain quantities, would produce precisely the same symptoms. Happily there is no mode of destroying human life which so surely leads to the detection of the murderer as the use of such agents; and of this truth the post mortem examination of the body, which takes place to-morrow morning, will, if I am not grossly mistaken, supply another vivid illustration. Legal assistance will no doubt be necessary, and I am sure I do not err in expecting that *you* will aid me in bringing to justice the murderer of Mary Rawdon?"

A pressure of his hand was my only answer. "I shall call for you at ten o'clock" said he, as he put me down at my own door. I bowed, and the

carriage drove off.

"Well!" said I, as Dr. Curteis and Mr. —— the eminent surgeon entered the library at Mount Place the following morning after a long absence.

"As I anticipated," replied the doctor with a choking voice: "she has been poisoned!"

I started to my feet. "And the murderer?"

"Our suspicions still point to young Bourdon; but the persons of both mother and son have been secured."

"Apart?"

"Yes; and I have despatched a servant to request the presence of a neighbor—a county magistrate. I expect him momentarily."

After a brief consultation, we all three directed our steps to the summer-house which contained young Bourdon's laboratory. In the room itself nothing of importance was discovered; but in an enclosed recess, which we broke open, we found a curiously-fashioned glass bottle half full of iodine.

"This is it!" said Mr. ——; "and in a powdered state too—just ready for mixing with brandy or any other available dissolvent." The powder had somewhat the appearance of fine black lead. Nothing further of any consequence being observed, we returned to the house, where the magistrate had already arrived.

Alfred Bourdon was first brought in; and he having been duly cautioned that he was not obliged to answer any question, and that what he did say would be taken down, and, if necessary, used against him, I proposed the following questions:—

"Have you the key of your laboratory?"

"No; the door is always open."

"Well, then, of any door or cupboard in the room?"

At this question his face flushed purple: he stammered, "There is no"—and abruptly paused.

"Do I understand you to say there is no cupboard or place of concealment in the room?"

"No: here is the key."

"Has any one had access to the cupboard or recess of which this is the key, except yourself?"

The young man shook as if smitten with ague: his lips chattered, but no articulate sound escaped them.

"You need not answer the question," said the magistrate, "unless you choose to do so. I again warn you that all you say will, if necessary, be used against you."

"No one," he at length gasped, mastering his hesitation by a strong exertion of the will—"no one can have had access to the place but myself. I have never parted with the key."

Mrs. Bourdon was now called in. After interchanging a glance of intense agony, and, as it seemed to me, of affectionate intelligence with her son, she calmly answered the questions put to her. They were unimportant, except the last, and that acted upon her like a galvanic shock. It was this—"Did you ever struggle with your son on the landing leading to the bedroom of

the deceased for the possession of this bottle?" and I held up that which we had found in the recess.

A slight scream escaped her lips; and then she stood rigid, erect, motionless, glaring alternately at me and at the fatal bottle with eyes that seemed starting from their sockets. I glanced towards the son; he was also affected in a terrible manner. His knees smote each other, and a clammy perspiration burst forth and settled upon his pallid forehead.

"Again I caution you," iterated the magistrate, "that you are not bound to answer any of these questions."

The woman's lips moved. "No—never!" she almost inaudibly gasped, and fell senseless on the floor.

As soon as she was removed, Jane Withers was called. She deposed that three days previously, as she was, just before dusk, arranging some linen in a room a few yards distant from the bedroom of her late mistress, she was surprised at hearing a noise just outside the door, as of persons struggling and speaking in low but earnest tones. She drew aside a corner of the muslin curtain of the window which looked upon the passage or corridor, and there saw Mrs. Bourdon striving to wrest something from her son's hand. She heard Mrs. Bourdon say, "You shall not do it, or you shall not have it"—she could not be sure which. A noise of some sort seemed to alarm them: they ceased struggling, and listened attentively for a few seconds: then Alfred Bourdon stole off on tip-toe, leaving the object in dispute, which witness could not see distinctly, in his mother's hand. Mrs. Bourdon continued to listen, and presently Miss Armitage, opening the door of her mother's chamber, called her by name. She immediately placed what was in her hand on the marble top of a side-table standing in the corridor, and hastened to Miss Armitage. Witness left the room she had been in a few minutes afterwards, and, curious to know what Mrs. Bourdon and her son

had been struggling for, went to the table to look at it. It was an oddly-shaped glass bottle, containing a good deal of a blackish-gray powder, which, as she held it up to the light, looked like black-lead!

"Would you be able to swear to the bottle if you saw it?"

"Certainly I should."

"By what mark or token?"

"The name of Valpy or Vulpy was cast into it—that is, the name was in the glass itself."

"Is this it?"

"It is: I swear most positively."

A letter was also read which had been taken from Bourdon's pocket. It was much creased, and was proved to be in the handwriting of Mrs. Armitage. It consisted of a severe rebuke at the young man's presumption in seeking to address himself to her daughter, which insolent ingratitude, the writer said, she should never, whilst she lived, either forget or forgive. This last sentence was strongly underlined in a different ink from that used by the writer of the letter.

The surgeon deposed to the cause of death. It had been brought on by the action of iodine, which, administered in certain quantities, produced symptoms as of rapid atrophy, such as had appeared in Mrs. Armitage. The glass bottle found in the recess contained iodine in a pulverized state.

I deposed that, on entering the library on the previous evening I overheard young Mr. Bourdon, addressing his mother, say, "Now that it is

done past recall, I will not shrink from any consequences, be they what they may!"

This was the substance of the evidence adduced; and the magistrate at once committed Alfred Bourdon to Chelmsford jail, to take his trial at the next assize for "wilful murder." A coroner's inquisition a few days after also returned a verdict of "wilful murder" against him on the same evidence.

About an hour after his committal, and just previous to the arrival of the vehicle which was to convey him to the county prison, Alfred Bourdon requested an interview with me. I very reluctantly consented; but steeled as I was against him, I could not avoid feeling dreadfully shocked at the change which so brief an interval had wrought upon him. It had done the work of years. Despair—black, utter despair—was written in every lineament of his expressive countenance.

"I have requested to see you," said the unhappy culprit, "rather than Dr. Curteis, because he, I know, is bitterly prejudiced against me. But *you* will not refuse, I think, the solemn request of a dying man—for a dying man I feel myself to be—however long or short the interval which stands between me and the scaffold. It is not with a childish hope that any assertion of mine can avail before the tribunal of the law against the evidence adduced this day, that I, with all the solemnity befitting a man whose days are numbered, declare to you that I am wholly innocent of the crime laid to my charge. I have no such expectation; I seek only that you, in pity of my youth and untimely fate, should convey to her whom I have madly presumed to worship this message: 'Alfred Bourdon was mad, but not blood-guilty; and of the crime laid to his charge he is innocent as an unborn child.'"

"The pure and holy passion, young man," said I, somewhat startled by his impressive manner, "however presumptuous, as far as social considerations are concerned, it might be, by which you affect to be inspired, is utterly

inconsistent with the cruel, dastardly crime of which such damning evidence has an hour since been given"—

"Say no more, sir," interrupted Bourdon, sinking back in his seat, and burying his face in his hands: "it were a bootless errand; she *could* not, in the face of that evidence, believe my unsupported assertion! It were as well perhaps she did not. And yet, sir, it is hard to be trampled into a felon's grave, loaded with the maledictions of those whom you would coin your heart to serve and bless! Ah, sir," he continued, whilst tears of agony streamed through his firmly-closed fingers, "you cannot conceive the unutterable bitterness of the pang which rends the heart of him who feels that he is not only despised, but loathed, hated, execrated, by her whom his soul idolizes! Mine was no boyish, transient passion: it has grown with my growth, and strengthened with my strength. My life has been but one long dream of her. All that my soul had drunk in of beauty in the visible earth and heavens—the light of setting suns—the radiance of the silver stars—the breath of summer flowers, together with all which we imagine of celestial purity and grace, seemed to me in her incarnated, concentrated, and combined! And now lost—lost—forever lost!" The violence of his emotions choked his utterance; and deeply and painfully affected, I hastened from his presence.

Time sped as ever onwards, surely, silently; and justice, with her feet of lead, but hands of iron, closed gradually upon her quarry. Alfred Bourdon was arraigned before a jury of his countrymen, to answer finally to the accusation of wilful murder preferred against him.

The evidence, as given before the committing magistrate, and the coroner's inquisition, was repeated with some addition of passionate expressions used by the prisoner indicative of a desire to be avenged on the deceased. The cross-examination by the counsel for the defense was able,

but failed to shake the case for the prosecution. His own admission, that no one but himself had access to the recess where the poison was found, told fatally against him. When called upon to address the jury, he delivered himself of a speech rather than a defense; of an oratorical effusion, instead of a vigorous, and, if possible, damaging commentary upon the evidence arrayed against him. It was a labored, and in part eloquent, exposition of the necessary fallibility of human judgment, illustrated by numerous examples of erroneous verdicts. His peroration I jotted down at the time:—"Thus, my lord and gentlemen of the jury, is it abundantly manifest, not only by these examples, but by the testimony which every man bears in his own breast, that God could not have willed, could not have commanded, his creatures to perform a pretended duty, which he vouchsafed them no power to perform righteously. Oh, be sure that if he had intended, if he had commanded you to pronounce irreversible decrees upon your fellow-man, quenching that life which is his highest gift, he would have endowed you with gifts to perform that duty rightly. Has he done so? Ask not alone the pages dripping with innocent blood which I have quoted, but your own hearts! Are you, according to the promise of the serpent-tempter, 'gods, knowing good from evil?' of such clear omniscience, that you can hurl an unprepared soul before the tribunal of its Maker, in the full assurance that you have rightly loosed the silver cord which he had measured, have justly broken the golden bowl which he had fashioned! Oh, my lord," he concluded, his dark eyes flashing with excitement, "it is possible that the first announcement of my innocence of this crime, to which you will give credence, may be proclaimed from the awful tribunal of him who alone cannot err! How if he, whose eye is even now upon us, should then proclaim, '*I* too, sat in judgment on the day when you presumed to doom your fellow-worm; and *I* saw that the murderer was not in the dock, but on the bench!' Oh, my lord, think well of what you do—pause ere you incur such fearful hazard; for be assured, that for all these things God will also bring *you* to judgment!"

He ceased, and sank back exhausted. His fervid declamation produced a considerable impression upon the auditory; but it soon disappeared before the calm, impressive charge of the judge, who re-assured the startled jury, by reminding them that their duty was to honestly execute the law, not to dispute about its justice. For himself, he said, sustained by a pure conscience, he was quite willing to incur the hazard hinted at by the prisoner. After a careful and luminous summing up, the jury, with very slight deliberation, returned a verdict of "Guilty."

As the word passed the lips of the foreman of the jury, a piercing shriek rang through the court. It proceeded from a tall figure in black, who, with closely-drawn veil, had sat motionless during the trial, just before the dock. It was the prisoner's mother. The next instant she rose, and throwing back her veil wildly exclaimed, "He is innocent—innocent, I tell ye! I alone"—

"Mother! mother! for the love of Heaven be silent!" shouted the prisoner with frantic vehemence, and stretching himself over the front of the dock, as if to grasp and restrain her.

"Innocent, I tell you!" continued the woman. "I—I alone am the guilty person! It was I alone that perpetrated the deed! He knew it not, suspected it not, till it was too late. Here," she added, drawing a sheet of paper from her bosom—"here is my confession, with each circumstance detailed!"

As she waved it over her head, it was snatched by her son, and, swift as lightning, torn to shreds. "She is mad! Heed her not—believe her not!" He at the same time shouted at the top of his powerful voice, "She is distracted—mad! Now, my lord, your sentence! Come!"

The tumult and excitement in the court no language which I can employ would convey an adequate impression of. As soon as calm was partially

restored, Mrs. Bourdon was taken into custody: the prisoner was removed; and the court adjourned, of course without passing sentence.

It was even as his mother said! Subsequent investigation, aided by her confessions, amply proved that the fearful crime was conceived and perpetrated by her alone, in the frantic hope of securing for her idolized son the hand and fortune of Miss Armitage. She had often been present with him in his laboratory, and had thus become acquainted with the uses to which certain agents could be put. She had purloined the key of the recess; and he, unfortunately too late to prevent the perpetration of the crime, had by mere accident discovered the abstraction of the poison. His subsequent declarations had been made for the determined purpose of saving his mother's life by the sacrifice of his own!

The wretched woman was not reserved to fall before the justice of her country. The hand of God smote her ere the scaffold was prepared for her. She was smitten with frenzy, and died raving in the Metropolitan Lunatic Asylum. Alfred Bourdon, after a lengthened imprisonment, was liberated. He called on me, by appointment, a few days previous to leaving this country forever; and I placed in his hands a small pocket-Bible, on the fly-leaf of which was written one word—"Ellen!" His dim eye lighted up with something of its old fire as he glanced at the characters; he then closed the book, placed it in his bosom, and waving me a mute farewell—I saw he durst not trust himself to speak—hastily departed. I never saw him more!

"THE WRIT OF HABEAS CORPUS."

In the month of February of the year following that which witnessed the successful establishment of the claim of Sir Harry Compton's infant son to his magnificent patrimony, Mr. Samuel Ferret was traveling post with all the speed he could command towards Lancashire, in compliance with a summons from Lady Compton, requesting, in urgent terms, his immediate presence at the castle. It was wild and bitter weather, and the roads were in many places rendered dangerous, and almost impassable, by the drifting snow. Mr. Ferret, however, pressed onwards with his habitual energy and perseverance; and, spite of all elemental and postboy opposition, succeeded in accomplishing his journey in much less time than, under the circumstances, could have been reasonably expected. But swiftly as, for those slow times, he pushed on, it is necessary I should anticipate, by a brief period, his arrival at his destination, in order to put the reader in possession of the circumstances which had occasioned the hurried and pressing message he had received.

Two days before, as Lady Compton and her sister, who had been paying a visit to Mrs. Arlington at the Grange, were returning home towards nine o'clock in the evening, they observed, as the carriage turned a sharp angle of the road leading through Compton Park, a considerable number of lighted lanterns borne hurriedly to and fro in various directions, by persons apparently in eager but bewildered pursuit of some missing object. The

carriage was stopped, and in answer to the servants' inquiries, it was replied that Major Brandon's crazy niece had escaped from her uncle's house; and although traced by the snow-tracks as far as the entrance to the park, had not yet been recovered. Mrs. Brandon had offered a reward of ten pounds to whoever should secure and reconduct her home; hence the hot pursuit of the fugitive, who, it was now supposed, must be concealed in the shrubberies. Rumors regarding this unfortunate young lady, by no means favorable to the character of her relatives as persons of humanity, had previously reached Lady Compton's ears; and she determined to avail herself, if possible, of the present opportunity to obtain a personal interview with the real or supposed lunatic. The men who had been questioned were informed that only the castle servants could be allowed to search for the missing person, either in the park or shrubberies; and that if there, she would be taken care of, and restored to her friends in the morning. The coachman was then ordered to drive on; but the wheels had not made half-a-dozen revolutions, when a loud shout at some distance, in the direction of the park, followed by a succession of piercing screams, announced the discovery and capture of the object of the chase. The horses were urged rapidly forward; and ere more than a minute had elapsed, the carriage drew up within a few yards of the hunted girl and her captors. The instant it stopped, Clara Brandon, liberating herself by a frenzied effort from the rude grasp in which she was held by an athletic young man, sprang wildly towards it, and with passionate intreaty implored mercy and protection. The young man, a son of Mrs. Brandon's by a former husband, immediately re-seized her; and with fierce violence endeavored to wrench her hand from the handle of the carriage door, which she clutched with desperate tenacity. The door flew open, the sudden jerk disengaged her hold, and she struggled vainly in her captor's powerful grasp. "Save me! save me!" she frantically exclaimed, as she felt herself borne off. "You who are, they say, as kind and good as you are beautiful and happy, save me from this cruel man!"

Lady Compton, inexpressibly shocked by the piteous spectacle presented by the unhappy girl—her scanty clothing soiled, disarrayed, and torn by the violence of her struggles; her long flaxen tresses flowing disorderly over her face and neck in tangled dishevelment; and the pale, haggard, wild expression of her countenance—was for a few moments incapable of speech. Her sister was more collected: "Violet," she instantly remonstrated, "do not permit this brutal violence."

"What right has she or any one to interfere with us?" demanded the young man savagely. "This girl is Major Brandon's ward, as well as niece, and *shall* return to her lawful home! Stand back," continued he, addressing the servants, who, at a gesture from Miss Dalston, barred his progress. "Withstand me at your peril!"

"Force her from him!" exclaimed Lady Compton, recovering her voice. "Gently! gently! I will be answerable for her safe custody till the morning."

The athletic fellow struggled desperately; but however powerful and determined, he was only one man against a score, nearly all the bystanders being tenants or laborers on the Compton estates; and spite of his furious efforts, and menaces of law and vengeance, Clara was torn from him in a twinkling, and himself hurled with some violence prostrate on the road. "Do not let them hurt the man," said Lady Compton, as the servants placed the insensible girl in the carriage (she had fainted); "and tell him that if he has really any legal claim to the custody of this unfortunate person, he must prefer it in the morning."

Immediately on arrival at the castle, the escaped prisoner was conveyed to bed, and medical aid instantly summoned. When restored to consciousness, whether from the effect of an excess of fever producing temporary delirium, or from confirmed mental disease, her speech was altogether wild and incoherent—the only at all consistent portions of her

ravings being piteously—iterated appeals to Lady Compton not to surrender her to her aunt in-law, Mrs. Brandon, of whom she seemed to entertain an overpowering, indefinable dread. It was evident she had been subjected to extremely brutal treatment—such as, in these days of improved legislation in such matters, and greatly advanced knowledge of the origin and remedy of cerebral infirmity, would not be permitted towards the meanest human being, much less a tenderly-nurtured, delicate female. At length, under the influence of a composing draught, she sank gradually to sleep; and Lady Compton having determined to rescue her, if possible, from the suspicious custody of her relatives, and naturally apprehensive of the legal difficulties which she could not doubt would impede the execution of her generous, if somewhat Quixotic project, resolved on at once sending off an express for Mr. Ferret, on whose acumen and zeal she knew she could place the fullest reliance.

Clara Brandon's simple history may be briefly summed up. She was the only child of a Mr. Frederick Brandon, who, a widower in the second year of his marriage, had since principally resided at the "Elms," a handsome mansion and grounds which he had leased of the uncle of the late Sir Harry Compton. At his decease, which occurred about two years previous to poor Clara's escape from confinement, as just narrated, he bequeathed his entire fortune, between two and three thousand pounds per annum, chiefly secured on land, to his daughter; appointed his elder brother, Major Brandon, sole executor of his will, and guardian of his child; and in the event of her dying before she had attained her majority—of which she wanted, at her father's death, upwards of three years—or without lawful issue, the property was to go to the major, to be by him willed at his pleasure. Major Brandon, whose physical and mental energies had been prematurely broken down—he was only in his fifty-second year—either by excess or hard service in the East, perhaps both, had married late in life the widow of a brother officer, and the mother of a grown-up son. The lady, a woman of inflexible will,

considerable remains of a somewhat masculine beauty, and about ten years her husband's junior, held him in a state of thorough pupilage; and, unchecked by him, devoted all her energies to bring about, by fair or foul means, a union between Clara and her own son, a cub of some two or three-and-twenty years of age, whose sole object in seconding his mother's views upon Clara was the acquisition of her wealth. According to popular surmise and report, the young lady's mental infirmity had been brought about by the persecutions she had endured at the hands of Mrs. Brandon, with a view to force her into a marriage she detested. The most reliable authority for the truth of these rumors was Susan Hopley, now in the service of Lady Compton, but who had lived for many years with Mr. Frederick Brandon and his daughter. She had been discharged about six months after her master's decease by Mrs. Major Brandon for alleged impertinence; and so thoroughly convinced was Susan that the soon-afterwards alleged lunacy of Clara was but a juggling pretence to excuse the restraint under which her aunt-in-law, for the furtherance of her own vile purposes, had determined to keep her, that although out of place at the time, she devoted all the savings of her life, between eighty and ninety pounds, to procure "justice" for the ill-used orphan. This article, Susan was advised, could be best obtained of the lord chancellor; and proceedings were accordingly taken before the keeper of the king's conscience, in order to change the custody of the pretended lunatic. The affidavits filed in support of the petition were, however, so loose and vague, and were met with such positive counter-allegations, that the application was at once dismissed with costs; and poor Susan—rash suitor for "justice"—reduced to absolute penury. These circumstances becoming known to Lady Compton, Susan was taken into her service; and it was principally owing to her frequently-iterated version of the affair that Clara had been forcibly rescued from Mrs. Brandon's son.

On the following morning the patient was much calmer, though her mind still wandered somewhat. Fortified by the authority of the physician, who

certified that to remove her, or even to expose her to agitation, would be dangerous, if not fatal, Lady Compton not only refused to deliver her up to Major and Mrs. Brandon, but to allow them to see her. Mrs. Brandon, in a towering rage, posted off to the nearest magistrate, to demand the assistance of peace-officers in obtaining possession of the person of the fugitive. That functionary would, however, only so far comply with the indignant lady's solicitations, as to send his clerk to the castle to ascertain the reason of the young lady's detention; and when his messenger returned with a note, enclosing a copy of the physician's certificate, he peremptorily decided that the conduct of Lady Compton was not only perfectly justifiable, but praiseworthy, and that the matter must remain over till the patient was in a condition to be moved. Things were precisely in this state, except that Clara Brandon had become perfectly rational; and but for an irrepressible nervous dread of again falling into the power of her unscrupulous relative, quite calm, when Mr. Samuel Ferret made his wished-for appearance on the scene of action.

Long and anxious was the conference which Mr. Ferret held with his munificent client and her interesting protégée, if conference that may be called in which the astute attorney enacted the part of listener only, scarcely once opening his thin, cautious lips. In vain did his eager brain silently ransack the whole armory of the law; no weapon could he discern which afforded the slightest hope of fighting a successful battle with a legally-appointed guardian for the custody of his ward. And yet Mr. Ferret felt, as he looked upon the flashing eye and glowing countenance of Lady Compton, as she recounted a few of the grievous outrages inflicted upon the fair and helpless girl reclining beside her—whose varying cheek and meek suffused eyes bore eloquent testimony to the truth of the relation—that he would willingly exert a vigor even *beyond* the law to meet his client's wishes, could he but see his way to a safe result. At length a ray of light, judging from his suddenly-gleaming eyes, seemed to have broken upon the

troubled chambers of his brain, and he rose somewhat hastily from his chair.

"By the by, I will just step and speak to this Susan Hopley, if your ladyship can inform me in what part of the lower regions I am likely to meet with her?"

"Let me ring for her."

"No; if you please not. What I have to ask her is of very little importance; still, to summon her here might give rise to surmises, reports, and so on, which it may be as well to avoid. I had much rather see her accidentally, as it were."

"As you please. You will find her somewhere about the housekeeper's apartments. You know her by sight, I think?"

"Perfectly; and with your leave I'll take the opportunity of directing the horses to be put to. I must be in London by noon to-morrow if possible;" and away Mr. Ferret bustled.

"Susan," said Mr. Ferret a few minutes afterwards, "step this way; I want to have a word with you. Now, tell me are you goose enough to expect you will ever see the money again you so foolishly threw into the bottomless pit of chancery?"

"Of course I shall, Mr. Ferret, as soon as ever Miss Clara comes to her own. She mentioned it only this morning, and said she was sorry she could not repay me at once."

"You are a sensible girl, Susan, though you *did* go to law with the lord chancellor! I want you to be off with me to London; and then perhaps we may get your money sooner than you expect."

"Oh, bother the money! Is that *all* you want me to go to Lunnon for?"

Mr. Ferret replied with a wink of such exceeding intelligence, that Susan at once declared she should be ready to start in ten minutes at the latest.

"That's a good creature; and, Susan, as there's not the slightest occasion to let all the world know who's going to run off with you, it may be as well for you to take your bundle and step on a mile or so on the road, say to the turn, just beyond the first turnpike." Susan nodded with brisk good-humor, and disappeared in a twinkling.

An hour afterwards, Mr. Ferret was on his way back to London, having first impressed upon Lady Compton the necessity of immediately relieving herself of the grave responsibility she had incurred towards Major Brandon for the safe custody of his ward, by sending her home immediately. He promised to return on the third day from his departure; but on the nature of the measures he intended to adopt, or the hopes he entertained of success, he was inflexibly silent; and he moreover especially requested that no one, not even Miss Brandon, should know of Susan Hopley's journey to the metropolis.

Mr. Ferret, immediately on his arrival in town, called at my chambers, and related with his usual minuteness and precision as many of the foregoing particulars as he knew and thought proper to communicate to me. For the rest I am indebted to subsequent conversations with the different parties concerned.

"Well," said I, as soon as he had concluded, "what course do you propose to adopt?"

"I wish you to apply, on this affidavit, for a writ of *habeas ad sub.*, to bring up the body of Clara Brandon. Judge Bailey will be at chambers at

three o'clock: it is now more than half-past two, and I can be off on my return by four at latest."

"A writ of habeas!" I exclaimed with astonishment. "Why, what end can that answer? The lady will be remanded, and you and I shall be laughed at for our pains."

This writ of *habeas corpus "ad subjiciendum,"* I had better explain to the non-professional reader, is the great *prerogative* writ, the operation of which is sometimes suspended by the legislature during political panics. It is grounded on the principle that the sovereign has at all times a right to inquire, through the judges of the superior courts, by what authority his or her subject is held in constraint. It issues, as a matter of right, upon the filing of an affidavit, averring that to the best of the belief of the deponent the individual sought to be brought up is illegally confined; and it is of the essence of the proceeding, that the person alleged to be suffering unlawful constraint should actually be brought before the "queen herself;" that is, before one or more of the judges of the court which has issued the writ, who, if they find *the detention illegal*, the only question at issue upon this writ may discharge or bail the party. It was quite obvious, therefore, that in this case such a proceeding would be altogether futile, as the detention in the house of her guardian, under the sanction, too, of the lord chancellor, the *ex-officio* custodier of all lunatics—of a ward of alleged disordered intellect—was clearly legal, at least *prima facie* so, and not to be disturbed under a *habeas ad sub.* at all events.

"Perhaps so," replied Ferret quite coolly in reply to my exclamation; "but I am determined to try every means of releasing the unfortunate young lady from the cruel thralldom in which she is held by that harridan of an aunt-in-law. She is no more really insane than you are; but at the same time so excitable upon certain topics, that it might be perhaps difficult to disabuse

the chancellor or a jury of the impression so industriously propagated to her prejudice. The peremptory rejection by her guardian of young Burford's addresses, though sanctioned by her father: you know the Burfords?"

"Of Grosvenor Street you mean—the East India director?"

"Yes, his son; and that reminds me that the declaration in that everlasting exchequer case must be filed to-morrow. Confound it, how this flying about the country puts one out! I thought some one had kidnapped her son, or fired Compton Castle at least. By the way, I am much deceived if there isn't a wedding there before long."

"Indeed!"

"Yes, Miss Dalston with Sir Jasper's eldest hope."

"You don't mean it?"

"*They* do at all events, and that is much more to the purpose. A fine young fellow enough, and sufficiently rich too"—

"All which rambling talk and anecdote," cried I, interrupting him, "means, if I have any skill in reading Mr. Ferret, that that gentleman, having some ulterior purpose in view, which I cannot for the moment divine, is determined to have this writ, and does not wish to be pestered with any argument on the subject. Be it so: it is your affair, not mine. And now, as it is just upon three o'clock, let me see your affidavit."

I ran it over. "Rather loose this, Mr. Ferret, but I suppose it will do."

"Well, it *is* rather loose, but I could not with safety sail much closer to the wind. By the by, I think you had better first apply for a rule to stay proceedings against the bail in that case of Turner; and after that is decided,

just ask for this writ, off-hand as it were, and as a matter of course. His lordship may not then scrutinize the affidavit quite so closely as if he thought counsel had been brought to chambers purposely to apply for it."

"Cautious, Mr. Ferret! Well, come along, and I'll see what I can do."

The writ was obtained without difficulty; few questions were asked; and at my request the judge made it returnable immediately. By four o'clock, Mr. Ferret, who could fortunately sleep as well in a postchaise as in a feather-bed, was, as he had promised himself, on his road to Lancashire once more, where he had the pleasure of serving Major Brandon personally; at the same time tendering in due form the one shilling per mile fixed by the statute as preliminary traveling charges. The vituperative eloquence showered upon Mr. Ferret by the Major's lady was, I afterwards heard, extremely copious and varied, and was borne by him, as I could easily believe, with the most philosophic composure.

In due time the parties appeared before Mr. Justice Bailey. Miss Brandon was accompanied by her uncle, his wife, and a solicitor; and spite of everything I could urge, the judge, as I had foreseen, refused to interfere in the matter. The poor girl was dreadfully agitated, but kept, nevertheless, her eyes upon Mr. Ferret, as the source from which, spite of what was passing around her, effectual succor was sure to come. As for that gentleman himself, he appeared composedly indifferent to the proceedings; and indeed, I thought, seemed rather relieved than otherwise when they terminated. I could not comprehend him. Mrs. Brandon, the instant the case was decided, clutched Clara's arm within hers, and, followed by her husband and the solicitor, sailed out of the apartment with an air of triumphant disdain and pride. Miss Brandon looked round for Ferret, but not perceiving him—he had left hastily an instant or two before—her face became deadly pale, and the most piteous expression of hopeless despair I

had ever beheld broke from her troubled but singularly-expressive eyes. I mechanically followed, with a half-formed purpose of remonstrating with Major Brandon in behalf of the unfortunate girl, and was by that means soon in possession of the key to Mr. Ferret's apparently inexplicable conduct.

The Brandon party walked very fast, and I had scarcely got up with them as they were turning out of Chancery Lane into Fleet Street, when two men, whose vocation no accustomed eye could for an instant mistake, arrested their further progress. "This lady," said one of the men, slightly touching Miss Brandon on the shoulder, "is, I believe, Clara Brandon?"

"Yes she is; and what of that, fellow?" demanded the major's lady with indignant emphasis.

"Not much, ma'am," replied the sheriff's officer, "when you are used to it. It is my unpleasant duty to arrest her for the sum of eighty-seven pounds, indorsed on this writ, issued at the suit of one Susan Hopley."

"Arrest her!" exclaimed Mrs. Brandon; "why, she is a minor!"

"Minor or major, ma'am, makes very little difference to us. She can plead that hereafter, you know. In the meantime, miss, please to step into this coach," replied the officer, holding the door open.

"But she's a person of unsound mind," screamed the lady, as Clara, nothing loath, sprang into the vehicle.

"So are most people that do business with our establishment," responded the imperturbable official, as he shut and fastened the door. "Here is my card, sir," he added, addressing the attorney, who now came up. "You see where to find the lady, if her friends wish to give bail to the sheriff, or, what

is always more satisfactory, pay the debt and costs." He then jumped on the box, his follower got up behind, and away drove the coach, leaving the discomfited major and his fiery better-half in a state of the blankest bewilderment!

"Why, what *is* the meaning of this?" at length gasped Mrs. Brandon, fiercely addressing the attorney, as if *he*, were a *particeps criminis* in the affair.

"The meaning, my dear madame, is, that Miss Clara Brandon is arrested for debt, and carried off to a sponging-house; and that unless you pay the money, or file bail, she will tomorrow be lodged in jail," replied the unmoved man of law.

"Bail! money! How are we to do either in London, away from home?" demanded the major with, for him, much emotion.

I did not wait to hear more, but, almost suffocated with laughter at the success of Ferret's audacious *ruse*, hastened over to the Temple. I was just leaving chambers for the night—about ten o'clock I think it must have been—when Ferret, in exuberant spirits, burst into the room.

"Well, sir, what do you think *now* of a writ *ad sub*.?"

"Why, I think, Mr. Ferret," replied I, looking as serious as I could, "that yours is very sharp practice; that the purpose you have put it to is an abuse of the writ; that the arrest is consequently illegal; and that a judge would, upon motion, quash it with costs."

"To be sure he would: who doubts that? Let him, and welcome! In the meantime, Clara Brandon is safe beyond the reach of all the judges or chancellors that ever wore horsehair, and that everlasting simpleton of a

major and his harri-dan wife roaming the metropolis like distracted creatures; and that I take to be the real essence of the thing, whatever the big-wigs may decide about the shells!"

"I suppose the plaintiff soon discharged her debtor out of custody?"

"Without loss of time, you may be sure. Miss Brandon, I may tell *you*, is with the Rev. Mr. Derwent at Brompton. You know him: the newly-married curate of St. Margaret's that was examined in that will case. Well him: he is an intelligent, high-principled man; and I have no doubt that, under his and Mrs. Derwent's care, all trace of Miss Brandon's mental infirmity will disappear long before she attains her majority next June twelvemonth; whilst the liberal sum per month which Lady Compton will advance, will be of great service to him"

"That appears all very good. But are you sure you can effectually conceal the place of her retreat?"

"I have no fear: the twigs that will entangle her precious guardians in the labyrinths of a false clue are already set and limed. Before to-morrow night they will have discovered, by means of their own wonderfully-penetrative sagacity, that Clara has been spirited over to France; and before three months are past, the same surprising intelligence will rejoice in the discovery that she expired in a *maison de santé*—fine comfortable repose, in which fool's paradise I hope to have the honor of awakening them about next June twelvemonth, and not as at present advised before!"

Everything fortunately turned out as Mr. Ferret anticipated; and when a few months had glided by, Clara Brandon was a memory only, save of course to the few entrusted with the secret.

The whirligig of time continued as ever to speed on its course, and bring round in due season its destined revenges. The health, mental and bodily, of Miss Brandon rapidly improved under the kind and judicious treatment of Mr. and Mrs. Derwent; and long before the attainment of her majority, were pronounced by competent authority to be thoroughly re-established. The day following that which completed her twentyfirst year, Mr. Ferret, armed with the necessary authority, had the pleasure of announcing to the relict of Major Brandon (he had been dead some months), and to her brutal son, that they must forthwith depart from the home in which they, to the very moment of his announcement, thought themselves secure; and surrender every shilling of the property they had so long dreamt was their own. They were prostrated by the intelligence, and proved as mean and servile in the hour of adversity, as they had been insolent and cruel in the day of fancied success and prosperity. The pension of three hundred pounds a year for both their lives, proffered by Miss Brandon, was eagerly accepted; and they returned to the obscurity from which they had by accident emerged.

About six months afterwards, I had the pleasure of drawing up the marriage settlement between Clara Brandon and Herbert Burford; and a twelvemonth after, that of standing sponsor to one of the lustiest brats ever sprinkled at a font: none of which delightful results, if we are to believe Mr. Ferret, would have ever been arrived at had not he, at a very critical moment, refused to take counsel's opinion upon the virtues, capabilities, and powers contained in the great writ of *habeas corpus ad subjiciendum*.

ESTHER MASON.

About forty years ago, Jabez Woodford, a foreman of shipwrights in the Plymouth dockyard, whilst carelessly crossing one of the transverse beams of a seventy-four gun-ship, building in that arsenal, missed his footing, fell to the bottom of the hold of the huge vessel, and was killed on the spot. He left a widow and one child—a boy seven years of age, of placid, endearing disposition, but weak intellect—almost in a state of destitution. He had been a coarse-tempered, improvident man; and like too many of his class, in those days at least, dissipated the whole of his large earnings in present sensuous indulgence, utterly careless or unmindful of the future. Esther Woodford, who, at the time of her husband's death, scarcely numbered five-and-twenty years, was still a remarkably comely, as well as interesting, gentle-mannered person; and moreover had, for her station in life, received a tolerable education. Her rash, ill-assorted marriage with Woodford had been hastily contracted when she was barely seventeen years of age, in consequence of a jealous pique which she, for some silly reason or other, had conceived regarding Henry Mason, an intelligent, young seafaring man, of fair prospects in life, and frank disposition, with whom she had for some time previously, as the west-country phrase has it, "kept company," and who was, moreover, tenderly attached to her. Esther's married life was one long repentance of the rash act; and the severance of the tie which bound her to an ungenial mate—after the subsidence of the natural horror and compassion excited by the sudden and frightful nature of the catastrophe—

must have been felt as a most blessed relief. A few weeks afterwards, she accepted an asylum with her brother-in-law, Davies, a market-gardener in the vicinity of Plymouth, where, by persevering industry with her needle, and thrifty helpfulness in her sister's household duties, she endeavored to compensate her kind-hearted relatives for the support of herself and helpless, half-witted child. Mason she had never seen since the day previous to her marriage; but she knew he was prospering in the busy world, and that, some time before her husband's death, he had been appointed chief-mate in a first-class merchant-ship trading to the Pacific. He had sailed about a fortnight previous to that event; and now, ten lazy months having slowly floated past, the lover of her youth, with whom, in that last sunny day of her young life—how distant did it seem, viewed through the long intervening vista of days and nights of grief and tears!—she had danced so joyously beneath the flowering chestnut-trees, was once more near her; and it was—oh happiness!—no longer a sin to think of him—no longer a crime to recall and dwell upon the numberless proofs of the deep affection, the strong love, he had once felt for her. *Once* felt! Perhaps even now!—How swiftly had the intelligence communicated by her sympathizing sister tinted with bright hues the dark curtain of the future!

"And yet," murmured poor Esther, the flush of hope fading as suddenly as it had arisen, as with meek sad eyes she glanced at the reflection of her features in the small oval glass suspended above the mantel-piece—"I almost doubt, Susy, dear, if he would recognize me; even if old feelings and old times have not long since faded from his memory"—

"Stuff and trumpery about fading away!" broke in Mrs. Davies. "Henry Mason is the same true-hearted man he was eight years ago; and as a proof that he is, just read this letter, which I promised him to give you. There, don't go falling into a flustration; don't now, Esther, and to-morrow market-day and all! Don't cry, Esther," she added vehemently, but at the same time

sobbing furiously herself, and throwing her arms round her sister's neck: "but perhaps—perhaps it will do us good, both of us!"

It may be necessary to state that I owe the foregoing particulars to the interest felt by my wife—herself a native of beautiful Devon—in the fortunes of this humble household. Esther was her foster-sister; and it happened that just at this period, it being vacation-time, we were paying a visit to a family in the neighborhood. A few hours after the receipt of the welcome letter, my wife chanced to call on Esther relative to some fancy needlework; and on her return, I was of course favored with very full and florid details of this little bit of cottage romance; the which I, from regard to the reader, have carefully noted down, and as briefly as possible expressed.

We met Henry Mason with his recovered treasure on the following evening; and certainly a more favorable specimen of the vigorous, active, bold-featured, frank-spoken British seaman I never met with. To his comparatively excellent education—for which I understood he was indebted to his mother, a superior woman, who, having fallen from one of the little heights of society, had kept a school at Plymouth—in addition to his correct and temperate habits, he was indebted for the rapid advance—he was but a few months older than Esther—he had obtained in the merchant service. The happiness which beamed upon Esther's face did not appear to be of the exuberant, buoyant character that kindled the ruddy cheek and ran over at the bright, honest eyes of the hardy sailor: there seemed to mingle with it a half-doubting, trembling apprehensiveness; albeit it was not difficult to perceive that, sorrowfully as had passed her noon of prime, an "Indian summer" of the soul was rising upon her brightened existence, and already with its first faint flushes lighting up her meek, doubting eyes, and pale, changing countenance. Willy, her feeble-minded child, frisked and gambolled by their side; and altogether, a happier group than they would, I fancy, have been difficult to find in all broad England.

The next week they were married; and one of the partners in the firm by which Mason was employed happening to dine with us on the day of the wedding, the conversation turned for a few minutes on the bridegroom's character and prospects.

"He has the ring of true metal in him," I remarked; "and is, I should suppose, a capital seaman?"

"A first-rate one," replied Mr. Roberts. "Indeed so high is my father's opinion of him, that he intends to confer upon him the command of a fine brig now building for us in the Thames, and intended for the West India trade. He possesses also singular courage and daring. Twice, under very hazardous circumstances, he has successfully risked his life to save men who had fallen overboard. He is altogether a skilful, gallant seaman."

"Such a man," observed another of the company, "might surely have aspired higher than to the hand of Esther Woodford, dove-eyed and interesting as she may be?"

"Perhaps so," returned Mr. Roberts a little curtly; "though he, it seems, could not have thought so. Indeed it is chiefly of simple-hearted, chivalrous-minded men like Mason that it can be with general truth observed—

'On revient toujours à ses premiers amours.'"

The subject then dropped, and it was a considerable time afterwards, and under altogether altered circumstances, when the newly-married couple once more crossed my path in life.

It was about eight months after his marriage—though he had been profitably enough employed in the interim—that Henry Mason, in

consequence of the welcome announcement that the new brig was at last ready for her captain and cargo, arrived in London to enter upon his new appointment.

"These lodgings, Esther," said he, as he was preparing to go out, soon after breakfast, on the morning after his arrival, "are scarcely the thing; and as I, like you, am a stranger in Cockney-land, I had better consult some of the firm upon the subject, before we decide upon permanent ones. In the meantime, you and Willy must mind and keep in doors when I am not with you, or I shall have one or other of you lost in this great wilderness of a city. I shall return in two or three hours. I will order something for dinner as I go along: I have your purse. Good-by: God bless you both."

Inquiring his way every two or three minutes, Mason presently found himself in the vicinity of Tower Stairs. A scuffle in front of a public-house attracted his attention; and his ready sympathies were in an instant enlisted in behalf of a young sailor, vainly struggling in the grasp of several athletic men, and crying lustily on the gaping bystanders for help. Mason sprang forward, caught one of the assailants by the collar, and hurled him with some violence against the wall. A fierce outcry greeted this audacious interference with gentlemen who, in those good old times, were but executing the law in a remarkably good old manner. Lieutenant Donnagheu, a somewhat celebrated snapper-up of loose mariners, emerged upon the scene; and in a few minutes was enabled to exult in the secure possession of an additional prize in the unfortunate Henry Mason, who, too late, discovered that he had embroiled himself with a *pressgang*! Desperate, frenzied were the efforts he made to extricate himself from the peril in which he had rashly involved himself. In vain! His protestations that he was a mate, a captain, in the merchant service, were unheeded or mocked at.

To all his remonstrances he only got the professional answer—"His majesty wants you, and that is enough; so come along, and no more about it."

Bruised, exhausted, almost mad, he was borne off in triumph to a boat, into which he was thrust with several others, and swiftly rowed off to a receiving-ship in the river. Even there his assertions and protestations were of no avail. Nothing but an Admiralty order, the officer in command candidly told him, should effect his liberation. His majesty was in need of seamen; and he was evidently too smart a one to be deprived of the glory of serving his country. "You must therefore," concluded the officer, as he turned laughingly upon his heel, "do as thousands of other fine fellows have been compelled to do—'grin and bear it.'" In about three weeks from the date of his impressment Mason found himself serving in the Mediterranean on board the "Active" frigate, Captain Alexander Gordon, without having been permitted one opportunity of communicating with the shore. This was certainly very sharp, but it was not the less very *common* practice in those great days of triumphant battles by land and sea.

Very drearily passed the time with the bereaved wife. Her husband had promised to send home something for dinner, and various groceries; yet hour after hour went past, and nothing arrived. Morning flushed into noon, day faded to twilight, and still the well-known and always eager step sounded not upon the stairs! What could have detained him from his wife, shut up, imprisoned, as it were, in that hot, hurrying, stifling city? She feared to listen to the suggestions of her boding heart; and with feverish restlessness ran out upon the landing, and peered over the stairs every time a knock or ring was heard at the street-door. This strange behavior was, it seems, noticed by the landlady of the lodging-house, and injuriously interpreted. A knock came to the door, and that person entered to know at

what time *Mrs.* ——, she had forgotten the young woman's name, expected the dinner, she, the landlady, had undertaken to cook.

Esther timidly replied that her husband had promised to return in two or three hours at latest; and that she did not comprehend his continued absence—was indeed quite alarmed about it—

"Your husband!" said the woman, glancing insolently at Esther's figure. "Are you sure he *is* your husband?"

The hot blood suffused the temples of the indignant wife as she said, "This apartment, madam, I believe is mine?"

"Oh, certainly, as long as you can pay for it;" and rudely slamming the door, the landlady departed.

The long wretched night at last over, Esther rose with the light; and after giving her son his breakfast from the remains of that of the day before, set off with him to the place of business of the Messrs. Roberts. It was early, and one clerk only had as yet arrived at the office. He informed her that Mr. Henry Mason had not been seen, and that the partners were greatly annoyed about it, as his immediate presence was absolutely necessary.

Stunned, terrified, bewildered by the frightful calamity which she believed had befallen her, she felt convinced that her husband had been entrapped and murdered for the sake of the money he had about him: the wretched woman tottered back to her lodgings, and threw herself on the bed in wild despair. What was to be done for food even for her boy? Her husband had not only his pocket-book with him containing his larger money, but had taken her purse! She was alone and penniless in a strange city! The hungry wailings of her witless child towards evening at length aroused her from the stupor of despair into which she had fallen. The

miserable resource of pawning occurred to her: she could at least, by pledging a part of her wardrobe, procure sustenance for her child till she could hear from her sister; and with trembling hands she began arranging a bundle of such things as she could best spare, when the landlady abruptly entered the room, with a peremptory demand—as her husband was not returned, and did not appear likely to do so—for a month's rent in advance, that being the term the apartments were engaged for. The tears, entreaties, expostulations of the miserable wife were of no avail. Not one article, the woman declared, should leave her house till her claim was settled. She affected to doubt, perhaps really did so, that Esther was married; and hinted coarsely at an enforcement of the laws against persons who had no visible means of subsistence. In a paroxysm of despair, the unhappy woman rushed out of the house; and accompanied by her hungry child, again sought the counting-house of the Messrs. Roberts. She was now as much too late as she had been too early in the morning: the partners and clerks had gone, and she appears to have been treated with some rudeness by the porter, who was closing the premises when she arrived. Possibly the wildness of her looks, and the incoherence of her speech and manner, produced an impression unfavorable to her. Retracing her steps—penniless, hungry, sick at heart—she thought, as she afterwards declared, that she recognized my wife in one of the numerous ladies seated before the counters of a fashionable shop in one of the busiest thoroughfares. She entered, and not till she approached close to the lady discovered her mistake. She turned despairingly away; when a piece of rich lace, lying apparently unheeded on the counter, met her eye, and a dreadful suggestion crossed her fevered brain; here at least was the means of procuring food for her wailing child. She glanced hastily and fearfully round. No eye, she thought, observed her; and, horror of horrors! a moment afterwards she had concealed the lace beneath her shawl, and with tottering feet was hastily leaving the shop. She had not taken half-a-dozen steps when a heavy hand was laid upon her shoulder, and a voice, as of a

serpent hissing in her ear, commanded her to restore the lace she had stolen. Transfixed with shame and terror, she stood rooted to the spot, and the lace fell on the floor.

"Fetch an officer," said the harsh voice, addressing one of the shopmen.

"No—no—no!" screamed the wretched woman, falling on her knees in wild supplication. "For my child's sake—in mercy of the innocent babe as yet unborn—pity and forgive me!"

The harsh order was iterated; and Esther Mason, fainting with shame and agony, was conveyed to the prison in Giltspur Street. The next day she was fully committed to Newgate on the capital charge of privately stealing in a shop to the value of five pounds. A few hours after her incarceration within those terrible walls, she was prematurely delivered of a female child.

I have no moral doubt whatever, I never have had, that at the time of the committal of the felonious act, the intellect of Esther Mason was disordered. Any other supposition is inconsistent with the whole tenor of her previous life and character "Lead us not into temptation" is indeed the holiest, because the humblest prayer.

Three weeks had elapsed before the first intimation of these events reached me, in a note from the chaplain of Newgate, an excellent, kind-hearted man, to whom Mrs. Mason had confided her sad story. I immediately hastened to the prison; and in a long interview with her, elicited the foregoing statement. I readily assured her that all which legal skill could do to extricate her from the awful position in which she stood, the gravity of which I did not affect to conceal, should be done. The offence with which she was charged had supplied the scaffold with numberless victims; and tradesmen were more than ever clamorous for the stern execution of a law which, spite of experience, they still regarded as the only

safeguard of their property. My wife was overwhelmed with grief; and in her anxiety to save her unhappy foster-sister, sought, without my knowledge, an interview with the prosecutor, in the hope of inducing him not to press the charge. Her efforts were unavailing. He had suffered much, he said, from such practices, and was "upon principle" determined to make an example of every offender he could catch. As to the plea that the husband had been forcibly carried off by a pressgang, it was absurd; for what would become of the property of tradesmen if the wife of every sailor so entrapped were to be allowed to plunder shops with impunity? This magnificent reasoning was of course unanswerable; and the rebuked petitioner abandoned her bootless errand in despair. Messrs. Roberts, I should have mentioned, had by some accident discovered the nature of the misfortune which had befallen their officer, and had already made urgent application to the Admiralty for his release.

The Old Bailey sessions did not come on for some time: I, however, took care to secure at once, as I did not myself practice in that court, the highest talent which its bar afforded. Willy, who had been placed in a workhouse by the authorities, we had properly taken care of till he could be restored to his mother; or, in the event of her conviction, to his relatives in Devonshire.

The sessions were at last on: a "true bill" against Esther Mason for shoplifting, as it was popularly termed, was unhesitatingly found, and with a heavy heart I wended my way to the court to watch the proceedings. A few minutes after I entered, Mr. Justice Le Blanc and Mr. Baron Wood, who had assisted at an important case of stockjobbing conspiracy, just over, left the bench: the learned recorder being doubtless considered quite equal to the trial of a mere capital charge of theft.

The prisoner was placed in the dock; but try as I might, I could not look at her. It happened to be a calm bright summer day; the air, as if in mockery

of those death-sessions, humming with busy, lusty life; so that, sitting with my back to the prisoner, I could, as it were, read her demeanor in the shadow thrown by her figure on the opposite sun-lighted wall. There she stood, during the brief moments which sealed her earthly doom, with downcast eyes and utterly dejected posture; her thin fingers playing mechanically with the flowers and sweet-scented herbs spread scantily before her. The trial was very brief: the evidence, emphatically conclusive, was confidently given, and vainly cross-examined. Nothing remained but an elaborate *ad misericordiam* excusative defence, which had been prepared by me, and which the prisoner begged her counsel might be allowed to read. This was of course refused; the recorder remarking, they might as well allow counsel for felons to *address* juries, as read defences; and *that*, as every practical man knew, would be utterly subversive of the due administration of justice. The clerk of the court would read the paper, if the prisoner felt too agitated to do so. This was done; and very vilely done. The clerk, I dare say, read as well as he was able; but old, near-sighted, and possessed of anything but a clear enunciation, what could be expected? The defence, so read, produced not the slightest effect either on the court or jury. The recorder briefly commented on the conclusiveness of the evidence for the prosecution; and the jury, in the same brief, business-like manner, returned a verdict of Guilty.

"What have you to say," demanded the clerk, "why sentence of death should not be pronounced upon you, according to law?"

The shadow started convulsively as the terrible words fell from the man's lips; and I saw that the suddenly-upraised eyes of the prisoner were fastened on the face of the fearful questioner. The lips, too, appeared to move; but no sound reached my ears.

"Speak, woman," said the recorder; "if you have anything to urge before sentence is pronounced."

I started up, and turning to the prisoner, besought her in hurried accents to speak. "Remind them of the infant at your breast—your husband"—

"Who is that conferring with the prisoner?" demanded the judge in an angry voice.

I turned, and confronted him with a look as cold and haughty as his own. He did not think proper to pursue the inquiry further; and after muttering something about the necessity of not interrupting the proceedings of the court, again asked the prisoner if she had anything to urge.

"Not for myself—not for my sake," at last faintly murmured the trembling woman; "but for that of my poor dear infant—my poor witless boy! I do not think, sir, I was in my right mind. I was starving. I was friendless. My husband, too, whom you have heard"—She stopped abruptly; a choking sob struggled in her throat; and but for the supporting arm of one of the turnkeys, she would have fallen to the ground.

"Unhappy, guilty woman," said the recorder, with the coolness of a demon, "the plea of insanity you would set up is utterly untenable. Your husband, it seems, is serving his majesty in the royal navy; defending his country, whilst his wife was breaking its laws, by the commission of a crime which, but for the stern repression of the law, would sap the foundations of the security of property, and"—

I could endure no more. The atmosphere of the court seemed to stifle me; and I rushed for relief into the open air. Before, however, I had reached the street, a long, piercing scream informed me that the learned judge *had done his duty*.

No effort was spared during the interval which elapsed previous to the recorder presenting his report to the privy-counsel—a peculiar privilege at that time attached to the office—to procure a mitigation of the sentence. A petition, setting forth the peculiar circumstances of the case, was carefully prepared; and by the indefatigable exertions of an excellent Quaker gentleman—whom, as he is still alive, and might not choose to have his name blazoned to the world, I will call William Friend—was soon very numerously signed. The prosecutor, however, obstinately refused to attach his name to the document; and the absence of his signature—so strangely did men reason on such matters in those days—would, it was feared, weigh heavily against the success of the petition. The amiable and enlightened Sir Samuel Romilly not only attached his name, but aided us zealously by his advice and influence. In short, nothing was omitted that appeared likely to attain the desired object.

Two days before the petition was to be forwarded to the proper quarter, Henry Mason arrived in England, the exertions of his employers having procured his discharge. The "Active" was one of Captain Hoste's squadron, which obtained the celebrated victory off Lissa, over the Franco-Venetian fleet commanded by Admiral D'Ambray. Henry Mason, it appeared by the testimonials of the captain and officers of his ship, had greatly distinguished himself in the action. We inclosed these papers with the petition; and then, having done all in our power, awaited with anxious impatience the result of the recorder's report. It was announced to me, as I was sitting somewhat later than usual at chambers, by Mr. William Friend. The judgment to die was confirmed! All our representations had not sufficed to counterbalance the supposed necessity of exhibiting terrible examples of the fate awaiting the perpetrators of an offence said to be greatly on the increase. Excellent William Friend wept like a child as he made the announcement.

There are many persons alive who recollect this horrible tragedy—this national disgrace—this act of gross barbarity on the part of the great personage, who, first having carried off the poor woman's husband, left her to die for an act the very consequence of that robbery. Who among the spectators can ever forget that heart-rending scene—the hangman taking the baby from the breast of the wretched creature just before he put her to death! But let us not rake up these terrible reminiscences. Let us hope that the *truly guilty* are forgiven. And let us take consolation from reflecting that this event led the great Romilly to enter on his celebrated career as a reformer of the criminal law.

The remains of Esther Mason were obtained from the Newgate officials, and quietly interred in St. Sepulchre's church-yard. A plain slab, with her name only plainly chiselled upon it, was some time afterwards placed above the grave. A few years ago I attended a funeral in the same grave-yard; and after a slight search, discovered the spot. The inscription, though of course much worn, was still quite legible.

I had not seen Henry Mason since his return; but I was glad to hear from Mr. William Friend that, after the first passionate burst of rage and grief had subsided, he had, apparently at least, thanks to the tender and pious expostulations of his wife—with whom, by the kind intervention of the sheriffs, he was permitted long and frequent interviews—settled down into calmness and resignation. One thing only he would not bear to hear even from her, and that was any admission that she had been guilty of, even the slightest offence. A hint of the kind, however unintentional, would throw him into a paroxysm of fury; and the subject was consequently in his presence studiously avoided.

A few days after the execution, Mr. William Friend called on me just after breakfast, accompanied by the bereaved husband. I never saw so

changed a man. All the warm kindliness of his nature had vanished, and was replaced by a gloomy fierce austerity, altogether painful to contemplate.

"Well, sir," said he, as he barely touched my proffered hand, "they have killed her, you see, spite of all you could say or do. It much availed me, too, that I had helped to win their boasted victories;" and he laughed with savage bitterness.

"Henry—Henry!" exclaimed William Friend, in a reproving accent.

"Well, well, sir," rejoined Mason, impatiently, "you are a good man, and have of course your own notions on these matters; I also have mine. Or, perhaps, you think it is only the blood of the rich and great which, shed unjustly, brings forth the iron harvest? Forgive me," he added, checking himself. "I respect you both; but my heart is turned to stone. You do not know—none ever knew but I—how kind, how loving, how gentle was that poor long-suffering girl."

He turned from us to hide the terrible agony which convulsed him.

"Henry," said Mr. Friend, taking him kindly by the hand, "we pity thee sincerely, as thou knowest; but thy bitter, revengeful expressions are unchristian, sinful. The authorities whom thou, not for the first time, railest on so wildly, acted, be sure of it, from a sense of duty; a mistaken one, in my opinion, doubtless; still"—

"Say no more, sir," interrupted Mason. "We differ in opinion upon the subject. And now, gentlemen, farewell. I wished to see you, sir, before I left this country forever, to thank you for your kind, though fruitless exertions. Mr. Friend has promised to be steward for poor Willy of all I can remit for his use. Farewell! God bless you both!" He was gone!

War soon afterwards broke out with the United States of America, and Mr. Friend discovered that one of the most active and daring officers in the Republican navy was Henry Mason, who had entered the American service in the maiden name of his wife; and that the large sums he had remitted from time to time for the use of Willy, were the produce of his successful depredations on British commerce. The instant Mr. Friend made the discovery, he refused to pollute his hands with moneys so obtained, and declined all further agency in the matter. Mason, however, contrived to remit through some other channel to the Davies's, with whom the boy had been placed; and a rapid improvement in their circumstances was soon visible. These remittances ceased about the middle of 1814; and a twelvemonth after the peace with America, we ascertained that Henry Mason had been killed in the battle on Lake Champlain, where he had distinguished himself, as everywhere else, by the reckless daring and furious hate with which he fought against the country which, in his unreasoning frenzy, he accused of the murder of his wife. He was recognized by one of his former messmates in the "Active;" who, conveyed a prisoner on board the American commander Macdonough's ship, recognized him as he lay stretched on the deck, in the uniform of an American naval officer; his countenance, even in death, wearing the same stormful defiant expression which it assumed on the day that his beloved Esther perished on the scaffold.

THE MARRIAGE SETTLEMENT

"It is really time that a properly-qualified governess had charge of those girls," observed my wife, as Mary and Kate after a more than usually boisterous romp with their papa, left the room for bed. I may here remark, *inter alia*, that I once surprised a dignified and highly-distinguished judge at a game of blindman's buff with his children, and very heartily he appeared to enjoy it too. "It is really time that a properly-qualified governess had charge of those girls. Susan May did very well as a nursery teacher, but they are now far beyond her control. *I* cannot attend to their education, and as for you"—The sentence was concluded by a shrug of the shoulders and a toss of the head, eloquently expressive of the degree of estimation in which *my* governing powers were held.

"Time enough, surely, for that," I exclaimed, as soon as I had composed myself; for I was a little out of breath. "They may, I think, rub along with Susan for another year or two, Mary is but seven years of age"—

"Eight years, if you please. She was eight years old last Thursday three weeks."

"Eight years! Then we must have been married nine; Bless me, how the time has flown: it seems scarcely so many weeks!"

"Nonsense," rejoined my wife with a sharpness of tone and a rigidity of facial muscle which, considering the handsome compliment I had just paid her, argued, I was afraid, a foregone conclusion. "You always have recourse to some folly of that sort whenever I am desirous of entering into a serious consultation on family affairs."

There was some truth in this, I confess. The "consultations" which I found profitable were not serious ones with my wife upon domestic matters; leading, as they invariably did, to a diminution instead of an increase of the little balance at the banker's. If such a proposition could therefore be evaded or adjourned by even an extravagant compliment, I considered it well laid out. But the expedient, I found, was one which did not improve by use. For some time after marriage it answered remarkably well; but each succeeding year of wedded bliss marked its rapidly-declining efficacy.

"Well, well; go on."

"I say it is absolutely necessary that a first-rate governess should be at once engaged. Lady Maldon has been here to-day, and she"—

"Oh, I thought it might be her new ladyship's suggestion. I wish the 'fountain of honor' was somewhat charier of its knights and ladies, and then perhaps"—

"What, for mercy's sake, are you running on about?" interrupted the lady with peremptory emphasis. "Fountains of honor, forsooth! One would suppose, to hear you talk in that wild, nonsensical way, that you were addressing a bench of judges sitting in *banco*, instead of a sensible person solicitous for her and your children's welfare."

"Bless the woman," thought I; "what an exalted idea she appears to have of forensic eloquence! Proceed, my love," I continued; "there is a difference

certainly; and I am all attention."

"Lady Maldon knows a young lady—a distant relative, in deed, of hers—whom she is anxious to serve"—

"At our expense."

"How can you be so ungenerous? Edith Willoughby is the orphan daughter of the late Reverend Mr. Willoughby, curate of Heavy Tree in Warwickshire, I believe; and was specially educated for a first-class governess and teacher. She speaks French with the true Parisian accent, and her Italian, Lady Maldon assures me, is pure Tuscan"—

"He-e-e-m!"

"She dances with grace and elegance; plays the harp and piano with skill and taste; is a thorough *artiste* in drawing and painting; and is, moreover, very handsome—though beauty, I admit, is an attribute which in a governess might be very well dispensed with."

"True; unless, indeed, it were catching."

I need not prolong this connubial dialogue. It is sufficient to state that Edith Willoughby was duly installed in office on the following day; and that, much to my surprise, I found that her qualifications for the charge she had undertaken were scarcely overcolored. She was a well-educated, elegant, and beautiful girl, of refined and fascinating manners, and possessed of one of the sweetest, gentlest dispositions that ever charmed and graced the family and social circle. She was, I often thought, for her own chance of happiness, too ductile, too readily yielding to the wishes and fancies of others. In a very short time I came to regard her as a daughter, and with my wife and children she was speedily a prodigious favorite. Mary

and Kate improved rapidly under her judicious tuition, and I felt for once positively grateful to busy Lady Maldon for her officious interference in my domestic arrangements.

Edith Willoughby had been domiciled with us about two years, when Mr. Harlowe, a gentleman of good descent and fine property, had occasion to call several times at my private residence on business relating to the purchase of a house in South Audley Street, the title to which exhibited by the venders was not of the most satisfactory kind. On one occasion he stayed to dine with us, and I noticed that he seemed much struck by the appearance of our beautiful and accomplished governess. His evident emotion startled and pained me in a much higher degree than I could have easily accounted for even to myself. Mr. Harlowe was a widower, past his first youth certainly, but scarcely more than two or three-and-thirty years of age, wealthy, not ill-looking, and, as far as I knew, of average character in society. Surely an excellent match, if it should come to that, for an orphan girl rich only in fine talents and gentle affections. But I could not think so. I disliked the man—*instinctively* disliked and distrusted him; for I could assign no very positive motive for my antipathy.

"The reason why, I cannot tell,
But I don't like thee, Dr. Fell."

These lines indicate an unconquerable feeling which most persons have, I presume, experienced; and which frequently, I think, results from a kind of cumulative evidence of uncongeniality or unworthiness, made up of a number of slight indices of character, which, separately, may appear of little moment, but altogether, produce a strong, if undefinable, feeling of aversion. Mr. Harlowe's manners were bland, polished, and insinuating; his conversation was sparkling and instructive; but a cold sneer seemed to play habitually about his lips, and at times there glanced forth a concentrated,

polished ferocity—so to speak—from his eyes, revealing hard and stony depths, which I shuddered to think a being so pure and gentle as Edith might be doomed to sound and fathom. That he was a man of strong passions and determination of will, was testified by every curve of his square, massive head, and every line of his full countenance.

My aversion—reasonable or otherwise, as it might be—was not shared by Miss Willoughby; and it was soon apparent that, fascinated, intoxicated by her extreme beauty (the man was, I felt, incapable of love in its high, generous, and spiritual sense), Mr. Harlowe had determined on offering his hand and fortune to the unportioned orphan. He did so, and was accepted. I did not conceal my dislike of her suitor from Edith; and my wife—who, with feminine exaggeration of the hints I threw out, had set him down as a kind of polished human tiger—with tears intreated her to avoid the glittering snare. We of course had neither right nor power to push our opposition beyond friendly warning and advice; and when we found, thanks to Lady Maldon, who was vehemently in favor of the match—to, in Edith's position, the dazzling temptation of a splendid establishment, and to Mr. Harlowe's eloquent and impassioned pleadings—that the rich man's offer was irrevocably accepted, we of course forebore from continuing a useless and irritating resistance. Lady Maldon had several times very plainly intimated that our aversion to the marriage arose solely from a selfish desire of retaining the services of her charming relative; so prone are the mean and selfish to impute meanness and selfishness to others.

I might, however, I reflected, be of service to Miss Willoughby, by securing for her such a marriage settlement as would place her beyond the reach of one possible consequence of caprice and change. I spoke to Mr. Harlowe on the subject; and he, under the influence of headstrong, eager passion, gave me, as I expected, *carte blanche*. I availed myself of the license so readily afforded: a deed of settlement was drawn up, signed,

sealed, and attested in duplicate the day before the wedding; and Edith Willoughby, as far as wealth and position in society were concerned, had undoubtedly made a surprisingly good bargain.

It happened that just as Lady Maldon, Edith Willoughby, and Mr. Harlowe were leaving my chambers after the execution of the deed, Mr. Ferret the attorney appeared on the stairs. His hands were full of papers, and he was, as usual, in hot haste; but he stopped abruptly as his eye fell upon the departing visitors, looked with startled earnestness at Miss Willoughby, whom he knew, and then glanced at Mr. Harlowe with an expression of angry surprise. That gentleman, who did not appear to recognize the newcomer, returned his look with a supercilious, contemptuous stare, and passed on with Edith—who had courteously saluted the inattentive Mr. Ferret—followed by Lady Maldon.

"What is the meaning of that ominous conjunction?" demanded Mr. Ferret as the affianced pair disappeared together.

"Marriage, Mr. Ferret! Do you know any just cause or impediment why they should not be joined together in holy wedlock?"

"The fellow's wife is dead then?"

"Yes; she died about a twelvemonth ago. Did you know her?"

"Not personally; by reputation only. A country attorney, Richards of Braintree, for whom I transact London business sent me the draught of a deed of separation—to which the unfortunate lady, rather than continue to live with her husband, had consented—for counsel's opinion. I had an interview with Mr. Harlowe himself upon the business; but I see he affects to have forgotten me. I do not know much of the merits of the case, but according to Richards—no great shakes of a fellow, between ourselves—

the former Mrs. Harlowe was a martyr to her husband's calculated virulence and legal—at least not *illegal*, a great distinction, in my opinion, though not so set down in the books—despotism. He espoused her for her wealth: that secured, he was desirous of ridding himself of the incumbrance to it. A common case!—and now, if you please, to business."

I excused myself, as did my wife, from being present at the wedding; but everything, I afterwards heard, passed off with great *éclat*. The bridegroom was all fervor and obsequiousness; the bride all bashfulness and beauty. The "happy pair," I saw by the afternoon newspapers, were to pass the honeymoon at Mr. Harlowe's seat, Fairdown Park. The evening of the marriage-day was anything, I remember, but a pleasant one to me. I reached home by no means hilariously disposed, where I was greeted, by way of revival, with the intelligence that my wife, after listening with great energy to Lady Maldon's description of the wedding festivities for two tremendous hours, had at last been relieved by copious hysteria, and that Mary and Kate were in a fair way—if the exploit could be accomplished by perseverance—of crying themselves to sleep. These were our bridal compliments; much more flattering, I imagine, if not quite so honey-accented, as the courtly phrases with which the votaries and the victims of Hymen are alike usually greeted.

Time, business, worldly hopes and cares, the triumphs and defeats of an exciting profession, gradually weakened the impression made upon me by the gentle virtues of Edith Willoughby; and when, about fifteen months after the wedding, my wife informed me that she had been accosted by Mrs. Harlowe at a shop in Bond Street, my first feeling was one of surprise, not untinged with resentment, for what I deemed her ungrateful neglect.

"She recognized you then?" I remarked.

"Recognized me! What do you mean?"

"I thought perhaps she might have forgotten your features, as she evidently has our address."

"If you had seen," replied my wife, "how pale, how cold, how utterly desolate she looked, you would think less hardly of her. As soon as she observed me, a slight scream escaped her; and then she glanced eagerly and tremblingly around like a startled fawn. Her husband had passed out of the shop to give, I think, some direction to the coachman. She tottered towards me, and clasping me in her arms, burst into a passion of tears. "Oh, why—why," I asked as soon as I could speak, "why have you not written to us?" "I dared not!" she gasped. "But oh tell me, do you—does your husband remember me with kindness? Can I still reckon on his protection—his support?" I assured her you would receive her as your own child: the whispered words had barely passed my lips, when Mr. Harlowe, who had swiftly approached us unperceived, said, "Madam, the carriage waits." His stern, pitiless eye glanced from his wife to me, and stiffly bowing, he said, "Excuse me for interrupting your conversation; but time presses. Good-day." A minute afterwards, the carriage drove off."

I was greatly shocked at this confirmation of my worst fears; and I meditated with intense bitterness on the fate of a being of such meek tenderness exposed to the heartless brutalities of a sated sensualist like Harlowe. But what could be done? She had chosen, deliberately, and after warning, chosen her lot, and must accept the consequences of her choice. In all the strong statutes, and sharp biting laws of England, there can be found no clause wherewith to shield a woman from the "regulated" meanness and despotism of an unprincipled husband. Resignation is the sole remedy, and therein the patient must minister to herself.

On the morning of the Sunday following Edith's brief interview with my wife, and just as we were about to leave the house to attend divine service, a

cab drove furiously up to the door, and a violent summons by both knocker and bell announced the arrival of some strangely-impatient visitor. I stepped out upon the drawing-room landing, and looked over the banister rail, curious to ascertain who had honored me with so peremptory a call. The door was quickly opened, and in ran, or rather staggered, Mrs. Harlowe, with a child in long clothes in her arms.

"Shut—shut the door!" she faintly exclaimed, as she sank on one of the hall seats. "Pray shut the door—I am pursued!"

I hastened down, and was just in time to save her from falling on the floor. She had fainted. I had her carried up stairs, and by the aid of proper restoratives, she gradually recovered consciousness. The child, a girl about four months old, was seized upon by Mary and Kate, and carried off in triumph to the nursery. Sadly changed, indeed, as by the sickness of the soul, was poor Edith. The radiant flush of youth and hope rendering her sweet face eloquent of joy and pride, was replaced by the cold, sad hues of wounded affections and proud despair. I could read in her countenance, as in a book, the sad record of long months of wearing sorrow, vain regrets, and bitter self-reproach. Her person, too, had lost its rounded, airy, graceful outline, and had become thin and angular. Her voice, albeit, was musical and gentle as ever, as she murmured, on recovering her senses, "You will protect me from my—from that man?" As I warmly pressed her hand, in emphatic assurance that I would shield her against all comers, another loud summons was heard at the door. A minute afterwards, a servant entered, and announced that Mr. Harlowe waited for me below. I directed he should be shown into the library; and after iterating my assurance to Edith that she was quite safe from violence beneath my roof, and that I would presently return to hear her explanation of the affair, I went down stairs.

Mr. Harlowe, as I entered, was pacing rapidly up and down the apartment. He turned to face me; and I thought he looked even more perturbed and anxious than vengeful and angry. He, however, as I coldly bowed, and demanded his business with me, instantly assumed a bullying air and tone.

"Mrs. Harlowe is here: she has surreptitiously left South Audley Street in a hired cab, and I have traced her to this house."

"Well?"

"Well! I trust it is well; and I insist that she instantly return to her home."

"Her *home*!"

I used the word with an expression significative only of my sense of the sort of "home" he had provided for the gentle girl he had sworn to love and cherish; but the random shaft found a joint in his armor at which it was not aimed. He visibly trembled, and turned pale.

"She has had time to tell you all then! But be assured, sir, that nothing she has heard or been told, however true it may be—*may* be, remember, I say—can be legally substantiated except by myself."

What could the man mean? I was fairly puzzled: but, professionally accustomed to conceal emotions of surprise and bewilderment, I coldly replied—"I have left the lady who has sought the protection of her true 'home,' merely to ascertain the reason of this visit."

"The reason of my visit!" he exclaimed with renewed fury: "to reconvey her to South Audley Street. What else? If you refuse to give her up, I shall apply to the police."

I smiled, and approached the bell.

"You will not surrender her then?"

"To judicial process only: of that be assured. I have little doubt that, when I am placed in full possession of all the facts of the case, I shall be quite able to justify my conduct." He did not reply, and I continued: "If you choose to wait here till I have heard Edith's statement, I will at once frankly acquaint you with my final determination."

"Be it so: and please to recollect, sir, that you have to deal with a man not easily baffled or entrapped by legal subtlety or cunning."

I reascended to the drawing-room; and finding Edith—thanks to the ministrations, medicinal and oral, of my bustling and indignant lady—much calmer, and thoroughly satisfied that nobody could or should wrest her from us, begged her to relate unreservedly the cause or causes which had led to her present position. She falteringly complied; and I listened with throbbing pulse and burning cheeks to the sad story of her wedded wretchedness, dating from within two or three months of the marriage; and finally consummated by a disclosure that, if provable, might consign Harlowe to the hulks. The tears, the agony, the despair of the unhappy lady, excited in me a savageness of feeling, an eager thirst for vengeance, which I had believed foreign to my nature. Edith divined my thoughts, and taking my hand, said, "Never, sir, never will I appear against him: the father of my little Helen shall never be publicly accused by me."

"You err, Edith," I rejoined; "it is a positive duty to bring so consummate a villain to justice. He has evidently calculated on your gentleness of disposition, and must be disappointed."

I soon, however, found it was impossible to shake her resolution on this point; and I returned with a heart full of grief and bitterness to Mr. Harlowe.

"You will oblige me, sir," I exclaimed as I entered the room, "by leaving this house immediately: I would hold no further converse with so vile a person."

"How! Do you know to whom you presume to speak in this manner?"

"Perfectly. You are one Harlowe, who, after a few months' residence with a beautiful and amiable girl, had extinguished the passion which induced him to offer her marriage, showered on her every species of insult and indignity of which a cowardly and malignant nature is capable; and who, finding that did not kill her, at length consummated, or revealed, I do not yet know which term is most applicable, his utter baseness by causing her to be informed that his first wife was still living."

"Upon my honor, sir, I believed, when I married Miss Willoughby, that I was a widower."

"Your *honor*! But except to prove that I *do* thoroughly know and appreciate the person I am addressing, I will not bandy words with you. After that terrible disclosure—if, indeed, it be a disclosure, not an invention—Ah, you start at that"

"At your insolence, sir; not at your senseless surmises."

"Time and the law will show. After, I repeat, this terrible disclosure or invention, you, not content with obtaining from your victim's generosity a positive promise that she would not send you to the hulks"—

"Sir, have a care."

"Pooh! I say, not content with exacting this promise from your victim, you, with your wife, or accomplice, threatened not only to take her child from her, but to lock her up in a madhouse, unless she subscribed a paper, confessing that she knew, when you espoused her, that you were a married man. Now, sir, do I, or do I not, thoroughly know who and what the man is I am addressing?"

"Sir," returned Harlowe, recovering his audacity somewhat. "Spite of all your hectoring and abuse, I defy you to obtain proof—legal proof—whether what Edith has heard is true or false. The affair may perhaps be arranged; let her return with me."

"You know she would die first; but it is quite useless to prolong this conversation; and I again request you to leave this house."

"If Miss Willoughby would accept an allowance"—

The cool audacity of this proposal to make me an instrument in compromising a felony exasperated me beyond all bounds. I rang the bell violently, and desired the servant who answered it to show Mr. Harlowe out of the house. Finding further persistence useless, the baffled villain snatched up his hat, and with a look and gesture of rage and contempt, hurried out of the apartment.

The profession of a barrister necessarily begets habits of coolness and reflection under the most exciting circumstances; but, I confess, that in this instance my ordinary equanimity was so much disturbed, that it was some time before I could command sufficient composure to reason calmly upon the strange revelations made to me by Edith, and the nature of the measures necessary to adopt in order to clear up the mystery attaching to them. She persisted in her refusal to have recourse to legal measures with a view to the punishment of Harlowe; and I finally determined—after a conference with

Mr. Ferret, who, having acted for the first Mrs. Harlowe, I naturally conjectured must know something of her history and connections—to take for the present no ostensible steps in the matter. Mr. Ferret, like myself, was persuaded that the sham resuscitation of his first wife was a mere trick, to enable Harlowe to rid himself of the presence of a woman he no longer cared for. "I will take an opportunity," said Mr. Ferret, "of quietly questioning Richards: he must have known the first wife; Eleanor Wickham, I remember, was her maiden name; and if not bought over by Harlowe—a by-no-means impossible purchase—can set us right at once. I did not understand that the said Eleanor was at all celebrated for beauty and accomplishments, such as you say Miss Willoughby—Mrs. Harlowe, I mean—describes. She was a native of Dorsetshire too, I remember; and the foreign Italian accent you mention, is rarely, I fancy, picked up in that charming county. Some flashy opera-dancer, depend upon it, whom he has contracted a passing fancy for: a slippery gentleman certainly; but, with a little caution, we shall not fail to trip his heels up, clever as he may be."

A stronger wrestler than either of us was upon the track of the unhappy man. Edith had not been with us above three weeks, when one of Mr. Harlowe's servants called at my chambers to say that his master, in consequence of a wound he had inflicted on his foot with an axe, whilst amusing himself with cutting or pruning some trees in the grounds at Fairdown, was seriously ill, and had expressed a wish to see me. I could not leave town; but as it was important Mr. Harlowe should be seen, I requested Mr. Ferret to proceed to Fairdown House. He did so, and late in the evening returned with the startling intelligence that Mr. Harlowe was dead!

"Dead!" I exclaimed, much shocked. "Are you serious?" "As a judge. He expired, about an hour after I reached the house, of tetanus, commonly called locked-jaw. His body, by the contraction of the muscles, was bent like a bow, and rested on his heels and the back part of his head. He was

incapable of speech long before I saw him; but there was a world of agonized expression in his eyes!"

"Dreadful! Your journey was useless then?"

"Not precisely. I saw the pretended former wife: a splendid woman, and as much Eleanor Wickham of Dorsetshire as I am. They mean, however, to show fight, I think; for, as I left the place, I observed that delightful knave Richards enter the house. I took the liberty of placing seals upon the desks and cabinets, and directed the butler and other servants to see that nothing was disturbed or removed till Mrs. Harlowe's—the true Mrs. Harlowe's—arrival."

The funeral was to take place on the following Wednesday; and it was finally arranged that both of us would accompany Edith to Fairdown on the day after it had taken place, and adopt such measures as circumstances might render necessary. Mr. Ferret wrote to this effect to all parties concerned.

On arriving at the house, I, Ferret, and Mrs. Harlowe, proceeded at once to the drawing-room, where we found the pretended wife seated in great state, supported on one side by Mr. Richards, and on the other by Mr. Quillet the eminent proctor. Edith was dreadfully agitated, and clung frightened and trembling to my arm. I conducted her to a seat, and placed myself beside her, leaving Mr. Ferret—whom so tremendous an array of law and learning, evincing a determination to fight the matter out *à l'outrance*, filled with exuberant glee—to open the conference.

"Good-morning, madam," cried he, the moment he entered the room, and quite unaffected by the lady's scornful and haughty stare: "good-morning; I am delighted to see you in such excellent company. You do not, I hope, forget that I once had the honor of transacting business for you?"

"You had transactions of my business!" said the lady, "When, I pray you?"

"God bless me!" cried Ferret, addressing Richards, "what a charming Italian accent; and out of Dorsetshire too!"

"Dorsetshire, sir?" exclaimed the lady.

"Ay, Dorsetshire, to be sure. Why, Mr. Richards, our respected client appears to have forgotten her place of birth! How very extraordinary!"

Mr. Richards now interfered, to say that Mr. Ferret was apparently laboring under a strange misapprehension. "This lady," continued he, "is Madame Giulietta Corelli."

"Whe—e—e—w!" rejoined Ferret, thrown for an instant off his balance by the suddenness of the confession, and perhaps a little disappointed at so placable a termination of the dispute—"Giulietta Corelli! What is the meaning of this array then?"

"I am glad, madam," said I, interposing for the first time in the conversation, "for your own sake, that you have been advised not to persist in the senseless as well as iniquitous scheme devised by the late Mr. Harlowe; but this being the case, I am greatly at a loss to know why either you or these legal gentlemen are here?"

The brilliant eyes of the Italian flashed with triumphant scorn, and a smile of contemptuous irony curled her beautiful lip as she replied—"These legal gentlemen will not have much difficulty in explaining my right to remain in my own house."

"*Your* house?"

"Precisely, sir," replied Mr. Quillet. "This mansion, together with all other property, real and personal, of which the deceased Henry Harlowe died possessed, is bequeathed by will—dated about a month since—to this lady, Giulietta Corelli."

"A will!" exclaimed Mr. Ferret with an explosive shout, and turning to me, whilst his sharp gray eyes danced with irrepressible mirth—"Did I not tell you so?"

"Your usual sagacity, Mr. Ferret, has not in this instance failed you. Perhaps you will permit me to read the will? But before I do so," continued Mr. Quillet, as he drew his gold-rimmed spectacles from their morocco sheath—"you will allow me, if you please, to state that the legatee, delicately appreciating the position of the widow, will allow her any reasonable annuity—say five hundred pounds per annum for life."

"Will she really though?" cried Mr. Ferret, boiling over with ecstasy. "Madam, let me beg of you to confirm this gracious promise."

"Certainly I do."

"Capital!—glorious!" rejoined Ferret; and I thought he was about to perform a salutatory movement, that must have brought his cranium into damaging contact with the chandelier under which he was standing. "Is it not delightful? How every one—especially an attorney—loves a generous giver!"

Mr. Richards appeared to be rendered somewhat uneasy by these strange demonstrations. He knew Ferret well, and evidently suspected that something was wrong somewhere. "Perhaps, Mr. Quillet," said he, "you had better read the will at once."

This was done: the instrument devised in legal and minute form all the property, real and personal, to Giulietta Corelli—a natural-born subject of his majesty, it appeared, though of foreign parentage, and of partially foreign education.

"Allow me to say," broke in Mr. Ferret, interrupting me as I was about to speak—"allow me to say, Mr. Richards, that that will does you credit: it is, I should say, a first-rate affair, for a country practitioner especially. But of course you submitted the draught to counsel?"

"Certainly I did," said Richards tartly.

"No doubt—no doubt. Clearness and precision like that could only have proceeded from a master's hand. I shall take a copy of that will, Richards, for future guidance, you may depend, the instant it is registered in Doctors' Commons."

"Come, come, Mr. Ferret," said I; "this jesting is all very well; but it is quite time the farce should end."

"Farce!" exclaimed Mr. Richards.

"Farce!" growled doubtful Mr. Quillet.

"Farce!" murmured the beautiful Giulietta.

"Farce!" cried Mr. Ferret. "My dear sir, it is about one of the most charming and genteel comedies ever enacted on any stage, and the principal part, too, by one of the most charming of prima donnas. Allow me, sir—don't interrupt me! it is too delicious to be shared; it is, indeed. Mr. Richards, and you, Mr. Quillet, will you permit me to observe that this admirable will has *one* slight defect?"

"A defect!—where—how?"

"It is really heart-breaking that so much skill and ingenuity should be thrown away; but the fact is, gentlemen, that the excellent person who signed it had no property to bequeath!"

"How?"

"Not a shilling's worth. Allow me, sir, if you please. This piece of parchment, gentlemen, is, I have the pleasure to inform you, a marriage settlement."

"A marriage settlement!" exclaimed both the men of law in a breath.

"A marriage settlement, by which, in the event of Mr. Harlowe's decease, his entire property passes to his wife, in trust for the children, if any; and if not, absolutely to herself." Ferret threw the deed on the table, and then giving way to convulsive mirth, threw himself upon the sofa, and fairly shouted with glee.

Mr. Quillet seized the document, and, with Richards, eagerly perused it. The proctor then rose, and bowing gravely to his astonished client, said, "The will, madam, is waste paper. You have been deceived." He then left the apartment.

The consternation of the lady and her attorney may be conceived. Madam Corelli, giving way to her fiery passions, vented her disappointment in passionate reproaches of the deceased; the only effect of which was to lay bare still more clearly than before her own cupidity and folly, and to increase Edith's painful agitation. I led her down stairs to my wife, who, I omitted to mention, had accompanied us from town, and remained in the library with the children during our conference. In a very short time

afterwards Mr. Ferret had cleared the house of its intrusive guests, and we had leisure to offer our condolences and congratulations to our grateful and interesting client. It was long before Edith recovered her former gaiety and health; and I doubt if she would ever have thoroughly regained her old cheerfulness and elasticity of mind, had it not been for her labor of love in superintending and directing the education of her daughter Helen, a charming girl, who fortunately inherited nothing from her father but his wealth. The last time I remember to have danced was at Helen's wedding. She married a distinguished Irish gentleman, with whom, and her mother, I perceive by the newspapers, she appeared at Queen Victoria's court in Dublin, one, I am sure, of the brightest stars which glittered in that galaxy of beauty and fashion.

THE SECOND MARRIAGE.

A busy day in the assize court at Chester, chequered, as usual, by alternate victory and defeat, had just terminated, and I was walking briskly forth, when an attorney of rather low *caste* in his profession—being principally employed as an intermediary between needy felons and the counsel practising in the Crown Court—accosted me, and presented a brief; at the same time tendering the fee of two guineas marked upon it.

"I am engaged to-morrow, Mr. Barnes," I exclaimed a little testily, "on the civil side: besides, you know I very seldom take briefs in the Crown Court, even if proffered in due time; and to-morrow will be the last day of the assize in Chester! There are plenty of unemployed counsel who will be glad of your brief."

"It is a brief in an action of ejectment," replied the attorney—"Woodley *versus* Thorndyke; and is brought to recover possession of a freehold estate now held and farmed by the defendant."

"An action of ejectment to recover possession of a freehold estate! defended, too, I know, by a powerful bar; for I was offered a brief, but declined it. Mr. P —— leads; and you bring me this for the plaintiff, and at the last moment too! You must be crazed."

"I told the plaintiff and her grandfather," rejoined Mr. Barnes, "that it was too late to bespeak counsel's attention to the case; and that the fee, all they have, with much difficulty, been able to raise, was ridiculously small; but they insisted on my applying to you—Oh, here they are!"

We had by this time reached the street, and the attorney pointed towards two figures standing in attitudes of anxious suspense near the gateway. It was dusk, but there was quite sufficient light to distinguish the pale and interesting features of a young female, dressed in faded and scanty mourning, and accompanied by a respectable-looking old man with white hair, and a countenance deeply furrowed by age and grief.

"I told you, Miss Woodley," said the attorney, "that this gentleman would decline the brief, especially with such a fee"—

"It is not the fee, man!" I observed, for I was somewhat moved by the appealing dejection exhibited by the white-haired man and his timid granddaughter; "but what chance can I have of establishing this person's right—if right she have—to the estate she claims, thus suddenly called upon to act without previous consultation; and utterly ignorant, except as far as this I perceive hastily-scrawled brief will instruct me, both of the nature of the plaintiff's claim and of the defence intended to be set up against it?"

"If you would undertake it, sir," said the young woman with a tremulous, hesitating voice and glistening eyes, "for *his* sake"—and she glanced at her aged companion—"who will else be helpless, homeless."

"The blessing of those who are ready to perish will be yours, sir," said the grandfather with meek solemnity, "if you will lend your aid in this work of justice and mercy. We have no hope of withstanding the masterful violence and wrong of wicked and powerful men except by the aid of the law, which

we have been taught will ever prove a strong tower of defence to those who walk in the paths of peace and right."

The earnestness of the old man's language and manner, and the pleading gentleness of the young woman, forcibly impressed me; and, albeit, it was a somewhat unprofessional mode of business, I determined to hear their story from their own lips, rather than take it from the scrawled brief, or through the verbal medium of their attorney.

"You have been truly taught," I answered; "and if really entitled to the property you claim, I know of no masterful men that in this land of England can hinder you from obtaining possession of it. Come to my hotel in about an hour and a-half from hence: I shall then have leisure to hear what you have to say. This fee," I added, taking the two guineas from the hand of the attorney, who still held the money ready for my acceptance, "you must permit me to return. It is too much for you to pay for losing your cause; and if I gain it—but mind I do not promise to take it into court unless I am thoroughly satisfied you have right and equity on your side—I shall expect a much heavier one. Mr. Barnes, I will see you, if you please, early in the morning." I then bowed, and hastened on.

Dinner was not ready when I arrived at the hotel; and during the short time I had to wait, I more than half repented of having had anything to do with this unfortunate suit. However, the pleadings of charity, the suggestions of human kindness, reasserted their influence; and by the time my new clients arrived, which they did very punctually at the hour I had indicated, I had quite regained the equanimity I had momentarily lost, and, thanks to mine host's excellent viands and generous wine, was, for a lawyer, in a very amiable and benevolent humor indeed.

Our conference was long, anxious, and unsatisfactory. I was obliged to send for Barnes before it concluded, in order to thoroughly ascertain the

precise nature of the case intended to be set up for the defendant, and the evidence likely to be adduced in support of it. No ray of consolation or of hope came from that quarter. Still, the narrative I had just listened to, bearing as it did the impress of truth and sincerity in every sentence, strongly disposed me to believe that foul play has been practised by the other side; and I determined, at all hazards, to go into court, though with but faint hope indeed of a *present* successful issue.

"It appears more than probable," I remarked on dismissing my clients, "that this will is a fabrication; but before such a question had been put in issue before a jury, some producible evidence of its being so should have been sought for and obtained. As it is, I can only watch the defendant's proof of the genuineness of the instrument upon which he has obtained probate: one or more of the attesting witnesses *may*, if fraud has been practised, break down under a searching cross-examination, or incidentally perhaps disclose matter for further investigation."

"One of the attesting witnesses is, as I have already told you, dead," observed Barnes; "and another, Elizabeth Wareing, has, I hear, to-day left the country. An affidavit to that effect will no doubt be made to-morrow, in order to enable them to give secondary evidence of her attestation, though, swear as they may, I have not the slightest doubt I could find her if time were allowed, and her presence would at all avail us."

"Indeed! This is very important. Would you, Mr. Barnes, have any objection," I added, after a few moments' reflection, "to make oath, should the turn of affairs to-morrow render your doing so desirable, of your belief that you could, reasonable time being allowed, procure the attendance of this woman—this Elizabeth Wareing?"

"Not the slightest: though how that would help us to invalidate the will Thorndyke claims under I do not understand."

"Perhaps not. At all events do not fail to be early in court. The cause is the first in to-morrow's list, remember."

The story confided to me was a very sad, and, unfortunately in many of its features, a very common one. Ellen, the only child of the old gentleman, Thomas Ward, had early in life married Mr. James Woodley, a wealthy yeoman, prosperously settled upon his paternal acres, which he cultivated with great diligence and success. The issue of this marriage—a very happy one, I was informed—was Mary Woodley, the plaintiff in the present action. Mr. Woodley, who had now been dead something more than two years, bequeathed the whole of his property, real and personal, to his wife, in full confidence, as he expressed himself but a few hours before he expired, that she would amply provide for his and her child. The value of the property inherited by Mrs. Woodley under this will amounted, according to a valuation made a few weeks after the testator's decease, to between eight and nine thousand pounds.

Respected as a widow, comfortable in circumstances, and with a daughter to engage her affections, Mrs. Woodley might have passed the remainder of her existence in happiness. But how frequently do women peril and lose all by a second marriage! Such was the case with Mrs. Woodley: to the astonishment of everybody, she threw herself away on a man almost unknown in the district—a person of no fortune, of mean habits, and altogether unworthy of accepting as a husband. Silas Thorndyke, to whom she thus committed her happiness, had for a short time acted as bailiff on the farm; and no sooner did he feel himself master, than his subserviency was changed to selfish indifference, and that gradually assumed a coarser character. He discovered that the property, by the will of Mr. Woodley, was not secured against every chance or casualty to the use and enjoyment of his wife, that it not only did not pass by marriage to the new bridegroom, but she was unable to alienate or divest herself of any portion of it during life.

She could, however, dispose of it by will; but in the event of her dying intestate, the whole descended to her daughter, Mary Woodley.

Incredibly savage was Thorndyke when he made that discovery; and bitter and incessant were the indignities to which he subjected his unfortunate wife, for the avowed purpose of forcing her to make a will entirely in his favor, and of course disinheriting her daughter. These persecutions failed of their object. An unexpected, quiet, passive, but unconquerable resistance, was opposed by the, in all other things, cowed and submissive woman, to this demand of her domineering husband. Her failing health—for gently nurtured and tenderly cherished as she had ever been, the callous brutality of her husband soon told upon the unhappy creature—warned her that Mary would soon be an orphan, and that upon her firmness it depended whether the child of him to whose memory she had been, so fatally for herself, unfaithful, should be cast homeless and penniless upon the world, or inherit the wealth to which, by every principle of right and equity, she was entitled. Come what may, this trust at least should not, she mentally resolved, be betrayed or paltered with. Every imaginable expedient to vanquish her resolution was resorted to. Thorndyke picked a quarrel with Ward her father, who had lived at Dale Farm since the morrow of her marriage with Woodley, and the old gentleman was compelled to leave, and take up his abode with a distant and somewhat needy relative. Next Edward Wilford, the only son of a neighboring and prosperous farmer, who had been betrothed to Mary Woodley several months before her father's death, was brutally insulted, and forbidden the house. All, however, failed to shake the mother's resolution; and at length, finding all his efforts fruitless, Thorndyke appeared to yield the point, and upon this subject at least ceased to harass his unfortunate victim.

Frequent private conferences were now held between Thorndyke, his two daughters, and Elizabeth Wareing—a woman approaching middle-age,

whom, under the specious pretence that Mrs. Thorndyke's increasing ailments rendered the services of an experienced matron indispensable, he had lately installed at the farm. It was quite evident to both the mother and daughter that a much greater degree of intimacy subsisted between the master and housekeeper than their relative positions warranted; and from some expressions heedlessly dropped by the woman, they suspected them to have been once on terms of confidential intimacy. Thorndyke, I should have mentioned, was not a native of these parts: he had answered Mr. Woodley's advertisement for a bailiff, and his testimonials appearing satisfactory, he had been somewhat precipitately engaged. A young man, calling himself Edward Wareing, the son of Elizabeth Wareing, and said to be engaged in an attorney's office in Liverpool, was also a not unfrequent visitor at Dale Farm; and once he had the insolent presumption to address a note to Mary Woodley, formally tendering his hand and fortune! This, however, did not suit Mr. Thorndyke's views, and Mr. Edward Wareing was very effectually rebuked and silenced by his proposed father-in-law.

Mrs. Thorndyke's health rapidly declined. The woman Wareing, touched possibly by sympathy or remorse, exhibited considerable tenderness and compassion towards the invalid; made her nourishing drinks, and administered the medicine prescribed by the village practitioner—who, after much delay and *pooh, poohing* by Thorndyke, had been called in—with her own hands. About three weeks previous to Mrs. Thorndyke's death, a sort of reconciliation was patched up through her instrumentality between the husband and wife; and an unwonted expression of kindness and compassion, real or simulated, sat upon Thorndyke's features every time he approached the dying woman.

The sands of life ebbed swiftly with Mrs. Thorndyke. Infolded in the gentle but deadly embrace with which consumption seizes its victims, she wasted rapidly away; and, most perplexing symptoms of all, violent

retchings and nausea, especially after taking her medicine—which, according to Davis, the village surgeon, was invariable of a sedative character—aggravated and confirmed the fatal disease which was hurrying her to the tomb.

Not once during this last illness could Mary Woodley, by chance or stratagem, obtain a moment's private interview with her mother, until a few minutes before her decease. Until then, under one pretence or another, either Elizabeth Wareing, one of Thorndyke's daughters, or Thorndyke himself, was always present in the sick-chamber. It was evening: darkness had for some time fallen: no light had yet been taken into the dying woman's apartment; and the pale starlight which faintly illumined the room served, as Mary Woodley softly approached on tiptoe to the bedside of her, as she supposed, sleeping parent, but to deepen by defining the shadows thrown by the full, heavy hangings, and the old massive furniture. Gently, and with a beating heart, Mary Woodley drew back the bed-curtain nearest the window. The feeble, uncertain light flickered upon the countenance, distinct in its mortal paleness, of her parent: the eyes recognized her, and a glance of infinite tenderness gleamed for an instant in the rapidly-darkening orbs: the right arm essayed to lift itself, as for one fast, last embrace. Vainly! Love, love only, was strong, stronger than death, in the expiring mother's heart, and the arm fell feebly back on the bedclothes. Mary Woodley bent down in eager grief, for she felt instinctively that the bitter hour at last was come: their lips met, and the last accents of the mother murmured, "Beloved Mary, I—I have been true to you—no will—no"—A slight tremor shook her frame: the spirit that looked in love from the windows of the eyes departed on its heavenward journey, and the unconscious shell only of what had once been her mother remained in the sobbing daughter's arms.

I will not deny that this narrative, which I feel I have but coldly and feebly rendered from its earnest, tearful tenderness, as related by Mary Woodley, affected me considerably—case-hardened, as, to use an old bar-pun, we barristers are supposed to be; nor will the reader be surprised to hear that suspicions, graver even than those which pointed to forgery, were evoked by the sad history. Much musing upon the strange circumstances thus disclosed, and profoundly cogitative on the best mode of action to be pursued, the "small hours," the first of them at least, surprised me in my arm-chair. I started up, and hastened to bed, well knowing from experience that a sleepless vigil is a wretched preparative for a morrow of active exertion, whether of mind or body.

I was betimes in court the next morning, and Mr. Barnes, proud as a peacock of figuring as an attorney in an important civil suit, was soon at my side. The case had excited more interest than I had supposed, and the court was very early filled, Mary Woodley and her grandfather soon arrived; and a murmur of commiseration ran through the auditory as they took their seats by the side of Barnes. There was a strong bar arrayed against us; and Mr. Silas Thorndyke, I noticed, was extremely busy and important with whisperings and suggestions to his solicitor and counsel—received, of course, as such meaningless familiarities usually are, with barely civil indifference.

Twelve common jurors were called and sworn well and truly to try the issue, and I arose amidst breathless silence to address them. I at once frankly stated the circumstances under which the brief had come into my hands, and observed, that if, for lack of advised preparation, the plaintiff's case failed on that day, another trial, under favor of the court above, would, I doubt not, at no distant period of time reverse the possibly at present unfavorable decision. "My learned friends on the other side," I continued, "smile at this qualified admission of mine: let them do so. If they apparently

establish to-day the validity of a will which strips an only child of the inheritance bequeathed by her father, they will, I tell them emphatically, have obtained but a temporary triumph for a person who—if I, if you, gentlemen of the jury, are to believe the case intended to be set up as a bar to the plaintiff's claim—has succeeded by the grossest brutality, the most atrocious devices, in bending the mind of the deceased Mrs. Thorndyke to his selfish purposes. My learned friend need not interrupt me; I shall pursue these observations for the present no further—merely adding that I, that his lordship, that you, gentlemen of the jury, will require of him the strictest proof—proof clear as light—that the instrument upon which he relies to defeat the equitable, the righteous claim of the young and amiable person by my side, is genuine, and not, as I verily believe—"I looked, as I spoke, full in the face of Thorndyke—"FORGED."

"My lord," exclaimed the opposing counsel, "this is really insufferable!"

His lordship, however, did not interpose; and I went on to relate, in the most telling manner of which I was capable, the history of the deceased Mrs. Thorndyke's first and second marriages; the harmony and happiness of the first—the wretchedness and cruelty which characterized the second. I narrated also the dying words of Mrs. Thorndyke to her daughter, though repeatedly interrupted by the defendant's counsel, who manifested great indignation that a statement unsusceptible of legal proof should be addressed to the court and jury. My address concluded, I put in James Woodley's will; and, as the opposing counsel did not dispute its validity, nor require proof of Mary Woodley's identity, I intimated that the plaintiff's case was closed.

The speech for the defendant was calm and guarded. It threw, or rather attempted to throw, discredit on the death-bed "fiction," got up, Mr. P —— said, simply with a view to effect; and he concluded by averring that he

should be able to establish the genuineness of the will of Ellen Thorndyke, now produced, by irresistible evidence. That done, however much the jury might wish the property had been otherwise disposed of, they would of course return a verdict in accordance with their oaths and the law of the land.

The first witness called was Thomas Headley, a smith, residing near Dale Farm. He swore positively that the late Mrs. Thorndyke, whom he knew well, had cheerfully signed the will now produced, after it had been deliberately read over to her by her husband about a fortnight before her death. Silas Thorndyke, John Cummins, Elizabeth Wareing, and witness, were the only persons present. Mrs. Thorndyke expressed confidence that her husband would provide for Mary Woodley.

"And so I will," said sleek Silas, rising up and looking round upon the auditory. "If she will return, I will be a father to her."

No look, no sound of sympathy or approval, greeted this generous declaration, and he sat down again not a little disconcerted.

I asked this burly, half-drunken witness but one question—"When is your marriage with Rebecca Thorndyke, the defendant's eldest daughter, to be celebrated?"

"I don't know, Mr. Lawyer; perhaps never."

"That will do; you can go down."

Mr. P —— now rose to state that his client was unable to produce Elizabeth Wareing, another of the attesting witnesses to the will, in court. No suspicion that any opposition to the solemn testament made by the deceased Mrs. Thorndyke would be attempted, had been entertained; and

the woman, unaware that her testimony would be required, had left that part of the country. Every effort had been made by the defendant to discover her abode without effect. It was believed she had gone to America, where she had relatives. The defendant had filed an affidavit setting forth these facts, and it was now prayed that secondary evidence to establish the genuineness of Elizabeth Wareing's attesting signature should be admitted.

I of course vehemently opposed this demand, and broadly hinted that the witness was purposely kept out of the way.

"Will my learned friend," said Mr. P — with one of his sliest sneers, "inform us what motive the defendant could possibly have to keep back a witness so necessary to him?"

"Elizabeth Wareing," I curtly replied, "may not, upon reflection, be deemed a safe witness to subject to the ordeal of a cross-examination. But to settle the matter, my lord," I exclaimed, "I have here an affidavit of the plaintiff's attorney, in which he states that he has no doubt of being able to find this important witness if time be allowed him for the purpose; the defendant of course undertaking to call her when produced."

A tremendous clamor of counsel hereupon ensued, and fierce and angry grew the war of words. The hubbub was at last terminated by the judge recommending that, under the circumstances, "a juror should be withdrawn." This suggestion, after some demur, was agreed to. One of the jurors was whispered to come out of the box; then the clerk of the court exclaimed, "My lord, there are only eleven men on the jury;" and by the aid of this venerable, if clumsy expedient, the cause of *Woodley versus Thorndyke* was *de facto* adjourned to a future day.

I had not long returned to the hotel, when I was waited upon by Mr. Wilford, senior, the father of the young man who had been forbidden to

visit Dale Farm by Thorndyke. His son, he informed me, was ill from chagrin and anxiety—confined to his bed indeed; and Mary Woodley had refused, it seemed, to accept pecuniary aid from either the father or the son. Would I endeavor to terminate the estrangement which had for some time unhappily existed, and persuade her to accept his, Wilford senior's, freely-offered purse and services? I instantly accepted both the mission and the large sum which the excellent man tendered. A part of the money I gave Barnes to stimulate his exertions, and the rest I placed in the hand of Mary Woodley's grandpapa, with a friendly admonition to him not to allow his grandchild to make a fool of herself; an exhortation which produced its effect in due season.

Summer passed away, autumn had come and gone, and the winter assizes were once more upon us. Regular proceedings had been taken, and the action in ejectment of Woodley versus Thorndyke was once more on the cause list of the Chester circuit court, marked this time as a special jury case. Indefatigable as Mr. Barnes had been in his search for Elizabeth Wareing, not the slightest trace of her could he discover; and I went into court, therefore, with but slight expectation of invalidating the, as I fully believed, fictitious will. We had, however, obtained a good deal of information relative to the former history not only of the absent Mrs. Wareing, but of Thorndyke himself; and it was quite within the range of probabilities that something might come out, enabling me to use that knowledge to good purpose. The plaintiff and old Mr. Ward were seated in court beside Mr. Barnes, as on the former abortive trial; but Mary Woodley had, fortunately for herself, lost much of the interest which attaches to female comeliness and grace when associated in the mind of the spectator with undeserved calamity and sorrow. The black dress which she still wore—the orthodox twelve months of mourning for a parent had not yet quite elapsed—was now fresh, and of fine quality, and the pale lilies of her face were interspersed with delicate roses; whilst by her side sat Mr. John

Wilford, as happy-looking as if no such things as perjurers, forgers, or adverse verdicts existed to disturb the peace of the glad world. Altogether, we were decidedly less interesting than on the former occasion. Edward Wareing, I must not omit to add, was, greatly to our surprise, present. He sat, in great apparent amity, by the side of Thorndyke.

It was late in the afternoon, and twilight was gradually stealing over the dingy court, when the case was called. The special jury answered to their names, were duly sworn, and then nearly the same preliminary speeches and admissions were made and put in as on the previous occasion. Thomas Headley, the first witness called in support of the pretended will, underwent a rigorous cross-examination; but I was unable to extract anything of importance from him.

"And now," said the defendant's leading counsel, "let me ask my learned friend if he has succeeded in obtaining the attendance of Elizabeth Wareing?"

I was of course obliged to confess that we had been unable to find her; and the judge remarked that in that case he could receive secondary evidence in proof of her attestation of the will.

A whispered but manifestly eager conference here took place between the defendant and his counsel, occasionally joined in by Edward Wareing. There appeared to be indecision or hesitation in their deliberations; but at last Mr. P —— rose, and with some ostentation of manner addressed the court.

"In the discharge of my duty to the defendant in this action, my lord, upon whose fair fame much undeserved obloquy has been cast by the speeches of the plaintiff's counsel—speeches insupported by a shadow of evidence—I have to state that, anxious above all things to stand perfectly

justified before his neighbors and society, he has, at great trouble and expense, obtained the presence here to-day of the witness Elizabeth Wareing. She had gone to reside in France with a respectable English family in the situation of housekeeper. We shall now place her in the witness-box, and having done so, I trust we shall hear no more of the slanderous imputations so freely lavished upon my client. Call Elizabeth Wareing into court."

A movement of surprise and curiosity agitated the entire auditory at this announcement. Mr. Silas Thorndyke's naturally cadaverous countenance assumed an ashy hue, spite of his efforts to appear easy and jubilant; and for the first time since the commencement of the proceedings I entertained the hope of a successful issue.

Mrs. Wareing appeared in answer to the call, and was duly sworn "to tell the truth, the whole truth, and nothing but the truth." She was a good-looking woman, of perhaps forty years of age, and bore a striking resemblance to her son. She rapidly, smoothly, and unhesitatingly confirmed the evidence of Headley to a tittle. She trembled, I observed, excessively; and on the examining counsel intimating that he had no more questions to ask, turned hastily to leave the box.

"Stay—stay, my good woman," I exclaimed; "you and I must have some talk together before we part."

She started, and looked at me with frightened earnestness; and then her nervous glances stole towards Mr. Silas Thorndyke. There was no comfort there: in his countenance she only saw the reflex of the agitation and anxiety which marked her own. Sleek Silas, I could see, already repented of the rash move he had made, and would have given a good deal to get his witness safely and quietly out of court.

It was now nearly dark, and observing that it was necessary the court and jury should see as well as hear the witness whilst under examination, I requested that lights should be brought in. This was done. Two candles were placed in front of the witness-box, one on each side of Mrs. Wareing; a few others were disposed about the bench and jury desks. The effect of this partial lighting of the gloomy old court was, that the witness stood out in strong and bright relief from the surrounding shadows, rendering the minutest change or play of her features distinctly visible. Mr. Silas Thorndyke was, from his position, thrown entirely into the shade, and any telegraphing between him and the witness was thus rendered impossible. This preparation, as if for some extraordinary and solemn purpose, together with the profound silence which reigned in the court, told fearfully, as I expected, upon the nerves of Mrs. Elizabeth Wareing. She already seemed as if about to swoon with agitation and ill-defined alarm.

"Pray, madam," said I, "is your name Wareing or Tucker?"

She did not answer, and I repeated the question. "Tucker," she at last replied in a tremulous whisper.

"I thought so. And pray, Mrs. Tucker, were you ever 'in trouble' in London for robbing your lodgings?"

I thought she attempted to answer, but no sound passed her lips. One of the ushers of the court handed her a glass of water at my suggestion, and she seemed to recover somewhat. I pressed my question; and at last she replied in the same low, agitated voice, "Yes, I have been."

"I know you have. Mr. Silas Thorndyke, I believe, was your bail on that occasion, and the matter was, I understand, compromised—arranged—at all events the prosecution was not pressed. Is not that so?"

"Yes—no—yes."

"Very well: either answer will do. You lived also, I believe, with Mr. Thorndyke, as his housekeeper of course, when he was in business as a concocter and vender of infallible drugs and pills?"

"Yes."

"He was held to be skilful in the preparation of drugs, was he not—well-versed in their properties?"

"Yes—I believe so—I do not know. Why am I asked such questions?"

"You will know presently. And now, woman, answer the question I am about to put to you, as you will be compelled to answer it to God at the last great day—What was the nature of the drug which you or he mixed with the medicine prescribed for the late Mrs. Thorndyke?"

A spasmodic shriek, checked by a desperate effort, partially escaped her, and she stood fixedly gazing with starting eyes in my face.

The profoundest silence reigned in the court as I iterated the question.

"You must answer, woman," said the judge sternly, "unless you know your answer will criminate yourself."

The witness looked wildly round the court, as if in search of counsel or sympathy; but encountering none but frowning and eager faces—Thorndyke she could not discern in the darkness—she became giddy and panic-stricken, and seemed to lose all presence of mind.

"He—he—he," she at last gasped—"he mixed it. I do not know—But how," she added, pushing back her hair, and pressing her hands against her

hot temples, "can this be? What can it mean?"

A movement amongst the bystanders just at this moment attracted the notice of the judge, and he immediately exclaimed, "The defendant must not leave the court!" An officer placed himself beside the wretched murderer as well as forger, and I resumed the cross-examination of the witness.

"Now, Mrs. Tucker, please to look at this letter." (It was that which had been addressed to Mary Woodley by her son.) "That, I believe, is your son's handwriting?"

"Yes."

"The body of this will has been written by the same hand. Now, woman, answer. Was it your son—this young man who, you perceive, if guilty, cannot escape from justice—was it he who forged the names of the deceased Mrs. Thorndyke, and of John Cummins attached to it?"

"Not he—not he!" shrieked the wretched woman. "It was Thorndyke—Thorndyke himself." And then with a sudden revulsion of feeling, as the consequences of what she had uttered flashed upon her, she exclaimed, "Oh, Silas, what have I said?—what have I done?"

"Hanged me, that's all, you accursed devil!" replied Thorndyke with gloomy ferocity. "But I deserve it for trusting in such an idiot: dolt and fool that I was for doing so."

The woman sank down in strong convulsions, and was, by direction of the judge, carried out of the hall.

The anxious silence which pervaded the court during this scene, in which the reader will have observed I played a bold, tentative, and happily-

successful game, was broken as the witness was borne off by a loud murmur of indignation, followed by congratulatory exclamations on the fortunate termination of the suit. The defendant's counsel threw up their briefs, and a verdict was at once returned for the plaintiff.

All the inculpated parties were speedily in custody; and the body of Mrs. Thorndyke having been disinterred, it was discovered that she had been destroyed by bichloride of mercury, of which a considerable quantity was detected in the body. I was not present at the trial of Thorndyke and his accomplices—he for murder, and Headley for perjury—but I saw by the public prints that he was found guilty, and executed: Headley was transported: the woman was, if I remember rightly, admitted evidence for the crown.

Mary Woodley was of course put into immediate possession of her paternal inheritance; and is now—at least she was about four months ago, when I dined with her and her husband at Dale Farm—a comely, prosperous matron; and as happy as a woman with a numerous progeny and an easy-tempered partner can in this, according to romance writers, vale of grief and tears expect to be. The service I was fortunately enabled to render her forms one of the most pleasing recollections of my life.

CIRCUMSTANTIAL EVIDENCE.

In the second year of my connection with the Northern Circuit, when even *junior* briefs were much less numerous than acceptable, I was agreeably surprised, as I sat musing on the evening of my arrival in the ancient city of York upon the capricious mode in which those powerful personages the attorneys distributed their valuable favors, by the entrance of one of the most eminent of the race practising in that part of the country, and the forthwith tender of a bulky brief in the Crown Court, on which, as my glance instinctively fell on the interesting figures, I perceived that the large fee, in criminal cases, of fifty guineas was marked. The local newspapers, from which I had occasionally seen extracts, had been for some time busy with the case; and I knew it therefore to be, relatively to the condition in life of the principal person implicated, an important one. Rumor had assigned the conduct of the defence to an eminent leader on the circuit—since, one of our ablest judges; and on looking more closely at the brief, I perceived that that gentleman's name had been crossed out, and mine substituted. The fee also—a much less agreeable alteration—had been, I saw, considerably reduced; in accordance, doubtless, with the attorney's appreciation of the difference of value between a silk and a stuff gown.

"You are not, sir, I believe, retained for the prosecution in the crown against Everett?" said Mr. Sharpe in his brief, business manner.

"I am not, Mr. Sharpe."

"In that case, I beg to tender you the leading-brief for the defence. It was intended, as you perceive, to place it in the hands of our great *nisi prius* leader, but he will be so completely occupied in that court, that he has been compelled to decline it. He mentioned you; and from what I have myself seen of you in several cases, I have no doubt my unfortunate client will have ample justice done him. Mr. Kingston will be with you."

I thanked Mr. Sharpe for his compliment, and accepted his brief. As the commission would be opened on the following morning, I at once applied myself to a perusal of the bulky paper, aided as I read by the verbal explanations and commentaries of Mr. Sharpe. Our conference lasted several hours; and it was arranged that another should be held early the next morning at Mr. Sharpe's office, at which Mr. Kingston would assist.

Dark, intricate, compassed with fearful mystery, was the case so suddenly submitted to my guidance; and the few faint gleams of light derived from the attorney's research, prescience, and sagacity, served but to render dimly visible a still profounder and blacker abyss of crime than that disclosed by the evidence for the crown. Young as I then was in the profession, no marvel that I felt oppressed by the weight of the responsibility cast upon me; or that, when wearied with thinking, and dizzy with profitless conjecture, I threw myself into bed, perplexing images and shapes of guilt and terror pursued me through my troubled sleep! Happily the next day was not that of trial; for I awoke with a throbbing pulse and burning brain, and should have been but poorly prepared for a struggle involving the issues of life and death. Extremely sensitive, as, under the circumstances, I must necessarily have been, to the arduous nature of the grave duties so unexpectedly devolved upon me; the following *résumé* of the chief incidents of the case, as confided to me by Mr. Sharpe, will, I think, fully account to the reader for the nervous irritability under which I for the moment, labored:—

Mr. Frederick Everett, the prisoner about to be arraigned before a jury of his countrymen for the frightful crime of murder, had, with his father, Captain Anthony Everett, resided for several years past at Woodlands Manor-House, the seat of Mrs. Eleanor Fitzhugh, a rich, elderly maiden lady, aunt to the first, and sister by marriage to the last-named gentleman. A generous, pious, high-minded person Mrs. Fitzhugh was represented to have been, but extremely sensitive withal on the score of "family." The Fitzhughs of Yorkshire, she was wont to boast, "came in with the Conqueror;" and any branch of the glorious tree then firmly planted in the soil of England that degraded itself by an alliance with wealth, beauty, or worth, dwelling without the pale of her narrow prejudices, was inexorably cut off from her affections, and, as far as she was able, from her memory. One—the principal of these offenders—had been Mary Fitzhugh, her young, fair, gentle, and only sister. In utter disdain and slight of the dignity of ancestry, she had chosen to unite herself to a gentleman of the name of Mordaunt, who, though possessed of great talents, an unspotted name, and, for his age, high rank in the civil service of the East India Company, had—inexpiable misfortune—a trader for his grandfather! This crime against her "house" Mrs. Eleanor Fitzhugh resolved never to forgive; and she steadily returned, unopened, the frequent letters addressed to her by her sister, who pined in her distant Indian home for a renewal of the old sisterly love which had watched over and gladdened her life from infancy to womanhood. A long silence—a silence of many years—succeeded; broken at last by the sad announcement that the unforgiven one had long since found an early grave in a foreign land. The letter which brought the intelligence bore the London post-mark, and was written by Captain Everett; to whom, it was stated, Mrs. Eleanor Fitzhugh's sister, early widowed, had been united in second nuptials, and by whom she had borne a son, Frederick Everett, now nearly twenty years of age. The long-pent-up affection of Mrs. Fitzhugh for her once idolized sister burst forth at this announcement of her death with

uncontrollable violence; and, as some atonement for her past sinful obduracy, she immediately invited the husband and son of her long-lost Mary to Woodlands Manor-House, to be henceforth, she said, she hoped their home. Soon after their arrival, Mrs. Fitzhugh made a will—the family property was entirely at her disposal—revoking a former one, which bequeathed the whole of the real and personal property to a distant relative whom she had never seen, and by which all was devised to her nephew, who was immediately proclaimed sole heir to the Fitzhugh estates, yielding a yearly rental of at least £12,000. Nay, so thoroughly was she softened towards the memory of her deceased sister, that the will—of which, as I have stated, no secret was made—provided, in the event of Frederick dying childless, that the property should pass to his father, Mary Fitzhugh's second husband.

No two persons could be more unlike than were the father and son—mentally, morally, physically. Frederick Everett was a fair-haired, blue-eyed young man, of amiable, caressing manners, gentle disposition, and ardent, poetic temperament. His father, on the contrary, was a dark-featured, cold, haughty, repulsive man, ever apparently wrapped up in selfish and moody reveries. Between him and his son there appeared to exist but little of cordial intercourse, although the highly-sensitive and religious tone of mind of Frederick Everett caused him to treat his parent with unvarying deference and respect.

The poetic temperament of Frederick Everett brought him at last, as poetic temperaments are apt to do, into trouble. Youth, beauty, innocence, and grace, united in the person of Lucy Carrington—the only child of Mr. Stephen Carrington, a respectable retired merchant of moderate means, residing within a few miles of Woodlands Manor-House—crossed his path; and spite of his shield of many quarterings, he was vanquished in an instant, and almost without resistance. The at least tacit consent and approval of Mr.

Carrington and his fair daughter secured, Mr. Everett, junior—hasty, headstrong lover that he was—immediately disclosed his matrimonial projects to his father and aunt. Captain Everett received the announcement with a sarcastic smile, coldly remarking, that if Mrs. Fitzhugh was satisfied, he had no objection to offer. But, alas! no sooner did her nephew, with much periphrastic eloquence, in part his passion for the daughter of a *mere* merchant to his aunt, than a vehement torrent of indignant rebuke broke from her lips. She would die rather than consent to so degrading a *mésalliance*; and should he persist in yielding to such gross infatuation, she would not only disinherit, but banish him her house, and cast him forth a beggar on the world. Language like this, one can easily understand, provoked language from the indignant young man which in less heated moments he would have disdained to utter; and the aunt and nephew parted in fierce anger, and after mutual denunciation of each other—he as a disobedient ingrate, she as an imperious, ungenerous tyrant. The quarrel was with some difficulty patched up by Captain Everett; and with the exception of the change which took place in the disappointed lover's demeanor—from light-hearted gaiety to gloom and sullenness—things, after a few days, went on pretty nearly as before.

The sudden rupture of the hopes Mrs. Eleanor Fitzhugh had reposed in her nephew as the restorer of the glories of her ancient "house," tarnished by Mary Fitzhugh's marriage, affected dangerously, it soon appeared, that lady's already failing health. A fortnight after the quarrel with her nephew, she became alarmingly ill. Unusual and baffling symptoms showed themselves; and after suffering during eight days from alternate acute pain, and heavy, unconquerable drowsiness, she expired in her nephew's arms. This sudden and fatal illness of his relative appeared to reawaken all Frederick Everett's tenderness and affection for her. He was incessant in his close attendance in the sick-chamber, permitting no one else to administer to his aunt either aliment or medicine. On this latter point, indeed, he

insisted, with strange fierceness, taking the medicine with his own hand from the man who brought it; and after administering the prescribed quantity, carefully locking up the remainder in a cabinet in his bed-room.

On the morning of the day that Mrs. Fitzhugh died, her ordinary medical attendant, Mr. Smith, terrified and perplexed by the urgency of the symptoms exhibited by his patient, called in the aid of a locally-eminent physician, Dr. Archer, or Archford—the name is not very distinctly written in my memoranda of these occurrences; but we will call him Archer—who at once changed the treatment till then pursued, and ordered powerful emetics to be administered, without, however, as we have seen, producing any saving or sensible effect. The grief of Frederick Everett, when all hope was over, was unbounded. He threw himself, in a paroxysm of remorse or frenzy, upon the bed, accusing himself of having murdered her, with other strange and incoherent expressions, upon which an intimation soon afterwards made by Dr. Archer threw startling light. That gentleman, conjointly with Mr. Smith, requested an immediate interview with Captain Everett, and Mr. Hardyman, the deceased lady's land-steward and solicitor, who happened to be in the house at the time. The request was of course complied with, and Dr. Archer at once bluntly stated that, in his opinion, *poison* had been administered to the deceased lady, though of what precise kind he was somewhat at a loss to conjecture—opium essentially, he thought, though certainly not in any of its ordinary preparations—one of the alkaloids probably which chemical science had recently discovered. Be this as it may, a *post-mortem* examination of the body would clear up all doubts, and should take place as speedily as possible. Captain Everett at once acceded to Dr. Archer's proposal, at the same time observing that he was quite sure the result would entirely disprove that gentleman's assumption. Mr. Hardyman also fully concurred in the necessity of a rigid investigation; and the *post-mortem* examination should, it was arranged, take place early on the following morning.

"I have another and very painful duty to perform," continued Dr. Archer, addressing Captain Everett. "I find that your son, Mr. Frederick Everett, alone administered medicine and aliment to Mrs. Fitzhugh during her illness. Strange, possibly wholly frenzied expressions, but which sounded vastly like cries of remorse, irrepressible by a person unused to crime, escaped him in my hearing just after the close of the final scene; and—But perhaps, Captain Everett, you had better retire: this is scarcely a subject"—

"Go on, sir," said the captain, over whose countenance a strange expression—to use Dr. Archer's own words—had *flashed*; "go on: I am better now."

"We all know," resumed Dr. Archer, "how greatly Mr. Frederick Everett gains in wealth by his aunt's death; and that her decease, moreover, will enable him to conclude the marriage to which she was so determinedly opposed. I think, therefore, that, under all the circumstances, we shall be fully justified in placing the young gentleman under such—I will not say custody, but *surveillance* as will prevent him either from leaving the house, should he imagine himself suspected, or of destroying any evidence which may possibly exist of his guilt, if indeed he be guilty."

"I entirely agree with you, Dr. Archer," exclaimed Mr. Hardyman, who had listened with much excitement to the doctor's narrative; "and will, upon my own responsibility, take the necessary steps for effecting the object you have in view."

"Gentlemen," said Captain Everett, rising from his chair, "you will of course do your duty; but I can take no part, nor offer any counsel, in such a case; I must leave you to your own devices." He then left the apartment.

He had been gone but a few minutes, when Frederick Everett, still in a state of terrible excitement, entered the room, strode fiercely up to Dr.

Archer, and demanded how he dared propose, as the butler had just informed him he had done, a dissection of his aunt's body.

"I will not permit it," continued the agitated young man: "I am master here, and I say it shall not be done. What new horror would you evoke? Is it not enough that one of the kindest, best of God's creatures, has perished, but *another* sacrifice must—What do I say? Enough that I will not permit it. I have seen similar cases—very similar cases in—in India!"

The gentleman so strangely addressed had exchanged significant glances during the delivery of this incoherent speech; and, quite confirmed in their previous impression, Mr. Hardyman, as their spokesman, interrupted the speaker, to inform him that *he* was the suspected assassin of his aunt! The accusing sentences had hardly passed the solicitor's lips, when the furious young man sprang towards him with the bound of a tiger, and at one blow prostrated him on the floor. He was immediately seized by the two medical gentlemen, and help having been summoned, he was with much difficulty secured, and placed in strict confinement, to await the result of the next day's inquiry.

The examination of the body disclosed the terrible fact, that the deceased lady had perished by *acetate of morphine*; thus verifying the sagacious guess of Dr. Archer. A minute search was immediately made throughout Mr. Frederick Everett's apartments, and behind one of the drawers of a cabinet in his bedroom—at the back of the shelf or partition upon which the drawer rested, and of course completely hidden by the drawer itself when in its place—was found a flat tin flask, fluted on the outside, and closed with a screw stopper: it was loosely enveloped in a sheet of brown paper, directed "—Everett, Esq., Woodlands Manor-House, Yorkshire;" and upon close examination, a small quantity of white powder, which proved to be *acetate of morphine*, was found in the flask. Suspicion of young Everett's guilt now

became conviction; and, as if to confirm beyond all doubt the soundness of the chain of circumstantial evidence in which he was immeshed, the butler, John Darby, an aged and trusty servant of the late Mrs. Fitzhugh, made on the next day the following deposition before the magistrates:—

"He had taken in, two days before his late mistress was seized with her fatal illness, a small brown paper parcel which had been brought by coach from London, and for which 2s. 10d carriage was charged and paid. The paper found in Mr. Frederick Everett's cabinet was, he could positively swear, from the date and figures marked on it, and the handwriting, the paper wrapper of that parcel. He had given it to young Mr. Everett, who happened to be in the library at the time. About five minutes afterwards, he had occasion to return to the library, to inform him that some fishing-tackle he had ordered was sent home. The door was ajar; and Mr. Frederick did not at first perceive his entrance, as he was standing with his back to the door. The paper parcel he, the butler, had just before delivered was lying open on the table, and Mr. Everett held in one hand a flat tin flask—the witness had no doubt the same found in the cabinet—and in the other a note, which he was reading. He, the witness, coughed, to attract Mr. Everett's attention, who hurriedly turned round, clapped down the flask and the note, shuffling them under the paper wrapper, as if to conceal them, and then, in a very confused manner, and his face as red as flame, asked witness what he wanted there? Witness thought this behavior very strange at the time; but the incident soon passed from his mind, and he had thought no more of it till the finding of the paper and flask as described by the other witnesses."

Mr. Frederick Everett, who had manifested the strangest impassability, a calmness as of despair, throughout the inquiry, which perplexed and disheartened Mr. Sharpe, whose services had been retained by Captain Everett, allowed even this mischievous evidence to pass without a word of comment or explanation; and he was, as a matter of course, fully committed

for the wilful murder of his relative. The chain of circumstantial evidence, motive included, was, it was felt, complete—not a link was wanting.

These were the chief incidents disclosed to me by Mr. Sharpe during our long and painful consultation. Of the precise nature of the terrible suspicions which haunted and disturbed me, I shall only in this place say that neither Mr. Sharpe, nor, consequently, myself, would in all probability have guessed or glanced at them, but for the persistent assertions of Miss Carrington, that her lover was madly sacrificing himself from some chimerical motive of honor or duty.

"You do not know, Mr. Sharpe, as I do," she would frequently exclaim with tearful vehemence, "the generous, child-like simplicity, the chivalric enthusiasm, of his character, his utter abnegation of self, and readiness on all occasions to sacrifice his own ease, his own wishes, to forward the happiness of others; and, above all, his fantastic notions of honor—duty, if you will—which would, I feel assured, prompt him to incur any peril, death itself, to shield from danger any one who had claims upon him either of blood or of affection. You know to whom my suspicions point; and how dreadful to think that one so young, so brave, so pious, and so true, should be sacrificed for such a monster as I believe that man to be!"

To all these passionate expostulations the attorney could only reply that vague suspicions were not judicial proofs; and that if Mr. Frederick Everett would persist in his obstinate reserve, a fatal result was inevitable. But Mr. Sharpe readily consented to gratify the wishes of Mr. Carrington and his daughter on one point: he returned the money, not a very large sum, which Captain Everett had sent him, and agreed that Mr. Carrington should supply the funds necessary for the defence of the prisoner.

Our consultation the next day at Mr. Sharpe's was a sad and hopeless one. Nowhere did a gleam of cheerful light break in. The case was

overwhelmingly complete against the prisoner. The vague suspicions we entertained pointed to a crime so monstrous, so incredible, that we felt it could not be so much as hinted at upon such, legally considered, slight grounds. The prisoner was said to be an eloquent speaker, and I undertook to draw up the outline of a defence, impugning, with all the dialectic skill I was master of, the conclusiveness of the evidence for the crown. To this, and a host of testimony to character which we proposed to call, rested our faint hopes of "a good deliverance!"

Business was over, and we were taking a glass of wine with Mr. Sharpe, when his chief clerk entered to say that Sergeant Edwards, an old soldier—who had spoken to them some time before relative to a large claim which he asserted he had against Captain Everett, arising out of a legacy bequeathed to him in India, and the best mode of assuring its payment by an annuity, as proposed by the captain—had now called to say that the terms were at last finally arranged, and that he wished to know when Mr. Sharpe would be at leisure to draw up the bond. "He need not fear for his money!" exclaimed Sharpe tartly, "the captain will, I fear, be rich enough before another week has passed over our heads. Tell him to call to-morrow evening; I will see him after I return from court." A few minutes afterwards, I and Mr. Kingston took our leave.

The Crown Court was thronged to suffocation on the following morning, and the excitement of the auditory appeared to be of the intensest kind. Miss Carrington, closely veiled, sat beside her father on one of the side-benches. A true bill against the prisoner had been found on the previous afternoon; and the trial, it had been arranged, to suit the convenience of counsel, should be first proceeded with. The court was presided over by Mr. Justice Grose; and Mr. Gurney—afterwards Mr. Baron Gurney—with another gentleman appeared for the prosecution. As soon as the judge had taken his seat, the prisoner was ordered to be brought in, and a hush of

expectation pervaded the assembly. In a few minutes he made his appearance in the dock. His aspect—calm, mournful, and full of patient resignation—spoke strongly to the feelings of the audience, and a low murmur of sympathy ran through the court. He bowed respectfully to the bench, and then his sad, proud eye wandered round the auditory, till it rested on the form of Lucy Carrington, who, overcome by sudden emotion, had hidden her weeping face in her father's bosom. Strong feeling, which he with difficulty mastered, shook his frame, and blanched to a still deeper pallor his fine intellectual countenance. He slowly withdrew his gaze from the agitating spectacle, and his troubled glance meeting that of Mr. Sharpe, seemed to ask why proceedings, which *could* only have one termination, were delayed. He had not long to wait. The jury were sworn, and Mr. Gurney rose to address them for the crown. Clear, terse, logical, powerful without the slightest pretence to what is called eloquence, his speech produced a tremendous impression upon all who heard it; and few persons mentally withheld their assent to his assertion, as he concluded what was evidently a painful task, "that should he produce evidence substantiating the statement he had made, the man who could then refuse to believe in the prisoner's guilt, would equally refuse credence to actions witnessed by his own bodily eyes."

The different witnesses were then called, and testified to the various facts I have before related. Vainly did Mr. Kingston and I exert ourselves to invalidate the irresistible proofs of guilt so dispassionately detailed. "It is useless," whispered Mr. Sharpe, as I sat down after the cross-examination of the aged butler. "You have done all that could be done; but he is a doomed man, spite of his innocence, of which I feel, every moment that I look at him, the more and more convinced. God help us; we are poor, fallible creatures, with all our scientific machinery for getting at truth!"

The case for the crown was over, and the prisoner was told that now was the time for him to address the jury in answer to the charge preferred against him. He bowed courteously to the intimation, and drawing a paper from his pocket, spoke, after a few preliminary words of course, nearly as follows:—

"I hold in my hand a very acute and eloquent address prepared for me by one of the able and zealous gentlemen who appears to-day as my counsel, and which, but for the iniquitous law which prohibits the advocate of a presumed felon, but possibly quite innocent person, from addressing the jury, upon whose verdict his client's fate depends, would no doubt have formed the subject-matter of an appeal to you not to yield credence to the apparently irrefragable testimony arrayed against me. The substance of this defence you must have gathered from the tenor of the cross-examinations; but so little effect did it produce, I saw, in that form, however ably done, and so satisfied am I that though it were rendered with an angel's eloquence, it would prove utterly impotent to shake the strong conclusions of my guilt, which you, short-sighted, fallible mortals—short-sighted and fallible *because* mortal!—I mean no disrespect—must have drawn from the body of evidence you have heard, that I will not weary you or myself by reading it. I will only observe that it points especially to the *over-roof*, so to speak, arrayed against me—to the folly of supposing that an intentional murderer would ostentatiously persist in administering the fatal potion to the victim with his own hands, carefully excluding all others from a chance of incurring suspicion. There are other points, but this is by far the most powerful one; and as I cannot believe *that* will induce you to return a verdict rescuing me from what the foolish world, judging from appearances, will call a shameful death, but which I, knowing my own heart, feel to be sanctified by the highest motives which can influence man—it would be merely waste of time to repeat them. From the first moment, gentlemen, that this accusation was preferred against me, I felt that I had done with this

world; and, young as I am, but for one beloved being whose presence lighted up and irradiated this else cold and barren earth, I should, with little reluctance, have accepted this gift of an apparently severe, but perhaps merciful fate. This life, gentlemen," he continued after a short pause, "it has been well said, is but a battle and a march. I have been struck down early in the combat; but of what moment is that, if it be found by Him who witnesses the world-unnoticed deeds of *all* his soldiers, that I have earned the victor's crown? Let it be your consolation, gentlemen, if hereafter you should discover that you have sent me to an undeserved death, that you at least will not have hurried a soul spotted with the awful crime of murder before its Maker. And oh," he exclaimed in conclusion, with solemn earnestness, "may *all* who have the guilt of blood upon them hasten, whilst life is still granted them, to cleanse themselves by repentance of that foul sin, so that not only the sacrifice of one poor life, but that most holy and tremendous one offered in the world's consummate hour, may not for them have been made in vain! My lord and gentlemen, I have no more to say. You will doubtless do your duty: I *have* done mine."

I was about, a few minutes after the conclusion of this strange and unexpected address, to call our witnesses to character, when, to the surprise of the whole court, and the consternation of the prisoner, Miss Carrington started up, threw aside her veil, and addressing the judge, demanded to be heard.

Queenly, graceful, and of touching loveliness did she look in her vehemence of sorrow—radiant as sunlight in her days of joy she must have been—as she stood up, affection-prompted, regardless of self, of the world, to make one last effort to save her affianced husband.

"What would you say, young lady?" said Mr. Justice Grose, kindly. "If you have anything to testify in favor of the prisoner, you had better

communicate with his counsel."

"Not that—not that," she hurriedly replied, as if fearful that her strength would fail before she had enunciated her purpose. "Put, my lord, put Frederick—the prisoner, I mean—on his oath. Bid him declare, as he shall answer at the bar of Almighty God, who is the murderer for whom he is about to madly sacrifice himself, and you will then find"—

"Your request is an absurd one," interrupted the judge with some asperity. "I have no power to question a prisoner."

"Then," shrieked the unfortunate lady, sinking back fainting and helpless in her father's arms, "he is lost—lost!"

She was immediately carried out of court; and as soon as the sensation caused by so extraordinary and painful an incident had subsided, the trial proceeded. A cloud of witnesses to character were called; the judge summed up; the jury deliberated for a few minutes; and a verdict of "guilty" was returned. Sentence to die on the day after the next followed, and all was over!

Yes; all was, we deemed, over; but happily a decree, reversing that of Mr. Justice Grose, had gone forth in Heaven. I was sitting at home about an hour after the court had closed, painfully musing on the events of the day, when the door of the apartment suddenly flew open, and in rushed Mr. Sharpe in a state of great excitement, accompanied by Sergeant Edwards, whom the reader will remember had called the previous day at that gentleman's house. In a few minutes I was in possession of the following important information, elicited by Mr. Sharpe from the half-willing, half-reluctant sergeant, whom he had found waiting for him at his office:—

In the first place, Captain Everett was *not* the father of the prisoner! The young man was the son of Mary Fitzhugh by her *first* marriage; and his name, consequently, was Mordaunt, not Everett. His mother had survived her second marriage barely six months. Everett, calculating doubtless upon the great pecuniary advantages which would be likely to result to himself as the reputed father of the heir to a splendid English estate, should the quarrel with Mrs. Eleanor Fitzhugh—as he nothing doubted—be ultimately made up, had brought his deceased wife's infant son up as his own. This was the secret of Edwards and his wife; and to purchase their silence, Captain Everett had agreed to give the bond for an annuity which Mr. Sharpe was to draw up. The story of the legacy was a mere pretence. When Edwards was in Yorkshire before, Everett pacified him for the time with a sum of money, and a promise to do more for him as soon as his reputed son came into the property. He then hurried the *cidevant* sergeant back to London; and at the last interview he had with him, gave him a note addressed to a person living in one of the streets—I forget which—leading out of the Haymarket, together with a five-pound note, which he was to pay the person to whom the letter was addressed for some very rare and valuable powder, which the captain wanted for scientific purposes, and which Edwards was to forward by coach to Woodlands Manor-House. Edwards obeyed his instructions, and delivered the message to the queer bushy-bearded foreigner to whom it was addressed, who told him that, if he brought him the sum of money mentioned in the note on the following day, he should have the article required. He also bade him bring a well-stoppered bottle to put it in. As the bottle was to be sent by coach, Edwards purchased a tin flask, as affording a better security against breakage; and having obtained the powder, packed it nicely up, and told his niece, who was staying with him at the time, to direct it, as he was in a hurry to go out, to Squire Everett, Woodlands Manor-House, Yorkshire, and then take it to the booking-office. He thought, of course, though he said *Squire* in a jocular way, that she would have directed

it *Captain* Everett, as she knew him well; but it seemed she had not. Edwards had returned to Yorkshire only two days since, to get his annuity settled, and fortunately was present in court at the trial of Frederick Mordaunt, *alias* Everett, and at once recognized the tin flask as the one he had purchased and forwarded to Woodlands, where it must in due course have arrived on the day stated by the butler. Terrified and bewildered at the consequences of what he had done, or helped to do, Edwards hastened to Mr. Sharpe, who, by dint of exhortations, threats, and promises, judiciously blended, induced him to make a clean breast of it.

As much astounded as elated by this unlooked-for information, it was some minutes before I could sufficiently concentrate my thoughts upon the proper course to be pursued. I was not, however, long in deciding. Leaving Mr. Sharpe to draw up an affidavit of the facts disclosed, I hastened off to the jail, in order to obtain a thorough elucidation of all the mysteries.

The revulsion of feeling in the prisoner's mind when he learned that the man for whom he had so recklessly sacrificed himself was not only *not* his father, but a cold-blooded villain, who, according to the testimony of Sergeant Edwards, had embittered, perhaps shortened, his mother's last hours, was immediate and excessive. "I should have taken Lucy's advice!" he bitterly exclaimed, as he strode to and fro in his cell; "have told the truth at all hazards, and have left the rest to God." His explanation of the incidents that had so puzzled us all, was as simple as satisfactory. He had always, from his earliest days, stood much in awe of his father, who in the, to young Mordaunt, sacred character of parent, exercised an irresistible control over him; and when the butler entered the library, he believed for an instant it was his father who had surprised him in the act of reading his correspondence; an act which, however unintentional, would, he knew, excite Captain Everett's fiercest wrath. Hence arose the dismay and confusion which the butler had described. He re-sealed the parcel, and

placed it in his reputed father's dressing-room; and thought little more of the matter, till, on entering his aunt's bedroom on the first evening of her illness, he beheld Everett pour a small portion of white powder from the tin flask into the bottle containing his aunt's medicine. The terrible truth at once flashed upon him. A fierce altercation immediately ensued in the father's dressing-room, whither Frederick followed him. Everett persisted that the powder was a celebrated Eastern medicament, which would save, if anything could, his aunt's life. The young man was not of course deceived by this shallow falsehood, and from that moment administered the medicine to the patient with his own hands, and kept the bottles which contained it locked up in his cabinet. "On the very morning of my aunt's death, I surprised him shutting and locking one of my cabinet drawers. So dumbfounded was I with horror and dismay at the sight, that he left the room by a side-door without observing me. You have now the key to my conduct. I loathed to look upon the murderer; but I would have died a thousand deaths rather than attempt to save my own life by the sacrifice of a father's—how guilty soever he might be."

Furnished with this explanation, and the affidavit of Edwards, I waited upon the judge, and obtained not only a respite for the prisoner, but a warrant for the arrest of Captain Everett.

It was a busy evening. Edwards was despatched to London in the friendly custody of an intelligent officer, to secure the person of the foreign-looking vender of subtle poisons; and Mr. Sharpe, with two constables, set off in a postchaise for Woodlands Manor-House. It was late when they arrived there, and the servants informed them that Captain Everett had already retired. They of course insisted upon seeing him; and he presently appeared, wrapped in a dressing-gown, and haughtily demanded their business with him at such an hour. The answer smote him as with a thunderbolt, and he staggered backwards, till arrested by the wall of the apartment, and then

sank feebly, nervelessly, into a chair. Eagerly, after a pause, he questioned the intruders upon the nature of the evidence against him. Mr. Sharpe briefly replied that Edwards was in custody, and had revealed everything.

"Is it indeed so?" rejoined Everett, seeming to derive resolution and fortitude from the very extremity of despair. "Then the game is unquestionably lost. It was, however, boldly and skilfully played, and I am not a man to whimper over a fatal turn of the dice. In a few minutes, gentlemen," he added, "I shall have changed my dress, and be ready to accompany you."

"We cannot lose sight of you for an instant," replied Mr. Sharpe. "One of the officers must accompany you."

"Be it so: I shall not detain either him or you long."

Captain Everett, followed by the officer, passed into his dressing-room. He pulled off his gown; and pointing to a coat suspended on a peg at the further extremity of the apartment, requested the constable to reach it for him. The man hastened to comply with his wish. Swiftly, Everett opened a dressing-case which stood on a table near him: the officer heard the sharp clicking of a pistol-lock, and turned swiftly round. Too late! A loud report rang through the house; the room was filled with smoke; and the wretched assassin and suicide lay extended on the floor a mangled corpse!

It would be useless minutely to recapitulate, the final winding-up of this eventful drama. Suffice it to record, that Mr. Frederick Mordaunt was, after a slight delay, restored to freedom and a splendid position in society. After the lapse of a decent interval, he espoused Lucy Carrington. Their eldest son represents in this present parliament one of the English boroughs, and is by no means an undistinguished member of the Commons House.

"THE ACCOMMODATION BILL."

Such of the incidents of the following narrative as did not fall within my own personal observation, were communicated to me by the late Mr. Ralph Symonds, and the dying confessions of James Hornby, one of the persons killed by the falling in of the iron roof of the Brunswick Theatre. A conversation the other day with a son of Mr. Symonds, who has been long settled in London, recalled the entire chain of circumstances to my memory with all the vivid distinctness of a first impression.

One evening towards the close of the year 1806, the Leeds coach brought Mr. James Hornby to the village of Pool, on the Wharf, in the West-Riding of Yorkshire. A small but respectable house on the confines of the place had been prepared for his reception, and a few minutes after his descent from the top of the coach, the pale, withered-looking man disappeared within it. Except for occasional trips to Otley, a small market-town distant about three miles from Pool, he rarely afterwards emerged from its seclusion. It was not *Time*, we shall presently see—he was indeed but four-and-forty years of age—that had bowed his figure, thinned his whitening hair, and banished from his countenance all signs of healthy, cheerful life. This, too, appeared to be the opinion of the gossips of the village, who, congregated, as usual, to witness the arrival and departure of the coach, indulged, thought Mr. Symonds, who was an inside passenger proceeding on to Otley, in

remarkably free-and-easy commentaries upon the past, present, and future of the new-comer.

"I mind him well," quavered an old white-haired man. "It's just three-and-twenty years ago last Michaelmas. I remember it because of the hard frost two years before, that young Jim Hornby left Otley to go to Lunnon: just the place, I'm told, to give the finishing polish to such a miscreant as he seemed likely to be. He was just out of his time to old Hornby, his uncle, the grocer."

"He that's left him such heaps of money?"

"Ay, boy, the very same, though he wouldn't have given him or any one else a cheese-paring whilst he lived. This one is a true chip of the old block, I'll warrant. You noticed that he rode outside, bitter cold as it is?"

"Surely, Gaffer Hicks. But do ye mind what it was he went off in such a skurry for? Tom Harris was saying last night at the Horse-Shoe, it was something concerning a horse-race or a young woman; he warn't quite sensible which."

"I can't say," rejoined the more ancient oracle, "that I quite mind all the ups and downs of it. Henry Burton horse-whipped him on the Doncaster race-course, *that* I know; but whether it was about Cinderella that had, they said, been tampered with the night before the race, or Miss Elizabeth Grainsford, whom Burton married a few weeks afterwards, I can't, as Tom Harris says, quite clearly remember."

"Old Hornby had a heavy grip of Burton's farm for a long time before he died, they were saying yesterday at Otley. The sheepskins will now no doubt be in the nephew's strong box."

"True, lad; and let's hope Master Burton will be regular with his payments; for if not, there's Jail and Ruin for him written in capital letters on yon fellow's cast-iron phiz, I can see."

The random hits of these Pool gossips, which were here interrupted by the departure of the coach, were not very wide of the mark. James Hornby, it was quite true, had been publicly horsewhipped twenty-three years before by Henry Burton on the Doncaster race-course, ostensibly on account of the sudden withdrawal of a horse that should have started, a transaction with which young Hornby was in some measure mixed up; but especially and really for having dared, upon the strength of presumptive heirship to his uncle's wealth, to advance pretensions to the fair hand of Elizabeth Gainsford, the eldest daughter of Mr. Robert Gainsford, surgeon, of Otley—pretensions indirectly favored, it was said, by the father, but contemptuously repudiated by the lady. Be this as it may, three weeks after the races, Elizabeth Gainsford became Mrs. Burton, and James Hornby hurried off to London, grudgingly furnished for the journey by his uncle. He obtained a situation as shopman in one of the large grocer establishments of the metropolis; and twenty-three years afterwards, the attorney's letter, informing him that he had succeeded to all his deceased uncle's property, found him in the same place, and in the same capacity.

A perfect yell of delight broke from the lips of the taciturn man as his glance devoured the welcome intelligence. "At last!" he shouted with maniacal glee; and fiercely crumpling the letter in his hand, as if he held a living foe in his grasp, whilst a flash of fiendish passion broke from the deep caverns of his sunken eyes—"at last I have thee on the hip! Ah, mine enemy!—it is the dead—the dead alone that never return to hurl back on the head of the wrong-doer the shame, the misery, the ruin he inflicted in his hour of triumph!" The violence of passions suddenly unreined after years of jealous curb and watchfulness for a moment overcame him, and he reeled as

if fainting, into a chair. The fierce, stern nature of the man soon mastered the unwonted excitement, and in a few minutes he was cold, silent, impassable as ever. The letter which he despatched the same evening gave calm, business orders as to his uncle's funeral, and other pressing matters upon which the attorney had demanded instructions, and concluded by intimating that he should be in Yorkshire before many days elapsed. He arrived, as we have seen, and took up his abode at one of the houses bequeathed to him in Pool, which happened to be unlet.

Yes, for more than twenty bitter years James Hornby had savagely brooded over the shame and wrong inflicted on him before the mocking eyes of a brutal crowd by Henry Burton. Ever as the day's routine business closed, and he retired to the dull solitude of his chamber, the last mind-picture which faded on his waking sense was the scene on the crowded race-course, with all its exasperating accessories—the merciless exultation of the triumphant adversary—the jibes and laughter of his companions—the hootings of the mob—to be again repeated with fantastic exaggeration in the dreams which troubled and perplexed his broken sleep. No wonder that the demons of Revenge and Hate, by whom he was thus goaded, should have withered by their poisonous breath the healthful life which God had given—have blasted with premature old age a body rocker with curses to unblest repose! It seemed, by his after-confessions, that he had really loved Elizabeth Gainsford with all the energy of his violent, moody nature, and that her image, fresh, lustrous, radiant, as in the dawn of life, unceasingly haunted his imagination with visions of tenderness and beauty, lost to him, as he believed, through the wiles, the calumnies, and violence of his detested, successful rival.

The matronly person who, a few days after the Christmas following Hornby's arrival at Pool, was conversing with her husband in the parlor of Grange farmhouse, scarcely realized the air-drawn image which dwelt in

the memory of the unforgiving, unforgetting man. Mrs. Burton was at this time a comely dame, whose *embonpoint* contour, however indicative of florid health and serenity of temper, exhibited little of the airy elegance and grace said to have distinguished the girlhood of Elizabeth Gainsford. Her soft brown eyes were gentle and kind as ever, but the brilliant lights of youth no longer sparkled in their quiet depths, and time had not only "thinned her flowing hair"—necessitating caps—but had brushed the roses from her cheeks, and swept away, with his searing hand, the pale lilies from the furtive coverts whence they had glanced in tremulous beauty, in life's sweet prime; yet for all that, and a great deal more, Mrs. Burton, I have no manner of doubt, looked charmingly in the bright fire-blaze which gleamed in chequered light and shade upon the walls, pictures, curtains of the room, and the green leaves and scarlet berries of the Christmas holly with which it was profusely decorated. Three of her children—the eldest, Elizabeth, a resuscitation of her own youth—were by her side, and opposite sat her husband, whose frank, hearty countenance seemed to sparkle with careless mirth.

"Hornby will be here presently, Elizabeth," said he. "What a disappointment awaits the rascally curmudgeon! His uncle was a prince compared to him."

"Disappointment, Henry! to receive four hundred pounds he did not expect?"

"Ay, truly, dame. Lawyer Symonds' son Frank, a fine, good-hearted young fellow as ever stepped in shoe-leather—Lizzy, girl, if that candle were nearer your face it would light without a match"—

"Nonsense, father!"

"Very likely. Frank Symonds, I was saying, believes, and so does his father, that Hornby would rejoice at an opportunity of returning with interest the smart score I marked upon his back three-and-twenty years ago"

"It was a thoughtless, cruel act, Henry," rejoined his wife, "and the less said of it the better. I hope the fright we have had will induce you to practice a better economy than heretofore; so that, instead of allowing two years' interest to accumulate upon us, we may gradually reduce the mortgage."

"That we will, dear, depend upon it. We shall be pushed a little at first: Kirkshaw, who lent me the two hundred and fifty, can only spare it for a month; but no doubt the bank will do a bill for part of it by that time. But sufficient for the day is the evil thereof. Here is the money for Hornby at all events: and here at last comes the shrivelled atomy; I hear his horse. Fanny, light the candles."

If Mrs. Burton had consciously or unconsciously entertained the self-flattering notion that the still unwedded bachelor who had unsuccessfully wooed her nearly a quarter of a century before, still retained a feeling of regretful tenderness for her, she must have been grievously surprised by the cold, unrecognizing glance which Hornby threw on her as he entered, and curtly replied to her civil greeting. *That* was not the image stamped upon his heart and brain! But when her eldest daughter approached the lights to place paper and pens upon the table, the flashing glance and white quivering lip of the grave visitor revealed the tempest of emotion which for an instant shook him. He quickly suppressed all outward manifestation of feeling, and in a dry, business tone, demanded if Mr. Burton was ready to pay the interest of the mortgage.

"Yes, thank God," replied Burton, "I am: here is the money in notes of the Governor and Company of the Bank of England. Count them!"

Hornby bent down over the notes, shading his face with his hand, as if more accurately to examine them, and the glance of baffled rage which swept across his features was not observed.

"They are quite right," he said, rising from his chair; "and here is your receipt."

"Very Good! And now, Hornby, let us have a glass of wine together for the sake of old times. Well, well; you need not look so fierce about it. Let bygones be bygones, I say. Oh, if you *will* go—go in God's name! Good-night!"

"Good-night!"

"Baffled—foiled!" muttered Hornby as he rode homeward. "Where could he get the money? Borrowed it, doubtless, but of whom? Well, patience—patience! I shall grip thee yet, Henry Burton!" And the possessed man turned round in his saddle, and shook his clenched hand in the direction of the house he had quitted. He then steadily pursued his way, and soon regained his hermitage.

The month for which Burton had borrowed the two hundred and fifty pounds passed rapidly—as months always do to borrowers—and expedient after expedient for raising the money was tried in vain. This money must be repaid, Kirkshaw had emphatically told him, on the day stipulated. Burton applied to the bank at Leeds, with which he usually did business, to discount an acceptance, guaranteed by one or two persons whose names he mentioned. The answer was the usual civil refusal to accept the proffered security for repayment—"the bank was just then full of discounts." Burton ventured, as a last resource, to call on Hornby with a request that, as the rapid advance in the market-value of land consequent on the high war-prices obtained for its produce, had greatly increased the worth of Grange

Farm, he would add the required sum to the already-existing mortgage. He was met by a prompt refusal. Mr. Hornby intended to foreclose as speedily as possible the mortgages he already held, and invest his capital in more profitable securities. "Well, then—would he lend the amount at any interest he chose?"

"The usury laws," replied Hornby, with his usual saturnine sneer, "would prevent my acceptance of your obliging offer, even if I had the present means, which I have not. My spare cash happens just now to be temporarily locked up."

Burton, half-crazed with anxiety, went the following day to the Leeds bank with the proffer of a fresh name agreed to be lent him by its owner. Useless! "They did not know the party." The applicant mused a few moments, and then said, "Would you discount the note of Mr. James Hornby of Pool?"

"Certainly; with a great deal of pleasure." Burton hurried away; had his horse instantly saddled, and galloped off to Pool. Hornby was at home.

"You hinted the other day," said Burton, "that if you had not been short of present means you might have obliged me with the loan I required"

"Did I?"

"At least I so understood you. I am of course not ignorant, Mr. Hornby, that there is no good blood between us two; but I also know that you are fond of money, and that you are fully aware that I am quite safe for a few hundred pounds. I am come, therefore, to offer you ten pounds *bonus* for your acceptance at one month for two hundred and fifty pounds."

"What?" exclaimed Hornby with strange vehemence. "What"

Burton repeated his offer, and Hornby turned away towards the window without speaking.

When he again faced Burton, his countenance wore its usual color; but the expression of his eyes, the applicant afterwards remembered, was wild and exulting.

"Have you a bill stamp?"

"Yes."

"Then draw the bill at once, and I will accept it."

Burton did not require to be twice told. The bill was quickly drawn; Hornby took it to another table at the further end of the apartment, slowly wrote his name across it, folded, and returned it to Burton, who tendered the ten pounds he had offered, and a written acknowledgment that the bill had been drawn and accepted for his (Burton's) accommodation.

"I don't want your money, Henry Burton," said Hornby, putting back the note and the memorandum. "I am not afraid of losing by this transaction. You do not know me yet."

"A queer stick," thought Burton, as he gained the street; "but Old Nick is seldom so black as he's painted! He was a plaguy while, I thought, signing his name; but I wish I could sign mine to such good purpose."

Burton laid the accepted bill, face downwards, on the bank counter, took a pen, indorsed, and passed it to the managing clerk. The gray-headed man glanced sharply at the signature, and then at Burton, "Why, surely this is not Mr. Hornby's signature? It does not at all resemble it!"

"Not his signature!" exclaimed Burton; "what do you mean by that?"

"Reynolds, look here," continued the clerk, addressing another of the bank *employés*. Reynolds looked, and his immediate glance of surprise and horror at Burton revealed the impression he had formed.

"Please to step this way, Mr. Burton, to a private apartment," said the manager.

"No—no, I won't," stammered the unfortunate man, over whose mind a dreadful suspicion had glanced with the suddenness of lightning. "I will go back to Hornby;" and he made a desperate but vain effort to snatch the fatal instrument. Then, pale and staggering with a confused terror and bewilderment, he attempted to rush into the street. He was stopped, with the help of the bystanders, by one of the clerks, who had jumped over the counter for the purpose.

The messenger despatched by the bankers to Hornby returned with an answer that the alleged acceptance was a forgery. It was stated on the part of Mr. Hornby that Mr. Burton had indeed requested him to lend two hundred and fifty pounds, but he had refused. The frantic asseverations of poor Burton were of course disregarded, and he was conveyed to jail. An examination took place the next day before the magistrates, and the result was, that the prisoner was fully committed on the then capital charge for trial at the ensuing assize.

It were useless, as painful, to dwell upon the consternation and agony which fell upon the dwellers at Grange Farm when the terrible news reached them. A confident belief in the perfect innocence of the prisoner, participated by most persons who knew his character and that of Hornby, and that it would be triumphantly vindicated on the day of trial, which rapidly approached, alone enabled them to bear up against the blow, and to await with trembling hope the verdict of a jury.

It was at this crisis of the drama that I became an actor in it. I was retained for the defence by my long-known and esteemed friend Symonds, whose zeal for his client, stimulated by strong personal friendship, knew no bounds. The acceptance, he informed me, so little resembled Hornby's handwriting, that if Burton had unfolded the bill when given back to him by the villain, he could hardly have failed to suspect the nature of the diabolical snare set for his life.

In those days, and until Mr., now Sir, Robert Peel's amendment of the criminal law and practice of this country, the acceptor of a bill of exchange, on the principle that he was *interested* in denying the genuineness of the signature, could not, according to the English law of evidence, be called, on the part of the prosecution, to prove the forgery; and of course, after what had taken place, we did not propose to call Hornby for the defence. The evidence for the crown consisted, therefore, on the day of trial, of the testimony of persons acquainted with Hornby's signature, that the acceptance across the inculpatated bill was not in his handwriting. Burton's behavior at the bank, in endeavoring to repossess himself of the bill by violence, was of course detailed, and told heavily against him.

All the time this testimony was being given, Hornby sat on one of the front seats of the crowded court, exulting in the visible accomplishment of his Satanic device. We could see but little of his face, which, supported on his elbow, was partially concealed by a handkerchief he held in his hand; but I, who narrowly observed him, could occasionally discern flashes from under his pent brows—revelments of the fierce struggle which raged within.

The moment at last arrived for the prisoner, whose eyes had been for some time fixed on Hornby, to speak or read his defence, and a breathless silence pervaded the court.

Burton started at the summons, like a man unexpectedly recalled to a sense of an imperious, but for the moment forgotten, duty.

"James Hornby!" he suddenly cried with a voice which rang through the assembly like a trumpet, "stand up, and if you can face an innocent man"—

Hornby, surprised out of his self-possession, mechanically obeyed the strange order, sprang involuntarily to his feet, let fall the handkerchief that had partially concealed his features, and nervously confronted the prisoner.

"Look at me, I say," continued Burton with increasing excitement; "and as you hope to escape the terrors of the last judgment, answer truly: did you not, with your own hand, and in my presence, sign that bill?"—

"This cannot be permitted," interrupted the judge.

"If you do not speak," proceeded the prisoner, heedless of the intimation from the bench; "or if you deny the truth, my life, as sure as there is a God in heaven, will be required at your hands. If, in consequence of your devilish plotting, these men consign me to a felon's grave, I shall not be cold in it when you will be calling upon the mountains to fall and cover you from the vengeance of the Judge of heaven and earth! Speak, man—save me: save your own soul from mortal peril whilst there is yet time for mercy and repentance!"

Hornby's expression of surprise and confusion had gradually changed during this appeal to its usual character of dogged impassibility. He turned calmly and appealingly towards the bench.

"You need not answer these wild adjurations, Mr. Hornby," said the judge, as soon as he could make himself heard.

A smile curled the fellow's lip as he bowed deferentially to his lordship, and he sat down without uttering a syllable.

"May the Lord, then, have mercy on my soul!" exclaimed the prisoner solemnly. Then glancing at the bench and jury-box, he added, "And you, my lord and gentlemen, work your will with my body as quickly as you may: I am a lost man!"

The calling of witnesses to character, the opening of the judge's charge, pointing from its first sentence to a conviction, elicited no further manifestation of feeling from the prisoner: he was as calm as despair.

The judge had been speaking for perhaps ten minutes, when a bustle was heard at the hall, as if persons were striving to force their way into the body of the court in spite of the resistance of the officers.

"Who is that disturbing the court?" demanded the judge angrily.

"For the love of Heaven let me pass!" we heard uttered in passionate tones by a female voice. "I must and will see the judge!"

"Who can this be?" T inquired, addressing Mr. Symonds.

"I cannot conceive," he replied; "surely not Mrs. Burton?"

I had kept my eye, as I spoke, upon Hornby, and noticed that he exhibited extraordinary emotion at the sound of the voice, to whomsoever it belonged, and was now endeavoring to force his way through the crowded and anxious auditory.

"My lord," said I, "I have to request on the part of the prisoner that the person desirous of admittance may be heard."

"What has she to say? Or if a material witness, why have you not called her at the proper time?" replied his lordship with some irritation.

"My lord, I do not even now know her name; but in a case involving the life of the prisoner, it is imperative that no chance be neglected"—

"Let the woman pass into the witness-box," interrupted the judge.

The order brought before our eyes a pale, stunted woman, of about fifty years of age, whose excited and by no means unintellectual features, and hurried, earnest manner, seemed to betoken great and unusual feeling.

"As I'm alive, Hornby's deformed housekeeper!" whispered Symonds. "This poor devil's knot will be unraveled yet."

The woman, whose countenance and demeanor, as she gave her evidence, exhibited a serious, almost solemn intelligence, deposed to the following effect:—

"Her name was Mary McGrath, and she was the daughter of Irish parents, but born and brought up in England. She had been Mr. Hornby's housekeeper, and remembered well the 4th of February last, when Mr. Burton, the prisoner, called at the house. Witness was dusting in an apartment close to her master's business-room, from which it was only separated by a thin wooden partition. The door was partly open, and she could see as well as hear what was going on without being seen herself. She heard the conversation between the prisoner and her master; heard Mr. Hornby agree to sign the paper—bill she ought to say—for two hundred and fifty pounds; saw him do it, and then deliver it folded up to Mr. Burton."

A shout of execration burst from the auditory as these words were uttered, and every eye was turned to the spot where Hornby had been seated. He had disappeared during the previous confusion.

"Silence!" exclaimed the judge sternly. "Why, woman," he added, "have you never spoken of this before?"

"Because, my lord," replied the witness with downcast looks, and in a low, broken voice—"because I am a sinful, wicked creature. When my master, the day after Mr. Burton had been taken up, discovered that I knew his secret, he bribed me with money and great promises of more to silence. I had been nearly all my life, gentlemen, poor and miserable, almost an outcast, and the temptation was too strong for me. He mistrusted me, however—for my mind, he saw, was sore troubled—and he sent me off to London yesterday, to be out of the way till all was over. The coach stopped at Leeds, and, as it was heavy upon me, I thought, especially as it was the blessed Easter-time, that I would step to the chapel. His holy name be praised that I did! The scales seemed to fall from my eyes, and I saw clearer than I had before the terrible wickedness I was committing. I told all to the priest, and he has brought me here to make what amends I can for the sin and cruelty of which I have been guilty. There—there is all that is left of the wages of crime," she added, throwing a purse of money on the floor of the court; and then bursting into a flood of tears, she exclaimed with passionate earnestness, "for which may the Almighty of his infinite mercy pardon and absolve me!"

"Amen!" responded the deep husky voice of the prisoner, snatched back, as it were, from the very verge of the grave to liberty and life. "Amen, with all my soul!"

The counsel for the crown, cross-examined the witness, but his efforts only brought out her evidence in, if possible, a still clearer and more

trustworthy light. Not a thought of doubt was entertained by any person in the court, and the jury, with the alacrity of men relieved of a grievous burthen, and without troubling the judge to resume his interrupted charge, returned a verdict of acquittal.

The return of Burton to his home figured as an ovation in the Pool and Otley annals. The greetings which met him on all sides were boisterous and hearty, as English greetings usually are; and it was with some difficulty the rustic constabulary could muster a sufficient force to save Hornby's domicile from sack and destruction. All the windows were, however, smashed, and that the mob felt was something at all events.

Burton profited by the painful ordeal to which he had, primarily through his own thoughtlessness, been exposed, and came in a few years to be regarded as one of the most prosperous yeomen-farmers of Yorkshire. Mr. Frank Symonds' union with Elizabeth Burton was in due time solemnized; Mr. Wilberforce, the then popular member for the West Riding, I remember hearing, stood sponsor to their eldest born; and Mary McGrath passed the remainder of her life in the service of the family her testimony had saved from disgrace and ruin.

Mr. James Hornby disappeared from Yorkshire immediately after the trial, and, except through his business agents, was not again heard of till the catastrophe at the Brunswick Theatre, where he perished. He died penitent, after expressing to Mr. Frank Symonds, for whom he had sent, his deep sorrow for the evil deed he had planned, and, but for a merciful interposition, would have accomplished. As a proof of the sincerity of his repentance, he bequeathed the bulk of his property to Mrs. Symonds, the daughter of the man he had pursued with such savage and relentless hate!

THE REFUGEE.

The events which I am about to relate occurred towards the close of the last century, some time before I was called to the bar, and do not therefore in strictness fall within my own experiences as a barrister. Still, as they came to my knowledge with much greater completeness than if I had been only professionally engaged to assist in the catastrophe of the drama through which they are evolved, and, as I conceive, throw a strong light upon the practical working of our criminal jurisprudence, a brief page of these slight leaves may not inappropriately record them.

About the time I have indicated, a Mrs. Rushton, the widow of a gentleman of commercial opulence, resided in Upper Harley Street, Cavendish Square. She was a woman of "family," and by her marriage had greatly lowered herself, in her relatives' opinion, by a union with a person who, however wealthy and otherwise honorable, was so entirely the architect of his own fortunes—owed all that he possessed so immediately to his own skill, sagacity, and perseverance—that there was an unpleasant rumor abroad about his widowed mother being indebted to her son's success in business for having passed the last ten years of her life in ease and competence. Mr. Rushton had left his widow a handsome annuity, and to his and her only son a well-invested income of upwards of seven thousand a year. Since the death of her husband, Mrs. Rushton, who inherited quite her full share of family pride, if nothing else, had sought by every method she

could devise to re-enter the charmed circle from which her union with a city merchant had excluded her. The most effectual mode of accomplishing her purpose was, she knew, to bring about a marriage between her son and a lady who would not be indisposed to accept of wealth and a well-appointed establishment in Mayfair as a set-off against birth and high connection.

Arthur Rushton, at this time between two and three-and-twenty years of age, was a mild, retiring, rather shy person, and endowed with a tenderness of disposition, of which the tranquil depths had not as yet been ruffled by the faintest breath of passion. His mother possessed almost unbounded influence over him; and he ever listened with a smile, a languid, half-disdainful one, to her eager speculations upon the numerous eligible matches that would present themselves the instant the "season" and their new establishment in Mayfair—of which the decoration and furnishing engaged all her available time and attention—enabled them to open the campaign with effect. Arthur Rushton and myself had been college companions, and our friendly intimacy continued for several years afterwards. At this period especially we were very cordial and unreserved in our intercourse with each other.

London at this time was crowded with French exiles, escaped from the devouring sword of Robespierre and his helpers in the work of government by the guillotine, almost all of whom claimed to be members of, or closely connected with, the ancient nobility of France. Among these was an elderly gentleman of the name of De Tourville, who, with his daughter Eugénie, had for a considerable time occupied a first floor in King Street, Holborn. Him I never saw in life, but Mademoiselle de Tourville was one of the most accomplished, graceful, enchantingly-interesting persons I have ever seen or known. There was a dangerous fascination in the pensive tenderness through which her natural gaiety and archness of manner would at intervals flash, like April sunlight glancing through clouds and showers, which, the

first time I saw her, painfully impressed as much as it charmed me—perceiving, as I quickly did, that with her the future peace, I could almost have said life, of Arthur Rushton was irrevocably bound up. The fountains of his heart were for the first time stirred to their inmost depths, and, situated as he and she were, what but disappointment, bitterness, and anguish could well-up from those troubled waters? Mademoiselle de Tourville, I could perceive, was fully aware of the impression she had made upon the sensitive and amiable Englishman; and I sometimes discovered an expression of pity—of sorrowful tenderness, as it were—pass over her features as some distincter revelation than usual of the nature of Arthur Rushton's emotions flashed upon her. I also heard her express herself several times, as overtly as she could, upon the *impossibility* there existed that she should, however much she might desire it, settle in England, or even remain in it for any considerable length of time. All this I understood, or thought I did, perfectly; but Rushton, bewildered, entranced by feelings altogether new to him, saw nothing, heard nothing but her presence, and felt, without reasoning upon it, that in that delirious dream it was his fate either to live or else to bear no life. Mrs. Rushton—and this greatly surprised me—absorbed in her matrimonial and furnishing schemes and projects, saw nothing of what was going on. Probably the notion that her son should for an instant think of allying himself with an obscure, portionless foreigner, was, to a mind like hers, too absurd to be for a moment entertained; or—But stay; borne along by a crowd of rushing thoughts, I have, I find, somewhat anticipated the regular march of my narrative.

M. and Mademoiselle de Tourville, according to the after-testimony of their landlord, Mr. Osborn, had, from the time of their arrival in England, a very constant visitor at their lodgings in King Street. He was a tall French gentleman, of perhaps thirty years of age, and distinguished appearance. His name was La Houssaye. He was very frequently with them indeed, and

generally he and M. de Tourville would go out together in the evening, the latter gentleman not returning home till very late. This was more especially the case after Mademoiselle de Tourville ceased to reside with her father.

Among the fashionable articles with which Mrs. Rushton was anxious to surround herself, was a companion of accomplishments and high-breeding, who might help her to rub off the rust she feared to have contracted by her connection with the city. A Parisian lady of high lineage and perfect breeding might, she thought, be easily obtained; and an advertisement brought Mademoiselle de Tourville to her house. Mrs. Rushton was delighted with the air and manners of the charming applicant; and after a slight inquiry by letter to an address of reference given by the young lady, immediately engaged her, on exceedingly liberal terms, for six months—that being the longest period for which Mademoiselle de Tourville could undertake to remain. She also stipulated for permission to pass the greater part of one day in the week—that which might happen to be most convenient to Mrs. Rushton—with her father. One other condition testified alike to M. de Tourville's present poverty and her own filial piety: it was, that her salary should be paid weekly—she would not accept it in advance—avowedly for her parent's necessities, who, poor exile! and tears stood in Eugénie's dark lustrous eyes as she spoke, was ever trembling on the brink of the grave from an affection of the heart with which he had been long afflicted. Mademoiselle de Tourville, I should state, spoke English exceedingly well as far as the rules of syntax and the meanings of words went, and with an accent charming in its very defectiveness.

She had resided with Mrs. Rushton, who on all occasions treated her with the greatest kindness and consideration, for rather more than two months, when an incident occurred which caused the scales to fall suddenly from the astonished mother's eyes, and in a moment revealed to her the extent of the risk and mischief she had so heedlessly incurred. The carriage was at the

door, and it struck Mrs. Rushton as she was descending the stairs that Mademoiselle de Tourville, who had complained of headache in the morning, would like to take an airing with her. The sound of the harp issuing from the drawing-room, and the faintly-distinguished tones of her voice in some plaintive silver melody perhaps suggested the invitation; and thither the mistress of the mansion at once proceeded. The folding-doors of the back drawing-room were partially open when Mrs. Rushton, on kind thoughts intent, entered the front apartment. Mademoiselle de Tourville was seated with her back towards her at the harp, pouring forth with her thrilling and delicious voice a French romaunt; and there, with his head supported on his elbow, which rested on the marble chimney-piece, stood her son, Arthur Rushton, gazing at the apparently-unconscious songstress with a look so full of devoted tenderness—so completely revealing the intensity of passion by which he was possessed—that Mrs. Rushton started with convulsive affright, and could not for several minutes give articulation to the dismay and rage which choked her utterance. Presently, however, her emotions found expression, and a storm of vituperative abuse was showered upon the head of the astonished Eugénie, designated as an artful *intrigante*, a designing pauper, who had insinuated herself into the establishment for the sole purpose of entrapping Mr. Arthur Rushton—with a great deal more to the same effect. Mademoiselle de Tourville, who had first been too much surprised by the unexpected suddenness of the attack to quite comprehend the intent and direction of the blows, soon recovered her self-possession and hauteur. A smile of contempt curled her beautiful lip, as, taking advantage of a momentary pause in Mrs. Rushton's breathless tirade, she said, "Permit me, madam, to observe that if, as you seem to apprehend, your son has contemplated honoring me by the offer of an alliance with his ancient House"—Her look at this moment glanced upon the dreadfully agitated young man; the expression of disdainful bitterness vanished in an instant from her voice and features; and after a few moments, she added,

with sad eyes bent upon the floor, "That he could not have made a more unhappy choice—more unfortunate for him, more impossible for me!" She then hastily left the apartment, and before a quarter of an hour had elapsed, had left the house in a hackney-coach.

The scene which followed between the mother and son was a violent and distressing one. Mr. Rushton, goaded to fury by his mother's attack upon Mademoiselle de Tourville, cast off the habit of deference and submission which he had always worn in her presence, and asserted with vehemence his right to wed with whom he pleased, and declared that no power on earth should prevent him marrying the lady just driven ignominiously from the house if she could be brought to accept the offer of his hand and fortune! Mrs. Rushton fell into passionate hysterics; and her son, having first summoned her maid, withdrew to ruminate on Mademoiselle de Tourville's concluding sentence, which troubled him far more than what he deemed the injustice of his mother.

When Mrs. Rushton, by the aid of water, pungent essences, and the relief which even an hour of time seldom fails to yield in such cases, had partially recovered her equanimity, she determined, after careful consideration of the best course of action, to consult a solicitor of eminence, well acquainted with her late husband, upon the matter. She had a dim notion that the Alien Act, if it could be put in motion, might rid her of Mademoiselle de Tourville and her friends. Thus resolving, and ever scrupulous as to appearances, she carefully smoothed her ruffled plumage, changed her disordered dress, and directed the carriage, which had been dismissed, to be again brought round to the door. "Mary," she added a few moments afterwards, "bring me my jewel-case—the small one: you will find it in Made—in that French person's dressing-room."

Mary Austin reappeared in answer to the violent ringing of her impatient lady's bell, and stated that the jewel-case could nowhere be found in Mademoiselle's dressing-room. "Her clothes, everything belonging to her, had been taken out of the wardrobe, and carried away, and perhaps that also in mistake no doubt."

"Nonsense, woman!" replied Mrs. Rushton. "I left it not long ago on her toilet-glass. I intended to show her a purchase I had made, and not finding her, left it as I tell you."

Another search was made with the same ill-success. Mary Austin afterwards said that when she returned to her mistress the second time, to say that the jewel-case was certainly gone, an expression of satisfaction instead of anger, it seemed to her, glanced across Mrs. Rushton's face, who immediately left the room, and in a few minutes afterwards was driven off in the carriage.

About an hour after her departure I called in Harley Street for Arthur Rushton, with whom I had engaged to go this evening to the theatre to witness Mrs. Siddons's *Lady Macbeth*, which neither of us had yet seen. I found him in a state of calmed excitement, if I may so express myself; and after listening with much interest to the minute account he gave me of what had passed, I, young and inexperienced as I was in such affairs, took upon myself to suggest that, as the lady he nothing doubted was as irreproachable in character as she was confessedly charming and attractive in person and manners, and as he was unquestionably his own master, Mrs. Rushton's opposition was not likely to be of long continuance; and that as to Mademoiselle de Tourville's somewhat discouraging expression, such sentences from the lips of ladies—

"That would be wooed, and not unsought be won"—

were seldom, if ever, I had understood, to be taken in a literal and positive sense. Under this mild and soothing treatment, Mr. Rushton gradually threw off a portion of the load that oppressed him, and we set off in tolerably cheerful mood for the theatre.

Mrs. Siddons' magnificent and appalling impersonation over, we left the house; he, melancholy and sombre as I had found him in Harley Street, and I in by no means a gay or laughing mood. We parted at my door, and whether it was the effect of the tragedy, so wonderfully realized in its chief creation, or whether coming events *do* sometimes cast their shadows before, I cannot say, but I know that an hour after Rushton's departure I was still sitting alone, my brain throbbing with excitement, and so nervous and impressionable, that a sudden, vehement knocking at the street entrance caused me to spring up from my chair with a terrified start, and before I could master the impulsive emotion, the room-door was thrown furiously open, and in reeled Arthur Rushton—pale, haggard, wild—his eyes ablaze with horror and affright! Had the ghost of Duncan suddenly gleamed out of the viewless air I could not have been more startled—awed!

"She is dead!—poisoned!" he shrieked with maniacal fury; "killed!—murdered!—and by *her*!"

I gasped for breath, and could hardly articulate—"What! whom?"

"My mother!" he shouted with the same furious vehemence—"Killed! by *her*! Oh, horror!—horror!—horror!" and exhausted by the violence of his emotions, the unfortunate gentleman staggered, shuddered violently, as if shaken by an ague fit, and fell heavily—for I was too confounded to yield him timely aid—on the floor.

As soon as I could rally my scattered senses, I caused medical aid to be summoned, and got him to bed. Blood was freely taken from both arms, and

he gradually recovered consciousness. Leaving him in kind and careful hands, I hurried off to ascertain what possible foundation there could be for the terrible tidings so strangely announced.

I found the establishment in Harley Street in a state of the wildest confusion and dismay. Mrs. Rushton *was* dead; that, at all events, was no figment of sudden insanity, and incredible, impossible rumors were flying from mouth to mouth with bewildering rapidity and incoherence. The name of Mademoiselle de Tourville was repeated in every variety of abhorrent emphasis; but it was not till I obtained an interview with Mrs. Rushton's solicitor that I could understand what really had occurred, or, to speak more properly, what was suspected. Mrs. Rushton had made a deposition, of which Mr. Twyte related to me the essential points. The deceased lady had gone out in her carriage with the express intention of calling on him, the solicitor, to ascertain if it would be possible to apply the Alien Act to Mademoiselle de Tourville and her father, in order to get them sent out of the country. Mr. Twyte did not happen to be at home, and Mrs. Rushton immediately drove to the De Tourvilles' lodgings in King Street, Holborn, with the design, she admitted, of availing herself of what she was in her own mind satisfied was the purely accidental taking away of a jewel-case, to terrify Mademoiselle de Tourville, by the threat of a criminal charge, into leaving the country, or at least to bind herself not to admit, under any circumstances, of Mr. Arthur Rushton's addresses. She found Eugénie in a state of extraordinary, and it seemed painful excitement; and the young lady entreated that whatever Mrs. Rushton had to say should be reserved for another opportunity, when she would calmly consider whatever Mrs. Rushton had to urge. The unfortunate lady became somewhat irritated at Mademoiselle de Tourville's obstinacy, and the unruffled contempt with which she treated the charge of robbery, even after finding the missing jewel-case in a band-box, into which it had been thrust with some brushes and other articles in the hurry of leaving. Mrs. Rushton was iterating her

threats in a loud tone of voice, and moved towards the bell to direct, she said, the landlord to send for a constable, but with no intention whatever of doing so, when Mademoiselle de Tourville caught her suddenly by the arm, and bade her step into the next room. Mrs. Rushton mechanically obeyed, and was led in silence to the side of a bed, of which Eugénie suddenly drew the curtain, and displayed to her, with a significant and reproachful gesture, the pale, rigid countenance of her father's corpse, who had, it appears, suddenly expired. The shock was terrible. Mrs. Rushton staggered back into the sitting-room, sick and faint, sank into a chair, and presently asked for a glass of wine. "We have no wine," replied Mademoiselle de Tourville; "but there is a cordial in the next room which may be better for you." She was absent about a minute, and on returning, presented Mrs. Rushton with a large wine-glassful of liquid, which the deceased lady eagerly swallowed. The taste was strange, but not unpleasant; and instantly afterwards Mrs. Rushton left the house. When the carriage reached Harley Street, she was found to be in a state of great prostration: powerful stimulants were administered, but her life was beyond the reach of medicine. She survived just long enough to depose to the foregoing particulars; upon which statement Mademoiselle de Tourville had been arrested, and was now in custody.

"You seem to have been very precipitate," I exclaimed as soon as the solicitor had ceased speaking: "there appears to be as yet no proof that the deceased lady died of other than natural causes."

"You are mistaken," rejoined Mr. Twyte. "There is no doubt on the subject in the minds of the medical gentlemen, although the *post-mortem* examination has not yet taken place. And, as if to put aside all doubt, the bottle from which this Eugénie de Tourville admits she took the cordial proves to contain distilled laurel-water, a deadly poison, curiously colored and flavored."

Greatly perturbed, shocked, astonished as I was, my mind refused to admit, even for a moment, the probability, hardly the possibility, of Eugénie de Tourville's guilt. The reckless malignancy of spirit evinced by so atrocious an act dwelt not, I was sure, within that beauteous temple. The motives alleged to have actuated her—fear of a criminal charge, admitted to be absurd, and desire to rid herself of an obstacle to her marriage with Arthur Rushton—seemed to me altogether strained and inapplicable. The desperation of unreasoning hate could alone have prompted such a deed; for detection was inevitable, had, in truth, been courted rather than attempted to be avoided.

My reasoning made no change in the conclusions of Mr. Twyte the attorney for the prosecution, and I hastened home to administer such consolation to Arthur Rushton as might consist in the assurance of my firm conviction that his beloved mother's life had not been wilfully taken away by Eugénie de Tourville. I found him still painfully agitated; and the medical attendant told me it was feared by Dr. —— that brain fever would supervene if the utmost care was not taken to keep him as quiet and composed as, under the circumstances, was possible. I was, however, permitted a few minutes' conversation with him; and my reasoning, or, more correctly, my confidently-expressed belief—for his mind seemed incapable of following my argument, which it indeed grasped faintly at, but slipped from, as it were, in an instant—appeared to relieve him wonderfully. I also promised him that no legal or pecuniary assistance should be wanting in the endeavor to clear Mademoiselle de Tourville of the dreadful imputation preferred against her. I then left him. The anticipation of the physician was unfortunately realized: the next morning he was in a raging fever, and his life, I was informed, was in very imminent danger.

It was a distracting time; but I determinedly, and with much self-effort, kept down the nervous agitation which might have otherwise rendered me

incapable of fulfilling the duties I had undertaken to perform. By eleven o'clock in the forenoon I had secured the active and zealous services of Mr. White, one of the most celebrated of the criminal attorneys of that day. By application in the proper quarter, we obtained immediate access to the prisoner, who was temporarily confined in a separate room in the Red-Lion Square Lock-up House. Mademoiselle de Tourville, although exceedingly pale, agitated, and nervous, still looked as lustrously pure, as radiantly innocent of evil thought or deed, as on the day that I first beheld her. The practiced eye of the attorney scanned her closely. "As innocent of this charge," he whispered, "as you or I." I tendered my services to the unfortunate young lady with an earnestness of manner which testified more than any words could have done how entirely my thoughts acquitted her of offence. Her looks thanked me; and when I hinted at the promise exacted of me by Arthur Rushton, a bright blush for an instant mantled the pale marble of her cheeks and forehead, indicating with the tears, which suddenly filled and trembled in her beautiful eyes, a higher sentiment, I thought, than mere gratitude. She gave us her unreserved confidence; by which, after careful sifting, we obtained only the following by no means entirely satisfactory results:—

Mademoiselle de Tourville and her father had escaped from the Terrorists of France by the aid of, and in company with, the Chevalier la Houssaye, with whom M. de Tourville had previously had but very slight acquaintance. The chevalier soon professed a violent admiration for Eugénie; and having contrived to lay M. de Tourville under heavy pecuniary obligations at play—many of them Mademoiselle de Tourville had only very lately discovered—prevailed upon his debtor to exert his influence with his daughter to accept La Houssaye's hand in marriage. After much resistance, Mademoiselle de Tourville, overcome by the commands, entreaties, prayers of her father, consented, but only on condition that the marriage should not take place till their return to France, which it was

thought need not be very long delayed, and that no more money obligations should in the meantime be incurred by her father. La Houssaye vehemently objected to delay; but finding Eugénie inexorable, sullenly acquiesced. It was precisely at this time that the engagement with Mrs. Rushton was accepted. On the previous afternoon Mademoiselle de Tourville, on leaving Harley Street after the scene with the deceased lady, went directly home, and there found both her father and the chevalier in hot contention and excitement. As soon as La Houssaye saw her, he seized his hat, and rushed out of the apartment and house. Her father, who was greatly excited, had barely time to say that he had fortunately discovered the chevalier to be a married man, whose wife, a woman of property, was still living in Languedoc, when what had always been predicted would follow any unusual agitation happened: M. de Tourville suddenly placed his hand on his side, uttered a broken exclamation, fell into a chair, and expired. It was about two hours after this melancholy event that Mrs. Rushton arrived. The account before given of the interview which followed was substantially confirmed by Mademoiselle de Tourville; who added, that the cordial she had given Mrs. Rushton was one her father was in the constant habit of taking when in the slightest degree excited, and that she was about to give him some when he suddenly fell dead.

We had no doubt, none whatever, that this was the whole, literal truth, as far as the knowledge of Mademoiselle de Tourville extended; but how could we impart that impression to an Old Bailey jury of those days, deprived as we should be of the aid of counsel to address the jury, when in reality a speech, pointing to the improbabilities arising from character, and the altogether *_un_guilty*-like mode of administering the fatal liquid, was the only possible defence? Cross-examination promised nothing; for the evidence would consist of the dying deposition of Mrs. Rushton, the finding of the laurel-water, and the medical testimony as to the cause of death. The only person upon whom suspicion glanced was La Houssaye, and that in a

vague and indistinct manner. Still, it was necessary to find him without delay, and Mr. White at once sought him at his lodgings, of which Mademoiselle de Tourville furnished the address. He had left the house suddenly with all his luggage early in the morning, and our efforts to trace him proved fruitless. In the meantime the *post-mortem* examination of the body had taken place, and a verdict of willful murder against Eugénie de Tourville been unhesitatingly returned. She was soon afterwards committed to Newgate for trial.

The Old Bailey session was close at hand, and Arthur Rushton, though immediate danger was over, was still in too delicate and precarious a state to be informed of the true position of affairs when the final day of trial arrived. The case had excited little public attention. It was not the fashion in those days to exaggerate the details of crime, and, *especially before trial*, give the wings of the morning to every fact or fiction that rumor with her busy tongue obscurely whispered. Twenty lines of the "Times" would contain the published record of the commitment of Eugénie de Tourville for poisoning her mistress, Caroline Rushton; and, alas! spite of the crippled but earnest efforts of the eminent counsel we had retained, and the eloquent innocence of her appearance and demeanor, her conviction and condemnation to death without hope of mercy! My brain swam as the measured tones of the recorder, commanding the almost immediate and violent destruction of that beauteous masterpiece of God, fell upon my ear; and had not Mr. White, who saw how greatly I was affected, fairly dragged me out of court into the open air, I should have fainted. I scarcely remember how I got home—in a coach, I believe; but face Rushton after that dreadful scene with a kindly-meant deception—*lie*—in my mouth, I could not, had a king's crown been the reward. I retired to my chamber, and on the plea of indisposition directed that I should on no account be disturbed. Night had fallen, and it was growing somewhat late, when I was startled out of the painful reverie in which I was still absorbed by the sudden pulling up of a

furiously-driven coach, followed by a thundering summons at the door, similar to that which aroused me on the evening of Mrs. Rushton's death. I seized my hat, rushed down stairs, and opened the door. It was Mr. White!

"Well!—well!" I ejaculated.

"Quick—quick!" he exclaimed in reply. "La Houssaye—he is found—has sent for us—quick! for life—life is on our speed!"

I was in the vehicle in an instant. In less than ten minutes we had reached our destination—a house in Duke Street, Manchester Square.

"He is still alive," replied a young man in answer to Mr. White's hurried inquiry. We rapidly ascended the stairs, and in the front apartment of the first floor beheld one of the saddest, mournfulest spectacles which the world can offer—a fine, athletic man, still in the bloom of natural health and vigor, and whose pale features, but for the tracings there of fierce, ungoverned passions, were strikingly handsome and intellectual, stretched by his own act upon the bed of death! It was La Houssaye! Two gentlemen were with him—one a surgeon, and the other evidently a clergyman, and, as I subsequently found, a magistrate, who had been sent for by the surgeon. A faint smile gleamed over the face of the dying man as we entered, and he motioned feebly to a sheet of paper, which, closely written upon, was lying upon a table placed near the sofa upon which the unhappy suicide was reclining. Mr. White snatched, and eagerly perused it. I could see by the vivid lighting up of his keen gray eye that it was, in his opinion, satisfactory and sufficient.

"This," said Mr. White, "is your solemn deposition, knowing yourself to be dying?"

"Yes, yes," murmured La Houssaye; "the truth—the truth!"

"The declaration of a man," said the clergyman with some asperity of tone, "who defyingly, unrepentingly, rushes into the presence of his Creator, can be of little value!"

"Ha!" said the dying man, rousing himself by a strong effort; "I repent—yes—yes—I repent! I believe—do you hear?—and repent—believe. Put that down," he added, in tones momentarily feebler and more husky, as he pointed to the paper; "put that down, or—or perhaps—Eu—génie—perhaps"—

As he spoke, the faint light that had momentarily kindled his glazing eye was suddenly quenched; he remained for perhaps half a minute raised on his elbow, and with his outstretched finger pointing towards the paper, gazing blindly upon vacancy. Then the arm dropped, and he fell back dead!

We escaped as quickly as we could from this fearful death-room, and I found that the deposition which Mr. White brought away with him gave a full, detailed account, written in the French language, of the circumstances which led to the death of Mrs. Rushton.

La Houssaye, finding that M. de Tourville had by some means discovered the secret of his previous marriage, and that consequently all hope of obtaining the hand of Eugénie, whom he loved with all the passion of his fiery nature, would be gone unless De Tourville could be prevented from communicating with his daughter, resolved to compass the old man's instant destruction. The chevalier persuaded himself that, as he should manage it, death would be attributed to the affection of the heart, from which M. de Tourville had so long suffered. He procured the distilled laurel-water—how and from whom was minutely explained—colored, flavored it to resemble as nearly as possible the cordial which he knew M. de Tourville—and he only—was in the habit of frequently taking. A precisely-similar bottle he also procured—the shop at which it was purchased was described—and

when he called in King Street, he found no difficulty, in an unobserved moment, of substituting one bottle for the other. That containing the real cordial he was still in possession of, and it would be found in his valise. The unexpected arrival of Mademoiselle de Tourville frustrated his design, and he rushed in fury and dismay from the house. A few hours afterwards, he heard of the sudden death of M. de Tourville, and attributing it to his having taken a portion of the simulated cordial, he, La Houssaye, fearful of consequences, hastily and secretly changed his abode. He had subsequently kept silence till the conviction of Eugénie left him no other alternative, if he would not see her perish on the scaffold, than a full and unreserved confession. This done—Eugénie saved, but lost to him—he had nothing more to live for in the world, and should leave it.

This was the essence of the document; and all the parts of it which were capable of corroborative proof having been substantiated, a free pardon issued from the crown—the technical mode of quashing an unjust criminal verdict—and Mademoiselle de Tourville was restored to liberty.

She did not return to France. Something more perhaps than a year after the demonstration of her innocence, she was married to Arthur Rushton in the Sardinian Catholic Chapel, London, the bridegroom having by her influence been induced to embrace the faith of Rome. The establishments in Harley Street and Mayfair were broken up; and the newly-espoused pair settled in the county of Galway, Ireland, where Mr. Rushton made extensive landed purchases. They have lived very happily a long life, have been blessed with a large and amiable family, and are now—for they are both yet alive—surrounded with grandchildren innumerable.

EXPERIENCES OF A BARRISTER.

THE LIFE POLICY.

Besides being the confidential advisers, attorneys are the "confessors" of modern England; and the revelations—delicate, serious, not unfrequently involving life as well as fortune and character—confided to the purchased fidelity and professional honor of men whom romancers of all ages have stereotyped as the ghouls and vampires of civilized society, are, it is impossible to deny, as rarely divulged as those which the penitents of the Greek and Latin churches impart to their spiritual guides and helpers; and this possibly for the somewhat vulgar, but very sufficient reason, that "a breach of confidence" would as certainly involve the professional ruin of an attorney as the commission of a felony. An able but eccentric jurisconsult, Mr. Jeremy Bentham, was desirous that attorneys should be compelled to disclose on oath whatever guilty secrets might be confided to them by their clients; the only objection to which ingenious device for the conviction of rogues being, that if such a power existed, there would be no secrets to disclose; and, as a necessary consequence, that the imperfectly-informed attorney would be unable to render his client the justice to which every person, however criminal, is clearly entitled—that of having his or her case presented before the court appointed to decide upon it in the best and most advantageous manner possible. Let it not be forgotten either that the attorney is the only real, practical defender of the humble and needy against the illegal oppressions of the rich and powerful—the shrewd, indomitable agent who gives prosaic reality to the figurative eloquence of old

Chancellor Fortescue, when he says, "that the lightning may flash through, the thunder shake, the tempest beat, upon the English peasant's hut, but the king of England, with all his army, cannot lift the latch to enter in." The chancellor of course meant, that in this country overbearing violence cannot defy, or put itself in the place of the law. This is quite true; and why? Chiefly because the attorney is ready, in all cases of provable illegality, with his potent strip of parchment summoning the great man before "her Sovereign Lady the Queen," there to answer for his acts; and the richer the offender, the more keen and eager Mr. Attorney to prosecute the suit, however needy his own client; for he is then sure of his costs, if he succeed! Again, I cheerfully admit the extreme vulgarity of the motive; but its effect in protecting the legal rights of the humble is not, I contend, lessened because the reward of exertion and success is counted out in good, honest sovereigns, or notes of the Governor and Company of the Bank of England.

Thus much by way of conciliatory prologue to the narrative of a few incidents revealed in the attorney's privileged confessional; throughout which I have of course, in order to avoid any possible recognition of those events or incidents, changed the name of every person concerned.

Our old city firm, then, which, I am happy to say, still flourishes under the able direction of our active successors, I will call—adopting the nomenclature appropriated to us by imaginative ladies and gentlemen who favor the world with fancy pen-and-ink portraits of the lawyer tribe—that of Flint and Sharp; Sharp being myself, and Flint the silver-haired old bachelor we buried a few weeks since in Kensal Green Cemetery.

"Mr. Andrews," said a clerk as he threw open the door of the inner office one afternoon; "Mr. Jesse Andrews."

"Good-day, Mr. Andrews," was my prompt and civil greeting: "I have good news for you. Take a chair."

The good-humored, rather intelligent, and somewhat clouded countenance of the new-comer brightened up at these words. "News from my Cousin Archibald?" he asked, as he seated himself.

"Yes: He laments your late failure, and commiserates the changed position and prospects of your wife and boy, little Archibald, his godson. You he has not much compassion for, inasmuch as he attributes your misfortunes entirely to mismanagement, and the want of common prudence."

"Candid, certainly," grumbled out Mr. Jesse Andrews; "but an odd sort of good news!"

"His deeds are kinder than his words. He will allow, till Archibald attains his majority—Let me see—how old is that boy of yours now?"

"Ten. He was two years old when his godfather went to India."

"Well, then, you will receive two hundred pounds per annum, payable half-yearly, in advance, for the next ten years—that is, of course, if your son lives—in order to enable you to bring him up, and educate him properly. After that period has elapsed, your cousin intimates that he will place the young man advantageously, and I do not doubt will do something for you, should you not by that time have conquered a fair position for yourself."

"Is that all?" said Mr. Andrews.

"All! Why, what did you expect?"

"Two or three thousand pounds to set me afloat again. I know of a safe speculation, that with, say three thousand pounds capital, would realize a handsome fortune in no time."

Mr. Jesse Andrews, I may observe, was one of that numerous class of persons who are always on the threshold of realizing millions—the only and constant obstacle being the want of a sufficient "capital."

I condoled with him upon his disappointment; but as words, however civil, avail little in the way of "capital," Mr. Jesse Andrews, having pocketed the first half-yearly installment of the annuity, made his exit in by no means a gracious or grateful frame of mind.

Two other half-yearly payments were duly paid him. When he handed me the receipt on the last occasion, he said, in a sort of off-hand, careless way, "I suppose, if Archy were to die, these payments would cease?"

"Perhaps not," I replied unthinkingly. "At all events, not, I should say, till you and your wife were in some way provided for. But your son is not ill?" I added.

"No, no; not at present," replied Andrews, coloring, and with a confusion of manner which surprised me not a little. It flashed across my mind that the boy was dead, and that Andrews, in order not to risk the withdrawal or suspension of the annuity, had concealed the fact from us.

"Let me see," I resumed, "we have your present address—Norton Folgate, I think?"

"Yes, certainly you have."

"I shall very likely call in a day or two to see Mrs. Andrew! and your son."

The man smiled in a reassured, half-sardonic manner. "Do," he answered. "Archy is alive, and very well, thank God!"

This confidence dispelled the suspicion I had momentarily entertained, and five or six weeks passed away, during which Andrews and his affairs were almost as entirely absent from my thoughts as if no such man existed.

About the expiration of that time, Mr. Jesse Andrews unexpectedly revisited the office, and as soon as I was disengaged, was ushered into my private room. He was habited in the deepest mourning, and it naturally struck me that either his wife or son was dead—an impression, however, which a closer examination of his countenance did not confirm, knowing as I did, how affectionate a husband and father he was, with all his faults and follies, reputed to be. He looked flurried, nervous, certainly; but there was no grief, no sorrow in the restless, disturbed glances which he directed to the floor, the ceiling, the window, the fire-place, the chairs, the table—everywhere, in fact, except towards my face.

"What is the matter, Mr. Andrews?" I gravely inquired, seeing that he did not appear disposed to open the conversation.

"A great calamity, sir—a great calamity," he hurriedly and confusedly answered, his face still persistently averted from me—"has happened! Archy is dead!"

"Dead!" I exclaimed, considerably shocked. "God bless me! when did this happen?"

"Three weeks ago," was the reply. "He died of cholera."

"Of cholera!" This occurred, I should state, in 1830.

"Yes: he was very assiduously attended throughout his sufferings, which were protracted and severe, by the eminent Dr. Parkinson, a highly-respectable and skilled practitioner, as you doubtless, sir, are aware."

I could not comprehend the man. This dry, unconcerned, business-sort of gabble was not the language of a suddenly-bereaved parent, and one, too, who had lost a considerable annuity by his son's death. What could it mean? I was in truth fairly puzzled.

After a considerable interval of silence, which Mr. Andrews, whose eyes continued to wander in every direction except that of mine, showed no inclination to break, I said—"It will be necessary for me to write immediately to your cousin, Mr. Archibald Andrews. I trust, for your sake, the annuity will be continued; but of course, till I hear from him, the half-yearly payments must be suspended."

"Certainly, certainly: I naturally expected that would be the case," said Andrews, still in the same quick, hurried tone. "Quite so."

"You have nothing further to say, I suppose?" I remarked, after another dead pause, during which it was very apparent that he was laboring with something to which he nervously hesitated to give utterance.

"No—yes—that is, I wished to consult you upon a matter of business—connected with—with a life-assurance office."

"A life-assurance office?"

"Yes." The man's pale face flushed crimson, and his speech became more and more hurried as he went on. "Yes; fearing, Mr. Sharp, that should Archy die, we might be left without resource, I resolved, after mature deliberation, to effect an insurance on his life for four thousand pounds."

"Four thousand pounds!"

"Yes. All necessary preliminaries were gone through. The medical gentleman—since dead of the cholera, by the way—examined the boy of

course, and the insurance was legally effected for four thousand pounds, payable at his death."

I did not speak; a suspicion too horrible to be hinted at held me dumb.

"Unfortunately," Andrews continued, "this insurance was only effected about a fortnight before poor Archy's death, and the office refuses payment, although, as I have told you, the lad was attended to the very hour of his death by Dr. Parkinson, a highly-respectable, most unexceptionable gentleman. Very much so indeed."

"I quite agree in that," I answered after a while. "Dr. Parkinson is a highly-respectable and eminent man. What reason," I added, "do the company assign for non-payment?"

"The very recent completion of the policy."

"Nonsense! How can that fact, standing alone, affect your claim?"

"I do not know," Andrews replied; and all this time I had not been able to look fairly in his face; "but they do refuse; and I am anxious that your firm should take the matter in hand, and sue them for the amount."

"I must first see Dr. Parkinson," I answered, "and convince myself that there is no legitimate reason for repudiating the policy."

"Certainly, certainly," he replied.

"I will write to you to-morrow," I said, rising to terminate the conference, "after I have seen Dr. Parkinson, and state whether we will or not take proceedings against the insurance company on your behalf."

He thanked me, and hurried off.

Dr. Parkinson confirmed Mr. Jesse Andrews in every particular. He had attended the boy, a fine, light-haired lad of eleven or twelve years of age, from not long after his seizure till his death. He suffered dreadfully, and died unmistakably of Asiatic cholera, and of nothing else; of which same disease a servant and a female lodger in the same house had died just previously. "It is of course," Dr. Parkinson remarked in conclusion, "as unfortunate for the company as it is strangely lucky for Andrews; but there is no valid reason for refusing payment."

Upon this representation we wrote the next day to the assurance people, threatening proceedings on behalf of Mr. Jesse Andrews.

Early on the morrow one of the managing-directors called on us, to state the reasons which induced the company to hesitate at recognizing the plaintiff's claim. In addition to the doubts suggested by the brief time which had elapsed from the date of the policy to the death of the child, there were several other slight circumstances of corroborative suspicion. The chief of these was, that a neighbor had declared he heard the father indulging in obstreperous mirth in a room adjoining that in which the corpse lay only about two hours after his son had expired. This unseemly, scandalous hilarity of her husband, the wife appeared to faintly remonstrate against. The directors had consequently resolved *non obstante* Dr. Parkinson's declaration, who might, they argued, have been deceived, to have the body exhumed in order to a post-mortem examination as to the true cause of death. If the parents voluntarily agreed to this course, a judicial application to enforce it would be unnecessary, and all doubts on the matter could be quietly set at rest. I thought the proposal, under the circumstances, reasonable, and called on Mr. and Mrs. Andrews to obtain their concurrence. Mrs. Andrews was, I found, absent in the country, but her husband was at home; and he, on hearing the proposal, was, I thought, a good deal startled—shocked rather—a natural emotion perhaps.

"Who—who," he said, after a few moments' silent reflection—"who is to conduct this painful, revolting inquiry?"

"Dr. Parkinson will be present, with Mr. Humphrey the surgeon, and Dr. Curtis the newly-appointed physician to the assurance office, in place of Dr. Morgan who died, as you are aware, a short time since of cholera."

"True. Ah, well, then," he answered almost with alacrity, "be it as they wish. Dr. Parkinson will see fair-play."

The examination was effected, and the result was a confirmation, beyond doubt or quibble, that death, as Dr. Parkinson had declared, had been solely occasioned by cholera. The assurance company still hesitated; but as this conduct could now only be looked upon as perverse obstinacy, we served them with a writ at once. They gave in; and the money was handed over to Mr. Jesse Andrews, whose joy at his sudden riches did not, I was forced to admit, appear to be in the slightest degree damped by any feeling of sadness for the loss of an only child.

We wrote to inform Mr. Archibald Andrews of these occurrences, and to request further instructions with regard to the annuity hitherto paid to his cousin. A considerable time would necessarily elapse before an answer could be received, and in the meantime Mr. Jesse Andrews plunged headlong into the speculation he had been long hankering to engage in, and was as he informed me a few weeks afterwards, on the royal road to a magnificent fortune.

Clouds soon gathered over this brilliant prospect. The partner, whose persuasive tongue and brilliant imagination had induced Mr. Andrews to join him with his four thousand pounds, proved to be an arrant cheat and swindler; and Mr. Andrews's application to us for legal help and redress was just too late to prevent the accomplished dealer in moonshine and delusion

from embarking at Liverpool for America, with every penny of the partnership funds in his pockets!

A favorable reply from Mr. Archibald Andrews had now become a question of vital importance to his cousin, who very impatiently awaited its arrival. It came at last. Mr. Andrews had died rather suddenly at Bombay a short time before my letter arrived there, after executing in triplicate a will, of which one of the copies was forwarded to me. By this instrument his property—about thirty-five thousand pounds, the greatest portion of which had been remitted from time to time for investment in the British funds—was disposed of as follows:—Five thousand pounds to his cousin Jesse Andrews, for the purpose of educating and maintaining Archibald Andrews, the testator's godson, till he should have attained the age of twentyone, and the whole of the remaining thirty thousand pounds to be then paid over to Archibald with accumulated interest. In the event, however, of the death of his godson, the entire property was devised to another more distant and wealthier cousin, Mr. Newton, and his son Charles, on precisely similar conditions, with the exception that an annuity of seventy pounds, payable to Jesse Andrews and his wife during their lives, was charged upon it.

Two letters were dispatched the same evening—one to the fortunate cousin, Mr. Newton, who lived within what was then known as the twopenny post delivery, and another to Mr. Jesse Andrews, who had taken up his temporary abode in a cottage near St. Alban's, Hertfordshire. These missives informed both gentlemen of the arrival of the Indian mail, and the, to them, important dispatches it contained.

Mr. Newton was early at the office on the following morning, and perused the will with huge content. He was really quite sorry, though, for poor Cousin Jesse: the loss of his son was a sad stroke, much worse than this of a fortune which he might have expected to follow as a matter of

course. And the annuity, Mr. Newton thoughtfully observed, was, after all, no contemptible provision for two persons, without family, and of modest requirements.

A very different scene was enacted when, late in the evening, and just as I was about to leave the office, Mr. Jesse Andrews rushed in, white as a sheet, haggard, and wild with passion. "What devil's fables are these you write me?" he, burst forth the instant he had gained the threshold of the room. "How dare you," he went on, almost shrieking with fury—"how dare you attempt to palm off these accursed lies on me? Archy rich—rich—and I—. But it is a lie!—an infernal device got up to torture me—to drive me wild, distracted—mad!" The excited man literally foamed with rage, and so astonished was I, that it was a minute or two before I could speak or move.

At last I rose, closed the door, (for the clerks in the outer office were hearers and witnesses of this outbreak,) and led the way to an inner and more private apartment. "Come with me, Mr. Andrews," I said, "and let us talk this matter calmly over."

He mechanically followed, threw himself into a chair, and listened with frenzied impatience to the reading of the will.

"A curse is upon me," he shouted, jumping up as I concluded, "the curse of God—a judgment upon the crime I but the other day committed—a crime as I thought—dolt, idiot that I was—so cunningly contrived, so cleverly executed! Fool, villain, madman that I have been; for now, when fortune is tendered for my acceptance, I dare not put forth my hand to grasp it; fortune, too, not only for me, but—. O God, it will kill us both, Martha as well as me, though I alone am to blame for this infernal chance!"

This outburst appeared to relieve him, and he sank back into his chair somewhat calmer. I could understand nothing of all that rhapsody, knowing,

as I did, that his son Archibald had died from natural causes. "It is a severe blow," I said, in as soothing a tone as I could assume—"a very great disappointment; still, you are secured from extreme poverty—from anything like absolute want"—

"It is not that—it is not that!" he broke in, though not quite so wildly as before. "Look you, Mr. Sharp, I will tell you all! There may be some mode of extrication from this terrible predicament, and I must have your advice professionally upon it."

"Go on; I will advise you to the best of my ability."

"Here it is, then: Archy, my son Archy, is alive!—alive! and well in health as either you or I!"

I was thunderstruck. Here was indeed a revelation.

"Alive and well," continued Andrews. "Listen! when the cholera began to spread so rapidly, I bethought me of insuring the boy's life in case of the worst befalling, but not, as I hope for mercy, with the slightest thought of harming a hair of his head. This was done. Very soon the terrific disease approached our neighborhood, and my wife took Archy to a country lodging, returning herself the same evening. The next day our only servant was attacked and died. A few hours after that our first-floor lodger, a widow of the name of Mason, who had been with us but a very short time, was attacked. She suffered dreadfully; and her son, a boy about the age of Archy, and with just his hair and complexion, took ill also. The woman was delirious with pain; and before effective medical aid could be obtained—she was seized in the middle of the night—she expired. Her son who had been removed into another room, became rapidly worse, and we sent for Dr. Parkinson; the poor fellow was partially delirious with pain, and clung piteously round my wife's neck, calling her mother, and imploring her to

relieve him. Dr. Parkinson arrived, and at first sight of the boy, said, 'Your son is very ill, Mrs. Andrews—I fear, past recovery; but we will see what can be done.' I swear to you, Mr. Sharp, that it was not till this moment the device which has ruined us, flashed across my brain. I cautioned my wife in a whisper not to undeceive the doctor, who prescribed the most active remedies, and was in the room, when the lad died. You know the rest. And now, sir, tell me, can anything be done—any device suggested to retrieve this miserable blunder, this terrible mistake?"

"This infamous crime, you should say, Mr. Andrews," I replied; "for the commission of which you are liable to be transported for life."

"Yes, crime; no doubt that is the true word! But must the innocent child suffer for his father's offence?"

"That is the only consideration that could induce me to wag a finger in the business. Like many other clever rogues, you are caught in the trap you limed for others. Come to me tomorrow; I will think over the matter between this and then; but at present I can say nothing. Stay," I added, as his hand was on the door; "the identity of your son can be proved, I suppose, by better evidence than your own?"

"Certainly, certainly."

"That, will do, then; I will see you in the morning."

If it should cross the mind of any reader that I ought to have given this self-confessed felon into custody, I beg to remind him that, for the reasons previously stated, such a course on my part was out of the question—impossible; and that, had it not been impossible I should do so, Mr. Jesse Andrews would not have intrusted me with his criminal secret. The only

question now therefore was, how, without compromising this guilty client, the godfather's legacy could be secured for the innocent son.

A conference the next morning with Mr. Flint resulted in our sending for Mr. Jesse Andrews, and advising him, for fear of accidents or miscarriage in our plans, to betake himself to the kingdom of France for a short time. We had then no treaty of extradition with that country. As soon as I knew he was safely out of the realm, I waited upon the insurance people.

"The money ought not to have been received by Jesse Andrews, you say, Mr.

Sharp?" observed the managing-gentleman, looking keenly in my face.

"Precisely. It ought not to have been received by him."

"And *why* not, Mr. Sharp?"

"That is quite an unnecessary question, and one that, you know, I should not answer, if I could. That which chiefly concerns you is, that I am ready to return the four thousand pounds at once, here on the spot, and that delays are dangerous. If you refuse, why, of course—and I rose from my chair—I must take back the money."

"Stay—stay! I will just consult with one or two gentlemen, and be with you again almost immediately."

In about five minutes he returned. "Well, Mr. Sharp," he said, "we had, I suppose; better take the money—obtained, as you say, by mistake."

"Not at all; I said nothing about mistake. I told you it ought not to have been received by Andrews!"

"Well—well. I understand. I must, I suppose, give you a receipt?"

"Undoubtedly; and, if you please, precisely in this form."

I handed him a copy on a slip of paper. He ran it over, smiled, transcribed it on a stamp, signed it, and, as I handed him a check for the amount, placed it in my hands. We mutually bowed, and I went my way.

Notwithstanding Mr. Newton's opposition, who was naturally furious at the unexpected turn the affair had taken, the identity of the boy—whom that gentleman persisted in asserting to be dead and buried—was clearly established; and Mr. Archibald Andrews, on the day he became of age, received possession of his fortune. The four thousand pounds had of course been repaid out of Jesse Andrews's legacy. That person has, so to speak, since skulked through life, a mark for the covert scorn of every person acquainted with the very black transaction here recorded. This was doubtless a much better fate than he deserved; and in strict, or poetical justice, his punishment ought unquestionably to have been much greater—more apparent also, than it was, for example's sake. But I am a man not of fiction, but of fact, and consequently relate events, not as they precisely ought, but as they do, occasionally occur in lawyers' offices, and other unpoetical nooks and corners of this prosaic, matter-of-fact, working-day world.

BIGAMY OR NO BIGAMY?

The firm of Flint and Sharp enjoyed, whether deservedly or not, when I was connected with it, as it still does, a high reputation for keen practice and shrewd business-management. This kind of professional fame is usually far more profitable than the drum-and-trumpet variety of the same article; or at least we found it so; and often, from blush of morn to far later than dewy eve—which natural phenomena, by the way, were only emblematically observed by me during thirty busy years in the extinguishment of the street lamps at dawn, and their re-illumination at dusk—did I and my partner incessantly pursue our golden avocations; deferring what are usually esteemed the pleasures of life—its banquets, music, flowers, and lettered ease—till the toil, and heat, and hurry of the day were past, and a calm, luminous evening, unclouded by care or anxiety, had arrived. This conduct may or may not have been wise; but at all events it daily increased the connection and transactions of the firm, and ultimately anchored us both very comfortably in the three per cents; and this too, I am bold to say, not without our having effected some good in our generation. This boast of mine the following passage in the life of a distinguished client—known, I am quite sure, by reputation to most of the readers of these papers, whom our character for practical sagacity and professional shrewdness brought us—will, I think, be admitted in some degree to substantiate.

Our connection was a mercantile rather than an aristocratic one, and my surprise was therefore considerable, when, on looking through the office-blinds to ascertain what vehicle it was that had driven so rapidly up to the door, I observed a handsomely-appointed carriage with a coronet emblazoned on the panels, out of which a tall footman was handing a lady attired in deep but elegant mourning, and closely veiled. I instantly withdrew to my private room, and desired that the lady should be immediately admitted. Greatly was my surprise increased when the graceful and still youthful visitor withdrew her veil, and disclosed the features of the Countess of Seyton, upon whose mild, luminous beauty, as rendered by the engraving from Sir Thomas Lawrence's picture, I had so frequently gazed with admiration. That rare and touching beauty was clouded now; and an intense expression of anxiety, fear—almost terror—gleamed from out the troubled depths of her fine dark eyes.

"The Countess of Seyton!" I half-involuntarily exclaimed, as with my very best bow I handed her ladyship a chair.

"Yes; and you are a partner of this celebrated firm, are you not?"

I bowed again still more profoundly to this compliment, and modestly admitted that I was the Sharp of the firm her ladyship was pleased to entitle "celebrated."

"Then, Mr. Sharp, I have to consult you professionally upon a matter of the utmost—the most vital importance to me and mine." Her ladyship then, with some confusion of manner, as if she did not know whether what she was doing was in accordance with strict etiquette or not, placed a Bank of England note, by way of retainer, before me. I put it back, explaining what the usage really was, and the countess replaced it in her purse.

"We shall be proud to render your ladyship any assistance in our power," I said; "but I understood the Messrs. Jackson enjoyed the confidence of the house of Seyton?"

"Precisely. They are, so to speak, the hereditary solicitors of the family more than of any individual member of it; and therefore, though highly respectable persons, unfit to advise me in this particular matter. Besides," she added with increasing tremor and hesitation, "to deal with, and if possible foil, the individual by whom I am persecuted, requires an agent of keener sagacity than either of those gentlemen can boast of; sharper, more resolute men; more—you understand what I mean?"

"Perfectly, madam; and allow me to suggest that it is probable our interview may be a somewhat prolonged one—your ladyship's carriage, which may attract attention, should be at once dismissed. The office of the family solicitors is, you are aware, not far off; and as we could not explain to them the reason which induces your ladyship to honor us with your confidence, it will be as well to avoid any chance of inquiry."

Lady Seyton acquiesced in my suggestion: the carriage was ordered home, and Mr. Flint entering just at the time, we both listened with earnestness and anxiety to her communication. It is needless to repeat verbatim the somewhat prolix, exclamative narration of the countess; the essential facts were as follows:—

The Countess of Seyton, previous to her first marriage, was Miss Clara Hayley, second daughter of the Reverend John Hayley, the rector of a parish in Devonshire. She married, when only nineteen years of age, a Captain Gosford. Her husband was ten years older than herself, and, as she discovered after marriage, was cursed with a morose and churlish temper and disposition. Previous to her acquaintance with Gosford, she had been intimate with, almost betrothed to, Mr. Arthur Kingston, a young gentleman

connected with the peerage, and at that time heir-apparent to the great expectancies and actual poverty of his father, Sir Arthur Kingston. The haughty baronet, the instant he was made aware of the nature of his son's intimacy with the rector's daughter, packed the young man off to the continent on his travels. The Reverend John Hayley and his beautiful Clara were as proud as the baronet, and extremely indignant that it should be thought either of them wished to entrap or delude Arthur Kingston into an unequal or ineligible marriage. This feeling of pride and resentment aided the success of Mr. Gosford's suit, and Clara Hayley, like many other rash, high-notioned young ladies, doomed herself to misery, in order to show the world, and Mr. Arthur Kingston and his proud father especially, that she had a spirit. The union was a most unhappy one. One child only, which died in its infancy, was born to them; and after being united somewhat more than two years, a separation, vehemently insisted on by the wife's father, took place, and the unhappily-wedded daughter returned to her parent's roof. Mr. Gosford—he had some time before sold out of the army—traveled about the country in search of amusement, and latterly of health, (for his unhappy cankerous temper at last affected and broke down his never very robust physical constitution), accompanied for the twelvemonth preceding his death by a young man belonging to the medical profession, of the name of Chilton. Mr. and Mrs. Gosford had been separated a few days less than three years when the husband died, at the village of Swords in Ireland, and not far distant from Dublin. The intelligence was first conveyed to the widow by a paragraph in the "Freeman's Journal," a Dublin newspaper; and by the following post a letter arrived from Mr. Chilton, inclosing a ring which the deceased had requested should be sent to his wife, and a note, dictated just previous to his death-hour, in which he expressed regret for the past, and admitted that he alone had been to blame for the unhappy separation. A copy of his will, made nearly a twelvemonth previously, was also forwarded, by which he bequeathed his property, amounting to about

three hundred pounds per annum, to a distant relative then residing in New Holland. By a memorandum of a subsequent date, Mr. Chilton was to have all the money and other personals he might die in actual possession of, after defraying the necessary funeral expenses. This will, Mr. Chilton stated, the deceased gentleman had expressed a wish in his last moments to alter, but death had been too sudden for him to be able to give effect to that good, but too long-delayed intention.

It cannot be supposed that the long-before practically widowed wife grieved much at the final breaking of the chain which bound her to so ungenial a mate; but as Lady Seyton was entirely silent upon the subject, our supposition can only rest upon the fact, that Arthur Kingston—who had some time previously, in consequence of the death of the Earl of Seyton and his only son, an always-weakly child, preceded a few months by that of his own father, the baronet, succeeded to the earldom and estates—hastened home, on seeing the announcement of Gosford's death in the Dublin paper, from the continent, where he had continued to reside since his compelled-departure six years before; and soon afterwards found his way into Devonshire, and so successfully pressed the renewed offer of his hand, that the wedding took place slightly within six months after the decease of Mr. Gosford. Life passed brilliantly and happily with the earl and countess—to whom three children (a boy and two girls) were born—till about five months previous to the present time, when the earl, from being caught, when out riding, in a drenching shower of rain, was attacked by fever, and after an acute illness of only two or three days' duration, expired. The present earl was at the time just turned of five years of age.

This blow, we comprehended from the sudden tears which filled the beautiful eyes of the countess as she spoke of the earl's decease, was a severe one. Still, the grief of widowhood must have been greatly assuaged by love for her children, and not inconsiderably, after a while, we may be

sure, by the brilliant position in which she was left—as, in addition to being splendidly jointured, she was appointed by her husband's will sole guardian of the young lord, her son.

A terrible reverse awaited her. She was sitting with her father the rector, and her still unmarried sister, Jane Hayley, in the drawing-room of Seyton House, when a note was brought to her, signed Edward Chilton, the writer of which demanded an immediate and private interview, on, he alleged, the most important business. Lady Seyton remembered the name, and immediately acceded to the man's request. He announced in a brusque, insolent tone and manner, that Mr. Gosford had not died at the time his death was announced to her, having then only fallen into a state of syncope, from which he had unexpectedly recovered, and had lived six months longer. "The truth is," added Chilton, "that, chancing the other day to be looking over a 'peerage,' I noticed for the first time the date of your marriage with the late Earl of Seyton, and I have now to inform you that it took place precisely eight days previous to Mr. Gosford's death; that it was consequently no marriage at all; and that your son is no more Earl of Seyton than I am."

This dreadful announcement, as one might expect, completely overcame the countess. She fainted, but not till she had heard and comprehended Chilton's hurried injunctions to secrecy and silence. He rang the bell for assistance, and then left the house. The mental agony of Lady Seyton on recovering consciousness was terrible, and she with great difficulty succeeded in concealing its cause from her anxious and wondering relatives. Another interview with Chilton appeared to confirm the truth of his story beyond doubt or question. He produced a formally-drawn-up document, signed by one Pierce Cunningham, grave-digger of Swords, which set forth that Charles Gosford was buried on the 26th of June, 1832, and that the inscription on his tombstone set forth that he had died June 23d

of that year. Also a written averment of Patrick Mullins of Dublin, that he had lettered the stone at the head of the grave of Charles Gosford in Swords burying-ground in 1832, and that its date was, as stated by Pierce Cunningham, June 23, 1832.

"Have you copies of those documents?" asked Mr. Flint.

"Yes: I have brought them with me," the countess replied, and handed them to Mr. Flint. "In my terror and extremity," continued her ladyship, "and unguided by counsel—for, till now I have not dared to speak upon the subject to any person—I have given this Chilton, at various times, large sums of money—but he is insatiable; and only yesterday—I cannot repeat his audacious proposal—you will find it in this note."

"Marriage!" exclaimed Mr. Flint with a burst. He had read the note over my shoulder. "The scoundrel!"

My worthy partner was rather excited. The truth was he had a Clara of his own at home—a dead sister's child—very pretty, just about marriageable, and a good deal resembling, as he told me afterwards, our new and interesting client.

"I would die a thousand deaths rather," resumed Lady Seyton, in a low, tremulous voice, as she let fall her veil. "Can there," she added in a still fainter voice, "be anything done—anything"—

"That depends entirely," interrupted Mr. Flint, "upon whether this fine story is or is not a fabrication, got up for the purpose of extorting money. It seems to me, I must say, amazingly like one."

"Do you really think so?" exclaimed the lady with joyful vehemence. The notion that Chilton was perhaps imposing on her credulity and fears seemed

not to have struck her before.

"What do you think, Sharp?" said my partner.

I hesitated to give an opinion, as I did not share in the hope entertained by Flint. Detection was so certain, that I doubted if so cunning a person as Chilton appeared to be would have ventured on a fraud so severely punishable. "Suppose," I said, avoiding an answer, "as this note appoints an interview at three o'clock to-day at Seyton House, we meet him there instead of your ladyship? A little talk with the fellow might be serviceable."

Lady Seyton eagerly agreed to this proposal; and it was arranged that we should be at Seyton House half an hour before the appointed time, in readiness for the gentleman. Lady Seyton left in a hackney-coach, somewhat relieved, I thought, by having confided the oppressive secret to us, and with a nascent hope slightly flushing her pale, dejected countenance.

The firm of Flint and Sharp had then a long conference together, during which the lady's statement and Mr. Chilton's documents were, the reader may be sure, very minutely conned over, analyzed, and commented upon. Finally, it was resolved that, if the approaching interview, the manner of which we agreed upon, did not prove satisfactory, Mr. Flint should immediately proceed to Ireland, and personally ascertain the truth or falsehood of the facts alleged by Chilton.

"Mr. Chilton is announced," said Lady Seyton, hurriedly entering the library in Grosvenor Square, where Mr. Flint and myself were seated. "I need not be present, I think you said?" she added, in great tremor.

"Certainly not, madam," I replied. "We shall do better alone."

She retired instantly. Flint rose and stationed himself close by the door. Presently a sounding, confident step was heard along the passage, the library door swung back on its noiseless hinges, and in stalked a man of apparently about thirty-five years of age, tall, genteel, and soldier-looking. He started back on seeing me, recognizing, I perceived, my vocation, at a glance.

"How is this?" he exclaimed. "I expected"—

"The Countess of Seyton. True; but her ladyship has deputed me to confer with you on the business mentioned in your note."

"I shall have nothing to say to you," he replied abruptly, and turned to leave the room. Mr. Flint had shut, and was standing with his back to the door.

"You can't go," he said, in his coolest manner. "The police are within call."

"The police! What the devil do you mean?" cried Chilton, angrily; but, spite of his assurance, visibly trembling beneath Flint's searching, half-sneering look.

"Nothing very remarkable," replied that gentleman, "or unusual in our profession. Come, sit down; we are lawyers; you are a man of business, we know. I dare say we shall soon understand each other."

Mr. Chilton sat down, and moodily awaited what was next to come.

"You are aware," said Mr. Flint, "that you have rendered yourself liable to transportation?"

"What!" exclaimed Chilton, flashing crimson, and starting to his feet. "What!"

"To transportation," continued my imperturbable partner, "for seven, ten, fourteen years, or for life, at the discretion of the judge; but, considering the frequency of the crime of late, I should say there is a strong probability that *you* will be a *lifer*!"

"What devil's gibberish is this?" exclaimed Chilton, frightened, but still fierce. "I can prove everything I have said. Mr. Gosford, I tell you"—

"Well, well," interrupted Mr. Flint; "put it in that light, how you please; turn it which way you will; it's like the key in Blue Beard, which, I dare say, you have read of; rub it out on one side, and up it comes on the other. Say, by way of argument, that you have *not* obtained money by unfounded threats—a crime which the law holds tantamount to highway robbery. You have in that case obtained money for compromising a felony—that of polygamy. An awful position, my good sir, choose which you will."

Utterly chop-fallen was the lately triumphant man; but he speedily rallied.

"I care not," he at length said. "Punish me you may; but the pride of this sham countess and the sham earl will be brought low. And I tell you once for all," he added, rising at the same time, and speaking in ringing, wrathful tones, "that I defy you, and will either be handsomely remunerated for silence, or I will at once inform the Honorable James Kingston that he is the true Earl of Seyton."

"And I tell *you*," retorted Flint, "that if you attempt to leave this room, I will give you into custody at once, and transport you, whatever may be the consequence to others. Come, come, let us have no more nonsense or

bluster. We have strong reasons for believing that the story by which you have been extorting money, is a fabrication. If it be so, rely upon it we shall detect and punish you. Your only safe course is to make a clean breast of it whilst there is yet time. Out with it, man, at once, and you shall go Scot-free; nay, have a few score pounds more—say a hundred. Be wise in time, I counsel you."

Chilton hesitated; his white lips quivered. There *was* something to reveal.

"I cannot," he muttered, after a considerable pause. "There is nothing to disclose."

"You will not! Then your fate be on your own head. I have done with you."

It was now my turn. "Come, come," I said, "it is useless urging this man further. How much do you expect? The insolent proposal contained in your note is, you well know, out of the question. How much *money* do you expect for keeping this wretched affair secret? State your terms at once."

"A thousand per annum," was the reply, "and the first year down."

"Modest, upon my word! But I suppose we must comply." I wrote out an agreement. "Will you sign this?"

He ran it over. "Yes; Lady Seyton, as she calls herself, will take care it never sees the light."

I withdrew, and in two or three minutes returned with a check. "Her ladyship has no present cash at the bankers," I said, "and is obliged to post-date this check twelve days."

The rascal grumbled a good deal; but as there was no help for it, he took the security, signed the agreement, and walked off.

"A sweet nut that for the devil to crack," observed Mr. Flint, looking savagely after him. "I am in hopes we shall trounce him yet, bravely as he carries it. The check of course is not payable to order or bearer"

"Certainly not; and before twelve days are past, you will have returned from Ireland. The agreement may be, I thought, of use with Cunningham or Mullins. If they have been conspiring together, they will scarcely admire the light in which you can place the arrangement, as affording proof that he means to keep the lion's share of the reward to himself."

"Exactly. At all events we shall get at the truth, whatever it be."

The same evening Mr. Flint started for Dublin *viâ* Holyhead.

I received in due course a letter from him dated the day after his arrival there. It was anything but a satisfactory one. The date on the grave-stone had been truly represented, and Mullins who erected it was a highly respectable man. Flint had also seen the grave-digger, but could make nothing out of him. There was no regular register of deaths kept in Swords except that belonging to Cunningham; and the minister who buried Gosford, and who lived at that time in Dublin, had been dead some time. This was disheartening and melancholy enough; and, as if to give our unfortunate client the *coup-de-grace*, Mr. Jackson, junior, marched into the office just after I had read it, to say that, having been referred by Lady Seyton to us for explanations, with respect to a statement made by a Mr. Edward Chilton to the Honorable James Kingston, for whom they, the Messrs. Jackson, were now acting, by which it appeared that the said Honorable James Kingston was, in fact, the true Earl of Seyton, he, Mr. Jackson, junior, would be happy to hear what I had to say upon the subject!

It needed but this. Chilton had, as I feared he would, after finding we had been consulted, sold his secret, doubtless advantageously, to the heir-at-law. There was still, however, a chance that something favorable might turn up, and, as I had no notion of throwing that chance away, I carelessly replied that we had reason to believe Chilton's story was a malicious fabrication, and that we should of course throw on them the onus of judicial proof that Gosford was still alive when the late earl's marriage was solemnized. Finally, however, to please Mr. Jackson, who professed to be very anxious, for the lady's sake, to avoid unnecessary *éclat*, and to arrange the affair as quietly as possible, I agreed to meet him at Lady Seyton's in four days from that time, and hear the evidence upon which he relied. This could not at all events render our position worse; and it was, meanwhile, agreed that the matter should be kept as far as possible profoundly secret.

Three days passed without any further tidings from Mr. Flint, and I vehemently feared that his journey had proved a fruitless one, when, on the evening previous to the day appointed for the conference at Seyton House, a hackney-coach drove rapidly up to the office door, and out popped Mr. Flint, followed by two strangers, whom he very watchfully escorted into the house.

"Mr. Patrick Mullins and Mr. Pierce Cunningham," said Flint as he shook hands with me in a way which, in conjunction with the merry sparkle of his eyes, and the boisterous tone of his voice, assured me all was right. "Mr. Pierce Cunningham will sleep here to-night," he added; "so Collins had better engage a bed out."

Cunningham, an ill-looking lout of a fellow, muttered, that he chose "to sleep at a tavern."

"Not if I know it, my fine fellow," rejoined Mr. Flint. "You mean well, I dare say; but I cannot lose sight of you for all that. You either sleep here or

at a station-house."

The man stared with surprise and alarm; but knowing refusal or resistance to be hopeless, sullenly assented to the arrangement, and withdrew to the room appointed for him, vigilantly guarded. For Mr. Mullins we engaged a bed at a neighboring tavern.

Mr. Flint's mission had been skillfully and successfully accomplished. He was convinced, by the sullen confusion of manner manifested by Cunningham, that some villainous agency had been at work, and he again waited on Mullins, the stone-cutter. "Who gave you the order for the grave-stone?" he asked. Mr. Mullins referred to his book, and answered that he received it by letter. "Had he got that letter?" "Very likely," he replied, "as he seldom destroyed business papers of any kind." "A search was instituted, and finally this letter," said Mr. Flint, "worth an earl's coronet, torn and dirty as it is, turned up." This invaluable document, which bore the London postdate of June 23, 1832, ran as follows:—

"Anglesea Hotel, Haymarket, London, *June* 23, 1832.

"Sir—Please to erect a plain tomb-stone at the head of Charles Gosford, Esquire's grave, who died a few month's since at Swords, aged thirty-two years. This is all that need be inscribed upon it. You are referred to Mr. Guinness of Sackville Street, Dublin, for payment. Your obedient servant,

"Edward Chilton."

"You see," continued Flint, "the fellow had inadvertently left out the date of Gosford's death, merely stating it occurred a few months previously; and Mullins concluded that, in entering the order in his day-book, he must have somehow or other confounded the date of the letter with that of Gosford's decease. Armed with this precious discovery, I again sought Cunningham,

and by dint of promises and threats, at last got the truth out of the rascal. It was this:—Chilton, who returned to this country from the Cape, where he had resided for three years previously, about two months ago, having some business to settle in Dublin, went over there, and one day visited Swords, read the inscription on Charles Gosford's grave-stone, and immediately sought out the grave-digger, and asked him if he had any record of that gentleman's burial. Cunningham said he had, and produced his book, by which it appeared that it took place December 24, 1831. "That cannot be," remarked Chilton, and he referred to the head-stone. Cunningham said he had noticed the mistake a few days after it was erected; but thinking it of no consequence, and never having, that he knew of, seen Mr. Mullins since, he had said, and indeed thought, nothing about it. To conclude the story—Chilton ultimately, by payment of ten pounds down, and liberal promises for the future, prevailed upon the grave-digger to lend himself to the infamous device the sight of the grave-stone had suggested to his fertile, unscrupulous brain."

This was indeed a glorious success and the firm of Flint and Sharp drank the Countess of Seyton's health that evening with great enthusiasm, and gleefully "thought of the morrow."

We found the drawing-room of Seyton House occupied by the Honorable James Kingston, his solicitors, the Messrs. Jackson, Lady Seyton, and her father and sister, to whom she had at length disclosed the source of her disquietude. The children were leaving the apartment as we entered it, and the grief-dimmed eyes of the countess rested sadly upon her bright-eyed boy as he slowly withdrew with his sisters. That look changed to one of wild surprise as it encountered Mr. Flint's shining, good-humored countenance. I was more composed and reserved than my partner, though feeling as vividly as he did the satisfaction of being able not only to dispel Lady Seyton's anguish, but to extinguish the exultation, and trample on the

hopes, of the Honorable James Kingston, a stiff, grave, middle-aged piece of hypocritical propriety, who was surveying from out the corners of his affectedly-unobservant eyes the furniture and decorations of the splendid apartment, and hugging himself with the thought that all that was his! Business was immediately proceeded with. Chilton was called in. He repeated his former story verbatim, and with much fluency and confidence. He then placed in the hands of Jackson, senior, the vouchers signed by Cunningham and Mullins. The transient light faded from Lady Seyton's countenance as she turned despairingly, almost accusingly, towards us.

"What answer have you to make to this gentleman's statement, thus corroborated?" demanded Jackson, senior.

"Quite a remarkable one," replied Mr. Flint, as he rang the bell. "Desire the gentlemen in the library to step up," he added to the footman who answered the summons. In about three minutes in marched Cunningham and Mullins, followed by two police-officers. An irrepressible exclamation of terror escaped Chilton, which was immediately echoed by Mr. Flint's direction to the police, as he pointed towards the trembling caitiff: "That is your man—secure him."

A storm of exclamations, questions, remonstrances, instantly broke forth, and it was several minutes before attention could be obtained for the statements of our two Irish witnesses and the reading of the happily-found letter. The effect of the evidence adduced was decisive, electrical. Lady Seyton, as its full significance flashed upon her, screamed with convulsive joy, and I thought must have fainted from excess of emotion. The Rev. John Hayley returned audible thanks to God in a voice quivering with rapture, and Miss Hayley ran out of the apartment, and presently returned with the children, who were immediately half-smothered with their mother's ecstatic kisses. All was for a few minutes bewilderment, joy, rapture! Flint persisted

to his dying day, that Lady Seyton threw her arms round his neck, and kissed his bald old forehead. This, however, I cannot personally vouch for, as my attention was engaged at the moment by the adverse claimant, the Honorable James Kingston, who exhibited one of the most irresistibly comic, wo-begone, lackadaisical aspects it is possible to conceive. He made a hurried and most undignified exit, and was immediately followed by the discomfited "family" solicitors. Chilton was conveyed to a station-house, and the next day was fully committed for trial. He was convicted at the next sessions, and sentenced to seven years' transportation; and the "celebrated" firm of Flint and Sharp, derived considerable lustre, and more profit, from this successful stroke of professional dexterity.

JANE ECCLES

The criminal business of the office was, during the first three or four years of our partnership, entirely superintended by Mr. Flint; he being more *an fait*, from early practice, than myself in the art and mystery of prosecuting and defending felons, and I was thus happily relieved of duties which, in the days when George III. was king, were frequently very oppressive and revolting. The criminal practitioner dwelt in an atmosphere tainted alike with cruelty and crime, and pulsating alternately with merciless decrees of death, and the shrieks and wailings of sentenced guilt. And not always guilt! There exist many records of proofs, incontestable, but obtained too late, of innocence having been legally strangled on the gallows in other cases than that of Eliza Fenning. How could it be otherwise with a criminal code crowded in every line with penalties of death, nothing but—death? Juster, wiser times have dawned upon us, in which truer notions prevail of what man owes to man, even when sitting in judgment on transgressors; and this we owe, let us not forget, to the exertions of a band of men who, undeterred by the sneers of the reputedly wise and *practical* men of the world, and the taunts of "influential" newspapers, persisted in teaching that the rights of property could be more firmly cemented than by the shedding of blood—law, justice, personal security more effectually vindicated than by the gallows. Let me confess that I also was, for many years, amongst the mockers, and sincerely held such "theorists" and "dreamers" as Sir Samuel Romilly and his fellow-workers in utter contempt. Not so my partner, Mr.

Flint. Constantly in the presence of criminal judges and juries, he had less confidence in the unerring verity of their decisions than persons less familiar with them, or who see them only through the medium of newspapers. Nothing could exceed his distress of mind if, in cases in which he was prosecuting attorney, a convict died persisting in his innocence, or without a full confession of guilt. And to such a pitch did this morbidly-sensitive feeling at length arrive, that he all at once refused to undertake, or in any way meddle with, criminal prosecutions, and they were consequently turned over to our head clerk, with occasional assistance from me if there happened to be a press of business of the sort. Mr. Flint still, however, retained a monopoly of the *defences*, except when, from some temporary cause or other, he happened to be otherwise engaged, when they fell to me. One of these I am about to relate, the result of which, whatever other impression it produced, thoroughly cured me—as it may the reader—of any propensity to sneer or laugh at criminal-law reformers and denouncers of the gallows.

One forenoon, during the absence of Mr. Flint in Wiltshire, a Mrs. Margaret Davies called at the office, in apparently great distress of mind. This lady, I must premise, was an old, or at all events an elderly maiden, of some four-and-forty years of age—I have heard a very intimate female friend of hers say she would never see fifty again, but this was spite—and possessed of considerable house property in rather poor localities. She found abundant employment for energies which might otherwise have turned to cards and scandal, in collecting her weekly, monthly, and quarterly rents, and in promoting, or fancying she did, the religious and moral welfare of her tenants. Very bare-faced, I well knew, were the impositions practiced upon her credulous good-nature in money matters, and I strongly suspected the spiritual and moral promises and performances of her motley tenantry exhibited as much discrepancy as those pertaining to rent. Still, deceived or cheated as she might be, good Mrs. Davies never wearied in what she

conceived to be well-doing, and was ever ready to pour balm and oil into the wounds of the sufferer, however self-inflicted or deserved.

"What is the matter now?" I asked as soon as the good lady was seated, and had untied and loosened her bonnet, and thrown back her shawl, fast walking having heated her prodigiously. "Nothing worse than transportation is, I hope, likely to befall any of those interesting clients of yours?"

"You are a hard-hearted man, Mr. Sharp," replied Mrs. Davies between a smile and a cry; "but being a lawyer, that is of course natural, and, as I am not here to consult you as a Christian, of no consequence."

"Complimentary, Mrs. Davies; but pray, go on."

"You know Jane Eccles, one of my tenants in Bank Buildings—the embroidress who adopted her sister's orphan child?"

"I remember her name. She obtained, if I recollect rightly, a balance of wages for her due to the child's father, a mate, who died at sea. Well, what has befallen her?"

"A terrible accusation has been preferred against her," rejoined Mrs. Davies; "but as for a moment believing it, that is quite out of the question. Jane Eccles," continued the warm-hearted lady, at the same time extracting a crumpled newspaper from the miscellaneous contents of her reticule—"Jane Eccles works hard from morning till night, keeps herself to herself; her little nephew and her rooms are always as clean and nice as a new pin; she attends church regularly; and pays her rent punctually to the day. This disgraceful story, therefore," he added, placing the journal in my hands, "*cannot* be true."

I glanced over the police news:—'Uttering forged Bank-of-England notes, knowing them to be forged;' I exclaimed, "The devil!"

"There's no occasion to be spurting that name out so loudly, Mr. Sharp," said Mrs. Davies with some asperity, "especially in a lawyer's office. People have been wrongfully accused before to-day, I suppose?"

I was intent on the report, and not answering, she continued, "I heard nothing of it till I read the shameful account in the paper half an hour ago. The poor slandered girl was, I dare say, afraid or ashamed to send for me."

"This appears to be a very bad case, Mrs. Davies," I said at length. "Three forged ten-pound notes changed in one day at different shops each time, under the pretence of purchasing articles of small amount, and another ten-pound note found in her pocket! All that has, I must say, a very ugly look."

"I don't care," exclaimed Mrs. Davies quite fiercely, "if it looks as ugly as sin, or if the whole Bank of England was found in her pocket! I know Jane Eccles well; she nursed me last spring through the fever; and I would be upon my oath that the whole story, from beginning to end, is an invention of the devil, or something worse."

"Jane Eccles," I persisted, "appears to have been unable or unwilling to give the slightest explanation as to how she became possessed of the spurious notes. Who is this brother of hers, 'of such highly respectable appearance,' according to the report, who was permitted a private interview with her previous to the examination?"

"She has no brother that I have ever heard of," said Mrs. Davies. "It must be a mistake of the papers."

"That is not likely. You observed of course that she was fully committed—and no wonder!"

Mrs. Davies's faith in the young woman's integrity was not to be shaken by any evidence save that of her own bodily eyes, and I agreed to see Jane Eccles on the morrow, and make the best arrangements for the defence—at Mrs. Davies' charge—which the circumstances and the short time I should have for preparation—the Old Bailey session would be on in a few days—permitted. The matter so far settled, Mrs. Margaret hurried off to see what had become of little Henry, the prisoner's nephew.

I visited Jane Eccles the next day in Newgate. She was a well-grown young woman of about two or three-and-twenty—not exactly pretty perhaps, but very well-looking. Her brown hair was plainly worn, without a cap, and the expression of her face was, I thought, one of sweetness and humility, contradicted in some degree by rather harsh lines about the mouth, denoting strong will and purpose. As a proof of the existence of this last characteristic, I may here mention that, when her first overweening confidence had yielded to doubt, she, although dotingly fond of her nephew, at this time about eight years of age, firmly refused to see him, "in order," she once said to me—and the thought brought a deadly pallor to her face—in order that, should the worst befall, her memory might not be involuntarily connected in his mind with images of dungeons, and disgrace, and shame. Jane Eccles had received what is called in the country, "a good schooling," and the books Mrs. Davies had lent her she had eagerly perused. She was therefore to a certain extent a cultivated person; and her speech and manners were mild, gentle, and, so to speak, religious. I generally found, when I visited her, a Bible or prayer-book in her hand. This, however, from my experience, comparatively slight though it was, did not much impress me in her favor—devotional sentiment so easily, for a brief time, assumed, being in nine such cases out of ten a hypocritical

deceit. Still she, upon the whole, made a decidedly favorable impression on me, and I no longer so much wondered at the bigotry of unbelief manifested by Mrs. Davies in behalf of her apparently amiable and grateful protégée.

But beyond the moral doubt thus suggested of the prisoner's guilt, my interviews with her utterly failed to extract anything from her in rebutment of the charge upon which she was about to be arraigned. At first she persisted in asserting that the prosecution was based upon manifest error; that the impounded notes, instead of being forged, were genuine Bank-of-England paper. It was some time before I succeeded in convincing her that this hope, to which she so eagerly, desperately clung, was a fallacious one. I did so at last; and either, thought I, as I marked her varying color and faltering voice, "either you are a consummate actress, or else the victim of some frightful delusion or conspiracy."

"I will see you, if you please, to-morrow," she said, looking up from the chair upon which, with her head bowed and her face covered with her hands, she had been seated for several minutes in silence. "My thoughts are confused now, but to-morrow I shall be more composed; better able to decide if—to talk, I mean, of this unhappy business."

I thought it better to comply without remonstrance, and at once took my leave.

When I returned the next afternoon, the governor of the prison informed me that the brother of my client, James Eccles, quite a dashing gentleman, had had a long interview with her. He had left about two hours before, with the intention, he said, of calling upon me.

I was conducted to the room where my conferences with the prisoner usually took place. In a few minutes she appeared, much flushed and

excited, it seemed to be alternately with trembling joy and hope, and doubt, and nervous fear.

"Well," I said, "I trust you are now ready to give me your unreserved confidence, without which, be assured, that any reasonable hope of a successful issue from the peril in which you are involved is out of the question."

The varying emotions I have noticed were clearly traceable as they swept over her tell-tale countenance during the minute or so that elapsed before she spoke.

"Tell me candidly, sir," she said at last, "whether, if I owned to you that the notes were given to me by a—a person, whom I cannot, if I would, produce, to purchase various articles at different shops, and return him—the person I mean—the change; and that I made oath this was done by me in all innocence of heart, as the God of heaven and earth truly knows it was, it would avail me?"

"Not in the least," I replied, angry at such trifling. "How can you ask such a question? We must *find* the person who, you intimate, has deceived you, and placed your life in peril; and if that can be proved, hang him instead of you. I speak plainly, Miss Eccles," I added in a milder tone; "perhaps you may think unfeelingly, but there is no further time for playing with this dangerous matter. To-morrow a true bill will be found against you, and your trial may then come on immediately. If you are careless for yourself, you ought to have some thought for the sufferings of your excellent friend, Mrs. Davies; for your nephew, soon perhaps to be left friendless and destitute."

"Oh spare me—spare me!" sobbed the unhappy young woman, sinking nervelessly into a seat. "Have pity upon me, wretched, bewildered as I am!" Tears relieved her, and after awhile, she said, "It is useless, sir, to prolong

this interview. I could not, I solemnly assure you, if I would, tell you where to search for or find the person of whom I spoke. And," she added, whilst the lines about her mouth of which I have spoken, grew distinct and rigid, "I would not if I could. What indeed would it, as I have been told and believe, avail, but to cause the death of two deceived innocent persons instead of one? Besides," she continued, trying to speak with firmness, and repress the shudder which crept over and shook her as with ague—"besides, whatever the verdict, the penalty will not, cannot, I am sure, I know, be—be"—

I understood her plainly enough, although her resolution failed to sustain her through the sentence.

"Who is this brother—James Eccles, he calls himself—whom you saw at the police-office, and who has twice been here, I understand—once to-day?"

A quick start revealed the emotion with which she heard the question, and her dilated eyes rested upon me for a moment with eager scrutiny. She speedily recovered her presence of mind, and with her eyes again fixed on the floor, said in a quivering voice, "My brother! Yes—as you say—my brother."

"Mrs. Davies says you have no brother!" I sharply rejoined.

"Good Mrs. Davies," she replied in a tone scarcely above a whisper, and without raising her head, "does not know all our family."

A subterfuge was, I was confident, concealed in these words; but after again and again urging her to confide in me, and finding warning and persuasion alike useless, I withdrew, discomfited and angry, and withal as much concerned and grieved as baffled and indignant. On going out, I arranged with the governor that the "brother," if he again made his

appearance, should be detained, *bongré malgré*, till my arrival. Our precaution was too late—he did not reappear; and so little notice had any one taken of his person, that to advertise a description of him with a reward for his apprehension was hopeless.

A true bill was found, and two hours afterwards Jane Eccles was placed in the dock. The trial did not last more than twenty minutes, at the end of which, an unhesitating verdict of guilty was returned, and she was duly sentenced to be hanged by the neck till she was dead. We had retained the ablest counsel practicing in the court, but, with no tangible defence, their efforts were merely thrown away. Upon being asked what she had to say why the sentence of the law should not be carried into effect? she repeated her previous statement—that the notes had been given her to change by a person in whom she reposed the utmost confidence; and that she had not the slightest thought of evil or fraud in what she did. That person, however, she repeated once more, could not be produced. Her assertions only excited a derisive smile; and all necessary forms having been gone through, she was removed from the bar.

The unhappy woman bore the ordeal through which she had just passed with much firmness. Once only, whilst sentence was being passed, her high-strung resolution appeared to falter and give way. I was watching her intently, and I observed that she suddenly directed a piercing look towards a distant part of the crowded court. In a moment her eye lightened, the expression of extreme horror which had momentarily darkened her countenance passed away, and her partial composure returned. I had instinctively, as it were, followed her glance, and thought I detected a tall man enveloped in a cloak engaged in dumb momentary communication with her. I jumped up from my seat, and hastened as quickly as I could through the thronged passages to the spot, and looked eagerly around, but the man, whosoever he might be, was gone.

The next act in this sad drama was the decision of the Privy Council upon the recorder's report. It came. Several were reprieved, but amongst them was *not* Jane Eccles. She and nine others were to perish at eight o'clock on the following morning.

The anxiety and worry inseparable from this most unhappy affair, which, from Mr. Flint's protracted absence, I had exclusively to bear, fairly knocked me up, and on the evening of the day on which the decision of the Council was received, I went to bed much earlier than usual, and really ill. Sleep I could not, and I was tossing restlessly about, vainly endeavoring to banish from my mind the gloomy and terrible images connected with the wretched girl and her swiftly-coming fate, when a quick tap sounded on the door, and a servant's voice announced that one of the clerks had brought a letter which the superscription directed to be read without a moment's delay. I sprang out of bed, snatched the letter, and eagerly ran it over. It was from the Newgate chaplain, a very worthy, humane gentleman, and stated that, on hearing the result of the deliberations of the Privy Council, all the previous stoicism and fortitude exhibited by Jane Eccles had completely given way, and she had abandoned herself to the wildest terror and despair. As soon as she could speak coherently, she implored the governor with frantic earnestness to send for me. As this was not only quite useless in the opinion of that official, but against the rules, the prisoner's request was not complied with. The chaplain, however, thinking it might be as well that I should know of her desire to see me, had of his own accord sent me this note. He thought that possibly the sheriffs would permit me to have a brief interview with the condemned prisoner in the morning, if I arrived sufficiently early; and although it could avail nothing as regarded her fate in this world, still it might perhaps calm the frightful tumult of emotion by which she was at present tossed and shaken, and enable her to meet the inevitable hour with fortitude and resignation.

It was useless to return to bed after receiving such a communication, and I forthwith dressed myself, determined to sit up and read, if I could, till the hour at which I might hope to be admitted to the jail, should strike. Slowly and heavily the dark night limped away, and as the first rays of the cold wintry dawn reached the earth, I sallied forth. A dense, brutal crowd were already assembled in front of the prison, and hundreds of well-dressed sight-seers occupied the opposite windows, morbidly eager for the rising of the curtain upon the mournful tragedy about to be enacted. I obtained admission without much difficulty, but, till the arrival of the sheriffs, no conference with the condemned prisoners could be possibly permitted. Those important functionaries happened on this morning to arrive unusually late, and I paced up and down the paved corridor in a fever of impatience and anxiety. They were at last announced, but before I could, in the hurry and confusion, obtain speech of either of them, the dismal bell tolled out, and I felt with a shudder that it was no longer possible to effect my object. "Perhaps it is better so," observed the reverend chaplain, in a whisper. "She has been more composed for the last two or three hours, and is now, I trust, in a better frame of mind for death." I turned, sick at heart, to leave the place, and in my agitation missing the right way, came directly in view of the terrible procession. Jane Eccles saw me, and a terrific scream, followed by frantic heart-rending appeals to me to save her, burst with convulsive effort from her white quivering lips. Never will the horror of that moment pass from my remembrance. I staggered back, as if every spasmodic word struck me like a blow; and then, directed by one of the turnkeys, sped in an opposite direction as fast as my trembling limbs could carry me—the shrieks of the wretched victim, the tolling of the dreadful bell, and the obscene jeers and mocks of the foul crowd through which I had to force my way, evoking a confused tumult of disgust and horror in my brain, which, if long continued, would have driven me mad. On reaching home, I was bled freely, and got to bed. This treatment, I have no doubt, prevented a violent

access of fever; for, as it was, several days passed before I could be safely permitted to re-engage in business.

On revisiting the office, a fragment of a letter written by Jane Eccles a few hours previous to her death, and evidently addressed to Mrs. Davies, was placed by Mr. Flint, who had by this time returned, before me. The following is an exact copy of it, with the exception that the intervals which I have marked with dots,.... were filled with erasures and blots, and that every word seemed to have been traced by a hand smitten with palsy:—

"From my Death-place, *Midnight*.

"Dear Madam—No, beloved friend—mother, let me call you.... Oh kind, gentle mother, I am to die ... to be killed in a few hours by cruel men!—I, so young, so unprepared for death, and yet guiltless! Oh never doubt that I am guiltless of the offence for which they will have the heart to hang me.... Nobody, they say, can save me now; yet if I could see the lawyer.... I have been deceived, cruelly deceived, madam—buoyed up by lying hopes, till just now the thunder burst, and I—oh God!.... As they spoke, the fearful chapter in the Testament came bodily before me—the rending of the vail in twain, the terrible darkness, and the opened graves!.... I did not write for this, but my brain aches and dazzles.... It is too late—too late, they all tell me! ... Ah, if these dreadful laws were not so swift, I might yet—but no; *he* clearly proved to me how useless.... I must not think of that.... It is of my nephew, of your Henry, child of my affections, that I would speak. Oh, would that I.... But hark!—they are coming.... The day has dawned ... to me the day of judgment!...."

This incoherent scrawl only confirmed my previous suspicions, but it was useless to dwell further on the melancholy subject. The great axe had fallen, and whether justly or unjustly, would, I feared, as in many, very many other cases, never be clearly ascertained in this world. I was mistaken. Another

case of "uttering forged Bank-of-England notes, knowing them to be forged," which came under our cognizance a few months afterwards, revived the fading memory of Jane Eccles's early doom, and cleared up every obscurity connected with it.

The offender in this new case, was a tall, dark-complexioned, handsome man, of about thirty years of age, of the name of Justin Arnold. His lady mother, whose real name I shall conceal under that of Barton, retained us for her son's defence, and from her, and other sources, we learned the following particulars:—

Justin Arnold was the lady's son by a former marriage. Mrs. Barton, a still splendid woman, had, in second nuptials, espoused a very wealthy person, and from time to time had covertly supplied Justin Arnold's extravagance. This, however, from the wild course the young man pursued, could not be forever continued, and after many warnings the supplies were stopped. Incapable of reformation, Justin Arnold, in order to obtain the means of dissipation, connected himself with a cleverly-organized band of swindlers and forgers, who so adroitly managed their nefarious business, that, till his capture, they had contrived to keep themselves clear of the law—the inferior tools and dupes having been alone caught in its fatal meshes. The defence, under these circumstances necessarily a difficult, almost impossible one, was undertaken by Mr. Flint, and conducted by him with his accustomed skill and energy.

I took a very slight interest in the matter, and heard very little concerning it till its judicial conclusion by the conviction of the offender, and his condemnation to death. The decision on the recorder's report was this time communicated to the authorities of Newgate on a Saturday, so that the batch ordered for execution, amongst whom was Justin Arnold, would not be hanged till the Monday morning. Rather late in the evening a note once

more reached me from the chaplain of the prison. Justin Arnold wished to see me—*me*, not Mr. Flint. He had something of importance to communicate, he said, relative to a person in whom I had once felt great interest. It flashed across me that this Justin might be the "brother" of Jane Eccles, and I determined to see him. I immediately sought out one of the sheriffs, and obtained an order empowering me to see the prisoner on the afternoon of the morrow, (Sunday).

I found that the convict had expressed great anxiety lest I should decline to see him. My hoped-for visit was the only matter which appeared to occupy the mind or excite the care of the mocking, desperate young man; even the early and shameful termination of his own life on the morrow, he seemed to be utterly reckless of. Thus prepared, I was the less surprised at the scene which awaited me in the prisoner's cell, where I found him in angry altercation with the pale and affrighted chaplain.

I had never seen Justin Arnold before, this I was convinced of the instant I saw him; but he knew and greeted me instantly by name. His swarthy, excited features were flushed and angry; and after briefly thanking me for complying with his wishes, he added in a violent rapid tone, "This good man has been teasing me. He says, and truly, that I have defied God by my life; and now he wishes me to mock that inscrutable Being, on the eve of death, by words without sense, meaning, or truth!"

"No, no, no!" ejaculated the reverend gentleman. "I exhorted you to true repentance, to peace, charity, to"—

"True repentance, peace, charity!" broke in the prisoner, with a scornful burst; "when my heart is full of rage, and bitterness, and despair! Give me *time* for this repentance which you say is so needful—time to lure back long since banished hope, and peace, and faith! Poh!—you but flout me with words without meaning. I am unfit, you say, for the presence of men, but

quite fit for that of God, before whom you are about to arrogantly cast me! Be it so—my deeds are upon my head! It is at least not my fault that I am hurled to judgment before the Eternal Judge himself commanded my presence there!"

"He may be unworthy to live," murmured the scared chaplain, "but oh, how utterly unfit to die!"

"That is true," rejoined Justin Arnold, with undiminished vehemence. "Those, if you will, are words of truth and sense—go you and preach them to the makers and executioners of English law. In the meantime I would speak privately with this gentleman."

The reverend pastor, with a mute gesture of compassion, sorrow, and regret, was about to leave the cell, when he was stayed by the prisoner, who exclaimed, "Now, I think of it, you had better, sir, remain. The statement I am about to make cannot, for the sake of the victim's reputation, and for her friends' sake, have too many witnesses. You both remember Jane Eccles?" A broken exclamation from both of us answered him, and he quickly added—"Ah, you already guess the truth, I see. Well, I do not wonder you should start and turn pale. It *was* a cruel, shameless deed—a dastardly murder if there was ever one. In as few words as possible, so you interrupt me not, I will relate *my* share in the atrocious business." He spoke rapidly, and once or twice during the brief recital, the moistened eye and husky voice betrayed emotions which his pride would have concealed.

"Jane and I were born in Hertfordshire, within a short distance of each other. I knew her from a child. She was better off then, I worse than we subsequently became—she by her father's bankruptcy, I by my mo—, by Mrs. Barton's wealthy marriage. She was about nineteen, I twenty-four, when I left the country for London. That she loved me with all the fervor of a trusting woman I well knew; and I had, too, for some time known that she

must be either honorably wooed or not at all. That with me, was out of the question, and, as I told you, I came about that time to London. You can, I dare say, imagine the rest. We were—I and my friends, I mean—at a loss for agents to dispose of our wares, and at the same time pressed for money. I met Jane Eccles by accident. Genteel, of graceful address and winning manners, she was just fitted for our purpose. I feigned re-awakened love, proffered marriage, and a home across the Atlantic, as soon as certain trifling but troublesome affairs which momentarily harassed me were arranged. She believed me. I got her to change a considerable number of notes under various pretexts, but that they were forged she had not and could not have the remotest suspicion. You know the catastrophe. After her apprehension I visited this prison as her brother, and buoyed her up to the last with illusions of certain pardon and release, whatever the verdict, through the influence of my wealthy father-in-law, of our immediate union afterwards, and tranquil American home. It is needless to say more. She trusted me, and I sacrificed her; less flagrant instances of a like nature occur every day. And now, gentlemen, I would fain be alone."

"Remorseless villain!" I could not help exclaiming under my breath as he moved away.

He turned quickly back, and looking me in the face, without the slightest anger, said, "An execrable villain if you like—not a remorseless one! Her death alone sits near, and troubles my, to all else, hardened conscience. And let me tell you, reverend sir," he continued, resuming his former bitterness as he addressed the chaplain—"let me tell you that it was not the solemn words of the judge the other day, but her pale, reproachful image, standing suddenly beside me in the dock, just as she looked when I passed my last deception on her, that caused the tremor and affright, complacently attributed by that grave functionary to his own sepulchral eloquence. After all, her death cannot be exclusively laid to my charge. Those who tried her would not believe her story, and yet it was true as death. Had they not been so confident in their own unerring wisdom, they might have doomed her to some punishment short of the scaffold, and could now have retrieved their error. But I am weary, and would, I repeat, be alone. Farewell!" He threw himself on the rude pallet, and we silently withdrew.

A paper embodying Justin Arnold's declaration was forwarded to the secretary of state, and duly acknowledged, accompanied by an official expression of mild regret that it had not been made in time to save the life of Jane Eccles. No further notice was taken of the matter, and the record of the young woman's judicial sacrifice still doubtless encumbers the archives of the Home Office, forming, with numerous others of like character, the dark, sanguine background upon which the achievements of the great and good men who have so successfully purged the old Draco code that now a faint vestige only of the old barbarism remains, stands out in bright relief and changeless lustre.

"EVERY MAN HIS OWN LAWYER."

A smarter trader, a keener appreciator of the tendencies to a rise or fall in colonial produce—sugars more especially—than John Linden, of Mincing Lane, it would have been difficult to point out in the wide city of London. He was not so immensely rich as many others engaged in the same merchant-traffic as himself; nothing at all like it, indeed, for I doubt that he could at any time have been esteemed worth more than from eighty to ninety thousand pounds; but his transactions, although limited in extent when compared with those of the mammoth colonial houses, almost always returned more or less of profit; the result of his remarkable keenness and sagacity in scenting hurricanes, black insurrections, and emancipation bills, whilst yet inappreciable, or deemed afar off, by less sensitive organizations. At least to this wonderful prescience of future sugar-value did Mr. Linden himself attribute his rise in the world, and gradual increase in rotundity, riches, and respectability. This constant success engendered, as it is too apt to do, inordinate egotism, conceit, self-esteem, vanity. There was scarcely a social, governmental, or economical problem which he did not believe himself capable of solving as easily as he could eat his dinner when hungry. "Common-sense business-habits"—his favorite phrase—he believed to be quite sufficient for the elucidation of the most difficult question in law, physic, or divinity. The science of law, especially, he held to be an alphabet which any man—of common sense and business habits—could as easily master as he could count five on his fingers; and there was no end to his

ridicule of the men with horse-hair head-dresses, and their quirks, quiddits, cases, tenures, and such-like devil's lingo. Lawyers, according to him, were a set of thorough humbugs and impostors, who gained their living by false pretence—that of affording advice and counsel, which every sane man could better render himself. He was unmistakably mad upon this subject, and he carried his insane theory into practice. He drew his own leases, examined the titles of some house-property he purchased, and set his hand and seal to the final deeds, guided only by his own common-sense spectacles. Once he bid, at the Auction Mart, as high as fifty-three thousand pounds for the Holmford estate, Herefordshire; and had he not been outbidden by young Palliser, son of the then recently-deceased eminent distiller, who was eager to obtain the property, with a view to a seat in parliament which its possession was said to almost insure—he would, I had not at the time the slightest doubt, have completed the purchase, without for a moment dreaming of submitting the vender's title to the scrutiny of a professional adviser. Mr. Linden, I should mention, had been for some time desirous of resigning his business in Mincing Lane to his son, Thomas Linden, the only child born to him by his long-since deceased wife, and of retiring, an estated squire-arch, to the *otium cum.*, or *sine dignitate*, as the case might be, of a country life; and this disposition had of late been much quickened by daily-increasing apprehensions of negro emancipation and revolutionary interference with differential duties—changes which, in conjunction with others of similar character, would infallibly bring about that utter commercial ruin which Mr. Linden, like every other rich and about-to-retire merchant or tradesman whom I have ever known, constantly prophesied to be near at hand and inevitable.

With such a gentleman the firm of Flint & Sharp had only professional interviews, when procrastinating or doubtful debtors required that he should put on the screw—a process which, I have no doubt, he would himself have confidently performed, but for the waste of valuable time which doing so

would necessarily involve. Both Flint and myself were, however, privately intimate with him—Flint more especially, who had known him from boyhood—and we frequently dined with him on a Sunday at his little box at Fulham. Latterly, we had on these occasions met there a Mrs. Arnold and her daughter Catherine—an apparently amiable, and certainly very pretty and interesting young person—to whom, Mr. Linden confidentially informed us, his son Tom had been for some time engaged.

"I don't know much about her family," observed Mr. Linden one day, in the course of a gossip at the office, "but she moves in very respectable society. Tom met her at the Slades'; but I *do* know she has something like thirty-five thousand pounds in the funds. The instant I was informed how matters stood with the young folk, I, as a matter of common sense and business, asked the mother, Mrs. Arnold, for a reference to her banker or solicitor—there being no doubt that a woman and a minor would be in lawyers' leading-strings—and she referred me to Messrs. Dobson of Chancery Lane. You know the Dobsons?"

"Perfectly,—what was the reply?"

"That Catherine Arnold, when she came of age—it wants but a very short time of that now—would be entitled to the capital of thirty-four thousand seven hundred pounds, bequeathed by an uncle, and now lodged in the funds in the names of the trustees, Crowther & Jenkins, of Leadenhall Street, by whom the interest on that sum was regularly paid, half-yearly, through the Messrs. Dobson, for the maintenance and education of the heiress. A common-sense, business-like letter in every respect, and extremely satisfactory; and as soon as he pleases, after Catherine Arnold comes of age, and into actual possession of her fortune, Tom may have her, with my blessing over the bargain."

I dined at Laurel Villa, Fulham, about two months after this conversation, and Linden and I found ourselves alone over the dessert—the young people having gone out for a stroll, attracted doubtless by the gay aspect of the Thames, which flows past the miniature grounds attached to the villa. Never had I seen Mr. Linden in so gay, so mirthful a mood.

"Pass the decanter," he exclaimed, the instant the door had closed upon Tom and his *fiancée*. "Pass the decanter, Sharp; I have news for you, my boy, now they are gone."

"Indeed! and what may the news be?"

"Fill a bumper for yourself, and I'll give you a toast. Here's to the health and prosperity of the proprietor of the Holmford estate; and may he live a thousand years, and one over!—Hip—hip—hurra!"

He swallowed his glass of wine, and then, in his intensity of glee, laughed himself purple.

"You needn't stare so," he said, as soon as he had partially recovered breath; "I am the proprietor of the Holmford property—bought it for fifty-six thousand pounds of that young scant-grace and spendthrift, Palliser—fifteen thousand pounds less than what it cost him, with the outlay he has made upon it. Signed, sealed, delivered, paid for yesterday. Ha! ha! ho! Leave John Linden alone for a bargain! It's worth seventy thousand pounds if it's worth a shilling. I say," continued he, after a renewed spasm of exuberant mirth, "not a word about it to anybody—mind! I promised Palliser, who is quietly packing up to be off to Italy, or Australia, or Constantinople, or the devil—all of them, perhaps, in succession—not to mention a word about it till he was well off—you understand? Ha! ha!—ho! ho!" again burst out Mr. Linden. "I pity the poor creditors though! Bless you! I shouldn't have had it at anything like the price, only for his knowing

that I was not likely to be running about exposing the affair, by asking lawyers whether an estate in a family's possession, as this was in Dursley's for three hundred years, had a good title or not. So be careful not to drop a word, even to Tom—for my honor's sake. A delicious bargain, and no mistake! Worth, if a penny, seventy thousand pounds. Ha! ha!—ho! ho!"

"Then you have really parted with that enormous sum of money without having had the title to the estate professionally examined?"

"Title! Fiddlestick! I looked over the deeds myself. Besides, haven't I told you the ancestors of Dursley, from whose executors Palliser purchased the estate, were in possession of it for centuries. What better title than prescription can there be?"

"That may be true enough; but still"—

"I ought, you think, to have risked losing the bargain by delay, and have squandered time and money upon fellows in horse-hair wigs, in order to ascertain what I sufficiently well knew already? Pooh! I am not in my second childhood yet!"

It was useless to argue with him; besides the mischief, if mischief there was, had been done, and the not long-delayed entrance of the young couple necessitating a change of topic, I innocently inquired what he thought of the Negro Emancipation Bill which Mr. Stanley, as the organ of the ministry, had introduced a few evenings previously? and was rewarded by a perfect deluge of loquacious indignation and invective—during a pause in which hurly-burly of angry words I contrived to effect my escape.

"Crowther & Jenkins!" exclaimed one morning, Mr. Flint, looking up from the "Times" newspaper he held in his hand. "Crowther & Jenkins!—what is it we know about Crowther & Jenkins?"

The question was addressed to me, and I, like my partner, could not at the moment precisely recall why those names sounded upon our ears with a certain degree of interest as well as familiarity. "Crowther & Jenkins!" I echoed. "True; what *do* we know about Crowther & Jenkins? Oh, I have it!—they are the executors of a will under which young Linden's pretty bride, that is to be, inherits her fortune."

"Ah!" exclaimed Mr. Flint, as he put down the paper, and looked me gravely in the face—"I remember now; their names are in the list of bankrupts. A failure in the gambling corn-trade too. I hope they have not been speculating with the young woman's money."

The words were scarcely out of his mouth when Mr. Linden was announced, and presently in walked that gentleman in a state of considerable excitement.

"I told you," he began, "some time ago about Crowther & Jenkins being the persons in whose names Catherine Arnold's money stood in the funds?"

"Yes," replied Flint; "and I see by the 'Gazette' they are bankrupts, and, by your face, that they have speculated with your intended daughter-in-law's money, and lost it!"

"Positively so!" rejoined Mr. Linden, with great heat. "Drew it out many months ago! But they have exceedingly wealthy connections—at least Crowther has—who will, I suppose, arrange Miss Arnold's claim rather than their relative should be arraigned for felony."

"Felony!—you are mistaken, my good sir. There is no felony—no *legal* felony, I mean—in the matter. Miss Arnold can only prove against the estate like any other creditor."

"The devil she can't! Tom, then, must look out for another wife, for I am credibly informed there won't be a shilling in the pound."

And so it turned out. The great corn-firm had been insolvent for years; and after speculating desperately, and to a frightful extent, with a view to recover themselves, had failed to an enormous amount—their assets, comparatively speaking, proving to be *nil*.

The ruin spread around, chiefly on account of the vast quantity of accommodation-paper they had afloat, was terrible; but upon no one did the blow fall with greater severity than on young Linden and his promised wife. His father ordered him to instantly break off all acquaintance with Miss Arnold; and on the son, who was deeply attached to her, peremptorily refusing to do so, Linden, senior, threatened to turn him out of doors, and ultimately disinherit him. Angry, indignant, and in love, Thomas Linden did a very rash and foolish thing; he persuaded Catherine Arnold to consent to a private marriage, arguing that if the indissoluble knot were once fairly tied, his father would, as a matter of course—he being an only child—become reconciled to what he could no longer hope to prevent or remedy.

The imprudent young man deceived both himself and her who trusted in his pleasing plausibilities. Ten minutes after he had disclosed the marriage to his father, he was turned, almost penniless, out of doors; and the exasperated and inexorable old man refused to listen to any representation in his favor, by whomsoever proffered, and finally, even to permit the mention of his name in his hearing.

"It's of no use," said Mr. Flint, on returning for the last time, from a mission undertaken to extort, if possible, some provision against absolute starvation for the newly-wedded couple. "He is as cold and hard as adamant, and I think, if possible, even more of a tiger than before. He will be here presently to give instructions for his will."

"His will! Surely he will draw that up himself after his own common-sense, business fashion?"

"He would unquestionably have done so a short time since; but some events that have lately occurred have considerably shaken his estimate of his own infallibility, and he is, moreover, determined, he says, that there shall be no mistake as to effectually disinheriting his son. He has made two or three heavy losses, and his mind is altogether in a very cankered, distempered state."

Mr. Linden called, as he had promised to do, and gave us the written heads of a will which he desired to have at once formally drawn up. By this instrument he devised the Holmford estate, and all other property, real and personal, of which he might die possessed, to certain charitable institutions, in varying proportions, payable as soon after his death as the property could be turned into money. "The statute of mortmain does not give me much uneasiness," remarked the vindictive old man with a bitter smile. "I shall last some time yet. I would have left it all to you, Flint," he added, "only that I knew you would defeat my purpose by giving it back to that disobedient, ungrateful, worthless boy."

"Do leave it to me," rejoined Mr. Flint, with grave emphasis, "and I promise you faithfully this—that the wish respecting it, whatever it may be, which trembles on your lip as you are about to leave this world for another, and when it may be too late to formally revoke the testament you now propose, shall be strictly carried out. That time cannot be a very distant one, John Linden, for a man whose hair is white as yours."

It was preaching to the winds. He was deaf, blind, mute, to every attempt at changing his resolve. The will was drawn in accordance with his peremptorily-iterated instructions, and duly signed, sealed, and attested. Not very long afterwards, Mr. Linden disposed of his business in Mincing Lane,

and retired to Holmford, but with nothing like the money-fortune he had once calculated upon, the losses alluded to by Mr. Flint, and followed by others, having considerably diminished his wealth.

We ultimately obtained a respectable and remunerative situation for Thomas Linden in a mercantile house at Belfast, with which we were professionally acquainted, and after securing berths in the *Erin* steamer, he, with his wife and mother-in-law, came, with a kind of hopeful sadness in their looks and voices, to bid us farewell—for a very long time, they and we also feared—

For an eternity, it seemed, on reading the account of the loss of the *Erin*, a few days afterwards, with every soul on board! Their names were published with those of the other passengers who had embarked, and we had of course concluded that they had perished, when a letter reached us from Belfast, stating that, through some delay on the part of Mrs. Arnold, they had happily lost their passage in the *Erin*, and embarked in the next steamer for Belfast, where they arrived in perfect safety. We forwarded this intelligence to Holmford, but it elicited no reply.

We heard nothing of Mr. Linden for about two months, except by occasional notices in the "Hereford Times", which he regularly forwarded to the office, relative to the improvements on the Holmford estate, either actually begun or contemplated by its new proprietor. He very suddenly reappeared. I was cooling my heels in the waiting-room of the chambers of the Barons of the Exchequer, Chancery Lane, awaiting my turn of admission, when one of our clerks came in, half-breathless with haste. "You are wanted, sir, immediately; Mr. Flint is out, and Mr. Linden is at the office raving like a mad-man." I instantly transferred the business I was in attendance at chambers upon, to the clerk, and with the help of a cab soon reached home.

Mr. Linden was not *raving* when I arrived. The violence of the paroxysm of rage and terror by which he was possessed had passed away, and he looked, as I entered, the image of pale, rigid, iron, dumb despair. He held a letter and a strip of parchment in his hand; these he presented, and with white, stammering lips, bade me read. The letter was from an attorney of the name of Sawbridge, giving notice of an action of ejectment, to oust him from the possession of the Holmford estate, the property, according to Mr. Sawbridge, of one Edwin Majoribanks; and the strip of parchment was the writ by which the letter had been quickly followed. I was astounded; and my scared looks questioned Mr. Linden for further information.

"I do not quite understand it," he said in a hoarse, palpitating voice. "No possession or title in the venders; a niece not of age—executors no power to sell—Palliser discovered it, robbed me, absconded, and I, oh God! am a miserable beggar!"

The last words were uttered with a convulsive scream, and after a few frightful struggles he fell down in a fit. I had him conveyed to bed, and as soon as he was somewhat recovered, I hastened off to ascertain from Sawbridge, whom I knew very intimately, the nature of the claim intended to be set up for the plaintiff, Edwin Majoribanks.

I met Sawbridge just as he was leaving his office, and as he was in too great a hurry to turn back, I walked along with him, and he rapidly detailed the chief facts about to be embodied in the plaintiff's declaration. Archibald Dursley, once a London merchant, and who died a bachelor, had bequeathed his estate, real and personal, to his brother Charles, and a niece, his sister's child—two-thirds to the niece, and one-third to the brother. The Holmford property, the will directed, should be sold by public auction when the niece came of age, unless she, by marriage or otherwise, was enabled, within six months after attaining her majority, to pay over to Charles Dursley his third

in money, according to a valuation made for the purpose by competent assessors. The brother, Charles Dursley, had urged upon the executors to anticipate the time directed by the will for the sale of the property; and having persuaded the niece to give a written authorization for the immediate sale, the executors, chiefly, Sawbridge supposed, prompted by their own necessities, sold the estate accordingly. But the niece not being of age when she signed the authority to sell, her consent was of no legal value; and she having since died intestate, Edwin Majoribanks, her cousin and undoubted heir-at-law—for the property could not have passed from her, even by marriage—now claimed the estate. Charles Dursley, the brother, was dead; "and," continued Mr. Sawbridge, "the worst of it is, Linden will never get a farthing of his purchase-money from the venders, for they are bankrupt, nor from Palliser, who has made permanent arrangements for continuing abroad, out of harm's reach. It is just as I tell you," he added, as we shook hands at parting; "but you will of course see the will, and satisfy yourself. Good-by."

Here was a precious result of amateur common-sense lawyership! Linden could only have examined the abstract of title furnished him by Palliser's attorney, and not the right of Dursley's executors to sell; or had not been aware that the niece could not during her minority, subscribe an effective legal consent.

I found Mr. Flint at the office, and quickly imparted the astounding news. He was as much taken aback as myself.

"The obstinate, pig-headed old ass!" he exclaimed; "it almost serves him right, if only for his Tom-fool nonsense of 'Every man his own lawyer.' What did you say was the niece's name?"

"Well, I don't remember that Sawbridge told me—he was in such a hurry; but suppose you go at once and look over the will?"

"True: I will do so;" and away he went.

"This is a very singular affair, Sharp," said Mr. Flint on his return from Doctors' Commons, at the same time composedly seating himself, hooking his thumbs into the arm-holes of his waistcoat, crossing his legs, and tilting his chair back on its hind legs. "A very singular affair. Whom, in the name of the god of thieves—Mercury, wasn't he called?—do you suppose the bankrupt executors to be? No other," continued Mr. Flint with a sudden burst, "than Crowther & Jenkins!"

"The devil!—and the niece then is"—

"Catherine Arnold—Tom Linden's wife—supposed to have been drowned in the *Erin*! That's check-mate, I rather fancy—not only to Mr. Edwin Majoribanks, but some one else we know of. The old fellow up stairs won't refuse to acknowledge his daughter-in-law now, I fancy!"

This was indeed a happy change in the fortunes of the House of Linden; and we discussed, with much alacrity, the best mode of turning disclosures so momentous and surprising to the best account. As a first step, a letter with an inclosure, was dispatched to Belfast, requiring the return of Thomas Linden and family immediately; and the next was to plead in form to the action. This done, we awaited Catherine Linden's arrival in London, and Mr. Linden senior's convalescence—for his mental agitation had resulted in a sharp fit of illness—to effect a satisfactory and just arrangement.

Mr. and Mrs. Thomas Linden and Mrs. Arnold arrived by the earliest steamer that left Belfast after the receipt of our letter; and much astonished were they by the intelligence that awaited them. Catherine Linden was for confirming the validity of the sale of the Holmford estate by her now authoritative consent at once, as a mere act of common justice and good faith; but this, looking at the total loss of fortune she had sustained by the

knavery of the executors, and the obstinate, mulish temper of the father-in-law, from whom she had already received such harsh treatment, could not for a moment be permitted; and it was finally resolved to take advantage of the legal position in which she stood, to enforce a due present provision for herself and husband, and their ultimate succession to the estate.

John Linden gradually recovered; and as soon as it was deemed prudent to do so, we informed him that the niece was not dead, as the plaintiff in the action of ejectment had supposed, and that of course, if she could now be persuaded to ratify the imperative consent she had formerly subscribed, he might retain Holmford. At first he received the intelligence as a gleam of light and hope, but he soon relapsed into doubt and gloom. "What chance was there," he hopelessly argued, "that, holding the legal power, she would not exercise it?" It was not, he said, in human nature to do otherwise; and he commissioned us to make liberal offers for a compromise. Half—he would be content to lose half his purchase-money; even a greater sacrifice than that he would agree to—anything, indeed, that would not be utter ruin—that did not involve utter beggary and destitution in old age.

Three days after this conversation, I announced to him that the lady and her husband were below and desirous of seeing him.

"What do they say?" he eagerly demanded. "Will they accept of half—two-thirds? What do they say?"

"I cannot precisely tell you. They wish to see you alone, and you can urge your own views and offers." He trembled violently, and shrank nervously back as I placed my hand on the door-handle of the private office. He presently recovered in some degree his self-possession, passed in, and I withdrew from the humiliating, but salutary spectacle, of obdurate tyrant-power compelled to humble itself before those whom it had previously scorned and trampled upon.

The legal arrangements which Flint and I had suggested were effected, and Linden, senior, accompanied by his son, daughter-in-law, and Mrs. Arnold, set off in restored amity for Holmford House. Edwin Majoribanks abandoned his action, and Palliser, finding that matters were satisfactorily arranged, retired to England. We afterwards knew that he had discovered the defect of title, on applying to a well-known conveyancer, to raise a considerable sum by way of mortgage, and that his first step was to threaten legal proceedings against Crowther & Jenkins for the recovery of his money; but a hint he obtained of the futility of proceedings against them, determined him to offer the estate at a low figure to Linden, relying upon that gentleman's ostentatious contempt of lawyers that the blot in the title, subjected only to his own common-sense spectacles, would not be perceived.

THE CHEST OF DRAWERS.

I am about to relate a rather curious piece of domestic history, some of the incidents of which, revealed at the time of their occurrence in contemporary law reports, may be in the remembrance of many readers. It took place in one of the midland counties, and at a place which I shall call Watley; the names of the chief actors who figured in it must also, to spare their modesty of their blushes, as the case may be, be changed; and should one of those persons, spite of these precautions, apprehend unpleasant recognition, he will be able to console himself with the reflection, that all I state beyond that which may be gathered from the records of the law courts will be generally ascribed to the fancy or invention of the writer. And it is as well, perhaps, that it should be so.

Caleb Jennings, a shoemaker, cobbler, snob—using the last word in its genuine classical sense, and by no means according to the modern interpretation by which it is held to signify a genteel sneak or pretender—he was anything but that—occupied, some twelve or thirteen years ago, a stall at Watley, which, according to the traditions of the place, had been hereditary in his family for several generations. He may also be said to have flourished there, after the manner of cobblers; for this, it must be remembered, was in the good old times, before the gutta-percha revolution had carried ruin and dismay into the stalls—those of cobblers—which in considerable numbers existed throughout the kingdom. Like all his

fraternity whom I have ever fallen in with or heard of, Caleb was a sturdy radical of the Major Cartwright and Henry Hunt school; and being withal industrious, tolerably skillful, not inordinately prone to the observance of Saint Mondays, possessed, moreover, of a neatly-furnished sleeping and eating apartment in the house of which the projecting first floor, supported on stone pillars, over-shadowed his humble work-place, he vaunted himself to be as really rich as an estated squire, and far more independent.

There was some truth in this boast, as the case which procured us the honor of Mr. Jennings's acquaintance sufficiently proved. We were employed to bring an action against a wealthy gentleman of the vicinity of Watley for a brutal and unprovoked assault he had committed, when in a state of partial inebriety, upon a respectable London tradesman who had visited the place on business. On the day of trial our witnesses appeared to have become suddenly afflicted with an almost total loss of memory; and we were only saved from an adverse verdict by the plain, straight-forward evidence of Caleb, upon whose sturdy nature the various arts which soften or neutralize hostile evidence had been tried in vain. Mr. Flint, who personally superintended the case, took quite a liking to the man; and it thus happened that we were called upon sometime afterwards to aid the said Caleb in extricating himself from the extraordinary and perplexing difficulty in which he suddenly and unwittingly found himself involved.

The projecting first floor of the house beneath which the humble workshop of Caleb Jennings modestly disclosed itself, had been occupied for many years by an ailing and somewhat aged gentleman of the name of Lisle. This Mr. Ambrose Lisle was a native of Watley, and had been a prosperous merchant of the city of London. Since his return, after about twenty years' absence, he had shut himself up in almost total seclusion, nourishing a cynical bitterness and acrimony of temper which gradually withered up the sources of health and life, till at length it became as visible

to himself as it had for sometime been to others, that the oil of existence was expended, burnt up, and that but a few weak flickers more, and the ailing man's complaints and griefs would be hushed in the dark silence of the grave.

Mr. Lisle had no relatives at Watley, and the only individual with whom he was on terms of personal intimacy, was Mr. Peter Sowerby, an attorney of the place, who had for many years transacted all his business. This man visited Mr. Lisle most evenings, played at chess with him, and gradually acquired an influence over his client which that weak gentleman had once or twice feebly, but vainly endeavored to shake off. To this clever attorney, it was rumored, Mr. Lisle had bequeathed all his wealth.

This piece of information had been put in circulation by Caleb Jennings, who was a sort of humble favorite of Mr. Lisle's, or, at all events, was regarded by the misanthrope with less dislike than he manifested towards others. Caleb cultivated a few flowers in a little plot of ground at the back of the house, and Mr. Lisle would sometimes accept a rose or a bunch of violets from him. Other slight services—especially since the recent death of his old and garrulous woman-servant, Esther May, who had accompanied him from London, and with whom Mr. Jennings had always been upon terms of gossiping intimacy—had led to certain familiarities of intercourse; and it thus happened that the inquisitive shoemaker became partially acquainted with the history of the wrongs and griefs which preyed upon, and shortened the life of the prematurely-aged man.

The substance of this every-day, common-place story, as related to us by Jennings, and subsequently enlarged and colored from other sources, may be very briefly told.

Ambrose Lisle, in consequence of an accident which occurred in his infancy, was slightly deformed. His right shoulder—as I understood, for I

never saw him—grew out, giving an ungraceful and somewhat comical twist to his figure, which, in female eyes—youthful ones at least—sadly marred the effect of his intelligent and handsome countenance. This personal defect rendered him shy and awkward in the presence of women of his own class of society; and he had attained the ripe age of thirty-seven years, and was a rich and prosperous man, before he gave the slightest token of an inclination towards matrimony. About a twelvemonth previous to that period of his life, the deaths—quickly following each other—of a Mr. and Mrs. Stevens, threw their eldest daughter, Lucy, upon Mr. Lisle's hands. Mr. Lisle had been left an orphan at a very early age, and Mrs. Stevens—his aunt, and then a maiden lady—had, in accordance with his father's will, taken charge of himself and brother till they severally attained their majority. Long, however, before that, she married Mr. Stevens, by whom she had two children—Lucy and Emily. Her husband, whom she survived but two months, died insolvent; and in obedience to the dying wishes of his aunt, for whom he appears to have felt the tenderest esteem, he took the eldest of her orphan children to his home, intending to regard and provide for her as his own adopted child and heiress. Emily, the other sister, found refuge in the house of a still more distant relative than himself.

The Stevenses had gone to live in a remote part of England—Yorkshire, I believe—and it thus fell out, that, till his cousin Lucy arrived at her new home, he had not seen her for more than ten years. The pale, and somewhat plain child, as he had esteemed her, he was startled to find had become a charming woman; and her naturally gay and joyous temperament, quick talents, and fresh young beauty, rapidly acquired an overwhelming influence over him. Strenuously, but vainly, he struggled against the growing infatuation—argued, reasoned with himself—passed in review the insurmountable objections to such a union, the difference of age—he, leading towards thirty-seven, she, barely twenty-one: he, crooked, deformed, of reserved, taciturn temper—she, full of young life, and grace,

and beauty. It was useless; and nearly a year had passed in the bootless struggle, when Lucy Stevens, who had vainly striven to blind herself to the nature of the emotions by which her cousin and guardian was animated towards her, intimated a wish to accept her sister Emily's invitation to pass two or three months with her. This brought the affair to a crisis. Buoying himself up with the illusions which people in such an unreasonable frame of mind create for themselves, he suddenly entered the sitting-room set apart for her private use, with the desperate purpose of making his beautiful cousin a formal offer of his hand. She was not in the apartment, but her opened writing-desk, and a partly-finished letter lying on it, showed that she had been recently there, and would probably soon return. Mr. Lisle took two or three agitated turns about the room, one of which brought him close to the writing-desk, and his glance involuntarily fell upon the unfinished letter. Had a deadly serpent leaped suddenly at his throat, the shock could not have been greater. At the head of the sheet of paper was a clever pen-and-ink sketch of Lucy Stevens and himself—he, kneeling to her in a lovelorn, ludicrous attitude, and she, laughing immoderately at his lachrymose and pitiful aspect and speech. The letter was addressed to her sister Emily; and the enraged lover saw not only that his supposed secret was fully known, but that he himself was mocked, laughed at, for his doting folly. At least this was his interpretation of the words which swam before his eyes. At the instant Lucy returned, and a torrent of imprecation burst from the furious man, in which wounded self-love, rageful pride, and long pent-up passion, found utterance in wild and bitter words. Half an hour afterwards Lucy Stevens had left the merchant's house—for ever, as it proved. She, indeed, on arriving at her sister's, sent a letter, supplicating forgiveness for the thoughtless, and, as he deemed it, insulting sketch, intended only for Emily's eye; but he replied merely by a note written by one of his clerks, informing Miss Stevens that Mr. Lisle declined any further correspondence with her.

The ire of the angered and vindictive man had, however, begun sensibly to abate, and old thoughts, memories, duties, suggested partly by the blank which Lucy's absence made in his house, partly by remembrance of the solemn promise he had made her mother, were strongly reviving in his mind, when he read the announcement of marriage in a provincial journal, directed to him, as he believed, in the bride's hand-writing; but this was an error, her sister having sent the newspaper. Mr. Lisle also construed this into a deliberate mockery and insult, and from that hour strove to banish all images and thoughts connected with his cousin, from his heart and memory.

He unfortunately adopted the very worst course possible for effecting this object. Had he remained amid the buzz and tumult of active life, a mere sentimental disappointment, such as thousands of us have sustained and afterwards forgotten, would, there can be little doubt, have soon ceased to afflict him. He chose to retire from business, visited Watley, and habits of miserliness growing rapidly upon his cankered mind, never afterwards removed from the lodgings he had hired on first arriving there. Thus madly hugging to himself sharp-pointed memories, which a sensible man would have speedily cast off and forgotten, the sour misanthrope passed a useless, cheerless, weary existence, to which death must have been a welcome relief.

Matters were in this state with the morose and aged man—aged mentally and corporeally, although his years were but fifty-eight—when Mr. Flint made Mr. Jennings's acquaintance. Another month or so had passed away when Caleb's attention was one day about noon claimed by a young man dressed in mourning, accompanied by a female similarly attired, and from their resemblance to each other he conjectured were brother and sister. The stranger wished to know if that was the house in which Mr. Ambrose Lisle resided. Jennings said it was; and with civil alacrity left his stall and rang the front-door bell. The summons was answered by the landlady's servant,

who, since Esther May's death, had waited on the first-floor lodger; and the visitors were invited to go up stairs. Caleb, much wondering who they might be, returned to his stall, and from thence passed into his eating and sleeping-room just below Mr. Lisle's apartments. He was in the act of taking a pipe from the mantel-shelf, in order to the more deliberate and satisfactory cogitation on such an unusual event, when he was startled by a loud shout, or scream rather, from above. The quivering and excited voice was that of Mr. Lisle, and the outcry was immediately followed by an explosion of unintelligible exclamations from several persons. Caleb was up stairs in an instant, and found himself in the midst of a strangely-perplexing and distracted scene. Mr. Lisle, pale as his shirt, shaking in every limb, and his eyes on fire with passion, was hurling forth a torrent of vituperation and reproach at the young woman, whom he evidently mistook for some one else; whilst she, extremely terrified, and unable to stand but for the assistance of her companion, was tendering a letter in her outstretched hand, and uttering broken sentences, which her own agitation and the fury of Mr. Lisle's invectives rendered totally incomprehensible. At last the fierce old man struck the letter from her hand, and with frantic rage ordered both the strangers to leave the room. Caleb urged them to comply, and accompanied them down stairs. When they reached the street, he observed a woman on the other side of the way, dressed in mourning, and much older apparently, though he could not well see her face through the thick veil she wore, than she who had thrown Mr. Lisle into such an agony of rage, apparently waiting for them. To her the young people immediately hastened, and after a brief conference the three turned away up the street, and Mr. Jennings saw no more of them.

A quarter of an hour afterwards the house-servant informed Caleb that Mr. Lisle had retired to bed, and although still in great agitation, and, as she feared, seriously indisposed, would not permit Dr. Clarke to be sent for. So sudden and violent a hurricane in the usually dull and drowsy atmosphere in

which Jennings lived, excited and disturbed him greatly; the hours, however, flew past without bringing any relief to his curiosity, and evening was falling, when a peculiar knocking on the floor over-head announced that Mr. Lisle desired his presence. That gentleman was sitting up in bed, and in the growing darkness his face could not be very distinctly seen; but Caleb instantly observed a vivid and unusual light in the old man's eyes. The letter so strangely delivered was lying open before him; and unless the shoe-mender was greatly mistaken, there were stains of recent tears upon Mr. Lisle's furrowed and hollow cheeks. The voice, too, it struck Caleb, though eager, was gentle and wavering. "It was a mistake, Jennings," he said; "I was mad for the moment. Are they gone?" he added in a yet more subdued and gentle tone. Caleb informed him of what he had seen; and as he did so, the strange light in the old man's eyes seemed to quiver and sparkle with a yet intenser emotion than before. Presently he shaded them with his hand, and remained several minutes silent. He then said with a firmer voice, "I shall be glad if you will step to Mr. Sowerby, and tell him I am too unwell to see him this evening. But be sure to say nothing else," he eagerly added, as Caleb turned away in compliance with his request; "and when you come back, let me see you again."

When Jennings returned, he found to his great surprise Mr. Lisle up and nearly dressed; and his astonishment increased a hundred-fold upon hearing that gentleman say, in a quick but perfectly collected and decided manner, that he should set off for London by the mail-train.

"For London—and by night!" exclaimed Caleb, scarcely sure that he heard aright.

"Yes—yes! I shall not be observed in the dark," sharply rejoined Mr. Lisle; "and you, Caleb, must keep my secret from every body, especially from Sowerby. I shall be here in time to see him to-morrow night, and he

will be none the wiser." This was said with a slight chuckle; and as soon as his simple preparations were complete, Mr. Lisle, well wrapped up, and his face almost hidden by shawls, locked his door, and assisted by Jennings, stole furtively down stairs, and reached unrecognized the railway station just in time for the train.

It was quite dark the next evening when Mr. Lisle returned; and so well had he managed, that Mr. Sowerby, who paid his usual visit about half an hour afterwards, had evidently heard nothing of the suspicious absence of his esteemed client from Watley. The old man exulted over the success of his deception to Caleb, the next morning, but dropped no hint as to the object of his sudden journey.

Three days passed without the occurrence of any incident tending to the enlightenment of Mr. Jennings upon these mysterious events, which, however, he plainly saw had lamentably shaken the long-since failing man. On the afternoon of the fourth day, Mr. Lisle walked, or rather tottered, into Caleb's stall, and seated himself on the only vacant stool it contained. His manner was confused, and frequently purposeless, and there was an anxious, flurried expression in his face, which Jennings did not at all like. He remained silent for some time, with the exception of partially inaudible snatches of comment or questionings, apparently addressed to himself. At last he said, "I shall take a longer journey to-morrow, Caleb—much longer; let me see—where did I say? Ah, yes! to Glasgow; to be sure to Glasgow!"

"To Glasgow, and to-morrow!" exclaimed the astounded cobbler.

"No, no—not Glasgow; they have removed," feebly rejoined Mr. Lisle. "But Lucy has written it down for me. True—true; and to-morrow I shall set out."

The strange expression of Mr. Lisle's face became momentarily more strongly marked, and Jennings, greatly alarmed, said, "You are ill, Mr. Lisle; let me run for Dr. Clarke."

"No—no," he murmured, at the same time striving to rise from his seat, which he could only accomplish by Caleb's assistance, and so supported, he staggered indoors. "I shall be better to-morrow," he said faintly, and then slowly added, "To-morrow, and to-morrow, and to-morrow! Ah, me! Yes, as I said, to-morrow, I"—He paused abruptly, and they gained his apartment. He seated himself, and then Jennings, at his mute solicitation, assisted him to bed.

He lay some time with his eyes closed; and Caleb could feel—for Mr. Lisle held him firmly by the hand, as if to prevent his going away—a convulsive shudder pass over his frame. At last he slowly opened his eyes, and Caleb saw that he was indeed about to depart upon the long journey from which there is no return. The lips of the dying man worked inarticulately for some moments; and then with a mighty effort, as it seemed, he said, whilst his trembling hand pointed feebly to a bureau chest of drawers that stood in the room, "There—there, for Lucy; there, the secret place is"—Some inaudible words followed, and then after a still mightier struggle than before, he gasped out, "No word—no word—to—to Sowerby—for her—Lucy."

More was said, but undistinguishable by mortal ear; and after gazing with an expression of indescribable anxiety in the scared face of his awe-struck listener, the wearied eyes slowly reclosed—the deep silence flowed past; then the convulsive shudder came again, and he was dead!

Caleb Jennings tremblingly summoned the house-servant and the landlady, and was still confusedly pondering the broken sentences uttered by the dying man, when Mr. Sowerby hurriedly arrived. The attorney's first

care was to assume the direction of affairs, and to place seals upon every article containing or likely to contain anything of value belonging to the deceased. This done, he went away to give directions for the funeral, which took place a few days afterwards; and it was then formally announced that Mr. Sowerby succeeded by will to the large property of Ambrose Lisle; under trust, however, for the family, if any, of Robert Lisle, the deceased's brother, who had gone when very young to India, and had not been heard of for many years—a condition which did not at all mar the joy of the crafty lawyer, he having long since instituted private inquiries, which perfectly satisfied him, that the said Robert Lisle had died, unmarried, at Calcutta.

Mr. Jennings was in a state of great dubiety and consternation. Sowerby had emptied the chest of drawers of every valuable it contained; and unless he had missed the secret receptacle Mr. Lisle had spoken of, the deceased's intentions, whatever they might have been, were clearly defeated. And if he had *not* discovered it, how could he, Jennings, get at the drawers to examine them? A fortunate chance brought some relief to his perplexities. Ambrose Lisle's furniture was advertised to be sold by auction, and Caleb resolved to purchase the bureau chest of drawers at almost any price, although to do so would oblige him to break into his rent-money, then nearly due. The day of sale came, and, the important lot in its turn was put up. In one of the drawers there were a number of loose newspapers, and other valueless scraps; and Caleb, with a sly grin, asked the auctioneer, if he sold the article with all its contents. "Oh, yes," said Sowerby, who was watching the sale; "the buyer may have all it contains over his bargain, and much good may it do him." A laugh followed the attorney's sneering remark, and the biddings went on. "I want it," observed Caleb "because it just fits a recess like this one in my room underneath." This he said to quiet a suspicion he thought he saw gathering upon the attorney's brow. It was finally knocked down to Caleb at £5 10s., a sum considerably beyond its real value; and he had to borrow a sovereign in order to clear his speculative purchase. This done, he

carried off his prize, and as soon as the closing of the house for the night secured him from interruption, he set eagerly to work in search of the secret drawer. A long and patient examination was richly rewarded. Behind one of the small drawers of the *secrétaire* portion of the piece of furniture was another small one, curiously concealed, which contained Bank-of-England notes to the amount of £200, tied up with a letter, upon the back of which was written, in the deceased's hand-writing, "To take with me." The letter which Caleb, although he read print with facility, had much difficulty in making out, was that which Mr. Lisle had struck from the young woman's hand a few weeks before, and proved to be a very affecting appeal from Lucy Stevens, now Lucy Warner, and a widow, with two grown-up children. Her husband had died in insolvent circumstances, and she and her sister Emily, who was still single, were endeavoring to carry on a school at Bristol, which promised to be sufficiently prosperous if the sum of about £150 could be raised, to save the furniture from her deceased husband's creditors. The claim was pressing, for Mr. Warner had been dead nearly a year, and Mr. Lisle being the only relative Mrs. Warner had in the world, she had ventured to entreat his assistance for her mother's sake. There could be no moral doubt, therefore, that this money was intended for Mrs. Warner's relief; and early in the morning Mr. Caleb Jennings dressed himself in his Sunday's suit, and with a brief announcement to his landlady that he was about to leave Watley for a day or two, on a visit to a friend, set off for the railway station. He had not proceeded far when a difficulty struck him—the bank-notes were all twenties; and were he to change a twenty-pound note at the station, where he was well known, great would be the tattle and wonderment, if nothing worse, that would ensue. So Caleb tried his credit again, borrowed sufficient for his journey to London, and there changed one of the notes.

He soon reached Bristol, and blessed was the relief which the sum of money he brought afforded Mrs. Warner. She expressed much sorrow for

the death of Mr. Lisle, and great gratitude to Caleb. The worthy man accepted with some reluctance one of the notes, or at least as much as remained of that which he had changed; and after exchanging promises with the widow and her relatives to keep the matter secret, departed homewards. The young woman, Mrs. Warner's daughter, who had brought the letter to Watley, was, Caleb noticed, the very image of her mother, or, rather, of what her mother must have been when young. This remarkable resemblance it was, no doubt, which had for the moment so confounded and agitated Mr. Lisle.

Nothing occurred for about a fortnight after Caleb's return to disquiet him, and he had begun to feel tolerably sure that his discovery of the notes would remain unsuspected, when, one afternoon, the sudden and impetuous entrance of Mr. Sowerby into his stall caused him to jump up from his seat with surprise and alarm. The attorney's face was deathly white, his eyes glared like a wild beast's, and his whole appearance exhibited uncontrollable agitation. "A word with you, Mr. Jennings," he gasped—"a word in private, and at once!" Caleb, in scarcely less consternation than his visitor, led the way into his inner room, and closed the door.

"Restore—give back," screamed the attorney, vainly struggling to dissemble the agitation which convulsed him—"that—that which you have purloined from the chest of drawers!"

The hot blood rushed to Caleb's face and temples; the wild vehemence and suddenness of the demand confounded him; and certain previous dim suspicions that the law might not only pronounce what he had done illegal, but possibly felonious, returned upon him with terrible force, and he quite lost his presence of mind.

"I can't—I can't," he stammered. "It's gone—given away"—

"Gone!" shouted, or, more correctly, howled—Sowerby, at the same time flying at Caleb's throat as if he would throttle him. "Gone—given away! You lie—you want to drive a bargain with me—dog!—liar!—rascal!—thief!"

This was a species of attack which Jennings was at no loss how to meet. He shook the attorney roughly off, and hurled him, in the midst of his vituperation, to the further end of the room.

They then stood glaring at each other in silence, till the attorney, mastering himself as well as he could, essayed another and more rational mode of attaining his purpose:—

"Come, come, Jennings," he said, "don't be a fool. Let us understand each other. I have just discovered a paper, a memorandum of what you have found in the drawers, and to obtain which you bought them. I don't care for the money—keep it; only give me the papers—documents."

"Papers—documents!" ejaculated Caleb, in unfeigned surprise.

"Yes—yes; of use to me only. You, I remember, cannot read writing; but they are of great consequence to me—to me only, I tell you."

"You can't mean Mrs. Warner's letter?"

"No—no; curse the letter! You are playing with a tiger! Keep the money, I tell you; but give up the papers—documents—or I'll transport you!" shouted Sowerby with reviving fury.

Caleb, thoroughly bewildered, could only mechanically ejaculate that he had no papers or documents.

The rage of the attorney when he found he could extract nothing from Jennings was frightful. He literally foamed with passion, uttered the wildest threats; and then suddenly changing his key, offered the astounded cobbler one—two—three thousand pounds—any sum he chose to name, for the papers—documents! This scene of alternate violence and cajolery lasted nearly an hour; and then Sowerby rushed from the house as if pursued by the furies, and leaving his auditor in a state of thorough bewilderment and dismay. It occurred to Caleb, as soon as his mind had settled into something like order, that there might be another secret drawer; and the recollection of Mr. Lisle's journey to London recurred suggestively to him. Another long and eager search, however, proved fruitless; and the suspicion was given up, or, more correctly, weakened.

As soon as it was light the next morning, Mr. Sowerby was again with him. He was more guarded now, and was at length convinced that Jennings had no paper or document to give up. "It was only some important memoranda," observed the attorney carelessly, "that would save me a world of trouble in a lawsuit I shall have to bring against some heavy debtors to Mr. Lisle's estate; but I must do as well as I can without them. Good morning." Just as he reached the door a sudden thought appeared to strike him. He stopped and said, "By the way, Jennings, in the hurry of business I forgot that Mr. Lisle had told me the chest of drawers you bought, and a few other articles, were family relics which he wished to be given to certain parties he named. The other things I have got; and you, I suppose, will let me have the drawers for—say a pound profit on your bargain?"

Caleb was not the acutest man in the world; but this sudden proposition, carelessly as it was made, suggested curious thoughts. "No," he answered; "I shall not part with it. I shall keep it as a memorial of Mr. Lisle."

Sowerby's face assumed as Caleb spoke, a ferocious expression. "Shall you?" said he. "Then, be sure, my fine fellow, that you shall also have something to remember me by as long as you live."

He then went away, and a few days afterwards Caleb was served with a writ for the recovery of the two hundred pounds.

The affair made a great noise in the place; and Caleb's conduct being very generally approved, a subscription was set on foot to defray the cost of defending the action—one Hayling, a rival attorney to Sowerby, having asserted that the words used by the proprietor of the chest of drawers at the sale barred his claim to the money found in them. This wise gentleman was intrusted with the defence; and strange to say, the jury—a common one—spite of the direction of the judge returned a verdict for the defendant, upon the ground that Sowerby's jocular or sneering remark amounted to a serious, valid leave and license to sell two hundred pounds for five pounds ten shillings!

Sowerby obtained, as a matter of course, a rule for a new trial; and a fresh action was brought. All at once Hayling refused to go on, alleging deficiency of funds. He told Jennings that in his opinion it would be better that he should give in to Sowerby's whim, who only wanted the drawers in order to comply with the testator's wishes. "Besides," remarked Hayling in conclusion, "he is sure to get the article, you know, when it comes to be sold under a writ of *fi fa*." A few days after this conversation it was ascertained that Hayling was to succeed to Sowerby's business, the latter gentleman being about to retire upon the fortune bequeathed him by Mr. Lisle.

At last Caleb, driven nearly out of his senses, though still doggedly obstinate, by the harassing perplexities in which he found himself, thought of applying to us.

"A very curious affair, upon my word," remarked Mr. Flint, as soon as Caleb had unburdened himself of the story of his woes and cares; "and in my opinion by no means explainable by Sowerby's anxiety to fulfill the testator's wishes. He cannot expect to get two hundred pence out of you; and Mrs. Warner, you say, is equally unable to pay. Very odd indeed. Perhaps if we could get time, something might turn up."

With this view Flint looked over the papers Caleb had brought, and found the declaration was in *trover*—a manifest error—the notes never admittedly having been in Sowerby's actual possession. We accordingly demurred to the form of action, and the proceedings were set aside. This, however, proved of no ultimate benefit. Sowerby persevered, and a fresh action was instituted against the unhappy shoe-mender. So utterly overcrowded and disconsolate was poor Caleb, that he determined to give up the drawers which was all Sowerby even now required, and so wash his hands of the unfortunate business. Previous, however, to this being done, it was determined that another thorough and scientific examination of the mysterious piece of furniture should be made; and for this purpose Mr. Flint obtained a workman skilled in the mysteries of secret contrivances, from the desk and dressing-case establishment in King Street, Holborn, and proceeded with him to Watley.

The man performed his task with great care and skill; every depth and width was gauged and measured, in order to ascertain if there were any false bottoms or backs; and the workman finally pronounced that there was no concealed receptacle in the article.

"I am sure there is," persisted Flint, whom disappointment as usual rendered but the more obstinate; "and so is Sowerby: and he knows too, that it is so cunningly contrived as to be undiscoverable, except by a person in the secret, which he no doubt at first imagined Caleb to be. I'll tell you what

we'll do—You have the necessary tools with you. Split the confounded chest of drawers into shreds—I'll be answerable for the consequences."

This was done carefully and methodically, but for some time without result. At length the large drawer next the floor had to be knocked to pieces; and as it fell apart, one section of the bottom, which, like all the others, was divided into two compartments, dropped asunder, and discovered a parchment laid flat between the two thin leaves, which, when pressed together in the grooves of the drawer, presented precisely the same appearance as the rest. Flint snatched up the parchment, and his eager eye had scarcely rested an instant on the writing, when a shout of triumph burst from him. It was the last will and testament of Ambrose Lisle, dated August 21, 1838—the day of his last hurried visit to London. It revoked the former will, and bequeathed the whole of his property, in equal portions, to his cousins Lucy Warner and Emily Stevens, with succession to their children; but with reservation of one-half to his brother Robert or children, should he be alive, or have left offspring.

Great, it may be supposed was the jubilation of Caleb Jennings at this discovery; and all Watley, by his agency, was in a marvelously short space of time in a very similar state of excitement. It was very late that night when he reached his bed; and how he got there at all, and what precisely had happened, except, indeed, that he had somewhere picked up a splitting headache, was, for some time after he awoke the next morning, very confusedly remembered.

Mr. Flint, by reflection, was by no means so exultant as the worthy shoemaker. The odd mode of packing away a deed of such importance, with *no assignable motive for doing so*, except the needless awe with which Sowerby was said to have inspired his feeble-spirited client, together with what Caleb had said of the shattered state of the deceased's mind after the

interview with Mrs. Warner's daughter, suggested fears that Sowerby might dispute, and perhaps successfully, the validity of this last will. My excellent partner, however, determined, as was his wont, to put a bold face on the matter; and first clearly settling in his own mind what he should and what he should *not* say, waited upon Mr. Sowerby. The news had preceded him, and he was at once surprised and delighted to find that the nervous crest-fallen attorney was quite unaware of the advantages of his position. On condition of not being called to account for the moneys he had received and expended, about £1200, he destroyed the former will in Mr. Flint's presence, and gave up, at once, all the deceased's papers. From these we learned that Mr. Lisle had written a letter to Mrs. Warner, stating what he had done, and where the will would be found, and that only herself and Jennings would know the secret. From infirmity of purpose, or from having subsequently determined on a personal interview, the letter was not posted; and Sowerby subsequently discovered it, together with a memorandum of the numbers of the bank-notes found by Caleb in the secret drawer—the eccentric gentleman appears to have had quite a mania for such hiding-places—of a writing-desk.

The affair was thus happily terminated; Mrs. Warner, her children, and sister, were enriched, and Caleb Jennings was set up in a good way of business in his native place, where he still flourishes. Over the centre of his shop there is a large nondescript sign, surmounted by a golden boot, which upon a close inspection is found to bear a resemblance to a huge bureau chest of drawers, all the circumstances connected with which may be heard, for the asking, and in much fuller detail than I have given, from the lips of the owner of the establishment, by any lady or gentleman who will take the trouble of a journey to Watley for that purpose.

THE PUZZLE.

Tempus fugit! The space of but a few brief yesterdays seems to have passed since the occurrence of the following out-of-the-way incidents—out-of-the-way, even in our profession, fertile as it is in startling experiences; and yet the faithful and unerring tell-tale and monitor, Anno Domini 1851, instructs me that a quarter of a century has nearly slipped by since the first scene in the complicated play of circumstances opened upon me. The date I remember well, for the Tower-guns had been proclaiming with their thunder-throats the victory of Navarino but a short time before a clerk announced, "William Martin, with a message from Major Stewart."

This William Martin was a rather sorry curiosity in his way. He was now in the service of our old client, Major Stewart; and a tall, good-looking fellow enough, spite of a very decided cast in his eyes, which the rascal, when in his cups—no unusual occurrence—declared he had caught from his former masters—Edward Thorneycroft, Esq., an enormously rich and exceedingly yellow East India director, and his son, Mr. Henry Thorneycroft, with whom, until lately transferred to Major Stewart's service, he had lived from infancy—his mother and father having formed part of the elder Thorneycroft's establishment when he was born. He had a notion in his head that he had better blood in his veins than the world supposed, and was excessively fond of aping the gentleman; and this he did, I must say, with the ease and assurance of a stage-player. His name was

scarcely out of the clerk's lips when he entered the inner office with a great effort at steadiness and deliberation, closed the door very carefully and importantly, hung his hat with much precision on a brass peg, and then steadying himself by the door-handle, surveyed the situation and myself with staring lack-lustre eyes and infinite gravity. I saw what was the matter.

"You have been in the 'Sun,' Mr. Martin?"

A wink, inexpressible by words, replied to me, and I could see by the motion of the fellow's lips that speech was attempted; but it came so thick that it was several minutes before I made out that he meant to say the British had been knocking the Turks about like bricks, and that he had been patriotically drinking the healths of the said British or bricks.

"Have the goodness, sir, to deliver your message, and then instantly leave the office."

"Old Tho-o-o-rney," was the hiccoughed reply, "has smoked the—the plot. Young Thorney's done for. Ma-a-ried in a false name; tra-ansportation—of course."

"What gibberish is this about old Thorney and young Thorney? Do you not come from Major Stewart?"

"Ye-e-es, that's right; the route's arrived for the old trump; wishes to—to see you"

"Major Stewart dying! Why, you are a more disgraceful scamp than I believed you to be. Send this fellow away," I added to a clerk who answered my summons. I then hastened off, and was speedily rattling over the stones towards Baker Street, Portman Square, where Major Stewart resided. As I left the office I heard Martin beg the clerk to lead him to the pump previous

to sending him off—no doubt for the purpose of sobering himself somewhat previous to reappearing before the major, whose motives for hiring or retaining such a fellow in his modest establishment I could not understand.

"You were expected more than an hour ago," said Dr. Hampton, who was just leaving the house. "The major is now, I fear, incapable of business."

There was no time for explanation, and I hastily entered the sick-chamber. Major Stewart, though rapidly sinking, recognized me; and in obedience to a gesture from her master the aged, weeping house-keeper left the room. The major's daughter, Rosamond Stewart, had been absent with her aunt, her father's maiden sister, on a visit, I understood, to some friends in Scotland, and had not, I concluded, been made acquainted with the major's illness, which had only assumed a dangerous character a few days previously. The old soldier was dying calmly and painlessly—rather from exhaustion of strength, a general failure of the powers of life, than from any especial disease. A slight flush tinged the mortal pallor of his face as I entered, and the eyes emitted a slightly-reproachful expression.

"It is not more, my dear sir," I replied softly but eagerly to his look, "than a quarter of an hour ago that I received your message."

I do not know whether he comprehended or even distinctly heard what I said, for his feeble but extremely anxious glance was directed whilst I spoke to a large oil-portrait of Rosamond Stewart, suspended over the mantel-piece. The young lady was a splendid, dark-eyed beauty, and of course the pride and darling of her father. Presently wrenching, as it were, his eyes from the picture, he looked in my face with great earnestness, and bending my ear close to his lips, I heard him feebly and brokenly say, "A question to ask you, that's all; read—read!" His hand motioned towards a letter which lay open on the bed; I ran it over, and the major's anxiety was at once explained. Rosamond Stewart had, I found, been a short time previously

married in Scotland to Henry Thorneycroft, the son of the wealthy East India director. Finding his illness becoming serious, the major had anticipated the time and mode in which the young people had determined to break the intelligence to the irascible father of the bridegroom, and the result was the furious and angry letter in reply which I was perusing. Mr. Thorneycroft would never, he declared, recognize the marriage of his undutiful nephew—nephew, *not* son; for he was, the letter announced, the child of an only sister, whose marriage had also mortally offended Mr. Thorneycroft, and had been brought up from infancy as his (Mr. Thorneycroft's) son, in order that the hated name of Allerton, to which the boy was alone legally entitled, might never offend his ear. There was something added insinulative of a doubt of the legality of the marriage, in consequence of the misnomer of the bridegroom at the ceremony.

"One question," muttered the major, as I finished the perusal of the letter—"Is Rosamond's marriage legal?"

"No question about it. How could any one suppose that an involuntary misdescription can affect such a contract?"

"Enough—enough!" he gasped. "A great load is gone!—the rest is with God. Beloved Rosamond"—The slight whisper was no longer audible; sighs, momentarily becoming fainter and weaker, followed—ceased, and in little more than ten minutes after the last word was spoken, life was extinct. I rang the bell, and turned to leave the room, and as I did so surprised Martin on the other side of the bed. He had been listening, screened by the thick damask curtains, and appeared to be a good deal sobered. I made no remark, and proceeded on down stairs. The man followed, and as soon as we had gained the hall said quickly, yet hesitatingly, "Sir—sir!"

"Well, what have you to say?"

"Nothing very particular, sir. But did I understand you to say just now, that it was of no consequence if a man married in a false name?"

"That depends upon circumstances. Why do you ask?"

"Oh, nothing—nothing; only I have heard it's transportation, especially if there's money."

"Perhaps you are right. Anything else?"

"No," said he, opening the door; "that's all—mere curiosity."

I heard nothing more of the family for some time, except with reference to Major Stewart's personal property, about £4000 bequeathed to his daughter, with a charge thereon of an annuity of £20 a year for Mrs. Leslie, the aged house-keeper; the necessary business connected with which we transacted. But about a twelvemonth after the major's death, the marriage of the elder Thorneycroft with a widow of the same name as himself, and a cousin, the paper stated, was announced; and pretty nearly a year and a half subsequent to the appearance of this ominous paragraph, the decease of Mr. Henry Thorneycroft at Lausanne, in Switzerland, who had left, it was added in the newspaper stock-phrase of journalism, a young widow and two sons to mourn their irreparable loss. Silence again, as far as we were concerned, settled upon the destinies of the descendants of our old military client, till one fine morning a letter from Dr. Hampton informed us of the sudden death by apoplexy, a few days previously, of the East India director. Dr. Hampton further hinted that he should have occasion to write us again in a day or two, relative to the deceased's affairs, which, owing to Mr. Thorneycroft's unconquerable aversion to making a will, had, it was feared, been left in an extremely unsatisfactory state. Dr. Hampton had written to us, at the widow's request, in consequence of his having informed her that

we had been the professional advisers of Major Stewart, and were in all probability those of his daughter, Mrs. Henry Allerton.

We did not quite comprehend the drift of this curious epistle; but although not specially instructed, we determined at once to write to Mrs. Rosamond Thorneycroft or Allerton, who with her family was still abroad, and in the meantime take such formal steps in her behalf as might appear necessary.

We were not long in doubt as to the motives of the extremely civil application to ourselves on the part of the widow of the East India director. The deceased's wealth had been almost all invested in land, which went, he having died intestate, to his nephew's son, Henry Allerton; and the personals in which the widow would share were consequently of very small amount. Mrs. Thorneycroft was, therefore, anxious to propose, through us, a more satisfactory and equitable arrangement. We could of course say nothing till the arrival of Mrs. Rosamond Allerton, for which, however, we had only a brief time to wait. There were, we found, no indisposition on that lady's part to act with generosity towards Mr. Thorneycroft's widow—a showy, vulgarish person, by the way, of about forty years of age—but there was a legal difficulty in the way, in consequence of the heir-at-law being a minor. Mrs. Thorneycroft became at length terribly incensed, and talked a good deal of angry nonsense about disputing the claim of Henry Allerton's son to the estates, on the ground that his marriage, having been contracted in a wrong name, was null and void. Several annoying paragraphs got in consequence into the Sunday newspapers, and these brought about a terrible disclosure.

About twelve o'clock one day, the Widow Thorneycroft bounced unceremoniously into the office, dragging in with her a comely and rather interesting-looking young woman, but of a decidedly rustic complexion and

accent, and followed by a grave, middle-aged clergyman. The widow's large eyes sparkled with strong excitement, and her somewhat swarthy features were flushed with hot blood.

"I have brought you," she burst out abruptly, "the real Mrs. Allerton, and"—

"No, no!" interrupted the young woman, who appeared much agitated—"Thorneycroft, not Allerton!"—

"I know, child—I know; but that is nothing to the purpose. This young person, Mr. Sharp, is, I repeat, the true and lawful Mrs. Henry Allerton."

"Pooh!" I answered; "do you take us for idiots? This," I added with some sternness, "is either a ridiculous misapprehension or an attempt at imposture, and I am very careless which it may be."

"You are mistaken, sir," rejoined the clergyman mildly. "This young woman was certainly married by me at Swindon church, Wilts, to a gentleman of the name of Henry Thorneycroft, who, it appears from the newspapers, confirmed by this lady, was no other than Mr. Henry Allerton. This marriage, we find, took place six months previously to that contracted with Rosamond Stewart. I have further to say that this young woman, Maria Emsbury, is a very respectable person, and that her marriage-portion, of a little more than eight hundred pounds, was given to her husband, whom she has only seen thrice since her marriage, to support himself till the death of his reputed father, constantly asserted by him to be imminent."

"A story very smoothly told, and I have no doubt in your opinion quite satisfactory; but there is one slight matter which I fancy you will find somewhat difficult of proof—I mean the identity of Maria Emsbury's husband with the son or nephew of the late Mr. Thorneycroft."

"He always said he was the son of the rich East Indian, Mr. Thorneycroft," said the young woman with a hysterical sob; "and here," she added, "is his picture in his wedding-dress—that of an officer of the Gloucestershire Yeomanry. He gave it me the day before the wedding."

I almost snatched the portrait. Sure enough it was a miniature of Henry Allerton—there could be no doubt about that.

Mr. Flint, who had been busy with some papers, here approached and glanced at the miniature.

I was utterly confounded, and my partner, I saw, was equally dismayed; and no wonder, entertaining as we both did the highest respect and admiration for the high-minded and beautiful daughter of Major Stewart.

The Widow Thorneycroft's exultation was exuberant.

"As this only legal marriage," said she, "has been blessed with no issue, I am of course, as you must be aware, the legitimate heiress-at-law, as my deceased husband's nearest blood-relative. I shall, however," she added, "take care to amply provide for my widowed niece-in-law."

The young woman made a profound rustic courtesy, and tears of unaffected gratitude, I observed, filled her eyes.

The game was not, however, to be quite so easily surrendered as they appeared to imagine. "Tut! tut!" exclaimed Mr. Flint bluntly—"this may be mere practice. Who knows how the portrait has been obtained?"

The girl's eyes flashed with honest anger. There was no practice about her I felt assured. "Here are other proofs: My husband's signet-ring, left accidentally, I think, with me, and two letters which I from curiosity took

out of his coat-pocket—the day, I am pretty sure it was, after we were married."

"If this cumulative circumstantial evidence does not convince you, gentlemen," added the Rev. Mr. Wishart, "I have direct personal testimony to offer. You know Mr. Angerstein of Bath?"

"I do."

"Well, Mr. Henry Thorneycroft or Allerton, was at the time this marriage took place, on a visit to that gentleman; and I myself saw the bridegroom, whom I had united a fortnight previously in Swindon church, walking arm-and-arm with Mr. Angerstein in Sydney Gardens, Bath. I was at some little distance, but I recognized both distinctly, and bowed. Mr. Angerstein returned my salutation, and he recollects the circumstance distinctly. The gentleman walking with him in the uniform of the Gloucestershire Yeomanry was, Mr. Angerstein is prepared to depose, Mr. Henry Thorneycroft or Allerton."

"You waste time, reverend sir," said Mr. Flint with an affectation of firmness and unconcern he was, I knew, far from feeling. "We are the attorneys of Mrs. Rosamond Allerton, and shall, I dare say, if you push us to it, be able to tear this ingeniously-colored cobweb of yours to shreds. If you determine on going to law, your solicitor can serve us; we will enter an appearance, and our client will be spared unnecessary annoyance."

They were about to leave, when, as ill-luck would have it, one of the clerks who, deceived by the momentary silence, and from not having been at home when the unwelcome visitors arrived, believed we were disengaged, opened the door, and admitted Mrs. Rosamond Allerton and her aunt, Miss Stewart. Before we could interpose with a word, the Widow

Thorneycroft burst out with the whole story in a torrent of exultant Volubility that it was impossible to check or restrain.

For awhile contemptuous incredulity, indignant scorn, upheld the assailed lady; but as proof after proof was hurled at her, reinforced by the grave soberness of the clergyman and the weeping sympathy of the young woman, her firmness gave way, and she swooned in her aunt's arms. We should have more peremptorily interfered but for our unfortunate client's deprecatory gestures. She seemed determined to hear the worst at once. Now, however, we had the office cleared of the intruders without much ceremony and, as soon as the horror-stricken lady was sufficiently recovered, she was conducted to her carriage, and after arranging for an early interview on the morrow, was driven off.

I found our interesting, and, I feared, deeply-injured client much recovered from the shock which on the previous day had overwhelmed her; and although exceedingly pale—lustrously so, as polished Parian marble—and still painfully agitated, there was hope, almost confidence, in her eye and tone.

"There is some terrible misapprehension in this frightful affair, Mr. Sharp," she began. "Henry, my husband, was utterly incapable of a mean or dishonest act, much less of such utter baseness as this of which he is accused. They also say, do they not," she continued, with a smile of haughty contempt, "that he robbed the young woman of her poor dowry—some eight hundred pounds? A proper story!"

"That, I confess, from what little I know of Mr. Henry Thorneycroft, stamps the whole affair as a fabrication; and yet the Reverend Mr. Wishart—a gentleman of high character, I understand—is very positive. The young woman, too, appeared truthful and sincere."

"Yes—it cannot be denied. Let me say also—for it is best to look at the subject on its darkest side—I find, on looking over my letters, that my husband was staying with Mr. Angerstein at the time stated. He was also at that period in the Gloucestershire Yeomanry. I gave William Martin, but the other day, a suit of his regimentals very little the worse for wear."

"You forget to state, Rosamond," said Miss Stewart, who was sitting beside her niece, "that Martin, who was with his young master at Bath, is willing to make oath that no such marriage took place as asserted, at Swindon church."

"That alone would, I fear, my good madam, very little avail. Can I see William Martin?"

"Certainly." The bell was rung, and the necessary order given.

"This Martin is much changed for the better, I hear?"

"O yes, entirely so," said Miss Stewart. "He is also exceedingly attached to us all, the children especially; and his grief and anger, when informed of what had occurred, thoroughly attest his faithfulness and sincerity."

Martin entered, and was, I thought, somewhat confused by my apparently unexpected presence. A look at his face and head dissipated a half-suspicion that had arisen in both Flint's mind and my own.

I asked him a few questions relative to the sojourn of his master at Bath, and then said, "I wish you to go with me and Bee this Maria Emsbury."

As I spoke, something seemed to attract Martin's attention in the street, and suddenly turning round, his arm swept a silver pastil-stand off the table. He stooped down to gather up the dispersed pastils, and as he did so, said, in answer to my request, "that he had not the slightest objection to do so."

"That being the case, we will set off at once, as she and her friends are probably at the office by this time. They are desirous of settling the matter off-hand," I added with a smile, addressing Mrs. Allerton, "and avoiding, if possible, the delays and uncertainties of the law."

As I anticipated, the formidable trio were with Mr. Flint. I introduced Martin, and as I did so, watched, with an anxiety I could hardly have given a reason for, the effect of his appearance upon the young woman. I observed nothing. He was evidently an utter stranger to her, although, from the involuntary flush which crossed his features, it occurred to me that he was in some way an accomplice with his deceased master in the cruel and infamous crime which had, I strongly feared, been perpetrated.

"Was this person present at your marriage?" I asked.

"Certainly not. But I think—now I look at him—that I have seen him somewhere—about Swindon, it must have been."

William Martin mumbled out that he had never been in Swindon; neither, he was sure, had his master.

"What is that?" said the girl, looking sharply up, and suddenly coloring—"What is that?"

Martin, a good deal abashed, again mumbled out his belief that young Mr.

Thorneycroft, as he was then called, had never been at Swindon.

The indignant scarlet deepened on the young woman's face and temples, and she looked at Martin with fixed attention and surprise. Presently recovering, as if from some vague confusedness of mind, she said, "What you *believe*, can be no consequence—truth is truth, for all that."

The Rev. Mr. Wishart here interposed, remarking that as it was quite apparent we were determined to defend the usurpation by Miss Rosamond Stewart—a lady to be greatly pitied, no doubt—of another's right, it was useless to prolong or renew the interview; and all three took immediate leave. A few minutes afterward Martin also departed, still vehemently asserting that no such marriage ever took place at Swindon or anywhere else.

No stone, as people say, was left unturned by us, in the hope of discovering some clue that might enable us to unravel the tangled web of coherent, yet, looking at the character of young Mr. Allerton, *improbable* circumstance. We were unsuccessful, and unfortunately many other particulars which came to light but deepened the adverse complexion of the case. Two respectable persons living at Swindon were ready to depose on oath that they had on more than one occasion seen Maria Emsbury's sweetheart with Mr. Angerstein at Bath—once especially at the theatre, upon the benefit-night of the great Edmund Kean, who had been playing there for a few nights.

The entire case, fully stated, was ultimately laid by us before eminent counsel—one of whom is now, by the by, a chief-justice—and we were advised that the evidence as set forth by us could not be contended against with any chance of success. This sad result was communicated by me to Mrs. Allerton, as she still unswervingly believed herself to be, and was borne with more constancy and firmness than I had expected. Her faith in her husband's truth and honor was not in the slightest degree shaken by the accumulated proofs. She would not, however, attempt to resist them before a court of law. Something would, she was confident, thereafter come to light that would vindicate the truth, and confiding in our zeal and watchfulness, she, her aunt, and children, would in the meantime shelter themselves from the gaze of the world in their former retreat at Lausanne.

This being the unhappy lady's final determination, I gave the other side notice that we should be ready on a given day to surrender possession of the house and effects in South Audley Street, which the Widow Thorneycroft had given up to her supposed niece-in-law and family on their arrival in England, and to re-obtain which, and thereby decide the whole question in dispute, legal proceedings had already been commenced.

On the morning appointed for the purpose—having taken leave of the ladies the day previously—I proceeded to South Audley Street, to formally give up possession, under protest, however. The niece and aunt were not yet gone. This, I found, was owing to Martin, who, according to the ladies, was so beside himself with grief and rage that he had been unable to expedite as he ought to have done, the packing intrusted to his care. I was vexed at this, as the Widow Thorneycroft, her protégée, and the Rev. Mr. Wishart, accompanied by a solicitor, were shortly expected; and it was desirable that a meeting of the antagonistic parties should be avoided. I descended to the lower regions to remonstrate with and hurry Martin, and found, as I feared, that his former evil habits had returned upon him. It was not yet twelve o'clock, and he was already partially intoxicated, and pale, trembling, and nervous from the effects, it was clear to me, of the previous night's debauch.

"Your mistress is grossly deceived in you!" I angrily exclaimed; "and if my advice were taken, you would be turned out of the house at once without a character. There, don't attempt to bamboozle me with that nonsense; I've seen fellows crying drunk before now."

He stammered out some broken excuses, to which I very impatiently listened; and so thoroughly muddled did his brain appear, that he either could not or would not comprehend the possibility of Mrs. Allerton and her children being turned out of house and home, as he expressed it, and over and over again asked me if nothing could yet be done to prevent it. I was

completely disgusted with the fellow, and sharply bidding him hasten his preparations for departure, rejoined the ladies, who were by this time assembled in the back drawing-room, ready shawled and bonneted for their journey. It was a sad sight. Rosamond Stewart's splendid face was shadowed by deep and bitter grief, borne, it is true, with pride and fortitude; but it was easy to see its throbbing pulsations through all the forced calmness of the surface. Her aunt, of a weaker nature, sobbed loudly in the fullness of her grief; and the children, shrinking instinctively in the chilling atmosphere of a great calamity, clung, trembling and half-terrified, the eldest especially, to their mother. I did not insult them with phrases of condolence, but turned the conversation, if such it could be called, upon their future home and prospects in Switzerland. Some time had thus elapsed when my combative propensities were suddenly aroused by the loud dash of a carriage to the door, and the peremptory rat-tat-tat which followed. I felt my cheek flame as I said, "They demand admittance as if in possession of an assured, decided right. It is not yet too late to refuse possession, and take the chances of the law's uncertainty."

Mrs. Allerton shook her head with decisive meaning. "I could not bear it," she said in a tone of sorrowful gentleness. "But I trust we shall not be intruded upon."

I hurried out of the apartment, and met the triumphant claimants. I explained the cause of the delay, and suggested that Mrs. Thorneycroft and her friends could amuse themselves in the garden whilst the solicitor and I ran over the inventory of the chief valuables to be surrendered together.

This was agreed to. A minute or two before the conclusion of this necessary formality, I received a message from the ladies, expressive of a wish to be gone at once, if I would escort them to the hotel; and Martin, who was nowhere to be found, could follow. I hastened to comply with their

wishes; and we were just about to issue from the front drawing-room, into which we had passed through the folding-doors, when we were confronted by the widow and her party, who had just reached the landing of the great staircase. We drew back in silence. The mutual confusion into which we were thrown caused a momentary hesitation only, and we were passing on when the butler suddenly appeared.

"A gentleman," he said, "an officer, is at the door, who wishes to see a Miss Maria Emsbury, formerly of Swindon."

I stared at the man, discerned a strange expression in his face, and it glanced across me at the same moment that I had heard no knock at the door.

"See Miss Emsbury!" exclaimed the Widow Thorneycroft, recovering her speech—"there is no such person here!"

"Pardon me, madam," I cried, catching eagerly at the interruption, as a drowning man is said to do at a straw—"this young person was at least Miss Emsbury. Desire the officer to walk up." The butler vanished instantly, and we all huddled back disorderly into the drawing-room, some one closing the door after us. I felt the grasp of Mrs. Allerton's arm tighten convulsively round mine, and her breath I heard, came quick and short. I was hardly less agitated myself.

Steps—slow and deliberate steps—were presently heard ascending the stairs, the door opened, and in walked a gentleman in the uniform of a yeomanry officer, whom at the first glance I could have sworn to be the deceased Mr. Henry Allerton. A slight exclamation of terror escaped Mrs. Allerton, followed by a loud hysterical scream from the Swindon young woman, as she staggered forward towards the stranger, exclaiming, "Oh,

merciful God!—my husband!" and then fell, overcome with emotion, in his outstretched arms.

"Yes," said the Rev. Mr. Wishart promptly, "that is certainly the gentleman I united to Maria Emsbury. What can be the meaning of this scene?"

"Is that sufficient, Mr. Sharp?" exclaimed the officer, in a voice that removed all doubt.

"Quite, quite," I shouted—"more than enough!"

"Very well, then," said William Martin, dashing off his black curling wig, removing his whiskers of the same color, and giving his own light, but now cropped head of hair and clean-shaved cheeks to view. "Now, then, send for the police, and let them transport me—I richly merit it. I married this young woman in a false name; I robbed her of her money, and I deserve the hulks, if anybody ever did."

You might have heard a pin drop in the apartment whilst the repentant rascal thus spoke; and when he ceased, Mrs. Allerton, unable to bear up against the tumultuous emotion which his words excited, sank without breath or sensation upon a sofa. Assistance was summoned; and whilst the as yet imperfectly-informed servants were running from one to another with restoratives, I had leisure to look around. The Widow Thorneycroft, who had dropped into a chair, sat gazing in bewildered dismay upon the stranger, who still held her lately-discovered niece-in-law in his arms; and I could see the hot perspiration which had gathered on her brow run in large drops down the white channels which they traced through the thick rouge of her cheeks. But the reader's fancy will supply the best image of this unexpected and extraordinary scene. I cleared the house of intruders and visitors as

speedily as possible, well assured that matters would now adjust themselves without difficulty.

And so it proved. Martin was not sent to the hulks, though no question that he amply deserved a punishment as great as that. The self-sacrifice, as he deemed it, which he at last made, pleaded for him, and so did his pretty-looking wife; and the upshot was, that the mistaken bride's dowry was restored, with something over, and that a tavern was taken for them in Piccadilly—the White Bear, I think it was—where they lived comfortably and happily, I have heard, for a considerable time, and having considerably added to their capital, removed to a hotel of a higher grade in the city, where they now reside. It was not at all surprising that the clergyman and others had been deceived. The disguise, and Martin's imitative talent, might have misled persons on their guard, much more men unsuspicious of deception. The cast in the eyes, as well as a general resemblance of features, also of course greatly aided the imposture.

Of Mrs. Rosamond Allerton, I have only to say, for it is all I know, that she is rich, unwedded, and still splendidly beautiful, though of course somewhat *passé* compared with herself twenty years since. Happy, too, I have no doubt she is, judging from the placid brightness of her aspect the last time I saw her beneath the transept of the Crystal Palace, on the occasion of its opening by the Queen. I remember wondering at the time, if she often recalled to mind the passage in her life which I have here recorded.

THE ONE BLACK SPOT.

On the evening of a bleak, cold March day, in an early year of this century, a woman, scantily clad, led a boy about eight years old, along the high-road towards the old city of Exeter. They crept close to the hedge-side to shelter themselves from the clouds of dust, which the sudden gusts of east wind blew in their faces.

They had walked many miles, and the boy limped painfully. He often looked up anxiously into his mother's face, and asked if they had much farther to go? She scarcely appeared to notice his inquiries; her fixed eyes and sunken cheek gave evidence that sorrow absorbed all her thoughts. When he spoke, she drew him closer to her side, but made no reply; until, at length, the child, wondering at her silence, began to sob. She stopped and looked at her child for a moment, her eyes filled with tears. They had gained the top of a hill, from which was visible in the distance, the dark massive towers of the cathedral and the church-spires of the city; she pointed them out, and said, "We shall soon be there, Ned." Then, sitting down on a tree that was felled by the road-side, she took "Ned" on her lap, and, bending over him, wept aloud.

"Are you very tired, mother?" said the boy, trying to comfort her. "'Tis a long way—but don't cry—we shall see father when we come there."

"Yes—you will see your father once more."

She checked herself; and, striving to dry her tears, sat looking wistfully towards the place of her destination.

The tramp of horses, coming up the hill they had just ascended, drew the boy's attention to that direction. In a moment he had sprung from his mother, and was shouting, with child-like delight, at the appearance of a gay cavalcade which approached. About thirty men on horseback, in crimson liveries, surrounded two carriages, one of which contained two of His Majesty's Judges, accompanied by the High Sheriff of the county, who, with his javelin-men, was conducting them to the city, in which the Lent Assizes were about to be held.

The woman knelt until the carriages and the gaudy javelin-men had turned the corner at the foot of a hill, and were no longer visible; with her hands clasped together, she had prayed to God to temper with mercy the heart of the Judge, before whom her unfortunate husband, now in jail, would have to stand his trial. Then, taking the boy again by the hand—unable to explain to him what he had seen—she pursued her way with him, silently, along the dusty road.

As they drew nearer to the city, they overtook various groups of stragglers, who had deemed it their duty, in spite of the inclement weather to wander some miles out of the city to catch an early glimpse of "My Lord Judge," and the gay Sheriff's officers. Troops, also, of itinerant ballad-singers, rope-dancers, mountebanks, and caravans of wild beasts, still followed the Judges, as they had done throughout the circuit. "Walk more slowly, Ned," said the mother, checking the boy's desire to follow the shows. "I am very tired; let us rest a little here." They lingered until the crowd was far ahead of them—and were left alone on the road.

Late in the evening, as the last stragglers were returning home, the wayfarers found themselves in the suburbs of the city, and the forlorn

woman looked around anxiously for a lodging. She feared the noisy people in the streets; and, turning timidly towards an old citizen who stood by his garden-gate, chatting to his housekeeper, and watching the passers-by—there was a kindness in his look which gave her confidence—so, with a homely courtesy, she ventured to inquire of him where she might find a decent resting-place.

"Have you never been here before?" he asked.

"Never but once, sir, when I was a child, many years ago."

"What part of the country do you come from?"

"Uffeulme."

"Uffeulme? How did you get here?"

"We have walked."

"You don't say that you have trudged all the way with that youngster?"

The housekeeper drowned the reply by loudly announcing to the old gentleman that his supper was waiting—"We have no lodgings, my good woman," she said, turning away from the gate.

"Stop, Martha, stop," said the citizen. "Can't we direct them somewhere?—you see they are strangers. I wonder where they could get a lodging?"

"I am sure I don't know," replied Martha, peevishly; "your supper will be cold—come in!"

"We've had no supper," said the boy.

"Poor little fellow!" said the old gentleman; "then I am sure you shall not go without. Martha, the bread and cheese!" And, opening the garden-gate, he made the travelers enter and sit down in the summer-house, whilst he went to fetch them a draught of cider.

In spite of Martha's grumbling, he managed to get a substantial repast; but it grieved him that the woman, though she thanked him very gratefully and humbly, appeared unable to eat.

"Your boy eats heartily," said he, "but I am afraid you don't enjoy it."

With a choking utterance she thanked him, but could not eat.

The good old man was striving, as well as he could, to explain to them their way to a part of the city, where they might find a lodging, when the garden-gate opened, and a young man gave to the host a hearty greeting.

At the sound of his voice, the cup the woman held in her hand, fell to the ground. This drew the youth's attention to her; he looked earnestly at her for a moment, and with an exclamation of surprise, said, "Why, this is Susan Harvey?"

The woman hid her face in her hands, and moaned.

"Do you know her, then, Alfred?" said the uncle.

"She nursed me when I was a little sickly boy," replied the youth; "she lived many years in my father's house."

"Then I am sure you will take her to some lodging to-night, for she is quite a stranger here. There is Martha calling to me again; she is not in the best temper to-night, so I had better go in, and I leave them to your care."

"Oh! tell me, Mr. Gray, have you seen him?" cried the woman eagerly.

"I have been with him to-day, Susan," said Gray, kindly taking her hand—"do not be cast down; all that can be done for Martin, shall be done. Let me take you where you can rest to-night, and to-morrow you can be with him."

The weary little boy had fallen asleep on the seat; the mother strove to arouse him, but Alfred Gray prevented her, by taking the little fellow in his arms. He carried him by her side through the streets; she could utter no words of gratitude, but her tears flowed fast, and told how the young man's sympathy had fallen like balm upon her wounded heart. "God has taken pity on me," she said, when they parted.

With a quick step Alfred regained his uncle's cottage; he had a difficult task to accomplish. Martin Harvey, now awaiting his trial for poaching, and for being concerned in an affray with Sir George Roberts' game-keepers, had once been his father's apprentice. Young Gray had been endeavoring to procure for him all the legal help which the laws then allowed; but his own means were limited, and, when he met Susan and her boy in the garden, he had come to visit his uncle to ask his assistance. He had now returned on the same errand. He pleaded earnestly, and with caution, but was repulsed. It was in vain he urged the poverty of agricultural laborers at that season, and the temptation which an abundance of game afforded to half-starved men and their wretched families.

"Nonsense, Alfred!" said old Mr. Gray. "I would not grudge you the money if you did not want it for a bad purpose. You must not excuse men who go out with guns and fire at their fellow-creatures in the dark."

"Martin did not fire, uncle—that is what I want to prove, and save him, if I can, from transportation. He has a wife and child."

"Wife and child!" repeated the old man thoughtfully. "You did not tell me he had a wife and child; that poor woman came from Uffeulme."

"Providence must have guided her," said the younger Gray. "It was indeed Harvey's wife and son whom you so lately relieved."

"You shall have the money. I have all through life prayed that my heart may not be hardened; and I find, old as I am, that, every day I have fresh lessons to learn."

The next morning, while Alfred held anxious consultation with the lawyers, the wife and husband met within the prison walls. They sat together in silence, for neither could speak a single word of hope. The boy never forgot that long and dreary day, during which he watched, with wondering thoughts, the sad faces of his ruined parents.

The Crown Court of the Castle was next morning crowded to overflowing. Among the struggling crowd that vainly sought to gain admission, was Martin Harvey's wife. She was rudely repulsed by the door-keepers, who "wondered what women wanted in such places." She still strove to keep her ground, and watched with piteous looks the doors of the court. She braved the heat and pressure for some time; but a sickly faintness at length came over her. She was endeavoring to retreat into the open air, when she felt some one touch her shoulder, and turning, saw Alfred Gray making his way toward her. After a moment's pause in the cool air, he led her round to a side-door, through which there was a private entrance into the court. He whispered a word to an officer, who admitted them, and pointed to a seat behind the dock, where they were screened from observation, and where the woman could see her husband standing between his two fellow-prisoners.

The prisoners were listening anxiously to the evidence which the principal game-keeper was offering against them. The first, a man about sixty, excited greater interest than the others. He earnestly attended to what was going on, but gave no sign of fear, as to the result. Brushing back his gray locks, he gazed round the court, with something like a smile. This man's life had been a strange one. Early in his career he had been ejected from a farm which he had held under the father of the present prosecutor, Sir George Roberts; he soon after lost what little property had been left him, and, in despair enlisted—was sent abroad with his regiment—and for many years shared in the toils and achievements of our East Indian warfare. Returning home on a small pension, he fixed his abode in his native village, and sought to indulge his old enmity against the family that had injured him by every kind of annoyance in his power. The present baronet, a narrow-minded tyrannical man, afforded by his unpopularity good opportunity to old Ralph Somers to induce others to join him in his schemes of mischief and revenge. "The game," which was plentiful on the estate, and the preservation of which was Sir George's chief delight, formed the principal object of attack; the poverty of the laborers tempted them to follow the old soldier, who managed affairs so warily, that for nine years he had been an object of the utmost terror and hatred to Sir George and his keepers, whilst all their efforts to detect and capture him had, until now, been fruitless.

Martin Harvey, who stood by his side with his shattered arm in a sling, bore marks of acute mental suffering and remorse; but his countenance was stamped with its original, open, manly expression—a face often to be seen among a group of English farm laborers, expressive of a warm heart, full of both courage and kindness.

The evidence was soon given. The game-keepers, on the night of the 24th of February, were apprised that poachers were in the plantations. Taking with them a stronger force than usual, all well-armed, they discovered the

objects of their search, in a lane leading out into the fields, and shouted to them to surrender. They distinctly saw their figures flying before them, and when they approached them, one of the fugitives turned round and fired, wounding one of the keepers' legs with a quantity of small shot. The keeper immediately fired in return, and brought down a poacher; old Ralph's voice was heard shouting to them to desist, and upon coming up they found him standing by the side of Martin Harvey, who had fallen severely wounded. Three guns lay by them, one of which had been discharged, but no one could swear who had fired it; search was made all night for the other man, but without success.

When the prisoners were called on for their defence, they looked at one another for a moment as if neither wished to speak first; Ralph, however, began. He had little to say. Casting a look of defiance at Sir George and his lady, who sat in a side-gallery above the court, he freely confessed that hatred to the man who had injured him in his youth, and who had treated him with harshness on his return from abroad, had been the motive of his encouraging and aiding in these midnight depredations; he expressed sorrow for having occasioned trouble to his neighbor Harvey. "What I can say will be of little use to me here," said Martin Harvey, in a hollow voice; "I am ruined, beyond redress; but I was a very poor man when I first joined, with others, in snaring game; I often wanted bread, and saw my wife and child pinched for food also. The rich people say game belongs to them; but—well—all I can say more is, that I take God to witness I never lifted a murderous gun against my fellow-man; he who did it has escaped; and I have suffered this broken limb—but that I don't mind—I have worse than that to bear—I have broken my wife's heart, and my child will be left an orphan."

His voice failed. There was an uneasy movement among the audience: and a lady, who had been leaning over the rails of the side-gallery listening

with deep attention, fainted, and was carried out of court. The prisoner's pale wife, who had bowed her head behind him in silent endurance, heard a whisper among the bystanders that it was Lady Roberts, and a hope entered her mind that the lady's tender heart might feel for them.

"Have you any witnesses to call?" asked the Judge.

Martin looked round with a vacant gaze; the attorney whispered to him, and beckoned to Alfred Gray.

Alfred went into the witness-box, and told of the honesty, sobriety, and good conduct of Martin Harvey, during all the years he was in his father's house—"He was there before I was born," said the young man, "and only left when I was obliged to leave also, sixteen years after. A better man never broke bread—he was beloved by every body who knew him. Till now his character was never tainted. It's the one black spot."

The Judge commenced summing up; it was evident to all who had paid attention to the evidence, that the conviction of two of the prisoners was certain. Alfred Gray knew this, and strove to induce the wife to leave with him before the fatal close of proceedings; but she shook her head and would not go. "I shall have strength to bear it," she said.

He sat down by her side, and heard the fearful verdict of "guilty" pronounced against her husband and Ralph Somers; and then the dreaded doom of transportation for life awarded to them. As they turned to leave the dock, Martin looked down upon the crushed and broken-hearted being whom he had sworn to protect and cherish through life, and in spite of every effort to repress it, a cry of agony burst from his lips; it was answered by a fainter sound, and Alfred Gray lifted the helpless, lifeless woman from the ground, and carried her into the open air.

Months passed; and on the day when the convict ship, with its freight of heavy hearts, began its silent course over the greatwaters, the widowed wife took her fatherless child by the hand, and again traversed the weary road which led them to their desolated home.

The kindness of the Grays had supplied a few immediate necessities. Some one had told her of women having, by the aid of friends, managed to meet their husbands once more in those distant parts of the earth; and this knowledge once in her agitated mind, raised a hope which inspired her to pursue her daily task without fainting, and to watch an opportunity of making an attempt which she had meditated, even during that dreadful day of Martin's trial. She resolved to seek admission into Sir George Roberts' mansion, and appeal to the pity of his wife. It was told in the village that Lady Roberts had implored her husband to interpose in behalf of the men; that his angry and passionate refusal had caused a breach between them; that they had lived unhappily ever since; that he had strictly forbidden any one to mention the subject, or to convey to Lady Roberts any remarks that were made in the neighborhood.

Susan Harvey trembled when she entered the mansion, and timidly asked leave to speak to Lady Roberts.

The servant she addressed had known her husband, and pitied her distress; and, fearing lest Sir George might pass, he led her into his pantry, watching an opportunity to let the lady know of her being there.

After a time Lady Roberts' maid came, and beckoned her to follow upstairs. In a few moments the soft voice of the lady of the mansion was cheering her with kind words, and encouraging her to disclose her wishes.

Before she had concluded, a step was heard without, at which the lady started and turned pale. Before there was time for retreat Sir George hastily

entered the apartment.

"Who have you here, Lady Roberts?"

"One who has a request to make, I believe," said the lady, mildly. "I wish a few moments with her."

"Have the goodness to walk out of this house," said the baronet to Susan. "Lady Roberts, I know this woman and I will not allow you to harbor such people here."

Although the convict's wife never again ventured into that house, her wants, and those of her child, were, during three years, ministered to by the secret agency of the Good Heart that lived so sadly there; and when, at the expiration of that period, Lady Roberts died, a trusty messenger brought to the cottage a little legacy—sufficient, if ever news came of Martin, to enable the wife and child, from whom he was separated, to make their way across the earth, and to meet him again.

But during those weary years no tidings of his fate had reached either his wife or Alfred Gray—to whom he had promised to write when he reached his destination. Another year dragged its slow course over the home of affliction, and poor Susan's hopes grew fainter day by day. Her sinking frame gave evidence of the sickness that cometh from the heart.

One summer evening, in the next year, Alfred Gray, entered his uncle's garden with a letter, and was soon seated in the summer-house reading it aloud to his uncle and Martha. Tears stood in the old man's eyes, as some touching detail of suffering or privation was related. And, indeed, the letter told of little beside. It was from Martin. Soon after his arrival in the settlement, Martin had written to Alfred, but the letter had never reached England—not an unusual occurrence in those times. After waiting long, and

getting no reply, he was driven by harsh treatment, and the degradation attending the life he led, to attempt, with old Ralph, an escape from the settlement. In simple language, he recorded the dreary life they led in the woods; how, after a time, old Ralph sickened and died; and how, in a desolate place, where the footsteps of man had, perhaps, never trod before, Martin Harvey had dug a grave, and buried his old companion. After that, unable to endure the terrible solitude, he had sought his way back to his former master, and had been treated more harshly than before. Fever and disease had wasted his frame, until he had prayed that he might die and be at rest; but God had been merciful to him, and had inclined the heart of one for whom he labored, who listened with compassion to his story, took him under his roof, and restored him to health. And now, Martin had obtained a ticket of leave, and served his kind master for wages, which he was carefully hoarding to send to Alfred Gray, as soon as he should hear from him that those he loved were still preserved, and would come and embrace him once more in that distant land.

"They shall go at once, Alfred," said old Mr. Gray, the moment the last sentence was read; "they shall not wait; we will provide the means—hey, Martha?"

He did not now fear to appeal to his companion. Martha had grown kinder of late, and she confessed she had learned of her cousin what gives most comfort to those who are drawing near their journey's end. "I can help them a little," she said.

"We will all help a little," Alfred replied. "I shall be off at break of day to-morrow, on neighbor Collins's pony, and shall give him no rest until he sets me down at Uffeulme."

Accordingly, early next morning, Alfred Gray was riding briskly along through the pleasant green lanes which led toward his native village. It was

the middle of June, bright, warm, sunny weather; and the young man's spirits was unusually gay, everything around him tending to heighten the delight which the good news he carried had inspired him with. The pony stepped out bravely, and was only checked when Alfred came in sight of the dear old home of his childhood, and heard the well-known chimes calling the villagers to their morning service, for it was Sunday. Then for a few moments the young man proceeded more slowly, and his countenance wore a more saddened look, as the blessed recollections of early loves and affections with which the scene was associated in his mind, claimed their power over all other thoughts. The voice of an old friend, from an apple-orchard hard by, recalled him from his reveries.

He shook hands through the hedge. "I will come and see you in the evening, Fred. I must hasten on now. She will go to church this morning, and I must go with her."

"Who?" asked the other.

Alfred pointed to the cottage where Susan Harvey dwelt. "I bring her good news—I have a letter. Martin is living and well."

The friend shook his head.

Alfred dismounted, and walked towards Susan Harvey's cottage. The door was closed, and when he looked through the window he could see no one inside. He lifted the latch softly and entered. There was no one there; but his entrance had been heard, and a moment after, a fine stout lad came out of the inner chamber, took Alfred's proffered hand, and in answer to his inquiries, burst into tears.

"She says she cannot live long, sir; but she told me last night, that before she died, you would come and tell us news of father. She has been saying

all the past week that we should hear from him soon."

Whilst the boy spoke, Alfred heard a weak voice, calling his name from the inner room.

"Go in," he said, "and tell her I am here."

The boy did so, and then beckoned him to enter.

Susan's submissive features were but little changed, from the time when her husband was taken from her; but the weak and wasted form that strove to raise itself in vain, as Alfred approached the bed-side, too plainly revealed that the struggle was drawing to a close—that the time of rest was at hand.

"Thank God, you are come," she said; "you have heard from him? Tell me quickly, for my time is short."

"I come to tell you good news, Susan. You may yet be restored to him."

"I shall not see Martin in this world again, Mr. Gray; but I shall close my eyes in peace. If you know where he is, and can tell me that my boy shall go and be with him, and tell him how, through these long weary years, we loved him, and thought of him, and prayed for him—" Here she broke off, and beckoned the boy to her. She held his hands within her own, whilst Alfred Gray read from the letter all that would comfort her.

When he had done, she said, "God will bless you—you have been very good to us in our misery. Now, will you promise me one thing more? Will you send my boy to his father, when I am gone?"

The promise was made; and the boy knelt long by her bedside, listening to the words of love and consolation which, with her latest breath, she

uttered for the sake of him who, she hoped, would hear them again from his child's lips.

* * * * *

Nearly forty years have passed since they laid her among the graves of the humble villagers of Uffeulme. Few remain now who remember her story or her name—but, on the other side of the world, amid scenery all unlike to that in which she dwelt, there stands a cheerful settler's home, and under the shadow of tall acacia trees which surround the little garden in which some few English flowers are blooming, there are sitting, in the cool of the summer evening, a group whose faces are all of the Anglo-Saxon mould. A happy looking couple, in the prime of life, are there, with children playing around them; and one little gentle girl, they call Susan, is sitting on the knee of an aged, white-haired man, looking lovingly into his face, and wondering why his eye so watches the setting sun every night, as it sinks behind the blue waters in the distance. Two tall, handsome lads, with guns on their shoulders, enter the garden, and hasten to show the old man the fruits of their day's exploits.

"We have been lucky to-day, grandfather," says the younger; "but Alfred says these birds are not like the birds in old England."

"You should hear the sailors talk about the game in England, Martin," replies the brother.

"Grandfather has told us all about England, except the 'birds.' He thinks we should run away, if he were to describe them."

The old man looks steadily at the boys for a moment, and his eyes fill with tears. "It is a glorious land," he says, with a faltering voice; "it is our country; but, Alfred, Martin, you will never leave this happy home to go

there. Birds there are the rich man's property, and you would not dare carry those guns of yours over English ground. If ever you go there, your father will tell you where there is a church-yard—and among the graves of the poor, there is one—"

He stopped, for Edward Harvey came to the place where his father sat, and took his trembling hand within his own; the boys obeyed their mother's signal, and followed her into the house; the two men remained sitting together, until the silent stars came out.

Then the aged man, leaning on his son's arm, rejoined the family at the supper-table—and the peace of God rested on the solitary home. Edward Harvey had faithfully kept within his heart, the memory of his mother's dying commands.

Martin, his father, had nobly effaced the one Black Spot.

THE GENTLEMAN BEGGAR.

One morning, about five years ago, I called by appointment on Mr. John Balance, the fashionable pawnbroker, to accompany him to Liverpool, in pursuit of a Levanting customer—for Balance, in addition to pawning, does a little business in the sixty per cent. line. It rained in torrents when the cab stopped at the passage which leads past the pawning-boxes to his private door. The cabman rang twice, and at length Balance appeared, looming through the mist and rain in the entry, illuminated by his perpetual cigar. As I eyed him rather impatiently, remembering that trains wait for no man, something like a hairy dog, or a bundle of rags, rose up at his feet, and barred his passage for a moment. Then Balance cried out with an exclamation, in answer apparently to a something I could not hear, "What, man alive!—slept in the passage!—there, take that, and get some breakfast, for Heaven's sake!" So saying, he jumped into the "Hansom," and we bowled away at ten miles an hour, just catching the Express as the doors of the station were closing. My curiosity was full set—for although Balance can be free with his money, it is not exactly to beggars that his generosity is usually displayed; so when comfortably ensconced in a *coupé* I finished with—

"You are liberal with your money this morning; pray, how often do you give silver to street-cadgers?—because I shall know now what walk to take when flats and sharps leave off buying law."

Balance, who would have made an excellent parson if he had not been bred to a case-hardening trade, and has still a soft bit left in his heart that is always fighting with his hard head, did not smile at all, but looked as grim as if squeezing a lemon into his Saturday night's punch. He answered slowly, "A cadger—yes; a beggar—a miserable wretch, he is now; but, let me tell you, Master David, that that miserable bundle of rags was born and bred a gentleman—the son of a nobleman, the husband of an heiress, and has sat and dined at tables where you and I, Master David, are only allowed to view the plate by favor of the butler. I have lent him thousands, and been well paid. The last thing I had from him was his court-suit; and I hold now his bill for one hundred pounds that will be paid, I expect, when he dies."

"Why, what nonsense you are talking! you must be dreaming this morning. However, we are alone; I'll light a weed, in defiance of Railway-law, while you spin that yarn; for, true or untrue, it will fill up the time to Liverpool."

"As for yarn," replied Balance, "the whole story is short enough; and as for truth, that you may easily find out if you like to take the trouble. I thought the poor wretch was dead, and I own it put me out meeting him this morning, for I had a curious dream last night."

"Oh, hang your dreams! Tell us about this gentleman beggar that bleeds you of half-crowns—that melts the heart even of a pawnbroker!"

"Well, then, that beggar is the illegitimate son of the late Marquis of Hoopborough by a Spanish lady of rank. He received a first rate education, and was brought up in his father's house. At a very early age he obtained an appointment in a public office, was presented by the marquis at court, and received into the first society, where his handsome person and agreeable manners made him a great favorite. Soon after coming of age, he married the daughter of Sir E. Bumper, who brought him a very handsome fortune,

which was strictly settled on herself. They lived in splendid style, kept several carriages, a house in town, and a place in the country. For some reason or other, idleness, or to please his lady's pride he said, he resigned his appointment. His father died, and left him nothing; indeed, he seemed at that time very handsomely provided for.

"Very soon Mr. and Mrs. Molinos Fitz-Roy began to disagree. She was cold, correct—he was hot and random. He was quite dependent on her, and she made him feel it. When he began to get into debt, he came to me. At length some shocking quarrel occurred—some case of jealousy on the wife's side, not without reason, I believe; and the end of it was, Mr. Fitz-Roy was turned out of doors. The house was his wife's, the furniture was his wife's, and the fortune was his wife's—he was, in fact, her pensioner. He left with a few hundred pounds ready money, and some personal jewelry, and went to a hotel. On these and credit he lived. Being illegitimate, he had no relations—being a fool, when he spent his money, he lost his friends. The world took his wife's part, when they found she had the fortune, and the only parties who interfered were her relatives, who did their best to make the quarrel incurable. To crown all, one night he was run over by a cab, was carried to a hospital, and lay there for months, and was, during several weeks of the time, unconscious. A message to the wife, by the hands of one of his debauched companions, sent by a humane surgeon, obtained an intimation that 'if he died, Mr. Croak, the undertaker to the family, had orders to see to the funeral,' and that Mrs. Molinos was on the point of starting for the Continent, not to return for some years. When Fitz-Roy was discharged, he came to me, limping on two sticks, to pawn his court-suit, and told me his story. I was really sorry for the fellow—such a handsome, thoroughbred-looking man. He was going then into the west somewhere, to try to hunt out a friend. 'What to do, Balance,' he said, 'I don't know. I can't dig, and unless somebody will make me their gamekeeper, I must starve, or beg, as my Jezebel bade me, when we parted!'

"I lost sight of Molinos for a long time, and when I next came upon him it was in the Rookery of Westminster, in a low lodging-house, where I was searching with an officer for stolen goods. He was pointed out to me as the 'gentleman-cadger,' because he was so free with his money when 'in luck.' He recognized me, but turned away then. I have since seen him, and relieved him more than once, although he never asks for anything. How he lives, Heaven knows. Without money, without friends, without useful education of any kind, he tramps the country, as you saw him, perhaps doing a little hop-picking or hay-making, in season, only happy when he obtains the means to get drunk. I have heard through the kitchen whispers that you know come to me, that he is entitled to some property; and I expect if he were to die his wife would pay the hundred pound bill I hold; at any rate, what I have told you I know to be true, and the bundle of rags I relieved just now is known in every thieves' lodging in England as the 'gentleman cadger.'"

This story produced an impression on me: I am fond of speculation, and like the excitement of a legal hunt as much as some do a fox-chase. A gentleman, a beggar—a wife rolling in wealth—rumors of unknown property due to the husband;—it seemed as if there were pickings for me amidst this carrion of pauperism.

Before returning from Liverpool, I had purchased the gentleman beggar's acceptance from Balance. I then inserted in the "Times" the following advertisement: "*Horatio Molinos Fitz-Roy*.—If this gentleman will apply to David Discount, Esq., Solicitor, St. James's, he will hear of something to his advantage. Any person furnishing Mr. R's correct address, shall receive £1 1s. reward. He was last seen," &c. Within twenty-four hours I had ample proof of the wide circulation of the "Times." My office was besieged with beggars of every degree, men and women, lame and blind, Irish, Scotch, and English—some on crutches, some in bowls, some in go-carts. They all

knew him as "the gentleman," and I must do the regular fraternity of tramps the justice to say, that not one would answer a question until he made certain that I meant the "gentleman" no harm.

One evening, about three weeks after the appearance of the advertisement, my clerk announced "another beggar." There came in an old man leaning upon a staff, clad in a soldier's greatcoat, all patched and torn, with a battered hat, from under which a mass of tangled hair fell over his shoulders and half concealed his face. The beggar, in a weak, wheezy, hesitating tone, said, "You have advertized for Molinos Fitz-Roy. I hope you don't mean him any harm; he is sunk, I think, too low for enmity now; and surely no one would sport with such misery as his." These last words were uttered in a sort of piteous whisper.

I answered quickly, "Heaven forbid I should sport with misery—I mean and hope to do him good, as well as myself."

"Then, sir, I am Molinos Fitz-Roy!"

While we were conversing candles had been brought in. I have not very tender nerves—my head would not agree with them—but I own I started and shuddered when I saw and knew that the wretched creature before me was under thirty years of age, and once a gentleman. Sharp, aquiline features, reduced to literal skin and bone, were begrimed and covered with dry fair hair; the white teeth of the half-open mouth chattered with eagerness, and made more hideous the foul pallor of the rest of the countenance. As he stood leaning on a staff half bent, his long, yellow bony fingers clasped over the crutch-head of his stick, he was indeed a picture of misery, famine, squalor, and premature age, too horrible to dwell upon. I made him sit down, sent for some refreshment which he devoured like a ghoul, and set to work to unravel his story. It was difficult to keep him to the point; but with pains I learned what convinced me that he was entitled

to some property, whether great or small there was no evidence. On parting, I said, "Now, Mr. F, you must stay in town while I make proper inquiries. What allowance will be enough to keep you comfortably?"

He answered humbly after much pressing, "Would you think ten shillings too much?"

I don't like, if I do those things at all, to do them shabbily—so I said, "Come every Saturday and you shall have a pound." He was profuse in thanks, of course, as all such men are as long as distress lasts.

I had previously learned that my ragged client's wife was in England, living in a splendid house in Hyde Park Gardens, under her maiden name. On the following day the Earl of Owing called upon me, wanting five thousand pounds by five o'clock the same evening. It was a case of life or death with him, so I made my terms and took advantage of his pressure to execute a *coup de main*. I proposed that he should drive me home to receive the money, calling at Mrs. Molinos in Hyde Park Gardens, on our way. I knew that the coronet and liveries of his father, the Marquis, would ensure me an audience with Mrs. Molinos Fitz-Roy.

My scheme answered. I was introduced into the lady's presence. She was, and probably is, a very stately, handsome woman, with a pale complexion, high solid forehead, regular features, thin, pinched, self-satisfied mouth. My interview was very short. I plunged into the middle of the affair, but had scarcely mentioned the word *husband*, when she interrupted me with, "I presume you have lent this profligate person money, and want me to pay you." She paused, and then said, "He shall not have a farthing." As she spoke, her white face became scarlet.

"But, Madam, the man is starving. I have strong reasons for believing he is entitled to property, and if you refuse any assistance, I must take other

measures." She rang the bell, wrote something rapidly on a card, and, as the footman appeared, pushed it towards me across the table, with the air of touching a toad, saying, "There, sir, is the address of my solicitors; apply to them if you think you have any claim. Robert, show the person out, and take care he is not admitted again."

So far I had effected nothing; and, to tell the truth, felt rather crest-fallen under the influence of that grand manner peculiar to certain great ladies and to all great actresses.

My next visit was to the attorneys, Messrs. Leasem and Fashun, of Lincoln's Inn Square; and there I was at home. I had had dealings with the firm before. They are agents for half the aristocracy, who always run in crowds like sheep after the same wine-merchants, the same architects, the same horse-dealers, and the same law-agents. It may be doubted whether the quality of law and land management they get on this principle is quite equal to their wine and horses. At any rate, my friends of Lincoln's Inn, like others of the same class, are distinguished by their courteous manners, deliberate proceedings, innocence of legal technicalities, long credit and heavy charges. Leasem, the elder partner, wears powder and a huge bunch of seals, lives in Queen Square, drives a brougham, gives the dinners and does the cordial department. He is so strict in performing the latter duty, that he once addressed a poacher who had shot a Duke's keeper, as "my dear creature," although he afterwards hung him.

Fashun has chambers in St. James Street, drives a cab, wears a tip, and does the grand haha style.

My business lay with Leasem. The interviews and letters passing were numerous. However, it came at last to the following dialogue:—

"Well, my dear Mr. Discount," began Mr. Leasem, who hates me like poison, "I'm really very sorry for that poor dear Molinos—knew his father well; a great man, a perfect gentleman; but you know what women are, eh, Mr. Discount? My client won't advance a shilling; she knows it would only be wasted in low dissipation. Now, don't you think (this was said very insinuatingly)—don't you think he had better be sent to the work-house? Very comfortable accommodation there, I can assure you—meat twice a week, and excellent soup; and then, Mr. D., we might consider about allowing you something for that bill."

"Mr. Leasem, can you reconcile it to your conscience to make such an arrangement? Here's a wife rolling in luxury, and a husband starving!"

"No, Mr. Discount, not starving; there is the work-house, as I observed before; besides, allow me to suggest that these appeals to feeling are quite unprofessional—quite unprofessional."

"But, Mr. Leasem, touching this property which the poor man is entitled to?"

"Why, there again, Mr. D., you must excuse me; you really must. I don't say he is, I don't say he is not. If you know he is entitled to property, I am sure you know how to proceed; the law is open to you, Mr. Discount—the law is open; and a man of your talent will know how to use it."

"Then, Mr. Leasem, you mean that I must, in order to right this starving man, file a Bill of Discovery, to extract from you the particulars of his rights. You have the Marriage Settlement, and all the information, and you decline to allow a pension, or afford any information; the man is to starve, or go to the work-house?"

"Why, Mr. D., you are so quick and violent, it really is not professional; but you see, (here a subdued smile of triumph,) it has been decided that a solicitor is not bound to afford such information as you ask, to the injury of his client."

"Then you mean that this poor Molinos may rot and starve, while you keep secret from him, at his wife's request, his title to an income, and that the Court of Chancery will back you in this iniquity?"

I kept repeating the word "starve," because I saw it made my respectable opponent wince. "Well, then, just listen to me: I know that in the happy state of our equity law, Chancery can't help my client; but I have another plan—I shall go hence to my office, issue a writ, and take your client's husband in execution—as soon as he is lodged in jail, I shall file his schedule in the Insolvent Court, and when he comes up for his discharge, I shall put you in the witness-box, and examine you on oath, 'touching any property of which you know the insolvent to be possessed,' and where will be your privileged communications then?"

The respectable Leasem's face lengthened in a twinkling, his comfortable confident air vanished, he ceased twiddling his gold chain, and at length he muttered, "Suppose we pay the debt?"

"Why, then, I'll arrest him the day after for another."

"But, my dear Mr. Discount, surely such conduct would not be quite respectable?"

"That's my business; my client has been wronged, I am determined to right him, and when the aristocratic firm of Leasem and Fashun takes refuge according to the custom of respectable repudiators, in the cool arbors of the Court of Chancery, why, a mere bill-discounting attorney like David

Discount, need not hesitate about cutting a bludgeon out of the Insolvent Court."

"Well, well, Mr. D., you are so warm—so fiery; we must deliberate, we must consult. You will give me until the day after to-morrow, and then we'll write you our final determination; in the meantime, send us a copy of your authority to act for Mr. Molinos Fitz-Roy."

Of course I lost no time in getting the gentleman beggar to sign a proper letter.

On the appointed day came a communication with the L. and F. seal, which I opened, not without unprofessional eagerness. It was as follows:—

"In re Molinos Fitz-Roy and Another.

"Sir,—In answer to your application on behalf of Mr. Molinos Fitz-Roy, we beg to inform you that, under the administration of a paternal aunt who died intestate, your client is entitled to two thousand five hundred pounds eight shillings and sixpence, Three per Cents.; one thousand five hundred pounds nineteen shillings and fourpence, Three per Cents., Reduced; one thousand pounds, Long Annuities; five hundred pounds, Bank Stock; three thousand five hundred pounds, India Stock, besides other securities, making up about ten thousand pounds, which we are prepared to transfer over to Mr. Molinos Fitz-Roy's direction forthwith."

Here was a windfall! It quite took away my breath.

At dusk came my gentleman beggar, and what puzzled me was how to break the news to him. Being very much overwhelmed with business that day, I had not much time for consideration. He came in rather better dressed

than when I first saw him, with only a week's beard on his chin; but, as usual, not quite sober. Six weeks had elapsed since our first interview. He was still the humble, trembling, low-voiced creature, I first knew him.

After a prelude, I said, "I find, Mr. F., you are entitled to something; pray, what do you mean to give me in addition to my bill, for obtaining it?" He answered rapidly, "Oh, take half; if there is one hundred pounds, take half—if there is five hundred pounds, take half."

"No, no; Mr. F., I don't do business in that way, I shall be satisfied with ten per cent."

It was so settled. I then led him out into the street, impelled to tell him the news, yet dreading the effect; not daring to make the revelation in my office, for fear of a scene.

I began hesitatingly, "Mr. Fitz-Roy, I am happy to say that I find you are entitled to ... ten thousand pounds!"

"Ten thousand pounds!" he echoed. "Ten thousand pounds!" he shrieked. "Ten thousand pounds!" he yelled; seizing my arm violently. "You are a brick—Here, cab! cab!" Several drove up—the shout might have been heard a mile off. He jumped in the first.

"Where to?" said the driver.

"To a tailor's, you rascal!"

"Ten thousand pounds! ha, ha, ha!" he repeated hysterically, when in the cab; and every moment grasping my arm. Presently he subsided, looked me straight in the face, and muttered with agonizing fervor, "What a jolly brick you are!"

The tailor, the hosier, the boot-maker, the hair-dresser, were in turn visited by this poor pagan of externals. As by degrees under their hands he emerged from the beggar to the gentleman, his spirits rose; his eyes brightened; he walked erect, but always nervously grasping my arm—fearing, apparently, to lose sight of me for a moment, lest his fortune, should vanish with me. The impatient pride with which he gave his orders to the astonished tradesman for the finest and best of everything, and the amazed air of the fashionable hairdresser when he presented his matted locks and stubble chin, to be "cut and shaved," may be *acted*—it cannot be described.

By the time the external transformation was complete, and I sat down in a Cafe in the Haymarket opposite a haggard but handsome thoroughbred-looking man, whose air, with the exception of the wild eyes and deeply browned face, did not differ from the stereotyped men about town sitting around us, Mr. Molinos Fitz-Roy had already almost forgotten the past. He bullied the waiter, and criticised the wine, as if he had done nothing else but dine and drink and scold there all the days of his life.

Once he wished to drink my health, and would have proclaimed his whole story to the coffee-room assembly, in a raving style. When I left he almost wept in terror at the idea of losing sight of me. But, allowing for these ebullitions—the natural result of such a whirl of events—he was wonderfully calm and self-possessed.

The next day, his first care was to distribute fifty pounds among his friends, the cadgers, at a "house of call" in Westminster, and formally to dissolve his connection with them; those present undertaking for the "fraternity," that for the future he should never be noticed by them in public or private.

I cannot follow his career much further. Adversity had taught him nothing. He was soon again surrounded by the well-bred vampires who had forgotten him when penniless; but they amused him, and that was enough. The ten thousand pounds were rapidly melting when he invited me to a grand dinner at Richmond, which included a dozen of the most agreeable, good-looking, well-dressed dandies of London, interspersed with a display of pretty butterfly bonnets. We dined deliciously, and drank as men do of iced wines in the dog-days—looking down from Richmond Hill.

One of the pink-bonnets crowned Fitz-Roy with a wreath of flowers; he looked—less the intellect—as handsome as Alcibiades. Intensely excited and flushed, he rose with a champagne glass in his hand to propose my health.

The oratorical powers of his father had not descended on him. Jerking out sentences by spasms, at length he said, "I was a beggar—I am a gentleman—thanks to this—"

Here he leaned on my shoulder heavily a moment, and then fell back. We raised him, loosened his neckcloth—

"Fainted!" said the ladies—

"Drunk!" said the gentlemen—

He was *dead*!

A FASHIONABLE FORGER.

I am an attorney and a bill-discounter. As it is my vocation to lend money at high interest to extravagant people, my connection principally lies among "fools," sometimes among rogues "of quality." Mine is a pursuit which a prejudiced world either holds in sovereign contempt, or visits with envy, hatred, and all uncharitableness; but to my mind, there are many callings, with finer names, that are no better. It gives me two things which I love—money and power; but I cannot deny that it brings with it a bad name. The case lies between character and money, and involves a matter of taste. Some people like character; I prefer money. If I am hated and despised, I chuckle over the "per contra." I find it pleasant for members of a proud aristocracy to condescend from their high estate to fawn, feign, flatter; to affect even mirthful familiarity in order to gain my good-will. I am no Shylock. No client can accuse me of desiring either his flesh or his blood. Sentimental vengeance is no item in my stock in trade. Gold and bank-notes satisfy my "rage;" or, if need be, a good mortgage. Far from seeking revenge, the worst defaulter I ever had dealings with cannot deny that I am always willing to accept a good post-obit.

I say again, I am daily brought in contact with all ranks of society, from the poverty-stricken patentee to the peer; and I am no more surprised at receiving an application from a duchess than from a pet opera-dancer. In my ante room wait, at this moment, a crowd of borrowers. Among the men,

(beardless folly and mustachioed craft are most prominent,) there is a handsome young fellow, with an elaborate cane and wonderfully vacant countenance, who is anticipating in feeble follies, an estate that has been in the possession of his ancestors since the reign of Henry the Eighth—there is a hairy, high-nosed, broken-down nondescript, in appearance something between a horse-dealer and a pugilist. He is an old Etonian. Five years ago he drove his four-in-hand; he is now waiting to beg a sovereign, having been just discharged from the Insolvent Court, for the second time. Among the women, a pretty actress, who, a few years since, looked forward to a supper of steak and onions, with bottled stout, on a Saturday night, as a great treat, now finds one hundred pounds a month insufficient to pay her wine merchant and her confectioner. I am obliged to deal with each case according to its peculiarities. Genuine undeserved Ruin seldom knocks at my door. Mine is a perpetual battle with people who imbibe trickery at the same rate as they dissolve their fortunes. I am a hard man, of course. I should not be fit for my pursuit if I were not; but when, by a remote chance, honest misfortune pays me a visit, as Rothschilds amused himself at times by giving a beggar a guinea, so I occasionally treat myself to the luxury of doing a kind action. My favorite subjects for this unnatural generosity, are the very young or the poor, innocent, helpless people, who are unfit for the war of life. Many among my clients (especially those tempered in the "ice book" of fashion and high-life—polished and passionless) would be too much for me, if I had not made the face, the eye, the accent, as much my study as the mere legal and financial points of discount To show what I mean, I will relate what happened to me not long since:—

One day, a middle-aged man in the usual costume of a West-End shopman, who had sent in his name as Mr. Axminster, was shown into my private room. After a little hesitation, he said, "Although you do not know me, living at this end of the town, I know you very well by reputation, and that you discount bills. I have a bill here which I want to get discounted. I

am in the employ of Messrs. Russle and Smooth. The bill is drawn by one of our best customers, the Hon. Miss Snape, niece of Lord Blimley, and accepted by Major Munge, whom, no doubt, you know by name. She has dealt with us for some years—is very, very extravagant; but always pays." He put the acceptance—which was for two hundred pounds—into my hands.

I looked at it as scrutinizingly as I usually do at such paper. The Major's signature was familiar to me; but having succeeded to a great estate, he had long ceased to be a customer. I instantly detected a forgery; by whom?—was the question. Could it be the man before me? Experience told me it was not. Perhaps there was something in the expression of my countenance which Mr. Axminster did not like, for he said, "It is good for the amount, I presume?"

I replied, "Pray, sir, from whom did you get this bill?"

"From Miss Snape herself."

"Have you circulated any other bills made by the same drawer?"

"O yes!" said the draper, without hesitation; "I have paid away a bill for one hundred pounds to Mr. Sparkle, the jeweller, to whom Miss Snape owed twenty pounds. They gave me the difference."

"And how long has that bill to run now?"

"About a fortnight."

"Did you indorse it?"

"I did. Mr. Sparkle required me to do so, to show that the bill came properly into his possession."

"This second bill, you say is urgently required to enable Miss Snape to leave town?"

"Yes; she is going to Brighton for the winter."

I gave Mr. Axminster a steady, piercing look of inquiry. "Pray, sir," I said, "could you meet that one hundred pounds bill, supposing it could not be paid by the acceptor?"

"Meet it!" The poor fellow wiped from his forehead the perspiration which suddenly broke out at the bare hint of a probability that the bill would be dishonored—"Meet it? O no! I am a married man, with a family, and have nothing but my salary to depend on."

"Then the sooner you get it taken up, and the less you have to do with Miss Snape's bill affairs, the better."

"She has always been punctual hitherto."

"That may be." I pointed to the cross-writing on the document, and said deliberately, "*This* bill is a forgery!"

At these words the poor man turned pale. He snatched up the document, and with many incoherent protestations, was rushing toward the door, when I called to him in an authoritative tone, to stop. He paused—his manner indicating not only doubt, but fear. I said to him, "Don't flurry yourself; I only want to serve you. You tell me that you are a married man, with children, dependent on daily labor for daily bread, and that you have done a little discounting for Miss Snape, out of your earnings. Now, although I am a bill-discounter, I don't like to see such men victimized. Look at the body of this bill—look at the signature of your lady-customer, the drawer. Don't you detect the same fine, thin, sharp-pointed handwriting in the words

'Accepted, Dymmock Munge." The man, convinced against his will, was at first overcome. When he recovered, he raved; he would expose the Honorable Miss Snape, if it cost him his bread—he would go at once to the police office. I stopped him, by saying roughly, "Don't be a fool! Any such steps would seal your ruin. Take my advice; return the bill to the lady, saying, simply, that you cannot get it discounted. Leave the rest to me, and I think the bill you have indorsed to Sparkle will be paid." Comforted by this assurance, Axminster, fearfully changed from the nervous, but smug, hopeful man of the morning, departed. It now remained for me to exert what skill I possessed, to bring about the desired result. I lost no time in writing a letter to the Honorable Miss Snape, of which the following is a copy:—

"Madam,—A bill, purporting to be drawn by you, has been offered to me for discount. There is something wrong about it; and, though a stranger to you, I advise you to lose no time in getting it back into your own hands.—D.D."

I intended to deal with the affair quietly, and without any view to profit. The fact is, that I was sorry—you may laugh—but I really was sorry to think that a young girl might have given way to temptation under pressure of pecuniary difficulties. If it had been a man's case, I doubt whether I should have interfered. By the return of post, a lady's maid entered my room, profusely decorated with ringlets, lace, and perfumed with patchouli. She brought a letter from her mistress. It ran thus:—

"Sir,—I cannot sufficiently express my thanks for your kindness in writing to me on the subject of the bills, of which I had also heard a few hours previously. As a perfect stranger to you, I cannot estimate your kind consideration at too high a value. I trust the matter will be explained; but I should much like to see you. If you would be kind enough to write a note as

soon as you receive this, I will order it to be sent to me at once to Tyburn Square. I will wait on you at any hour on Friday you may appoint. I believe that I am not mistaken in supposing that you transact business for my friend, Sir John Markham, and you will therefore know the inclosed to be his handwriting. Again thanking you most gratefully, allow me to remain your much and deeply obliged, JULIANA SNAPE."

This note was written upon delicate French paper embossed with a coat of arms. It was in a fancy envelope—the whole richly perfumed, and redolent of rank and fashion. Its contents were an implied confession of forgery. Silence, or three lines of indignation, would have been the only innocent answer to my letter. But Miss Snape thanked me. She let me know, by implication that she was on intimate terms with a name good on a West-End bill. My answer was, that I should be alone on the following afternoon at five.

At the hour fixed, punctual to a moment, a brougham drew up at the corner of the street next to my chambers. The Honorable Miss Snape's card was handed in. Presently, she entered, swimming into my room, richly, yet simply dressed in the extreme of Parisian good taste. She was pale—or rather colorless. She had fair hair, fine teeth, and a fashionable voice. She threw herself gracefully into the chair I handed to her, and began by uncoiling a string of phrases, to the effect that her visit was merely to consult me on "unavoidable pecuniary difficulties."

According to my mode, I allowed her to talk; putting in only an occasional word of question that seemed rather a random observation than a significant query. At length after walking round and round the subject, like a timid horse in a field around a groom with a sieve of oats, she came nearer and nearer the subject. When she had fairly approached the point, she stopped, as if her courage had failed her. But she soon recovered, and

observed, "I cannot think why you should take the trouble to write so to me, a perfect stranger." Another pause—"I wonder no one ever suspected me before."

Here was a confession and a key to character. The cold gray eye, the thin compressed lips, which I had had time to observe, were true indexes to the "lady's inner heart;" selfish calculating, utterly devoid of conscience; unable to conceive the existence of spontaneous kindness; utterly indifferent to anything except discovery, and almost indifferent to that, because convinced that no serious consequences could affect a lady of her rank and influence.

"Madam," I replied, "as long as you dealt with tradesmen accustomed to depend on aristocratic customers, your rank and position, and their large profits, protected you from suspicion; but you have made a mistake in descending from your vantage ground to make a poor shopman your innocent accomplice—a man who will be keenly alive to anything that may injure his wife or children. His terrors—but for my interposition—would have ruined you utterly. Tell me, how many of these things have you put afloat?"

She seemed a little taken a-back by this speech, but was wonderfully firm. She passed her white, jewelled hand over her eyes, seemed calculating, and then whispered, with a confiding look of innocent helplessness, admirably assumed, "About as many as amount to twelve hundred pounds."

"And what means have you for meeting them?"

At this question so plainly put, her face flushed. She half rose from her chair, and exclaimed in the true tone of aristocratic *hauteur*, "Really, sir, I do not know what right you have to ask me that question."

I laughed a little, though not very loud. It was rude, I own; but who could have helped it? I replied, speaking low, but slowly and distinctly—"You forget. I did not send for you; you came to me. You have forged bills to the amount of twelve hundred pounds. Yours is not the case of a ruined merchant or an ignorant over-tempted clerk. In your case a jury"—(she shuddered at that word)—"would find no extenuating circumstances; and if you should fall into the hands of justice you will be convicted, degraded, clothed in a prison-dress, and transported for life. I do not want to speak harshly; but I insist that you find means to take up the bill which Mr. Axminster has so unwittingly endorsed!"

The Honorable Miss Snape's grand manner melted away. She wept. She seized and pressed my hand. She cast up her eyes, full of tears, and went through the part of a repentant victim with great fervor. She would do anything—anything in the world to save the poor man. Indeed, she had intended to appropriate part of the two hundred pound bill to that purpose. She forgot her first statement, that she wanted the money to go out of town. Without interrupting, I let her go on and degrade herself by a simulated passion of repentance, regret, and thankfulness to me, under which she hid her fear and her mortification at being detected. I at length put an end to a scene of admirable acting, by recommending her to go abroad immediately, to place herself out of reach of any sudden discovery; and then lay her case fully before her friends, who would no doubt feel bound to come forward with the full amount of the forged bills. "But," she exclaimed, with an entreating air, "I have no money; I cannot go without money!" To that observation I did not respond although I am sure she expected that I should, check-book in hand, offer her a loan. I do not say so without reason; for, the very next week, this honorable young lady came again, and, with sublime assurance and a number of very charming, winning speeches, (which might have had their effect upon a younger man), asked me to lend her one hundred pounds, in order that she might take the advice I had so obligingly

given her, and retire into private life for a certain time in the country. I do meet with a great many impudent people in the course of my calling—I am not very deficient in assurance myself—but this actually took away my breath.

"Really, madam," I answered, "you pay a very ill-compliment to my gray hairs, and would fain make me a very ill return for the service I have done you, when you ask me to lend a hundred pounds to a young lady who owns to having forged to the extent of one thousand two hundred pounds, and to owing eight hundred pounds besides. I wished to save a personage of your years and position from a disgraceful career; but I am too good a trustee for my children to lend money to anybody in such a dangerous position as yourself."

"Oh!" she answered, quite unabashed, without a trace of the fearful, tender pleading of the previous week's interview—quite as if I had been an accomplice, "I can give you excellent security."

"That alters the case; I can lend any amount on good security."

"Well, sir, I can get the acceptance of three friends of ample means"

"Do you mean to tell me, Miss Snape, that you will write down the names of three parties who will accept a bill for one hundred pounds for you?"

Yes, she could, and did actually write down the names of three distinguished men. Now I knew for certain, that not one of those noblemen would have put his name to a bill on any account whatever for his dearest friend; but, in her unabashed self-confidence, she thought of passing another forgery *on me*. I closed the conference by saying, "I cannot assist you;" and she retired with the air of an injured person. In the course of a

few days, I heard from Mr. Axminster, that his liability of one hundred pounds had been duly honored.

In my active and exciting life, one day extinguishes the recollection of the events of the preceding day; and, for a time, I thought no more about the fashionable forger. I had taken it for granted that, heartily frightened, although not repenting, she had paused in her felonious pursuits.

My business one day led me to the establishment of one of the most wealthy and respectable legal firms in the city, where I am well known, and, I believe, valued; for at all times I am most politely, I may say, most cordially received. Mutual profits create a wonderful freemasonry between those who have not any other sympathy or sentiment. Politics, religion, morality, difference of rank, are all equalized and republicanized by the division of an account. No sooner had I entered the *sanctum*, than the senior partner, Mr. Precepts, began to quiz his junior, Mr. Jones, with, "Well, Jones must never joke friend Discount anymore about usury. Just imagine," he continued, addressing me, "Jones has himself been discounting a bill for a lady; and a deuced pretty one too. He sat next her at dinner in Grosvenor Square, last week. Next day she gave him a call here, and he could not refuse her extraordinary request. Gad, it is hardly fair for Jones to be poaching on your domains of West-End paper!"

Mr. Jones smiled quietly, as he observed, "Why, you see, she is the niece of one of our best clients; and really I was so taken by surprise, that I did not know how to refuse."

"Pray," said I, interrupting his excuses, "does your young lady's name begin with S.? Has she not a very pale face, and cold gray eye?"

The partners stared.

"Ah! I see it is so; and can at once tell you that the bill is not worth a rush."

"Why, you don't mean—?"

"I mean simply that the acceptance is, I'll lay you a wager, a forgery."

"A forgery!"

"A forgery," I repeated as distinctly as possible.

Mr. Jones hastily, and with broken ejaculations, called for the cash-box. With trembling hands he took out the bill, and followed my finger with eager, watchful eyes, as I pointed out the proofs of my assertion. A long pause was broken by my mocking laugh; for, at the moment, my sense of politeness could not restrain my satisfaction at the signal defeat which had attended the first experiment of these highly respectable gentlemen in the science of usury.

The partners did not have recourse to the police. They did not propose a consultation with either Mr. Forrester or Mr. Field; but they took certain steps, under my recommendation; the result of which was that at an early day, an aunt of the Honorable Miss Snape was driven, to save so near a connection from transportation, to sell out some fourteen hundred pounds of stock, and all the forgeries were taken up.

One would have thought that the lady who had thus so narrowly escaped, had had enough—but forgery, like opium-eating, is one of those charming vices which is never abandoned, when once adopted. The forger enjoys not only the pleasure of obtaining money so easily, but the triumph of befooling sharp men of the world. Dexterous penmanship is a source of the same sort of pride as that which animates the skillful rifleman, the practiced duellist,

or well-trained billiard-player. With a clean Gillott he fetches down a capitalist, at three or six months, for a cool hundred or a round thousand; just as a Scrope drops over a stag at ten, or a Gordon Cumming a monstrous male elephant at a hundred paces.

As I before observed, my connection especially lies among the improvident—among those who will be ruined—who are being ruined—and who have been ruined. To the last class belongs Francis Fisherton, once a gentleman, now without a shilling or a principle; but rich in mother-wit—in fact, a *farceur*, after Paul de Kock's own heart. Having in by-gone days been one of my willing victims, he occasionally finds pleasure and profit in guiding others through the gate he frequented, as long as able to pay the tolls. In truth, he is what is called a "discount agent."

One day I received a note from him, to say that he would call on me at three o'clock the next day to introduce a lady of family, who wanted a bill "done" for one hundred pounds. So ordinary a transaction merely needed a memorandum in my diary, "Tuesday, 3 p.m.; F.F., £100 Bill." The hour came and passed; but no Frank, which was strange—because every one must have observed, that, however dilatory people are in paying, they are wonderfully punctual when they expect to receive money.

At five o'clock, in rushed my Jackall. His story, disentangled from oaths and ejaculations, amounted to this:—In answer to one of the advertisements he occasionally addresses "To the Embarrassed," in the columns of the "Times," he received a note from a lady, who said she was anxious to get a "bill done"—the acceptance of a well-known man of rank and fashion. A correspondence was opened, and an appointment made. At the hour fixed, neatly shaved, brushed, gloved, booted—the revival, in short, of that high-bred Frank Fisherton who was so famous

"In his hot youth, when Crockford's was the thing."

glowing with only one glass of brandy, "just to steady his nerves," he met the lady at a West-End pastry-cook's.

After a few words (for all the material questions had been settled by correspondence) she stepped into a brougham, and invited Frank to take a seat beside her. Elated with a compliment of late years so rare, he commenced planning the orgies which were to reward him for weeks of enforced fasting, when the coachman, reverentially touching his hat, looked down from his seat for orders.

"To ninety-nine, George Street, St. James," cried Fisherton, in his loudest tones.

In an instant the young lady's pale face changed to scarlet, and then to ghastly green. In a whisper, rising to a scream, she exclaimed, "Good heavens! you do not mean to go to *that* man's house," (meaning me.) "Indeed, I cannot go to him, on any account; he is a most horrid man, I am told, and charges most extravagantly."

"Madam," answered Frank, in great perturbation, "I beg your pardon, but you have been grossly misinformed. I have known that excellent man these twenty years, and have paid him hundreds on hundreds; but never so much by ten per cent. as you offered me for discounting your bill."

"Sir, I cannot have anything to do with your friend." Then, violently, pulling the check-string, "Stop," she gasped, "and *will you* have the goodness to get out?"

"And so I got out," continued Fisherton, "and lost my time; and the heavy investment I made in getting myself up for the assignation—new primrose gloves, and a shilling to the hair-dresser—hang her! But, did you ever know

anything like the prejudices that must prevail against you? I am disgusted with human nature. Could you lend me half a sovereign till Saturday?"

I smiled. I sacrificed the half sovereign, and let him go, for he is not exactly the person to whom it was advisable to intrust all the secrets relating to the Honorable Miss Snape. Since that day I look each morning in the police reports with considerable interest; but, up to the present hour, the Honorable Miss Snape has lived and thrived in the best society.

THE YOUNG ADVOCATE.

Antoine de Chaulieu was the son of a poor gentleman of Normandy, with a long genealogy, a short rent-roll, and a large family. Jacques Rollet was the son of a brewer, who did not know who his grandfather was; but he had a long purse and only two children. As these youths flourished in the early days of liberty, equality, and fraternity, and were near neighbors, they naturally hated each other. Their enmity commenced at school, where the delicate and refined De Chaulieu, being the only gentilhomme among the scholars, was the favorite of the master, (who was a bit of an aristocrat in his heart,) although he was about the worst dressed boy in the establishment, and never had a sou to spend; while Jacques Rollet, sturdy and rough, with smart clothes and plenty of money, got flogged six days in the week, ostensibly for being stupid and not learning his lessons,—which, indeed, he did not,—but, in reality, for constantly quarrelling with and insulting De Chaulieu, who had not strength to cope with him. When they left the academy, the feud continued in all its vigor, and was fostered by a thousand little circumstances arising out of the state of the times, till a separation ensued in consequence of an aunt of Antoine de Chaulieu's undertaking the expense of sending him to Paris to study the law, and of maintaining him there during the necessary period.

With the progress of events came some degree of reaction in favor of birth and nobility, and then Antoine, who had passed for the bar, began to

hold up his head and endeavored to push his fortunes; but fate seemed against him. He felt certain that if he possessed any gift in the world it was that of eloquence, but he could get no cause to plead; and his aunt dying inopportunately, first his resources failed, and then his health. He had no sooner returned to his home, than, to complicate his difficulties completely, he fell in love with Mademoiselle Natalie de Bellefonds, who had just returned from Paris, where she had been completing her education. To expatiate on the perfections of Mademoiselle Natalie would be a waste of ink and paper; it is sufficient to say that she really was a very charming girl, with a fortune which, though not large, would have been a most desirable acquisition to De Chaulieu, who had nothing. Neither was the fair Natalie indisposed to listen to his addresses; but her father could not be expected to countenance the suit of a gentleman, however well born, who had not a ten-sous piece in the world, and whose prospects were a blank.

While the ambitious and lovesick young barrister was thus pining in unwelcome obscurity, his old acquaintance, Jacques Rollet, had been acquiring an undesirable notoriety. There was nothing really bad in Jacques' disposition, but having been bred up a democrat, with a hatred of the nobility, he could not easily accommodate his rough humor to treat them with civility when it was no longer safe to insult them. The liberties he allowed himself whenever circumstances brought him into contact with the higher classes of society, had led him into many scrapes, out of which his father's money had one way or another released him; but that source of safety had now failed. Old Rollet, having been too busy with the affairs of the nation to attend to his business, had died insolvent, leaving his son with nothing but his own wits to help him out of future difficulties, and it was not long before their exercise was called for. Claudine Rollet, his sister, who was a very pretty girl, had attracted the attention of Mademoiselle de Bellefonds' brother, Alphonse; and as he paid her more attention than from such a quarter was agreeable to Jacques, the young men had more than one

quarrel on the subject, on which occasions they had each, characteristically, given vent to their enmity, the one in contemptuous monosyllables, and the other in a volley of insulting words. But Claudine had another lover more nearly of her own condition of life; this was Claperon, the deputy-governor of the Rouen jail, with whom she made acquaintance during one or two compulsory visits paid by her brother to that functionary; but Claudine, who was a bit of a coquette, though she did not altogether reject his suit, gave him little encouragement, so that betwixt hopes and fears, and doubts and jealousies, poor Claperon led a very uneasy kind of life.

Affairs had been for some time in this position, when, one fine morning, Alphonse de Bellefonds was not to be found in his chamber when his servant went to call him; neither had his bed been slept in. He had been observed to go out rather late on the preceding evening, but whether or not he had returned, nobody could tell. He had not appeared at supper, but that was too ordinary an event to awaken suspicion; and little alarm was excited till several hours had elapsed, when inquiries were instituted and a search commenced, which terminated in the discovery of his body, a good deal mangled, lying at the bottom of a pond which had belonged to the old brewery. Before any investigations had been made, every person had jumped to the conclusion that the young man had been murdered, and that Jacques Rollet was the assassin. There was a strong presumption in favor of that opinion, which further perquisitions tended to confirm. Only the day before, Jacques had been heard to threaten M. de Bellefonds with speedy vengeance. On the fatal evening, Alphonse and Claudine had been seen together in the neighborhood of the now dismantled brewery; and as Jacques, betwixt poverty and democracy, was in bad odor with the prudent and respectable part of society, it was not easy for him to bring witnesses to character, or prove an unexceptionable alibi. As for the Bellefonds and De Chaulieus, and the aristocracy in general, they entertained no doubt of his guilt; and finally, the magistrates coming to the same opinion, Jacques

Rollet was committed for trial, and as a testimony of good will Antoine de Chaulieu was selected by the injured family to conduct the prosecution.

Here, at last, was the opportunity he had sighed for! So interesting a case, too, furnishing such ample occasion for passion, pathos, indignation! And how eminently fortunate that the speech which he set himself with ardor to prepare, would be delivered in the presence of the father and brother of his mistress, and perhaps of the lady herself! The evidence against Jacques, it is true, was altogether presumptive; there was no proof whatever that he had committed the crime; and for his own part he stoutly denied it. But Antoine de Chaulieu entertained no doubt of his guilt, and his speech was certainly well calculated to carry conviction into the bosom of others. It was of the highest importance to his own reputation that he should procure a verdict, and he confidently assured the afflicted and enraged family of the victim that their vengeance should be satisfied. Under these circumstances could any thing be more unwelcome than a piece of intelligence that was privately conveyed to him late on the evening before the trial was to come on, which tended strongly to exculpate the prisoner, without indicating any other person as the criminal? Here was an opportunity lost. The first step of the ladder on which he was to rise to fame, fortune, and a wife, was slipping from under his feet!

Of course, so interesting a trial was anticipated with great eagerness by the public, and the court was crowded with all the beauty and fashion of Rouen. Though Jacques Rollet persisted in asserting his innocence, founding his defence chiefly on circumstances which were strongly corroborated by the information that had reached De Chaulieu the preceding evening, he was convicted.

In spite of the very strong doubts he privately entertained respecting the justice of the verdict, even De Chaulieu himself, in the first flush of

success, amid a crowd of congratulating friends, and the approving smiles of his mistress, felt gratified and happy; his speech had, for the time being, not only convinced others, but himself; warmed with his own eloquence, he believed what he said. But when the glow was over, and he found himself alone, he did not feel so comfortable. A latent doubt of Rollet's guilt now burnt strongly in his mind, and he felt that the blood of the innocent would be on his head. It is true there was yet time to save the life of the prisoner; but to admit Jacques innocent was to take the glory out of his own speech, and turn the sting of his argument against himself. Besides, if he produced the witness who had secretly given him the information, he should be self-condemned, for he could not conceal that he had been aware of the circumstance before the trial.

Matters having gone so far, therefore, it was necessary that Jacques Rollet should die; so the affair took its course; and early one morning the guillotine was erected in the courtyard of the jail, three criminals ascended the scaffold, and three heads fell into the basket which were presently afterwards, with the trunks that had been attached to them, buried in a corner of the cemetery.

Antoine de Chaulieu was now fairly started in his career, and his success was as rapid as the first step towards it had been tardy. He took a pretty apartment in the Hotel de Marboeuf Rue Grange-Batelière, and in a short time was looked upon as one of the most rising young advocates in Paris. His success in one line brought him success in another; he was soon a favorite in society, and an object of interest to speculating mothers; but his affections still adhered to his old love, Natalie de Bellefonds, whose family now gave their assent to the match,—at least, prospectively,—a circumstance which furnished such an additional incentive to his exertions, that in about two years from the date of his first brilliant speech, he was in a sufficiently flourishing condition to offer the young lady a suitable home. In

anticipation of the happy event, he engaged and furnished a suit of apartments in the Rue du Helder; and as it was necessary that the bride should come to Paris to provide her trousseau, it was agreed that the wedding should take place there, instead of at Bellefonds, as had been first projected—an arrangement the more desirable, that a press of business rendered M. de Chaulieu's absence from Paris inconvenient.

Brides and bridegrooms in France, except of the very high classes, are not much in the habit of making those honeymoon excursions so universal in this country. A day spent in visiting Versailles, or St. Cloud, or even the public places of the city, is generally all that precedes the settling down into the habits of daily life. In the present instance, St. Denis was selected, from the circumstance of Natalie having a younger sister at school there, and also because she had a particular desire to see the abbey.

The wedding was to take place on a Thursday; and on the Wednesday evening, having spent some hours most agreeably with Natalie, Antoine de Chaulieu returned to spend his last night in his bachelor apartments. His wardrobe and other small possessions had already been packed up and sent to his future home; and there was nothing left in his room now but his new wedding suit, which he inspected with considerable satisfaction before he undressed and lay down to sleep. Sleep, however, was somewhat slow to visit him; and the clock had struck one before he closed his eyes. When he opened them again, it was broad daylight; and his first thought was, had he overslept himself? He sat up in bed to look at the clock, which was exactly opposite; and as he did so, in the large mirror over the fireplace he perceived a figure standing behind him. As the dilated eyes met his own, he saw it was the face of Jacques Rollet. Overcome with horror, he sank back on his pillow, and it was some minutes before he ventured to look again in that direction; when he did so, the figure had disappeared.

The sudden revulsion of feeling such a vision was calculated to occasion in a man elate with joy, may be conceived. For some time after the death of his former foe, he had been visited by not unfrequent twinges of conscience; but of late, borne along by success, and the hurry of Parisian life, these unpleasant remembrances had grown rarer, till at length they had faded away altogether. Nothing had been further from his thoughts than Jacques Rollet, when he closed his eyes on the preceding night, nor when he opened them to that sun which was to shine on what he expected to be the happiest day of his life. Where were the high-strung nerves now? the elastic frame? the bounding heart?

Heavily and slowly he arose from his bed, for it was time to do so; and with a trembling hand and quivering knees, he went through the processes of the toilet, gashing his cheek with the razor, and spilling the water over his well-polished boots. When he was dressed, scarcely venturing to cast a glance in the mirror as he passed it, he quitted the room, and descended the stairs, taking the key of the door with him for the purpose of leaving it with the porter: the man, however, being absent, he laid it on the table in his lodge, and with a relaxed and languid step proceeded on his way to the church, where presently arrived the fair Natalie and her friends. How difficult it was now to look happy with that pallid face and extinguished eye!

"How pale you are! Has any thing happened? You are surely ill," were the exclamations that met him on all sides. He tried to carry it off as well as he could, but felt that the movements he would have wished to appear alert were only convulsive, and that the smiles with which he attempted to relax his features were but distorted grimaces. However, the church was not the place for further inquiries; and while Natalie gently pressed his hand in token of sympathy, they advanced to the altar, and the ceremony was performed; after which they stepped into the carriages waiting at the door,

and drove to the apartments of Madame de Bellefonds, where an elegant *déjeuner* was prepared.

"What ails you, my dear husband?" inquired Natalie, as soon as they were alone.

"Nothing, love," he replied; "nothing, I assure you, but a restless night and a little overwork, in order that I might have to-day free to enjoy my happiness."

"Are you quite sure? Is there nothing else?"

"Nothing, indeed; and pray don't take notice of it; it only makes me worse."

Natalie was not deceived, but she saw that what he said was true; notice made him worse; so she contented herself with observing him quietly, and saying nothing; but, as he *felt* she was observing him, she might almost better have spoken; words are often less embarrassing things than too curious eyes.

When they reached Madame de Bellefond's he had the same sort of questioning and scrutiny to undergo, till he grew quite impatient under it, and betrayed a degree of temper altogether unusual with him. Then everybody looked astonished; some whispered their remarks, and others expressed them by their wondering eyes, till his brow knit, and his pallid cheeks became flushed with anger. Neither could he divert attention by eating; his parched mouth would not allow him to swallow any thing but liquids, of which, however, he indulged in copious libations; and it was an exceeding relief to him when the carriage, which was to convey them to St. Denis, being announced, furnished an excuse for hastily leaving the table. Looking at his watch, he declared it was late; and Natalie, who saw how

eager he was to be gone, threw her shawl over her shoulders, and bidding her friends *good morning*, they hurried away.

It was a fine sunny day in June; and as they drove along the crowded boulevards, and through the Porte St. Denis, the young bride and bridegroom, to avoid each other's eyes, affected to be gazing out of the windows; but when they reached the part of the road where there was nothing but trees on each side, they felt it necessary to draw in their heads, and make an attempt at conversation, De Chaulieu put his arm round his wife's waist, and tried to rouse himself from his depression; but it had by this time so reacted upon her, that she could not respond to his efforts, and thus the conversation languished, till both felt glad when they reached their destination, which would, at all events, furnish them something to talk about.

Having quitted the carriage, and ordered a dinner at the Hotel de l'Abbaye, the young couple proceeded to visit Mademoiselle Hortense de Bellefonds, who was overjoyed to see her sister and new brother-in-law, and doubly so when she found that they had obtained permission to take her out to spend the afternoon with them. As there is little to be seen at St. Denis but the Abbey, on quitting that part of it devoted to education, they proceeded to visit the church, with its various objects of interest; and as De Chaulieu's thoughts were now forced into another direction, his cheerfulness began insensibly to return. Natalie looked so beautiful, too, and the affection betwixt the two young sisters was so pleasant to behold! And they spent a couple of hours wandering about with Hortense, who was almost as well informed as the Suisse, till the brazen doors were opened which admitted them to the Royal vault. Satisfied, at length, with what they had seen, they began to think of returning to the inn, the more especially as De Chaulieu, who had not eaten a morsel of food since the previous evening, owned to being hungry; so they directed their steps to the door,

lingering here and there as they went, to inspect a monument or a painting, when, happening to turn his head aside to see if his wife, who had stopped to take a last look at the tomb of King Dagobert, was following, he beheld with horror the face of Jacques Rollet appearing from behind a column! At the same instant his wife joined him, and took his arm, inquiring if he was not very much delighted with what he had seen. He attempted to say yes, but the word would not be forced out; and staggering out of the door, he alleged that a sudden faintness had overcome him.

They conducted him to the Hotel, but Natalie now became seriously alarmed; and well she might. His complexion looked ghastly, his limbs shook, and his features bore an expression of indescribable horror and anguish. What could be the meaning of so extraordinary a change in the gay, witty, prosperous De Chaulieu, who, till that morning, seemed not to have a care in the world? For, plead illness as he might, she felt certain, from the expression of his features, that his sufferings were not of the body but of the mind; and, unable to imagine any reason for such extraordinary manifestations, of which she had never before seen a symptom, but a sudden aversion to herself, and regret for the step he had taken, her pride took the alarm, and, concealing the distress she really felt, she began to assume a haughty and reserved manner towards him, which he naturally interpreted into an evidence of anger and contempt. The dinner was placed upon the table; but De Chaulieu's appetite, of which he had lately boasted, was quite gone, nor was his wife better able to eat. The young sister alone did justice to the repast; but although the bridegroom could not eat, he could swallow champagne in such copious draughts, that ere long the terror and remorse that the apparition of Jacques Rollet had awakened in his breast were drowned in intoxication. Amazed and indignant, poor Natalie sat silently observing this elect of her heart, till overcome with disappointment and grief, she quitted the room with her sister, and retired to another apartment, where she gave free vent to her feelings in tears.

After passing a couple of hours in confidences and lamentations, they recollected that the hours of liberty granted, as an especial favor, to Mademoiselle Hortense, had expired; but ashamed to exhibit her husband in his present condition to the eyes of strangers, Natalie prepared to re-conduct her to the *Maison Royale* herself. Looking into the dining-room as they passed, they saw De Chaulieu lying on a sofa fast asleep, in which state he continued when his wife returned. At length, however, the driver of their carriage begged to know if Monsieur and Madame were ready to return to Paris, and it became necessary to arouse him. The transitory effects of the champagne had now subsided; but when De Chaulieu recollected what had happened, nothing could exceed his shame and mortification. So engrossing indeed were these sensations that they quite overpowered his previous one, and, in his present vexation, he, for the moment, forgot his fears. He knelt at his wife's feet, begged her pardon a thousand times, swore that he adored her, and declared that the illness and the effect of the wine had been purely the consequences of fasting and over-work. It was not the easiest thing in the world to re-assure a woman whose pride, affection, and taste, had been so severely wounded; but Natalie tried to believe, or to appear to do so, and a sort of reconciliation ensued, not quite sincere on the part of the wife, and very humbling on the part of the husband. Under these circumstances it was impossible that he should recover his spirits or facility of manner; his gaiety was forced, his tenderness constrained; his heart was heavy within him; and ever and anon the source whence all this disappointment and woe had sprung would recur to his perplexed and tortured mind.

Thus mutually pained and distrustful, they returned to Paris, which they reached about nine o'clock. In spite of her depression, Natalie, who had not seen her new apartments, felt some curiosity about them, whilst De Chaulieu anticipated a triumph in exhibiting the elegant home he had prepared for her. With some alacrity, therefore, they stepped out of the carriage, the gates of the Hotel were thrown open, the *concierger* rang the

bell which announced to the servants that their master and mistress had arrived, and whilst these domestics appeared above, holding lights over the balustrades, Natalie, followed by her husband, ascended the stairs. But when they reached the landing-place of the first flight, they saw the figure of a man standing in a corner as if to make way for them; the flash from above fell upon his face, and again Antoine de Chaulieu recognized the features of Jacques Rollet!

From the circumstance of his wife's preceding him, the figure was not observed by De Chaulieu till he was lifting his foot to place it on the top stair: the sudden shock caused him to miss the step, and, without uttering a sound, he fell back, and never stopped till he reached the stones at the bottom. The screams of Natalie brought the concierge from below and the maids from above, and an attempt was made to raise the unfortunate man from the ground; but with cries of anguish he besought them to desist.

"Let me," he said, "die here! What a fearful vengeance is thine! O, Natalie, Natalie!" he exclaimed to his wife, who was kneeling beside him, "to win fame, and fortune, and yourself, I committed a dreadful crime! With lying words I argued away the life of a fellow-creature, whom, whilst I uttered them, I half believed to be innocent; and now, when I have attained all I desired, and reached the summit of my hopes, the Almighty has sent him back upon the earth to blast me with the sight. Three times this day—three times this day! Again! again!"—and as he spoke, his wild and dilated eyes fixed themselves on one of the individuals that surrounded him.

"He is delirious," said they.

"No," said the stranger! "What he says is true enough,—at least in part;" and bending over the expiring man, he added, "May Heaven forgive you, Antoine de Chaulieu! I was not executed; one who well knew my innocence saved my life. I may name him, for he is beyond the reach of the law now,

—it was Claperon, the jailor, who loved Claudine, and had himself killed Alphonse de Bellefonds from jealousy. An unfortunate wretch had been several years in the jail for a murder committed during the frenzy of a fit of insanity. Long confinement had reduced him to idiocy. To save my life Claperon substituted the senseless being for me, on the scaffold; he was executed in my stead. He has quitted the country, and I have been a vagabond on the face of the earth ever since that time. At length I obtained, through the assistance of my sister, the situation of concierge in the Hotel Marboeuf, in the Rue Grange-Batelière. I entered on my new place yesterday evening, and was desired to awaken the gentleman on the third floor at seven o'clock. When I entered the room to do so, you were asleep, but before I had time to speak you awoke, and I recognized your features in the glass. Knowing that I could not vindicate my innocence if you chose to seize me, I fled, and seeing an omnibus starting for St. Denis, I got on it with a vague idea of getting on to Calais, and crossing the Channel to England. But having only a franc or two in my pocket, or indeed in the world, I did not know how to procure the means of going forward; and whilst I was lounging about the place, forming first one plan and then another, I saw you in the church, and concluding you were in pursuit of me, I thought the best way of eluding your vigilance was to make my way back to Paris as fast as I could; so I set off instantly, and walked all the way; but having no money to pay my night's lodging, I came here to borrow a couple of livres of my sister Claudine, who lives in the fifth story."

"Thank Heaven!" exclaimed the dying man; "that sin is off my soul! Natalie, dear wife, farewell! Forgive, forgive all!"

These were the last words he uttered; the priest, who had been summoned in haste, held up the cross before his failing sight; a few strong convulsions shook the poor bruised and mangled frame; and then all was still.

And thus ended the Young Advocate's Wedding Day.

A MURDER IN THE TIME OF THE CRUSADES.

There is, perhaps, no country or climate more beautiful than England, as seen in one of its rural landscapes, when the sun has just risen upon a cloudless summer's dawn. The very feeling that the delightful freshness of the moment will not be entirely destroyed during the whole day, renders the prospect more agreeable than the anticipated fiery advance of the sun in southern or tropical lands. Exhilaration and gladness are the marked characteristics of an English summer morning. So it ever is, and so it was hundreds of years ago, when occurred the events we are about to narrate. How lovely then, on such a morning as we allude to, looked that rich vale in the centre of Gloucestershire, through which the lordly Severn flows! The singing of the birds, the reflective splendor of the silvery waters, the glittering of the dew as it dazzled and disappeared—all combined to charm sound, sight, and sense, and to produce a strong feeling of joy. But the horseman, who was passing through this graceful scene, scarcely needed the aid of any external object to enhance the pleasurable sensation that already filled his breast. The stately horse on which he sat, seemed, by its light steps, and by ever and anon proudly prancing, to share in the animation of its rider. So, the noble stag-hound that followed, and continually looked up contentedly at its master, appeared, likewise, a participator in the general content. The stranger had indeed cause to rejoice, for he was upon the fairest errand. He had wooed and won the gentle

heiress of a proud, but good-hearted Gloucestershire baron—he had wooed and won her, too, with the full consent of father, kinsmen, and friends, and he was now on his way to the baron's castle to arrange with his betrothed the ceremonial of the nuptials. Ride on, thou gallant knight, ride on, and swifter too; for though the day will be yet early when thou arrivest, thou wilt find thyself expected within the Gothic enciente of the Baron de Botetourt's dwelling. A banner waves from the topmost tower to do thee honor and welcome; there walks, too, by the battlements, one whose night has been sleepless because of thee, whose thoughts and whose whole existence centre in thee, whose look firmly attaches to the road that brings thee to her. Ride on then speedily, Sir Knight, to the happiness thy virtue and thy deeds have so well deserved.

This lover is no ordinary suitor: he is of mingled Saxon and Norman noble blood, the recent companion-in-arms of Richard Coeur de Lion. His name is Ralph de Sudley, and though he has passed his thirtieth year, the effect of long toil and war scarcely appears upon his handsome and still very youthful countenance. Yet the knight has seen and endured much: he has been with Richard at the siege and capture of Acre, and at the battle of Azotus. When Conrad of Montferrat fell by the dagger of the assassins, Sir Ralph took a prominent part in the stormy debates which ensued among the Crusaders. He even proposed with his men-at-arms, and those who would follow him, to invade the territory of the Lord of the Mountain, and to avenge in his blood the death which that king of murderers had caused to be done to Conrad. This event made so deep an impression on his mind, that he still took every opportunity of urging upon his own and other Christian governments the necessity of extirpating these eastern assassins. On his return from the crusades, Sir Ralph found the daughter of his friend, the Baron de Botetourt, just verging into beauteous womanhood. The glory of his reputation, and the graces of his person, gained her heart at once; the

Lady Alianore, though much his junior in years, loved the knight fondly and devotedly.

Sir Ralph has reached the portcullis of the castle; the wardour and men-at-arms are there to receive him with full honors, though he comes privately, without his armor or his followers: he wears the civil but costly dress of the period, with no other weapon than a slight sword at his side. But the baron will have each advent of his future son-in-law welcomed as an approach of state.

"Grammercy, Sir Baron," observed the knight, as after passing through a crowd of domestics, he grasped his host's hand upon the threshold, "one would imagine me Richard of England himself, or rather Saladin, that greatest and most gaudy of Oriental Soldans, to see this pompous prelude to my disjune with your lovely daughter and yourself."

"Nay, Ralph de Sudley," replied the baron, "my castle must needs put on its best looks, when it beholds the entry of one who is to be its lord and protector when I shall be no more. But I see you are all impatience to go within; and, in truth, the sooner your first interview be over the better, for the table is prepared, and the pasty awaits us, and the chaplain too, whose inward man, after the morning's Mass, craves some solid refreshment."

"A moment, my worthiest of friends, and I am with you," said the knight, as he hurried by: in another instant the Lady Alianore was in his embrace. Need we repeat the oft-told tale of love? Need we describe the day of delight Sir Ralph passed in the castle, lingering from hour to hour until the dusk? O, there is some one we must depict, the lady herself, who so subdued and softened this knightly soul. There, one hand upon the shoulder of her lover, her other hand locked in his, she sits listening to his words, and luxuriating in his discourse. The Lady Alianore, somewhat tall in stature, but perfect in form, has a face of dazzling beauty, yet the bewitching

sweetness of her smile is tempered by a certain dignity of countenance, to which her dark, raven hair, and darker eyes, do not a little contribute; her hands, and the foot that peeps from beneath, her graceful robe, are of exquisite smallness, and bespeak the purest Norman blood. Her extreme fairness, shaded by her sable locks, form a strong contrast to the auburn hair and ruddy visage of the stalwart warrior beside her.

"This will indeed be too much, Ralph," observed the lady; "a monarch, his queen, and his court, to come to this out-of-the-way castle, to honor the wedding of a lone damsel like myself; I can hardly support the idea of so much splendor."

"Fear not, my beloved," replied the knight, "Richard is homely enough, and all good nature. Moreover, it is but a return of civility; for I it was who accompanied him to the altar, where he obtained the hand of Berengaria of Navarre; the office was a dangerous one then, since I incurred by it the wrath of Philip of France. And why, dearest, should not every magnificence attend our nuptials? It is the outward emblem of our great content—a mark, like those gorgeous ceremonies that accompany the festive prayers of the Church, which tell the people of the earth of a joy having something of the gladness and glory of Heaven in it."

"Be it as you wish, my own true knight; yet I almost feel that I am too happy. May God bless and protect us!"

Thus passed this bright day, until the approach of dusk imperatively compelled the enraptured lovers to separate. The knight had urgent business to settle, early on the morrow, at his own castle, before setting out for London, to announce to the king the day fixed for the espousal, and to beg from the monarch the fulfilment of the promise he had made, to be present in person with his court, at the wedding of his gallant and faithful vassal. The knight was therefore forced to depart ere the gloom advanced; for

though his journey lay in a friendly and peaceful country, it was not the habit in those days to be abroad much after dusk, without an efficient escort.

Sir Ralph reluctantly quitted his betrothed: he made his escape moreover from the baron and the chaplain, who prayed his further tarrying, to share in another flagon of Rhenish about to be produced. The horse and dog were at the porch, and, in a few minutes, the knight had passed the drawbridge, and was in the same fair road again.

"I have known Sir Ralph from his birth," observed the baron to the chaplain, "and I love him as my own son. The king may well come here to see him wedded; for he has not a nobler, braver, or more generous knight within his realm."

"Truly, Sir Baron, he is endowed with much excellence," replied the priest; "I do greatly admire his strong denunciation against the Templars and other warlike orders, who tolerate the protracted existence of that band of murderers in the past who have their daggers ever pointed against the sons of the Church. Sir Ralph speaks on this subject like a true soldier of the Cross."

"Very true," retorted the baron, "yet I wish our chevaliers would cease to think of foreign broils and questions, and attend to affairs at home. This Rhenish is perfect: after all, wine is the only thing really good that originates beyond our seas."

Their discourse had scarcely proceeded farther, when it was suddenly interrupted by the loud howling and barking of a dog. The baron and the chaplain started up. "It is Leo, Sir Ralph's dog," exclaimed the former, "what in God's name can be the matter?" and the two rushed out.

The Lady Alianore, at her orisons above, heard the same terrible howl and bark. She instantly descended to the courtyard; as she came there, the outer gate was opened, and Leo, the knight's dog, flew past the wardour, and ran to the feet of the lady. The animal's mouth was blood-stained, and his glaring eye-balls and ruffled crest showed the extent of his fury and despair.

"Something dreadful has happened to Sir Ralph," she cried, and urged by the dog, who had seized her robe, she hurried through the gate, and crossed the drawbridge, with a rapidity those who followed could not arrest.

When the baron, his chaplain, and his domestics had proceeded a little beyond a quarter of a mile upon the road, a fearful sight met their view.

The knight lay dead upon the green sward by the side of the highway; a poignard which had effected the mortal wound, still rested fixed into his back. His body was locked fast in the embrace of the Lady Alianore, who lay senseless upon it: the dog stood by, howling piteously. No trace could be discovered of who had done the deed. No proof was there beyond the dagger itself, which was of Oriental fashion, and bore the inscription in Latin *Hoc propter verba tua*; naught beyond that and another circumstance, which went to show that the knight had been slain by an eastern enemy. The dog, as he re-entered the castle, called attention to some pieces of blood-stained rag, which, from their appearance, had dropped from his mouth; one of these, the innermost, was in texture and pattern evidently part of a Syrian garment.

The Lady Alianore did not die under this dreadful calamity: she lived to mourn. The knight was interred within the precinct of the Abbey Church of Gloucester; his tomb and effigy were in a niche at an angle of the cloisters. Here would Alianore continually come, accompanied by Leo, who, since his master's death, never left her side; here would she stop, fixedly gazing

upon the monument, the tear in her eye, and the chill of hopeless sorrow in her heart. There are, indeed, few of us, who, wandering through the interior of some noble ecclesiastical edifice, can suppress a feeling of melancholy, when we view the sepulchre of a knight of repute, who has died in his prime, in the midst of his achievements and his fame, and who, clad in the harness of his pride, lies outstretched in the marble before us. Courage and courtesy, chivalry and Christianity, are buried there—there the breast, replete with honor, the heart to feel, and the right arm to defend. The monument tells of the sudden extinguishment of some bright light that shone in a semi-barbarous age, which had its main civilization and refinement from knights and churchmen solely. If this sight would sadden a stranger soul, what must have been the deep grief of the lady as she contemplated the cold memorial of Sir Ralph, and felt that the consummation of her whole earthly comfort was there entombed! A secret sentiment that satisfied, or rather softened her mental agony, brought her again and again to the place—ay, again and again to gaze upon the grave, and then to retire into the church to long and ardent prayer.

About two years after the knight had been dead, the Lady Alianore was one morning departing through the cloisters from a visit to the tomb, when her attention was suddenly arrested by a low growl from the dog who accompanied her. She turned back, and saw two persons in the garb of foreign merchants or traders, the one pointing out to the other the knight's monumental effigy. Scarcely had she made the observation, when Leo rushed from her side, and flew at the throat of him who was exhibiting the grave; in an instant he brought him to the ground; the other endeavored to escape, but some sacristans who heard the noise, hastened to the spot, and the men were arrested.

On examination, the two pretended merchants were found to wear eastern habilaments beneath their long gowns, and the cloth of the turban was

concealed under the broad brimmed hat of each. They both had daggers, and upon the arm of the one the dog had seized, there was the deep scar of what seemed to be a desperate bite. Further proof became needless, for when every chance of escape was gone, they made a full confession, and appeared to glory in it. They were emissaries from the Old Man of the Mountain. The one on a previous occasion had journeyed from the far east to do his fearful master's bidding, and had stabbed the knight in the back, on the evening he rode in his gladness from the abode of his affianced bride. The fanatic himself narrowly escaped destruction at the time; for the dog had fixed his teeth into his arm, and it was only by allowing the flesh to be torn out, (his dagger was in his victim,) that he contrived to reach a swift Arabian horse, which bore him from the scene. He had since returned to Phoenicia, and had once more come to England, bringing with him a comrade to remove a doubt expressed by his master, and to testify to the monarch of the Mountain how effectively his object had been accomplished.

The Baron de Botetourt, with the assent of the crown, caused the two miscreants to be hanged upon a gibbet on the summit of his castle, their turbans tied to their heels. Leo, as if he had nothing more to live for, soon after pined and died. The Lady Alianore, retired into a convent, and eventually became its abbess. During the course of her monastic life, she preserved in silence her undying regret for the knight, and the recollection of her happiness, so miserably thwarted. She was always kind and gentle, yet always also dignified and reserved. On her death-bed, she requested that her remains might be interred in the Abbey of Gloucester, nigh unto the tomb of Sir Ralph de Sudley, and that her monumental tablet should contain no more than her name and state, and an inscription pointing out the extreme vanity of all human felicity. Such a memorial, it is said, was, until entirely effaced by time, to be seen, read, and thought upon, within the cloisters of Gloucester's time-honored and sanctified cathedral.

*** END OF THE PROJECT GUTENBERG EBOOK THE
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